

The History of the Post Office in British North America

William Smith

Project Gutenberg

The History of the Post Office in British North America

William Smith

Project Gutenberg

The Project Gutenberg eBook of The History of the Post Office in British North America

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The History of the Post Office in British North America

Author: William Smith

Release date: August 29, 2011 [eBook #37238]

Language: English

Other information and formats: www.gutenberg.org/ebooks/37238

Credits: Produced by Adrian Mastronardi, Katherine Becker, The Philatelic Digital Library Project at <http://www.tpdlp.net> and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/Canadian Libraries)

*** START OF THE PROJECT GUTENBERG EBOOK THE HISTORY
OF THE POST OFFICE IN BRITISH NORTH AMERICA ***

THE HISTORY OF THE POST OFFICE IN BRITISH NORTH AMERICA

CAMBRIDGE UNIVERSITY PRESS

C. F. CLAY, MANAGER

LONDON : FETTER LANE, E.C. 4



NEW YORK : THE MACMILLAN CO.

BOMBAY
CALCUTTA } MACMILLAN AND CO., LTD.
MADRAS

TORONTO : THE MACMILLAN CO.
OF CANADA, LTD.

TOKYO : MARUZEN-KABUSHIKI-KAISHA

ALL RIGHTS RESERVED

THE HISTORY
OF THE POST OFFICE IN
BRITISH NORTH AMERICA

1639-1870

BY

WILLIAM SMITH

SOMETIME SECRETARY OF THE POST OFFICE DEPARTMENT OF CANADA

CAMBRIDGE

AT THE UNIVERSITY PRESS

1920

**PRINTED IN GREAT BRITAIN BY
RICHARD CLAY & SONS, LIMITED,
BRUNSWICK ST., STAMFORD ST., S.E. 1,
AND BUNGAY, SUFFOLK.**

PREFACE

My purpose, in the searches for material which led to the present volume, has been to give as complete an account as it lay in my power to do, of the beginnings and growth of the Canadian post office, with which I was associated for thirty-six years. As my studies progressed, however, I found it would be necessary to widen my field.

The Canadian post office did not come into being as an independent organization. It was but the extension into newly-acquired territories, of a system which had been in operation for nearly three-quarters of a century, with well-established modes of administration. Obviously, either reference should be made to well-known works on the older colonial postal system, or an account of it must be attempted in this volume.

Although careful studies of some aspects of this history have been made, this part of colonial history has, on the whole, received less of the attention of students than has been devoted to throwing light upon other phases of that history; and, what was important for my purpose, little has been done in the way of describing the relations between the colonial postal system and the general post office in London, to which it was subordinate.

The materials for this portion of the history are to be found in the records of the general post office, London, the British Museum, and in the journals of the colonial legislatures. A very interesting document is Franklin's Account Book, which is in the Boston Public Library.

The materials for the history of the post office in the provinces now composing the Dominion of Canada, are in the records of the general post office, the larger portion of which have been transcribed for the Public Archives of Canada; in the correspondence between the colonial governors and the colonial office, which can be found either in the original or in transcripts in the Public Archives, and in the Journals of the Provincial Legislatures.

In the preparation of the chapter on the postal service of Newfoundland, I had the advantage of a rather close acquaintance with that service, due to my having had charge of it some years ago for a period of several months. The material on which the chapter is founded has been gathered from the records of the general post office, and the legislative papers of the colony.

In collecting my material, I have received ready assistance from all to whom I have applied. To all these my hearty gratitude is tendered. A word of special acknowledgment is due to Mr. Edward Porritt, author of *The Unreformed Parliament of Great Britain*, who kindly read the manuscript, and to whose experience I am indebted for many valuable suggestions.

WILLIAM SMITH.

August 1920.

CONTENTS

	PAGE
<u>CHAPTER I</u>	1
Beginnings of postal service in former American colonies.	
<u>CHAPTER II</u>	18
Colonial post office under Queen Anne's act—Early packet service.	
<u>CHAPTER III</u>	37
Communications in Canada prior to the Conquest—Extension of colonial postal service to Canada—Effects of colonial discontents on post office.	
<u>CHAPTER IV</u>	58
The post office during the Revolution—Its suppression.	
<u>CHAPTER V</u>	74
Beginnings of exclusively Canadian postal service—Administration of Hugh Finlay—Opening of communication with England by way of Halifax—Postal convention with United States.	
<u>CHAPTER VI</u>	96

Administration of George Heriot—
Extension of postal service in Upper
Canada—Irritating restrictions imposed
by general post office—Disputes with
the administrator of the colony.

CHAPTER VII 114

Administration of Daniel Sutherland—
Postal service on the Ottawa river, and
to eastern townships—Ocean mails.

CHAPTER VIII 131

Postal conditions in Upper Canada—
Serious abuses—Agitation for
provincial control.

CHAPTER IX 153

Thomas Allen Stayner deputy
postmaster general—Restrictions of
general post office relaxed—
Grievances of newspaper publishers—
Opinion of law officers of the crown
that postmaster general's stand is
untenable—Consequences.

CHAPTER X 173

The beginnings of the postal service in
the Maritime provinces—Complaints
of newspaper publishers—Reception
given to imperial act to remedy
colonial grievances.

CHAPTER XI 193

Continuance of agitation in the
Canadas for control of the post office—
Much information obtained by

committees of legislatures—Difficulty
in giving effect to reforms.

CHAPTER XII

212

Durham's report on the post office—
Effects of rebellion of 1837 on the
service—Ocean steamships to carry the
mails—The Cunard contract—
Reduction of Transatlantic postage.

CHAPTER XIII

230

Diminution of powers of deputy
postmaster general—Commission on
post office appointed—Its report—
Efforts to secure reduction of postal
charges.

CHAPTER XIV

243

Continuation of account of post office
in Maritime provinces—Departmental
inquiry into conditions—Agitation for
reduced postage.

CHAPTER XV

263

Reversal of attitude of British
government on post office control—
Instructions to Lord Elgin—Provincial
postal conference—Control of post
office relinquished to colonies.

CHAPTER XVI

273

Provincial administration of the post
office—Reduced postage—Railway
mail service—Arrangements with
United States.

CHAPTER XVII

284

Canadian ocean mail service—Want of sympathy of British government therewith.

CHAPTER XVIII

302

Canadian ocean mail service (*cont.*)—
Series of disasters to Allan line
steamers.

CHAPTER XIX

316

Postal service of Manitoba, the North-
West Provinces and British Columbia
—Summary of progress since
Confederation.

CHAPTER XX

333

The post office in Newfoundland.

INDEX

347

PORTRAITS

<u>WILLIAM HENRY GRIFFIN,</u>	<i>To face</i>	
<u>C.M.G.</u>	<i>page</i>	273
<u>WILLIAM WHITE,</u>	"	284
<u>C.M.G.</u>		
<u>ROBERT MILLAR</u>	"	326
<u>COULTER, M.D.,</u>		
<u>C.M.G.</u>		

HISTORY OF THE POST OFFICE IN BRITISH NORTH AMERICA

CHAPTER I

Beginnings of postal service in former American colonies.

Benjamin Franklin relates that when the news reached America in 1763 that peace had been concluded between England and France, he made preparations to visit Canada, for the purpose of extending to it the postal service of the North American colonies, and that the joy bells were still ringing when he left Philadelphia on his journey northward. Franklin has universal fame as a philosopher and statesman, but is perhaps less widely known as one of the deputies of the postmaster general of England. He had, however, a long and useful connection with the post office a quarter of a century before this time. He was appointed postmaster of Philadelphia in 1737,^[1] and for many years combined the duties of this office with that of newspaper publisher. He became deputy postmaster general in 1753.^[2] Canada had been in the hands of the British since 1760, and until a regular system of government was established in 1764, its affairs were administered by a military council, which among other matters provided a rudimentary postal service. The merchants of Quebec were desirous of a regular post office; and, owing to Franklin's promptness, the post office was the first of the institutions of government which was placed on a settled footing after Canada became a British province.

On arriving at Quebec, Franklin opened a post office there with subordinate offices at Three Rivers and Montreal,^[3] and established a monthly service between the Canadian post offices and New York, arranging the trips so that the courier should make as close connection as possible with the packet boats which sailed monthly each way between New York and Falmouth, England.

The postal system into which Canada was thus incorporated was of vast extent. It stretched from the river St. Lawrence to Florida. New York was its pivotal point, the mail couriers running north and south connecting there

with one another, and with the packets from England. The system was under the control of two deputies, of equal authority, one of whom was Franklin, and the other John Foxcroft. As this system had a long history when Canada came to be comprised in it, it seems essential to a proper presentation of the subject that a sketch of that history should be furnished.

The first notice of a post office in North America appears in the records of the general court of Massachusetts Bay for the year 1639. The colony was just ten years old. Letters from home, always eagerly looked for, were then awaited with double anxiety in view of the distracted state of England.

King Charles was at this time midway in the course of his great experiment in absolute government, which ten years before had driven these people from their homes, and ten years later was to carry him to the block.

Some effective arrangement for the exchange of correspondence between New and Old England was a necessity. Until 1639 there was none. On the English side, it was the practice for sea captains, who intended making a trip to America, to give public notice of the fact, and to place a bag for the reception of letters in one of the coffee houses. On the day of sailing, the bag was closed and taken on board the vessel to America.

It was at this point that the scheme failed. There was no one in America charged with the duty of receiving and distributing the letters; and consequently, many letters were misdelivered, and many not delivered at all. It was to provide a remedy for this state of things that an ordinance^[4] was passed on the 5th of November, 1639.

By this ordinance public notice was given that all letters from beyond the seas were to be taken to the tavern kept by Richard Fairbank, in Boston, who engaged that they should be delivered according to their addresses. He was to receive a penny for every letter he delivered, and was to answer for all miscarriages due to his neglect. The Fairbank's tavern was a resort of some prominence. Through the correspondence of the time, it appears as the meeting place for various committees of the colony, and returns to the surveyor general were ordered to be made at Fairbank's in 1645.

The ordinance of 1639, besides giving directions for the receipt and delivery of letters coming to Boston from beyond the sea, also authorized

Fairbank to provide for the despatch of letters posted at his house, and addressed to places abroad. He was licensed to receive letters from the citizens of Boston for transmission across the sea; but the ordinance laid it down carefully that "no man shall be compelled to bring his letters thither unless he please."

This proviso is quite in keeping with the spirit of the time. At present and for more than two centuries past, the exclusive right of the post office to engage in the conveyance of letters is conceded without question. But at that time, its claims to a monopoly in letter carrying were contested on all sides.

Indeed anything presenting the appearance of a monopoly found small favour. The natural jealousy with which every claim to exclusive privilege is viewed, was heightened to the point of hatred during the struggle for constitutional government, by the fact that trading monopolies which were granted to courtiers, not only enhanced unreasonably the price of many of the necessities of life, but also furnished the means, which enabled the king to pursue his illegal and arbitrary courses in defiance of parliament.

The privy council in England had adopted in 1635 a scheme for the administration of the post office, one of the features of which was the bestowal upon it of the sole right to carry on the business of conveying and delivering letters in England. This was contested in the courts, and in 1646 was pronounced illegal.

The claim had received an earlier blow at the hands of the long parliament, which in 1642 condemned the post office monopoly. The arguments for monopoly, however, were not long to be gainsaid; and when Cromwell took up the question of the post office, and passed a comprehensive act on the subject in 1656, the monopoly as regards the conveyance of letters was conferred on the post office in express terms.

This act was confirmed after the Restoration in 1660; and the post office has remained undisturbed in the enjoyment of its monopoly since that date. In the North American colonies, the post office monopoly was never popular, though, owing to the ease with which it was evaded, it was regarded with indifference until close upon the war of the Revolution.

In 1663, the English government began to see the necessity for a postal service between England and its colonies in America. On the 1st of June of that year, the king wrote to the governor of Barbados^[5] that it had become a matter of daily complaint that there was no safe means of communication with Virginia, New England, Jamaica, Barbados and other colonies in America; and he directed the governor to establish a post office within Barbados and the Caribbee Islands.

The post office was to be under the control of the postmaster general of England, to whom the accounts should be sent; and the rates of postage were to be the same as those fixed for England by the act of 1660. Nothing seems to have been done at this time towards establishing a post office in either Virginia or New England.

So far as the interests and convenience of the people of New England were concerned, these in no way suffered from the lack of attention on the part of the home government. The coffee house on the one side, and the tavern on the other, with the vessels passing between as often as business warranted, answered every reasonable demand.

In Virginia it would not appear that the legislature at this period took any steps towards providing a place of deposit and delivery, such as Fairbank's, for letters passing between the colonists and their correspondents beyond the sea. But the want of this convenience caused little restriction on the exchange of letters by means of the trading vessels which visited Jamestown.

New York contained the only other considerable group of settlers at this time. It was a recent acquisition, having passed into the hands of the English in 1664. The Dutch, the former possessors, had arrangements for the exchange of letters with Amsterdam, not dissimilar from those in force in New England. In 1652 the Dutch West India Company informed their director general in New Amsterdam, that having observed that "private parties give their letters to this or that sailor or free merchant, which letters to their great disadvantage are often lost through neglect, remaining forgotten in the boxes or because one or the other removes to another place," they had a box hung up at their place of meeting in which letters

might be deposited for despatch by the first vessel sailing; and they directed that the same step might be taken in New Netherland.^[6]

Seven years later, finding that the people of New Netherland persisted in disregarding the measures taken for the safety of their letters, the company repeated their order, and reinforced it by a fine of one hundred Carolus guilders for each infraction.^[7]

For some years after 1664, the trade between England and its new possession was of small proportions, and the opportunities for sending letters from one to the other, few. Lord Cornbury, as late as 1702,^[8] informed the Lords of Trade that there were so few vessels running between New York and ports in England that he had to depend for his correspondence on Boston or Philadelphia, which places had regular communication with the mother country.

Nor was the case of New York materially improved in 1708. Cornbury, in that year, pleaded with the board of trade for a regular packet service to some part of the American continent. Sometimes many months elapsed, without his hearing in any way from home. Before he received his last letters in May, he had heard nothing from England for fifteen months.

There were but two safe ways of sending letters to England, which were the Virginia fleet, and the Mast fleet of New England. From Virginia there was no post, and it was very hard to know when that fleet would sail. From Boston there was a post by which Cornbury could hear once a week in summer, and once a fortnight in winter, so that they had a sure conveyance by the Mast fleet. Advantage had to be taken, as opportunity offered, Cornbury informed the board of trade, of the packets running from the West Indies to England, but as several of the packet boats had been captured, this was a very uncertain mode of communication.

But, although the three groups of colonies had each its own connection with England, until 1672 there was no connection whatever between these groups. Nor was any thought to be necessary. The groups were separated from one another not only by space, but by social and political differences.

The Puritans of New England and the Cavaliers of Virginia, had little in common but the memories of a quarrel, which was still warm; and New

York was still largely Dutch, though even at that date it was taking on the cosmopolitan character, which has since distinguished it.

As for the trade of the colonies, Mr. Woodrow Wilson stated—"the main lines of trade run straight to the mother country, and were protected when there was need by English fleets. Both the laws of parliament and their own interest bound the trade of the colonies to England. The Navigation Act of 1660 forbade all trade with the colonies except in English bottoms; forbade also, the shipment of tobacco any whither but to England itself; and an act of 1663 forbade the importation of anything at all except out of England, which it was then once for all determined must be the entrepôt and place of staple for all foreign trade. It was the Dutch against whom these acts were aimed."^[9]

As has happened so often, however, that which could not be accomplished by reason of the feebleness of the common interest was brought about by the presence of impending danger. In 1672, war broke out between the English and the Dutch, the object of which was maritime supremacy and colonial expansion. The stakes were the colonies in Africa, the East Indies, the West Indies and America.

The English having ousted their rivals from New York presented a strong front on the North American continent; and the only thing lacking was cohesion among the several colonies. At the outbreak of the war, the king directed governor Lovelace, of New York, to see what could be done towards establishing a regular postal communication between the colonies.

Lovelace arranged for a monthly service by courier between New York and Boston.^[10] There was no road between the two places; and governor Winthrop was asked to provide an expert woodman, who would guide the courier by the easiest road.

The courier was directed to blaze the route, and it was hoped that a good road might be made along the route pursued. The courier made his trips for a few months only, when New York was captured by a Dutch fleet which came suddenly upon it. The town was restored to the English at the conclusion of the war in 1674, and with the disappearance of the danger, the communication also was dropped.

A few years later danger of a more serious character threatened from another quarter, and again the colonies were compelled to recognize the necessity of yielding something from the attitude of jealous independence, which characterized them. Between the English colonies and the French in Canada there was a steady rivalry for the possession of the fur trade of the Western country. Each had Indian allies, whose methods of warfare carried terror among their opponents.

The English were in numbers very much superior to the French; and if united and determined could have overwhelmed them. The unwillingness of the English to take any action in common was costing them dearly, as the outlying parts of all the colonies were being constantly harassed by the Indian tribes in league with the French.

In 1684 a conference took place at Albany between the representatives of the several colonies and of the Iroquois nations. This conference was important in several respects, but particularly in the fact that it was the first in which all the colonies took part. Even remote Virginia sent a delegate.

While the colonies were in this mind, Colonel Dongan, governor of New York, determined to make an effort to establish a permanent postal service among them. His plan was to establish a line of post houses along the coast from the French boundaries to Virginia. The king, who was much pleased with the proposition, directed Dongan to farm out the undertaking to some enterprising contractor, for a period of three or five years, and to turn over at least one-tenth of the profits to the Duke of York.^[11]

The duke appears to have had a claim on the revenues of the post office on two grounds. He was proprietor of the colony of New York; and under the post office act of 1660, he was recognized as entitled to a share in the profits from the English post office.

How far Dongan succeeded with this extensive scheme does not appear. He planned to visit Connecticut, Boston, and, if possible, Pemaquid. In March 1685, he had an ordinance adopted in the council of New York for a post office throughout the colonies, and fixed the charges for the conveyance of letters at threepence for each hundred miles they were carried, and for the hire of horses for riding post, threepence a mile.

Dongan's jurisdiction did not, however, extend beyond the colony of New York; and the records of the other colonies are silent as to their acquiescence in this arrangement. The only evidence that has appeared as to the operation of the service, and it establishes the fact that the service was performed for a time at least, is that Leisler, an insurrectionary leader, who seized the government of the colony in 1689, arrested the mail carrier on his way from New York to Boston, and confiscated his letters.^[12]

In July 1683, a weekly post was established in Pennsylvania. Letters were carried from Philadelphia to the Falls of Delaware for threepence; to Chester for twopence; to New Castle for fourpence; and to Maryland for sixpence.^[13]

As part of the scheme of James II for the confederation of the New England States under a royal governor, a postmaster was appointed for the united colonies. The choice fell upon Edward Randolph, who had just previously been made secretary and registrar of the new province. The appointment was dated 23rd of November, 1685.^[14] He seems to have discharged the duties of postmaster^[15] until the fall of the Andros government, which followed closely the deposition of James II in 1689.

Until this time, then, the post office would be classed generally among the merely temporary conveniences of the state, and not among its permanent institutions. When William III was settled on his throne, he managed, amid his cares at home and abroad, to give some attention to the affairs of the colonies. Those in North America had been growing rapidly, and at the end of the period of the revolution in England, the population is believed to have been about 200,000.

The greater part of the increase was in the middle states of New York, New Jersey and Pennsylvania; though in the south, the colonies of Maryland and Virginia showed considerable gain, and a beginning was made in the settlement of the Carolinas.

The question of providing the American colonies with a postal system was submitted to the king by Thomas Neale, Master of the Mint, who coupled his representations on the subject with a petition for authority to establish such a system in America at his own charges. He pointed out in his

memorial that there had never been a post for the conveying of letters within or between Virginia, Maryland, Delaware, New York, New England, East and West Jersey, Pennsylvania, and northward as far as the king's dominions reach in America; and that the want thereof had been a great hindrance to the trade of those parts.

The king thereupon, on the 17th of February, 1691, granted a patent to Neale, conferring upon him authority to set up one or more post offices in each of the chief ports of the several islands, plantations and colonies in America, and to carry on all the functions of postmaster, either in person or by deputy. He might collect as his own, the postage accruing from the business, the rates being fixed by the English post office act of 1660; or he was at liberty to charge such other rates "as the planters and others will freely agree to give for their letters or packets upon the first settlement of such office or offices."

In order to secure to Neale a monopoly of the postal business, the patent imposed a prohibition on any person except Neale from setting up post offices during the term of the patent, which was twenty-one years. Neale was held bound to provide an efficient service; in case of dissatisfaction, or of his failure to put the service in operation within two years, the patent was to become invalid. The consideration that Neale was to give for the patent was merely nominal; he was to remit six shillings and eightpence to the exchequer each year at the Feast of St. Michael the Archangel.

Having secured his patent, Neale sought a suitable person to act as his deputy. His choice fell upon Andrew Hamilton, an Edinburgh merchant, who after seven years' residence in New Jersey, was made governor of that province in 1692. Hamilton was a man of energy and ability; and in the difficult task of conciliating sensitive legislatures, and bringing them into agreement with his views, he had much success. It was to him that the colonies were indebted for their first effective postal system.

Neale's patent did not give him power to set up a postal service, and fix his charges without regard to the will of the people. He might either apply the rates fixed by the act of 1660; or come to terms with the people or their representatives as to the rates they would agree to pay. The latter was the alternative chosen.

Accordingly, during the year 1693, Hamilton addressed himself to the several colonial governments, setting forth his plan, and begging that they might "ascertain and establish such rates and terms as should tend to quicker maintenance of mutual correspondence among the neighbouring colonies and plantations, and that trade and commerce might be better preserved."

The colonies having responded favourably to his overtures, Hamilton prepared a draft bill, which he submitted to the legislatures for their acceptance. This bill provided for a general post office or chief letter office in the principal town of each colony, the postmaster of which was to be appointed by Hamilton. The monopoly conferred on Neale by his patent was enforced in the proposed bill by considerable penalties for infringements.

The postal charges, as well as the privileges and appurtenances to be granted to post masters and mail couriers, were discussed between Hamilton and the several legislatures. There was some variety in the privileges allowed to postmasters and couriers. In Massachusetts, Pennsylvania, and Connecticut, the mail couriers were granted free ferriage over the rivers and other water courses which lay along their routes. In the acts passed by New York and New Hampshire, there was no mention of free ferries, but in each of these acts a rather peculiar exemption is made in favour of the postmasters, that they should not be subject to excise charges on the ale and other liquors which formed the stock in trade of their business as innkeepers.

The postmasters in all the colonies were made exempt from all public services, such as keeping watch and ward, and sitting on juries. Shipmasters on arriving at a port with letters in their care were enjoined to deliver them to the nearest post office, where they would receive one halfpenny for each letter.^[16]

The principal postal rates, as settled between Hamilton and the legislatures concerned were as follows: on letters from Europe or from any country beyond sea, if for Massachusetts, New Hampshire and Pennsylvania twopence; if for New York ninepence. In the interchange among the colonies themselves, the charge on a letter passing between Boston and

Philadelphia was fifteen pence, and between New York and Philadelphia fourpence-halfpenny.

There was a peculiarity in the postage on letters passing between Boston and New York. It differed according to the direction the letter was conveyed. A letter from New York to Boston cost twelvepence; while ninepence was the charge from Boston to New York. This is one of the consequences of the separate negotiations carried on by Hamilton with the different legislatures.

The Massachusetts act fixed the charge on the letters for delivery in Boston; and the New York act on the letters for New York. From Virginia, to Philadelphia, New York and Boston, the charges were ninepence, twelvepence and two shillings respectively. All the acts concurred in the stipulation that letters on public business should be carried free of charge.

The foregoing contains the substance of the acts passed by New York and Pennsylvania. Massachusetts went a step further. To that legislature it appeared desirable to put a binding clause requiring Hamilton to give a satisfactory service. Massachusetts was as willing as the others to grant a monopoly of letter carrying to Hamilton, but it was of opinion that the exclusive privilege should carry an obligation with it. The postal service was being established as a public convenience; and if Hamilton was to have the power to prevent any person else from providing the convenience, he should be bound to meet the public requirements himself.

The Massachusetts legislature, after authorizing Hamilton to settle a post office in Boston, fixing the postal charges, and conferring a monopoly on him, accordingly added a clause binding Hamilton to maintain constant posts for the carriage of letters to the several places mentioned in the act; to deliver the letters faithfully and seasonably; and it imposed a fine of £5 for each omission.

In order that the public might be in a position to detect any delays in the delivery of letters after they reached a post office, the postmaster was required to mark on each letter the date on which it was received at his office. New Hampshire followed Massachusetts in adding this clause to its post office acts.

The four acts were sent to London, and laid before the king in council, as all colonial acts were. The acts of New York, Pennsylvania and New Hampshire passed council and became law. On the advice of the governors of the post office, the Massachusetts act was disallowed.^[17]

The grounds for the discrimination against Massachusetts are difficult to understand. The Massachusetts act undoubtedly contained departures from the terms of the patent. But they were such departures as might be expected when an act is drawn up, by a person unlearned in the law, who, having the patent before him, aims at substantial rather than at literal conformity therewith. There can be no question that the drafts presented to the several assemblies were prepared by one person. Their practical identity establishes the fact.

There can be equally little doubt that the draftsman was Hamilton himself. The governors of the post office, who framed the objections,^[18] noted first that the patent provided that the appointment of Neale's deputy should, at his request, be made by the postmaster general; whereas the Massachusetts act appeared to appoint Andrew Hamilton postmaster general of the colonies, independently of the postmaster general of England, and not subject to the patent.

The patent required Neale to furnish accounts at stated intervals to enable the treasury to establish the profits from the enterprize. It also stipulated for the cancellation of the patent in certain eventualities. Both these terms are omitted from the act. Insufficient care was taken in safeguarding the post office revenue, and no provision was made for a successor in case of the removal of Hamilton from his position.

The points to which the post office drew attention were, as will be seen, far from wanting weight; and if they had not been pressed against the Massachusetts bill alone, would have excited little comment. But the Massachusetts general court noted and resented the discrimination. When Neale was informed of the disallowance, he begged the governors of the post office to prepare a bill which they would regard as free from objections, and to lend their efforts to have it accepted by Massachusetts.^[19]

A bill was drawn up; and Lord Bellomont, the governor of New England, was instructed to invite the favourable consideration of the Massachusetts legislature to it.^[20] The bill was laid before the general court on June 3, 1699, and it was ordered to be transcribed and read.^[21]

Five days later it came up for consideration, but it was resolved that the committee on the bill should "sit this afternoon,"^[22] and it appeared in the assembly no more. The rejection of the bill, however, was of little or no practical consequence. The post office was too great a convenience to be refused; and so it was established and conducted as if the bill were in operation, except that it had no monopoly in that colony.

But the legislature, which was evidently desirous of extending in its own way all reasonable aid to Hamilton, passed an order in 1703^[23] requiring shipmasters to deliver all letters they brought with them from overseas at the post office of the place of their arrival, for which they were to receive a halfpenny each from the postmaster. Massachusetts equally with the other colonies made an annual grant to the post office for the conveyance of its public letters.

So far the narrative deals only with the northern colonies. The proposition for a post office, however, was submitted to Virginia and Maryland as well. It would seem, however, that the mode of approaching these governments differed from that taken in laying the proposition before the northern colonies. In case of the northern colonies Hamilton dealt with the legislatures in person. The draft bill which he prepared was submitted as a basis for discussion. So far as it went it was accepted, and Hamilton agreed to such additions as the legislatures considered necessary in view of local circumstances.

Virginia and Maryland were approached quite differently. They were advised of the scheme not by Hamilton, but by the English court. In the minutes of council of both governments,^[24] it is recorded that the proposition was laid before them in a letter from the queen. This fact will account for the very different consideration the proposition received from these colonies. Maryland rejected it outright. On the 13th of May, 1695, the scheme was laid before the house of burgesses. It was set aside,^[25] and nothing more was heard of it.

Virginia gave attentive consideration to the proposition to establish a post office, though the ultimate results were no greater than in Maryland. There had been since 1658 an arrangement for the transmission of letters concerning the public affairs of the colony.^[26] An order was issued by the council that all letters superscribed for the public service should be immediately conveyed from plantation to plantation to the place and person directed, and that any delay should subject the person at fault to a fine of one hogshead of tobacco.

No arrangements of a systematic nature were made for the conveyance of private letters. When information of the patent granted to Neale reached Virginia, the colony showed immediate interest. The council on the 12th of January, 1693, appointed Peter Heyman deputy postmaster,^[27] and proceeded to draw up a post office bill. This bill, which became law on the 3rd of April 1693,^[28] authorized Neale to establish a postal system in the colony, at his own expense.

The conditions were that he was to set up a general post office at some convenient place, and settle one or more sub-post offices in each county. As letters were posted in the colony or reached it from abroad, they were to be forthwith dispersed, carried and delivered in accordance with the directions they bore, and all letters for England were to be despatched by the first ship bound for any part of that country.

The rates of postage were to be threepence a single letter within an eighty mile radius; fourpence-half penny for single letters outside the eighty mile radius; and eighteen pence for each ounce weight. Public letters were to pass free of postage. No provision was made for postage on letters addressed to places beyond the boundaries of the colony; and it was expressly stipulated that the act did not confer a monopoly on Neale. Merchants were not restrained by this act from employing the services of shipmasters and others, to carry their letters abroad.

The Virginia act of 1693 was local in its scope and provincial in its character. There is a certain simplicity in the extent of its demands as compared with the paucity of its concessions. Neale, at his own cost, was to establish a postal system, comprising a general post office at a place agreed upon, and one or more subordinate offices in each county. Couriers were to

be available to take letters anywhere within the colony—without postage if on public business, at rates fixed by the colony if they were private letters. But no person need employ the post office, should any other more convenient or cheaper mode of conveyance offer itself.

A post office, like other kindred accommodations, creates business for itself; but Virginia did not intend that Neale should have any assurance of the business he had brought into existence. As soon as it reached a point at which it was worth struggling for, a competitor might step in and deprive Neale of the fruits of his enterprise.

The act of 1693 seems to have been adopted before the colonies were made aware of Hamilton's connection with the American post office. When the council of Virginia were advised of Hamilton's appointment, they opened communication with him. The notes of the correspondence as they appear in the minutes of council^[29] do not give much information, but they show that Hamilton's proposition when submitted to council was not found acceptable; and as subsequent communications failed to remove the difficulties, matters remained as they were until after the Neale patent had expired.

In 1710, the subject was reopened, and the governor reported to the board of trade, that for two months past he had been expecting Hamilton to visit Virginia, for the purpose of opening a post office, and connecting it with the other colonies. The governor believed that the scheme was feasible, and would do his utmost to encourage it. He foresaw a difficulty in the lack of small currency, tobacco which was the only specie, being in the governor's words "very incommodious to receive small payments in, and of very uncertain value."^[30]

The line of posts established by Hamilton extended from Portsmouth, New Hampshire, to Philadelphia. Over this long line, couriers travelled with the mails weekly each way.^[31] The volume of correspondence carried cannot be ascertained, as the great mass of it, being on public business, would be free of postage. But the postage collected throughout North America during the first four years, from 1693 to 1697, was only £1456 18s. 3d., an average receipt of considerably less than £400 a year.

By way of comparison it may be noted that, in 1693, the revenue between London and Edinburgh was £500; and it was explained that nearly the whole of that amount was for government despatches. The expenses of the Portsmouth-Philadelphia service during those years were £3817 6s. 11d.^[32] The deficit of £2360 8s. 8d. fell upon Neale. Results such as these would be sufficiently discouraging. But Neale and his deputy, Hamilton, were hopeful, and drew comfort from the fact that the revenue of New York which was quite insignificant the first year had doubled itself in the third year.

At the end of the sixth year, the revenue had increased to the point at which all the expenses were met, except Hamilton's salary.^[33] In 1699, Hamilton went to England, and joined Neale in an appeal to the treasury.^[34] After pointing out the benefits accruing to the colonies from the post office—the increase in the transatlantic and intercolonial trade, the rapid diffusion of intelligence in time of war, and the facilities afforded for the delivery of public letters—they declared that unless steps were taken to secure to them the transmission of the whole, and not a mere portion of the oversea correspondence, they might be compelled to abandon the undertaking.

The plan Neale and Hamilton proposed to this end, was to put a stop to the collection of letters at the English coffee houses, and to compel the shipmasters to take all their letters from the local post office, where they would be made up in sealed bags.

Besides ensuring to Neale, by this means, the postage on all the correspondence passing between the mother country and the colonies, the measure proposed would prevent certain abuses which were incident to the existing arrangement. Where the bag hung open in a coffee house, any person might examine its contents on the pretext that he wanted to get his own letter back, and when the ship had reached its destination it was the practice of some captains to delay the delivery of the letters in their hands until they are ready to sail again, and then they got rid of their letters in any way they could.

If the mails were made up in post offices, and the captains were compelled by law to deliver them to the post office at the port of destination before

they broke bulk, these evils would be corrected, and a large revenue now lost to the post office would be saved.

Neale and Hamilton also submitted a revised tariff of postal charges, in which there was a general increase. The postmasters general in England rather deprecated the increased postal rates, stating that experience had taught them that low rates were found to be more productive of revenue than those which placed the post office beyond the reach of the mass of the people. They approved of the suggestion that post offices should be established in England for the handling of oversea mails, and hoped that a few years of good management would make the service a remunerative one.

At this point the postmasters general in London threw out a suggestion, which was worth discussion. They doubted whether a post office in private hands would ever commend itself to the colonies in the same way as if it were directly in the hands of the king. The post office depended for its prosperity on the maintenance of its monopoly, a thing naturally distasteful. The monopoly was easily evaded, even if the colonial governments supported it heartily, but any lack of inclination on their part would leave it valueless. They were of opinion that it would require all the authority possessed by the king to induce the colonial governments to co-operate with the heads of the post office in the efforts of the latter to put the service on a sound footing.

Neale, who was sinking deeper and deeper into debt, seized on this expression of opinion, and offered to surrender his patent at any time, on such consideration as seemed just. The treasury, however, were not yet ready to take over the American posts, but they directed the postmasters general to give Hamilton every assistance in their power, and requested the governors of the colonies to do the same, adding that when the value of the post office could be ascertained, they would give the question of the resumption of the patent, further consideration.

Neale's indebtedness to Hamilton for salary now amounting to £1100, he assigned his patent to Hamilton, and to one Robert West, who had made some advances to Neale some years before. The new patentees besought the government to extend their term, which in ordinary course would expire in 1712. Their confidence in the eventual success of the scheme, however,

suggested to the postmasters general that the time was now ripe for the crown to take back the patent, and manage the postal service through the general post office in England.

The transfer was made; and John Hamilton,^[35] son of the founder of the American post office, who died in 1703, was entrusted with the management of the service, as the deputy of the postmaster general. The results were no better than when the service was privately administered. In 1709, there was a yearly deficit of £200; and as the queen would not allow her losses on this head to be augmented, the postmasters were not being paid.^[36]

The postmaster of New England made a strong representation to the government of Massachusetts, pointing out that he had received nothing from the government since 1706, although he had saved the colony £150 a year by the delivery of the public letters. The remonstrance was fruitless, and he renewed his application in 1711. The legislative council on each occasion was prepared to pay what was due to the postmaster, but the assembly could not be brought to authorize it.

FOOTNOTES:

^[1] Parton, *Life and Times of Benjamin Franklin*, I. 240.

^[2] *Ibid.*, p. 330.

^[3] G.P.O., *Treasury Letter-Book*, 1760-1771, p. 95.

^[4] *Coll. Mass. Hist. Soc.*, third series, VII. 48.

^[5] *Calendar of State Papers, America and West Indies*, 1661-1668, no. 463.

^[6] *New York Colonial Documents*, XIV. 186.

^[7] *Ibid.*, p. 446.

^[8] *N. Y. Col. Docs.*, IV. 1017.

^[9] *A History of the American People*, II. 16.

^[10] *Coll. Mass. Hist. Soc.*, fifth series, IX. 83-84.

^[11] *Cal. S. P. Col. Am. and W. I.*, 1681-1685, no. 1848.

- [12] *N. Y. Col. Docs.*, III. 682.
- [13] Winsor, *Narr. and Crit. Hist of Am.*, III. 492.
- [14] *Edward Randolph*, I. 270 (Publications of the Prince Society).
- [15] Samuel Sewall to Thomas Glover, July 15, 1686 (*Sewall Letter-Books*, I. 21).
- [16] The several colonial acts were as follows: New York, passed November 11, 1692 (*Laws of Colony of N. Y.*, I. 293); Massachusetts, June 9, 1693 (ch. 3, 1 sess. *Province Laws*, I. 115); Pennsylvania, May 15, June 1, 1693 (*Duke of York's Laws*, p. 224); New Hampshire, June 5, 1693 (*N. H. Prov. Laws*, p. 561); Connecticut, May 10, 1694 (*Pub. Rec. of Conn.*, 1689-1706 p. 123).
- [17] Note to this effect attached to the act (ch. 3, 1 sess. 1693, *Province Laws*, I. 117).
- [18] *Cal. S. P. Col. Am. and W. I.*, 1693-1696, no. 2234.
- [19] *Cal. S. P. Col. Am. and W. I.*, 1696-1697, no. 505.
- [20] *Ibid.*, no. 1286.
- [21] *Prov. Laws of Mass.*, I. 263.
- [22] *Ibid.*, p. 420.
- [23] *Coll. Mass. Hist. Soc.*, third series, VII. 64.
- [24] Minutes of council, Virginia, January 12, 1693, *Cal. S. P. Col. Am. and W. I.*, 1693-1696, no. 21; minutes of council, Maryland, September 24, 1694, *ibid.*, no. 1339.
- [25] Minutes of council, Maryland, *ibid.*, no. 1816.
- [26] Hening's *Statutes at Large*, I. 436.
- [27] Minutes of council, Virginia, *Cal. S. P. Col. Am. and W. I.*, 1693-1696, no. 20.
- [28] Hening's *Statutes at Large*, III. 112; *Journals of the House of Burgesses*, 1659/60—1693, pp. 444-446.
- [29] Minutes of council, Virginia, May 25, November 10, 1693; October 19, 25, 1694; May 3, July 25, 1695; *Cal. S. P. Col. Am. and W. I.*, 1693-1696, nos. 371, 671, 1430, 1454, 1804, 1975.
- [30] *Spottswood Letters* (published by Virginia Hist. Soc.), I. 22.
- [31] Minutes of council, New Hampshire (*N. H. Prov. Papers*, 1686—1722), p. 100.
- [32] G.P.O., *Treasury*, II. 256.
- [33] *Cal. Treasury Papers*, 1697-1702, p. 289
- [34] G.P.O., *Treasury*, II. 253.

[35] G.P.O., *Treasury*, VI. 205. John Hamilton was appointed deputy postmaster general by the queen in 1707.

[36] *Coll. Mass. Hist. Soc.*, third series, VII. 69.

CHAPTER II

Colonial post office under Queen Anne's act—Early packet service.

For some years various circumstances had been arising which made it necessary that the post office in Great Britain and the colonies should be established on a footing different from that on which it then stood. The legislative union between England and Scotland in 1707 called for a uniform postal service throughout Britain; but without additional legislation the postmaster general of England could not dispose of the revenues of the post office in Scotland.

The colonies were in their infancy when the English law of 1660 was enacted, and they were not mentioned in it at all. The only clause in that act which affected the colonies in any way was that which required all masters of ships who brought letters with them from beyond the seas, to deposit them at the nearest post office. There was no penalty attached to the disregard of this clause, and the attempt to induce the shipmasters to obey the law by paying them a penny for every letter they delivered in the English post office was pronounced by the auditors to be illegal, and there was a threat made that these payments would be disallowed in the accounts.

There were a number of other circumstances arising out of the growth of the kingdom and its colonial expansion, which compelled the postmaster general to take action in advance of legal authority. When the treasury, after the union of England and Scotland, learned that a new post office law was necessary, they determined to take advantage of the fact to serve their own purposes. The war of the Spanish Succession, which began in 1702, while ruinous to France, also seriously crippled England; and the treasury saw that the enactment of a new post office act might be utilized to increase the postal charges, and additional sums raised for carrying on and finishing the war.

In 1710, accordingly, a post office bill was presented to parliament.^[37] It was passed by parliament; and this act was the first measure which dealt in a comprehensive way with the British post office. Substantially it was the law of the post office for more than a century afterwards.

The effect of the new law on the colonial post office was profound. Until 1710 the terms and conditions under which the post office in the colonies was operated, were matters of arrangement between Hamilton and the several legislatures. While the Neale patent enabled Hamilton to set up post offices in the colonies, the postal charges were fixed by the colonial legislatures at such rates as "the planters shall agree to give."

The Neale patent had been resumed by the crown in 1706, but not abrogated. Hence, until the new act came into force, the crown simply stood in the place of the patentees, and operated under the legislation agreed upon between Hamilton and the colonial governments. New York and Pennsylvania, as their short term acts expired, renewed them with the crown; and New Jersey, which established a postal system in 1709, fixed the rates of postage by act of the legislature, but placed the management of the service in the hands of the postmaster general.

The post office act of 1710 made it no longer necessary to consult the colonial legislatures as to the charges to be made for the conveyance and delivery of letters in North America. The supreme control of the postal system throughout the British dominions, beyond the sea, as well as at home, was vested in the postmaster general of England. The rates of payment were fixed by the act, and the mode in which the surplus revenues were to be disposed of was set forth in the same enactment.

In America, the general post offices at Boston, New York and Philadelphia, which stood quite independent of one another, were reduced to the rank of ordinary offices, and made parts of the system, the headquarters of which were placed by the act in New York.^[38] The administration of the system, as reconstructed, was continued in the hands of John Hamilton.

As in all other parts of the British dominions, the rates of postage were sensibly increased.^[39] Under the Neale patent, a letter from New York for Philadelphia cost fourpence-halfpenny. The act of Queen Anne raised the

charge to ninepence, just double the former rate. A letter posted in Boston, and addressed to Philadelphia, which under the Neale patent cost for postage fifteen pence, cost twenty-one pence under the act of 1710. But these figures give no adequate idea of the magnitude of the postal charges as fixed by the act of Queen Anne.

An explanation of the system to which these rates applied will make the matter clearer. At the present time the postage on a letter passing anywhere within the British Empire, or from Canada to any part of the United States or Mexico, is two cents per ounce weight, whether the letter is addressed to the next town or to the farthestmost post office in the Yukon.

In 1710, and indeed in Canada until 1851, the distance a letter was carried was an element which entered into the cost. It would have been thought no more proper to ignore the element of distance in fixing the postage on a letter than in fixing the charge for the conveyance of a parcel of goods. By the act of 1710 the postage on a single letter passing between two places sixty miles apart or less was fourpence; where the places were from sixty miles to one hundred miles apart the charge was sixpence.

Besides the distance, however, there was another factor which helped to determine the amount of the postage. This factor will appear from a description of the classes into which letters were divided.

Letters were single, double, and treble, and ounce. A single letter was one consisting of one sheet or piece of paper, weighing less than one ounce. If with this single sheet letter, a piece of paper was enclosed, no matter how small, the letter was called a double letter. The treble letter was a letter consisting of more than two sheets or pieces of paper, under the weight of an ounce.

Whatever the postage of a single letter might be, the postage on a double letter was equal to that of two such single letters; and that on a treble letter was three times that on a single letter. There were no envelopes in use at this period, and the sheet on which the letter was written was so folded that an unwritten portion came on the outside, and on this space the address was written.

The question will occur as to how the presence of enclosures could be detected among the folds of the larger single sheet. There were several means of detection born of ingenuity and experience. The approved method and the one long in service, was to hold every letter up to a lighted candle, and by some skilful manipulating, the taxable enclosures could be seen.

But it was not only enclosures to which the attention of the officials was directed. The postal charges were found so oppressive that several merchants who had letters to send to the same town used to write their several communications on the same sheet, which on reaching the person addressed was by him passed on to the others, whose letters were on the same sheet.

In the post office the practice was much condemned. As it was not specifically provided against in the act, it had to be tolerated until the act was amended; and thereafter when several letters were written on one paper, each was to be charged as a distinct letter. The letter inspectors then had to satisfy themselves that there was no more than one person's handwriting in the sheet, which was, of course, carefully sealed with wax.

The ounce letter needs no explanation. At present the ounce is the unit of weight for letters sent from Canada to every part of the civilized world. In this aspect it corresponds with the single letter of the pre-penny postage days. But the ounce letter of 1710 and of over a century afterwards was far removed from the single letter in the matter of postage.

In that respect the ounce letter was equal to four single letters, and was charged four times the rate of the single letter. Thus, while a single sheet weighing less than an ounce could pass between two neighbouring towns not over sixty miles apart for fourpence, if it tipped the ounce weight it was chargeable with sixteen pence.

The act of 1710 offered a problem to the paper makers. A sheet of paper had to be made stout enough to stand the handling of the post office without the protection of an envelope, and be yet so light as to allow the largest space possible within the ounce weight.

Under this system, in which distance, number of enclosures and weight were all factors, the charges for letters, such as are posted by thousands in

our larger offices every day, were very high. An ounce letter, which at the present time costs but two cents to convey to the remotest post office in the North West of Canada, or to Southern Mexico, in 1710 cost three shillings to carry from New York to Philadelphia. From New York to Boston, the postage on the same letter was four shillings. Between the outermost points of the North American postal system in 1710—Portsmouth, N.H., and Charlestown, N.C.—the postage for an ounce letter was ten shillings.

The act of Queen Anne's reign, so long the charter of the British postal system, also greatly increased the charges on letters passing between the mother country and the colonies. In place of the penny or twopence which satisfied the captains for the delivery in America of the letters which had been placed in the letter bags hung up in the London coffee houses, the postage on a single letter passing from London to New York became one shilling. If the letter weighed an ounce, the charge was four shillings.

Captains of vessels, moreover, were no longer at liberty to disregard the requirements of the post office that they should deliver their letters at the post office of the port of arrival. If they failed, they laid themselves open to a ruinous fine.

Remembering the resentment with which half a century later the Americans greeted every scheme, which could be construed into imposing a tax without their consent, one wonders how the post office act of 1710 was regarded in the colonies.

The question is interesting enough to warrant some inquiry. The legislative records have been searched carefully, and also, so far as they were available, the newspapers of the period. With one exception about to be mentioned, the only reference to the post office act which has been discovered is in the New Hampshire records. There it is stated that the act was read before the council on the 13th of September, 1711, and afterwards proclaimed by beat of drum in the presence of the council and of some members of the house of representatives.

The case in which the act came into question occurred in Virginia. This colony had no post office in 1710, nor for a considerable period afterwards; and it was the attempt to put the post office in operation in 1717 which led to the protest and the countervailing action.

Virginia seems to have had no desire to be included in the American postal system. In 1699 Hamilton reported on the proposition of extending the system southward to Virginia.^[40] The extension would cost £500; and Hamilton declared that the desire for communicating with the northern colonies was so slight that he did not believe there would be one hundred letters a year exchanged between Virginia and Maryland and the other colonies. Practically all the correspondence of the two colonies was with Great Britain and other countries in Europe.

In the autumn of 1717, steps were taken to establish a post office in the two colonies, and to connect them with the other colonies. Postmasters were appointed in each colony. Couriers carried the mails into several of the more populous counties; and a fortnightly service was established between Williamsburg and Philadelphia. This was quite satisfactory, until the people began to read the placards which they observed affixed to every post office wall, directing that all letters, not expressly excepted by the act of parliament, should be delivered to the local postmasters. Here was matter for thought.

A glance at the tariff showed that the charge made by the post office on a letter from England was one shilling for a single letter. The letters from England were the only letters the people of Virginia cared anything about, and they were accustomed to pay only a penny as postage for them.

There was some little trouble, and perhaps a slight risk attending the safe delivery of letters by the existing arrangement. Virginians were, however, used to it, and had no great fault to find. It might be that if they could have received their letters at the post office for the same charge as they paid for receiving them direct from the ship captains, they would have preferred going to the post office.

But the difference in convenience between the two places of receipt was not worth the difference between one penny and one shilling; and indeed it looked uncommonly as if the government were using this means to tax them elevenpence on every letter they received.

The people, on realizing the condition of things, made a great clamour.^[41] Parliament, they declared, could levy no tax on them but with the consent of the assembly; and besides that, their letters were all exempted from the

monopoly of the postmaster general because they nearly all, in some way or other, related to trade.

The Virginians were putting an unwarrantably broad interpretation on an exemption, which appears in all post office acts, in favour of letters relating to goods which the letters accompany on the vessel. It has always been the practice to allow shipmasters, carrying a consignment of goods, to deliver the invoice to the consignee with the goods, in order that the transaction might be completed with convenience.

It would not be practicable, however, to confine this exemption to invoices accompanying goods, as this would require a knowledge of the contents of letters, which could not be obtained without an intolerable inquisition. Consequently, it has been customary to allow all letters accompanying consignments of goods to be delivered with the goods, without asking whether they relate to the goods or not. But the scope of the exemption is clearly defined, and has never been allowed to include ordinary business letters, not accompanied by goods.

The Virginians, however, were not content to leave their case to the precarious chances of a legal or constitutional argument. They set about neutralizing the post office act by an effective counter measure. A bill was submitted to the legislature which, while it acknowledged the authority of the post office act, imposed on postmasters giving effect to it certain conditions which it was impossible to fulfil, and attached extravagant penalties for the infraction of those conditions. The postmasters were to be fined £5 for every letter which they demanded from aboard a ship—letters of a character which the British statute exempted from the postmaster general's exclusive privilege.

Now every ship's letter bag would contain probably many letters relating to goods aboard the ship, as well as many which were in no way so related. But how was the postmaster to tell the letters accompanying goods from those which did not? Even if the ship's captain assisted to the best of his ability, which was more than doubtful, there would be many letters about which the postmaster could not be certain, and with a £5 penalty for every mistake, his position was not an enviable one.

Another clause in the bill of the legislature of Virginia contained a schedule of hours for every courier. The terms of the schedule were so exacting that compliance with it was impossible. The penalty attached to every failure to observe the hours set forth, was twenty shillings for each letter delayed.^[42] As the governor pointed out, the difficulties of travel during the winter season, owing to the number of great rivers to be passed, would subject the postmasters to the risk of a fine for every letter they accepted for transmission at that period of the year.

The bill of 1718, when sent up for the governor's assent, was promptly vetoed; but on the other hand, the intention of the deputy postmaster general to establish a post office in Virginia was not pressed. It was not until 1732, when the governor had relinquished his office, and had himself been appointed deputy postmaster general, that Virginia was included in the postal system of North America.

Even after that date the post office in Virginia was on a somewhat irregular footing, at least in regard to the conveyance of the mails. In a gazetteer published in 1749,^[43] it is stated that while regular trips are made by mail courier from Portsmouth to Philadelphia, southward to Williamsburg the courier's movements were uncertain, as he did not set out until there were sufficient letters posted for the south, to guarantee his wages from the postage on them. There was a post office at this period as far south as Charlestown, but the post carriage for that office was still more uncertain.

With the exception of the Virginian contretemps, the period from 1710 until after the middle of the eighteenth century was one of quiescence. Deputy postmaster general succeeded deputy postmaster general; and the annals of their administrations carry little that is interesting. After the retirement of Hamilton in 1721, a change was made in the relations between the deputy postmaster general and the general post office, by which the post office in London was relieved of all expense in connection with the maintenance of the North American postal system.

Hamilton had a salary of £200 a year. But the profits from the post office did not quite cover that amount, as on his withdrawal, there was due to him £355 arrears of salary. In recommending the claim to the treasury, the postmaster general stated that the post office in America had been put on

such a footing that if it produced no profit, it would no longer be a charge on the revenue.^[44]

The facilities given to the public were not increased during that period. Indeed, in 1714, they were diminished, as the courier's trips between Boston and Philadelphia, which in 1693 were performed weekly throughout the year, were reduced to fortnightly during the winter months, and they remained at that frequency until 1753.

It is obvious that the post office was not used by the public any more than was absolutely necessary, and that every means was taken to evade the regulations designed to preserve the postmaster general's monopoly. Thomas Hancock, in a letter written in 1740, to Governor Talcott of Connecticut, told him that he saved the colony from forty shillings to three pounds every year, through the interest he had with the captains of the London ships, who delivered the letters to him instead of handing them over to the post office.^[45]

The line of undistinguished representatives of the British post office in America came to an end in 1753, when Benjamin Franklin was made deputy postmaster general, jointly with William Hunter of Virginia.

Franklin, besides being a man of eminent practical ability, brought to his task a large experience in post office affairs. He had been postmaster of Philadelphia for fifteen years prior to his appointment to the deputyship; and for some time before had acted as post office controller, his duty being to visit and instruct the postmasters throughout the country.

At the time Franklin and Hunter entered upon their office they found little to encourage them. The couriers who conveyed the mails were much slower than most other travellers on the same roads. It took six weeks to make the trip from Philadelphia to Boston and back, and during the three winter months, the trips were made only once a fortnight.

The new deputies so reorganized the service that the trips were made weekly throughout the year, and they shortened the time by one-half; and many other improvements were made.^[46] For a time the expenditure of the post office largely outran the revenue. But the usual rewards of additional facilities to the public followed.

In 1757, when the outlay had reached its highest point, and the public response to the increased facilities was still but feeble, the post office was over £900 in debt to the deputy postmasters general. Three years later this debt was entirely cleared off, and the operations showed a surplus of £278. In 1761 the surplus reached the amount of £494, and this sum was transmitted to the general post office in London.

The receipt of this first remittance was the occasion of much satisfaction to the postmasters general. For a generation the post office in America had been nearly forgotten. Since 1721, it had cost the home office nothing for its maintenance, and for long before that time it had yielded nothing to the treasury, and so it had been allowed to plod along unregarded.

A remittance from this source was quite unexpected, and one can imagine the pleasure with which the entry was made in the treasury book, and the words added "this is the first remittance ever made of its kind."^[47] But though the first, it was by no means the last; for until Franklin's dismissal in 1774, a remittance from the American post office was an annual occurrence. Franklin declared that, at the time of his dismissal, the American office yielded a revenue three times that from Ireland.^[48]

The success of the post office under Franklin's regime suggests the question, as to the share Franklin had in that success. During the whole course of his administration, he had with him an associate deputy postmaster general, William Hunter, from 1753 until 1761, and John Foxcroft, from 1761 until his connection with the post office ceased.

Little is known of the capacity of either of these officials; of Hunter, practically nothing. Foxcroft was certainly a man of intelligence, but nothing is known to warrant the belief that he possessed unusual qualities. That the routine of post office management was left in the hands of the associates, may be inferred not so much from the multifarious character of Franklin's activities, for he seems to have been equal to any demands made upon him, as from the fact that out of the twenty-one years of his administration, fifteen years were spent in England as the representative of the province of Pennsylvania in its negotiations with the home government.

That Franklin's occupations in England did not absorb all his time is amply proven by his voluminous correspondence which shows him to have been

engaged in abstruse speculations in science, and in economic and philosophic studies. But to administer an institution like the post office one must be on the spot, and the Atlantic ocean lay between him and his work from May 1757, until November 1762, and from November 1764, until his dismissal in 1774. Franklin was in America while the measures were taken which put the post office on an efficient footing, and again in 1763, when the treaty of Paris confirmed England in her possession of Canada.

Franklin's contribution to the North American post office consisted mainly, it would seem, in certain important ideas, the application of which turned a half century of failure into an immediate success. It is a commonplace that money spent in increased facilities to the public is sure of a speedy return with interest, and in private enterprises competition keeps this principle in fairly active employment.

This is not the case with an institution like the post office, until, at least, each new application of the principle had been justified by success. A post office is a monopoly, and at certain stages of its history that fact has been its bane. To-day when the demands of social and commercial intercourse make an efficient vehicle for the transmission of correspondence a necessity, the evils inherent in monopolies sink out of sight so far as the post office is concerned.

A peremptory public takes the place of competitors as a motive for alertness. The faults of the institution are freely exposed, and correction insisted upon; and, what is as much to the point, the public contributes of its ingenuity for the improvement of the service. When, towards the end of the eighteenth century, the British public was disgusted with the slowness of its mail carts, and dismayed at the number of robberies, Palmer, a Bath theatre manager, came forward with his scheme for the employment of fast passenger coaches for the conveyance of the mails.

A half century later the public united in a demand for lower postage rates; and Rowland Hill, a schoolmaster, produced a scheme, which for originality and efficacy, has given him a high place among the inventors of the world. To-day the Universal Postal Union affords a medium by means of which the results achieved by every postal administration are brought into a common stock for the benefit of all.

But when Franklin took hold of the North American post office, he had none of these aids to improvement. The measure of the public interest in the post office may be taken from the fact that its total revenue during the first three years of his administration, from 1753 to 1756, was £938 16s. 10d.—but little more than £300 a year.

As for encouragement or stimulus from the outside, there was none. The only connection the American post office had was with the home office; and it is doubtful whether, even if it had been disposed, the British post office could have lent any helpful advice in those days.

The British post office was at that time passing through one of its unprogressive periods. It had come to know by long years of observation what was the volume of correspondence which would be offered for exchange, and it provided the means of transmission, taking care that these should not cost more than the receipts.

Franklin's merit lay in his rising above an indolent reliance on his monopoly, and in his generous outlay for additional facilities, by means of which he not only drew to the post office a large amount of business, which was falling into other hands, but called into existence another class of correspondence altogether.

It is tolerably certain that had Franklin's work lay in England instead of America, he would have anticipated Palmer's suggestion that the stage coaches be used for the conveyance of the mails, instead of the wretched mail carts which came to be regarded as the natural prey of the highwayman.

At the beginning of 1764 the post riders between New York and Philadelphia made three trips a week each way; and at such a rate of speed that a letter could be sent from one place to the other and the answer received the day following.^[49] In reporting this achievement to the general post office, Franklin states that the mails travel by night as well as by day, which had never been done before in America.

Franklin planned to have trips of equal speed made between New York and Boston in the spring of 1764, and the time for letter and reply between the two places reduced from a fortnight to four days. When his arrangements

were completed a letter and its reply might pass between Boston and Philadelphia in six days, instead of three weeks.

As a result of these arrangements Franklin anticipated that there would be a large increase in the number of letters passing between Boston and Philadelphia and Great Britain by the packets from New York. That the fruits of his outlay answered his expectations is clear from the fact that the revenues, which up to the year 1756 had scarcely exceeded £300 a year, mounted up to £1100^[50] in 1757, and that became the normal revenue for some time after.

It was during this period that the British government began to employ packet boats for the conveyance of the mails to the American colonies. Until this time there had been no regular arrangements for the conveyance of the mails between Great Britain and the colonies. There were no vessels under specific engagement to leave either Great Britain or America at any fixed time.

This is not, of course, to say that there were no means of exchanging correspondence between England and America, or even that the post office had no control over the vessels by which letters were carried. Vessels were continually passing between Falmouth or Bristol and New York or Boston in the course of trade; and these were employed for the conveyance of mails. Sometimes the letters were made up in sealed bags by the post office before being handed to the shipmasters; and sometimes they were handed loose to the captains, or picked up from the coffee houses.

The captains were under heavy penalties to hand over to the post office all letters in their possession, when they reached their port of destination, and they were entitled to one penny for each letter so delivered to the local postmasters. By this arrangement, the cost of carrying the letters across the Atlantic fell in no degree upon the post office. Indeed, after the act of 1710, the post office made a very good bargain of the business. The postmasters paid the shipmasters a penny a letter, and the act of 1710 authorized them to collect a shilling for each letter delivered to the public.

A service so irregular had its disadvantages, however. Captains were of all degrees of trustworthiness. Some could be depended upon to deliver the letters at the post office as the law directed; others were careless or

unfaithful. These either did not deposit their letters with the postmasters promptly as they should have done, or they had private understandings with friends by which the letters did not go into the post office at all, but were delivered by the captains directly to the persons to whom they were directed.

In 1755 the board of trade called attention to the great "delays, miscarriages and other accidents which have always attended the correspondence between this kingdom and His Majesty's colonies in America, from the very precarious and uncertain method in which it has been usually carried on by merchant ships." The remedy sought was a line of sailing vessels devoted entirely to the conveyance of correspondence. Services of this class were not uncommon, although they were usually confined to a time of war. During the war of Spanish Succession, packet ships ran regularly to Holland and to France.

It was during this war when French and Spanish privateers held the southern seas, that the first line of mail packets was established, which ran to North America. In 1705, the British government contracted for five vessels of one hundred and forty tons each, to carry the mails to and from the West Indies.^[51] Each vessel was to carry twenty-six men and ten guns. The contractor was paid £12,500 a year.

A curious feature of the contract was that the contractor was required to enter into a warranty that the receipts from the vessels for mails and passengers would not be less than £8000. If they did not come up to this amount, the contractor had to make up the shortage, up to the sum of £4500 a year. The contract was for three years certain, with an additional two years if the war should last so long.

The postal business of the West Indies was comparatively large at the beginning of the eighteenth century. The receipts for the two years ending January 1706—£10,112^[52]—make the American continental business, even under Franklin's capable management, very small by comparison. In 1760 the receipts from the colonial post office of North America were only £1100. This packet service to the West Indies was maintained until the peace of Utrecht in 1713.

During the same period, repeated efforts were made by English merchants, to have a packet service to the North American colonies. In 1704 a petition was presented to the government for a mail service between England and New York.^[53] The petitioners asked that the vessels be employed for letters only, in order that by their greater speed they might outrun the merchant vessels on their homeward trips and by giving timely notice, make it possible to send out cruisers to meet the merchant vessels and escort them home in safety. They observed that, in the year before, eighteen of the Virginia fleet were captured because they had set out later than was expected.

The treasury were unimpressible. They read the memorial, and after adding to it the curt query "Whether the merchants intend to be at the charge," they dismissed it from further consideration. In 1707, the question was again brought to the attention of the treasury, and they asked Blathwayt, a commissioner of trade, to give them a report upon it.

Blathwayt was hearty in support of the proposition.^[54] He declared that "Her Majesty's plantations in America are at present the chief support of the kingdom without impairing their own proper strength and yet capable of very great improvements by their trade and other means." He pressed for the establishment of a service with trips six or eight times a year. In view of the war, however, Blathwayt considered it inadvisable to fix upon a certain rendezvous on either side of the Atlantic, as this would enhance the opportunities for interception by the enemy.

The treasury were willing to have one or two experimental trips made to ascertain what revenue might be expected from the service, if these could be secured without expense; and they accepted a proposition, made about this time, by Sir Jeffry Jeffrys, who was preparing to make two trips to New York.^[55] Jeffrys asked that his vessel might be commissioned as a packet boat, and that he might be allowed to retain the postage on all the correspondence which he carried between England and America. There is no record of the result, but from what is known of the postal business in America, it cannot be supposed that it would be of a magnitude to encourage the establishment of a packet service.

Other offers were made to the government, but they were not seriously considered until the outbreak of the war in America between England and France in 1744. Orders were at once given for the restoration of the packet service to the West Indies; and in 1745 armed packets again carried the mails on this route.^[56] The service was very expensive; for though the revenue reached the respectable figure of £3921 in the first year, this amount was far from covering the outlay; and as soon as the treaty of Aix-la-Chapelle was signed in 1749, the packets were discontinued.

The peace, which followed the treaty of Aix-la-Chapelle, was of short duration. So far as America was concerned, the treaty did little more than to impose upon the combatants a momentary suspension of arms. It did nothing to remove the causes of war, and while these remained a permanent peace was impossible.

The grounds of dispute were almost entirely territorial. The French claimed the whole vast stretch of country to the west of the Alleghanies, and set up a line of forts along the valley of the Alleghany and Ohio rivers. The English disregarded these claims, and their traders pushed over the mountains into the disputed territory. The French displayed so much energy in dispossessing the encroaching English, that the border country was kept in a state of alarm, and the governors of the English colonies appealed to have a regular means of communication established between the mother country and the colonies, so that help might be obtained if required.

The representations of governors Shirley of Massachusetts, Delancey of New York, and Dinwiddie of Virginia, were vigorously supported by governor Lawrence of Nova Scotia.^[57]

The situation of Nova Scotia was one of peculiar danger. The province was hemmed in between Cape Breton, with its powerful fortress at Louisburg, on the one side, and Canada on the other. The control which the French exercised over the valley of the St. John, and over the isthmus of Baie Verte, gave them a safe and easy passage from Canada to Cape Breton, by way of the St. John river, the bay of Fundy, the isthmus of Baie Verte, and the straits of Northumberland. The Acadians who were scattered over Nova Scotia were naturally in hearty sympathy with their own people in Cape Breton; and in order to send supplies of cattle to the fortress, they made a

small settlement at Tatamagouche, on the straits of Northumberland, which served as an entrepôt.^[58]

The first result of the appeal of the governors was the establishment of a post office at Halifax, in the spring of 1755,^[59] and the opening up of communication with New England by the vessels which plied to and from Boston. It required a ruder prompting before the government could be induced to spend the money necessary for a packet service, and this was not long in coming.

In the early spring of 1755, General Braddock, with two regiments, was sent to America to oppose the large claims made by the French. In concert with the governors of Massachusetts and Virginia, a plan of attack was arranged which involved movements against four different points as widely separated as fort Duquesne on the Ohio river, and Beausejour on the bay of Fundy.

Braddock undertook the expedition against fort Duquesne, which if successful would break down the barrier which was confining the English colonies to the Atlantic seaboard, and relieve the more westerly settlements of Virginia and Pennsylvania from the harassing attacks which were making life on the frontiers unendurable. The execution of his part of the campaign was beset by difficulties, arising partly from the mountainous and woody character of the country through which he had to pass, and partly from his ignorance of the methods of forest warfare, in which his enemies excelled.

Whatever could be accomplished by dogged energy was done successfully. Braddock managed to get his army within sight of his destination. But here his good fortune left him. While still in the thick woods he was attacked by the French and their Indian allies. Employing methods to which Braddock was a stranger, methods which would have seemed to him to be unworthy of soldiers, the French and their allies managed to keep themselves in perfect cover, while the British army stood exposed, the easiest of marks.

There could be but one outcome. The British were overwhelmed and Braddock slain; and the only result of the campaign was to redouble the fury of the enemy against the unfortunate border settlements.

The disaster and its consequences were brought home to the government with a directness that put an end to all hesitation about establishing the closest possible communication between the mother country and the colonies. On the 18th of September, the board of trade, which administered the affairs of the colonies, approached the treasury on the subject. After emphasizing the inconveniences of the existing arrangements, the board insisted that it was of the highest importance that the king should have "early and frequent intelligence of what is in agitation" in the colonies, and recommended that packet boats be established to New York.^[60]

The treasury approved, and directed the postmasters general to arrange for regular monthly trips to New York, and to restore the West Indian service, which was discontinued in 1749. Four vessels of 150 tons each were provided for the latter route.^[61] They were to carry twenty-six men each, and be fully armed for war.

For the New York route, larger vessels were thought necessary, owing to the roughness of the winter seas; the vessels placed on this line were each of 200 tons, and carried thirty men. The carrying of any merchandise was forbidden, so that the vessels were devoted entirely to the service of the post office.

In the elaborate instructions which the commanders received, they were directed, when they had a mail for a place at which a postmaster had not been appointed, to open the bags themselves, and deliver the letters for that place to a magistrate or other careful man, who would undertake to have the letters handed to the persons to whom they were addressed. In case the vessel was attacked, and could not avoid being taken, the commander must, before striking, throw the mails overboard, with such a weight attached as would immediately sink them, and so prevent them from falling into the enemy's hands.

The new service was a most expensive one, and when peace was concluded in 1762, the question of continuing it came up for immediate consideration. During the seven years of its course, the New York service cost £62,603; while the produce in postage was only £12,458. The service was popular, however; and the revenue had been increasing latterly, and an effort was made to reduce the cost.^[62] In this the postmasters general were successful,

and as the treasury saw reasons for indulging the hope that before long the service would be self-sustaining, they sanctioned the amended terms.

So far as the district in the neighbourhood of New York was concerned, the service was very satisfactory. But the people in the more remote southern colonies had ground for complaint in the length of time it took for their letters to reach them after arriving at New York.

No time was lost in despatching the couriers to the south; but, at the best, between bad roads and no roads at all, there were great delays in delivering the mails to Charlestown. In the fall of 1763, a proposition was made to extend the West Indies service to the mainland, and to require the mail packet to visit Pensacola, fort St. Augustine and Charlestown, before returning to Falmouth.

The extended scheme, which was accepted in 1764, involved an entire reorganization of the postal service of the southern colonies. The colonies to the south of Virginia were separated from the colonies to the north and, with the Bahama Islands, were erected into a distinct postal division, with headquarters at Charlestown.^[63]

A sufficient number of vessels were added to make a regular monthly service,^[64] but in spite of this, the arrangements did not give satisfaction. The route was too long to make it possible to deliver the mails at Charlestown within a reasonable time. The postmasters general reported that letters for those parts often lay forty or fifty days in London before starting on their way.

It was then resolved to break up the connection between the mainland and the West Indies, and have a separate monthly service between Falmouth and Charlestown. To secure the greatest measure of advantage from this service a courier was sent off with the mails for Savannah and St. Augustine as soon as they arrived at Charlestown from England.^[65]

There were thus, from 1764, three lines of sailing packets running between England and the North American colonies—one to New York, another to Charlestown, and a third to the West Indies. There was but one defect in these arrangements. They did not provide connections between the several systems except through the mother country.

A letter sent from New York to Charlestown or to the West Indies had to travel across to London and back again by the first outward packet to its destination. To connect the two systems on the mainland, a courier travelled from Charlestown northward to Suffolk, Virginia, where he met with the courier from New York.

In dealing with the means for establishing communication between the mainland and the West Indies, the treasury were called upon to consider a petition from the merchants who traded to Florida. The termination of the war was followed by the withdrawal of the troops which were stationed at Pensacola, the principal trading settlement in Florida, and the merchants feared the savages would plunder their goods, if succour could not be easily obtained from the sister provinces.

The first step taken to meet the difficulty was to run a small forty-five ton vessel from Jamaica to Pensacola and on to Charlestown. This was satisfactory as far as it went, but as it took eighty-three days to cover this route and return to Jamaica, this service had to be doubled before the people concerned were content.

FOOTNOTES:

[37] Statutes of the United Kingdom, 9 Anne, c. 10.

[38] New York did not become the headquarters of the postal system until the reconstruction of 1773.

[39] The postal rates as fixed by the act of Queen Anne were as follows: London to Jamaica, Barbadoes, 1s. 6d.; to New York, 1s. New York, to West Indies, 4d.; to New London or Philadelphia, 9d.; to Boston or Portsmouth, 1s.; to Williamsburg, Va., or Piscataway, 1s. 3d.; to Charlestown, 1s. 6d.; to within 60 miles, 4d.; to within 100 miles, 6d. These charges were for single letters.

[40] G.P.O., *Treasury*, II. 253.

[41] Governor Spottswood to the board of trade, June 24, 1718 (*Va. Hist. Coll.*, new series, II. 280)

[42] *Journal of the House of Burgesses*, May 1718, *passim*.

[43] Douglas' *Historical and Political Summary*.

[44] G.P.O., *Treasury*, VI. 206-207.

- [45] *Talcott Papers*, vol. 5.
- [46] "The Ledger-Book of Benjamin Franklin," in the Boston Public Library.
- [47] G.P.O., *Treasury Letter-Book*, 1760-1761, p. 96.
- [48] *Works of Benjamin Franklin* (Federal ed.), I. 256.
- [49] Franklin to Todd, January 16, 1764, Smyth, *Life and Writings of Benjamin Franklin*, XII. 292.
- [50] G.P.O., *General Accounts*, 1761-1770.
- [51] G.P.O., *Treasury*, III. 236.
- [52] G.P.O., *Treasury* volume.
- [53] Cal. Treasury Papers, 1702-1707, p. 267.
- [54] *Treasury Papers*, CII. 120.
- [55] G.P.O., *Treasury*, III. 127.
- [56] *Cal. Treasury Books and Papers*, 1742-1745, p. 707.
- [57] C. O. 5.
- [58] C. O. 5, vol. 15.
- [59] *Boston Evening Post*, April 28, 1755. (This note was furnished by Mr. C. W. Ernst of Boston.)
- [60] C. O. 5, Bundle 7.
- [61] G.P.O., *Treasury*, VII. 248-249.
- [62] G.P.O., *Treasury*, vol. 8.
- [63] The first deputy postmaster general for the southern division was Benjamin Barons, who was appointed December 19, 1764 (G.P.O., *Orders of the Board*, II. 126). He resigned on August 26, 1766, and was succeeded by Peter Delancy, who was killed in a duel with Dr. John Hale, in August 1771. His successor was George Roupell, who held office until displaced by the Revolution (G.P.O., *Orders of the Board*, 1737-1770, II. 211b).
- [64] G.P.O., *Instructions*, pp. 16-21.
- [65] G.P.O., *Treasury*, June 6, 1768.
-

CHAPTER III

Communications in Canada prior to the Conquest—Extension of colonial postal service to Canada—Effects of colonial discontents on post office.

Having described the several arrangements, which were made to enable the older British colonists to correspond with the mother country and with one another, we shall now turn to Canada.

In the first place an account must be given of the route pursued by the courier, who was shortly to begin regular trips between New York and Montreal. The route is the oldest in North America and the best known. Before either Frenchman or Englishman came to America, the Indian tribes, dwelling on the stretch of land which lies between the waters running south and those running north, passed and repassed over this natural highway in the prosecution of their perpetual wars; and in the long struggle between France and England for mastery of the continent, many of the most decisive battles were fought at different places on the route.

The forts erected by each nation at the several strategic points on the route within its territory indicate their conviction that this was the ordinary course of passage from one country to the other.

A glance at the map confirms this view. From New York to the boundaries of Canada, the few miles of watershed between the Hudson and the lake Champlain systems are the only part of this long route, which could not be easily travelled by vessel. The first long stretch on the journey from New York to Montreal was that between New York and Albany. This part of the trip was made in one of the sloops, which were employed by the merchants of Albany to carry furs, lumber and grain to New York, and which usually returned to Albany empty or with a cargo of brandy, which was considered necessary in their dealings with the Indians. The trip up the river occupied about three days.

From Albany northward, there was a good road on the west side of the Hudson as far as fort Edward, which stood at the bend of the river, where it made a sharp turn to the west. At fort Edward there was a choice of routes, one leading directly north to lake George, and the other to the north-east to Wood Creek, from which there was a navigable course into lake Champlain.

The lake George route also led into lake Champlain, though the difficulties of the passage from one lake to the other subjected the traveller to the inconvenience of a portage. Lake Champlain offered an uninterrupted course to St. John's in Canada, from which point there was a pleasant trip by carriage to Laprairie, followed by a sail across the St. Lawrence to Montreal. The time taken by travellers over this route was from nine to ten days.

The population of Canada at the period when it became a British province was about seventy thousand, all of whom dwelt on the shores of the St. Lawrence and its tributaries. Travellers between Montreal and Quebec taking the river passage were wont to declare that they seemed to be passing through one long village, so closely were the settlements on each side of the river drawn to one another.

Below Quebec, the country on the north shore in the *seigneuries* of Beauport and Beaupré, as far east as Cap Tourmente, was as thickly populated as any part of Canada. Beyond that point settlement rather straggled on to Murray Bay. On the south shore from Levis eastward, the census of 1765 showed a population of over ten thousand. A gentleman travelling from Rivière du Loup to Quebec a few years later stated that there were from twelve to sixteen families to every mile of road.

Although people travelling in Canada preferred making their journey by boat, there was a good road from Montreal to Quebec and, what was unique in America at the time, there was a regular line of post houses over the whole road, where *calèches* or carriages were always kept in readiness for travellers.

Each *maître de poste* had the exclusive privilege of carrying passengers from his post house to the next, which was usually about nine miles distant, his obligation being to have the horse and carriage ready on fifteen minutes' notice during the day, and in half an hour, if he were called during the night.

This facility for travel, the advantages of which are obvious, was a gift from France, where it had been in operation since the fifteenth century. When the road between Montreal and Quebec was completed in 1734,^[66] the post road system was at once established upon it. It was a convenience which cost the government nothing, the habitant who was appointed *maître de poste* receiving his pay from the persons whom he conveyed within his limits. The government confined its attention to seeing that the *maître de poste* furnished the horses and vehicles promptly.

In September 1760, when the English became masters of Canada by the capitulation of Montreal, Sir Jeffery Amherst, commander-in-chief of the British forces, issued new commissions to the *maîtres de poste*, and fixed the rate at which they should be paid for their services, but gave directions that they should let their horses to no person, who was not provided with a written order from the governor.^[67]

A question of much interest is suggested by the fact that the post road between Montreal and Quebec had its origin during the French regime. In France the post roads were part of the postal system of the country, and the question occurs, by what means were letters conveyed within Canada during the period of French rule? It is probable that there was a considerable correspondence between Canada and France, and the lines on which the business of the country was conducted would seem to call for a fairly large interchange of letters within the colony itself. Though the great mass of the people were unable either to read or to write, they differed but little in this respect from the same class of people in other countries. It was not the custom of the time to look to the working classes for patronage for the post office, though even here it is to be observed that the girls of Canada had many opportunities for securing the elements of education, which did not fall in the way of the young men, and with the instinct for graceful expression, which is nature's endowment to French women, it is probable that many letters came from this class. From the towns, however, there would be a relatively large correspondence. Although the populations of Quebec and Montreal were less than that of many of our country towns, and Three Rivers would not bear comparison in that respect with many villages, the social life in these towns was on a high plane. From Charlevoix to Montcalm, every visitor to Canada expressed his astonishment at the refinement and even elegance which he found in the towns. This society,

with its *seigneurs*, military officers, clergy and civil service, would beyond doubt have an extensive correspondence with friends at home. Indeed, mention of the clergy brings up that remarkable series of letters written by Jesuit missionaries from the wilds of Canada, known as the Jesuit Relations, which forms so large a part of the foundation on which the history of the country in the seventeenth century rests. The commercial correspondence was, also, considerable. All the trade between Canada and France was carried on through the merchants of Quebec. Montreal from its situation at the junction of the St. Lawrence and Ottawa rivers had been the chief town for the Indian trade in furs for over a century, but it did not send its furs directly to France. The Quebec merchants had been the intermediaries for this trade, and they held jealously to the profitable privilege. The imports from France which included a large part of the necessities and conveniences of life, were also handled by the Quebec merchants, who acted as wholesalers to the merchants in Montreal and the other parts of the colony.

It will be obvious from a view of all these circumstances that there must have been a large volume of correspondence to and from as well as within Canada during the French regime. The greater part of it would be between Quebec and the ports of France and the means by which this was carried on, are known. In the *Royal Almanach* for 1723, it is announced that on letters to Canada there would be a charge of seven sols (about seven cents) which would pay for the conveyance from Paris to Rochelle, while between Rochelle and Canada, letters were carried free of all charge. Between Old and New France, therefore, there was little restriction on correspondence. If a letter going to France were destined for Paris, it would be carried there for seven cents; if for other parts of France, local and personal arrangements would have to be made for their delivery. The case was the same with letters coming to Canada, but addressed to other places than Quebec. Persons living in Montreal, Three Rivers or any other place, who had correspondence with France would arrange with friends in Quebec to take their letters from the captain of the incoming ship, and send the letters to them by the first opportunity. Kalm, the Swedish naturalist, who was travelling through Canada as the guest of the governor, states that, on the way up to Montreal on the governor's *bateau*, they put in at Three Rivers in order that the officer in charge might deliver some letters, which had been entrusted to him.

The question of establishing such a postal system as existed in France was laid before the governor as early as 1721. In that year Nicholas Lanoullier, a clerk in the treasury, made application for the exclusive privilege of carrying on a postal system between Montreal and Quebec. He pointed out that the only means for the conveyance of letters between Quebec, Three Rivers and Montreal was the canoe, and as there was no regular canoe service, a person desiring to send a letter had either to hire a canoe, or wait until some person would be found willing to take the letter in the course of his journey. Either mode was obviously unsatisfactory. Lanoullier proposed to open post offices at the three towns, for letters and couriers, and to maintain *messengeries* or an express service, and a line of post houses. There was no road between Montreal and Quebec at this time, and as Lanoullier's scheme involved the construction of a road, the governor granted the application, and in addition gave Lanoullier the exclusive privilege of establishing ferries over the rivers, which would cross the road he undertook to build. As the total population of Canada in 1721 did not exceed 25,000, and the towns of Quebec, Three Rivers and Montreal contained no more than 2300, 325 and 3200 people respectively, an enterprise of that magnitude could not possibly be profitable. Lanoullier no doubt realized this, for he did nothing in pursuance of the scheme. It was ten years after this period before any serious effort was made to construct a continuous road from Quebec to Montreal, and by that time Nicholas Lanoullier's connection with the work had ceased entirely. By a somewhat curious coincidence, when the governor and intendant resolved that the road should be constructed, the duty of superintending the work fell upon a brother of Lanoullier, who was appointed grand voyer or general overseer of the roads of the colony. The office of grand voyer had existed in the colony since 1657, but until Lanoullier's time, it seems to have been neglected, and when the habitants along the road were called upon to work upon it, they obeyed with much reluctance. Lanoullier's difficulties were increased by the hostility of the *seigneurs* through whose estates the road was to pass, and who resented his making his surveys without deference to their wishes and opinions. He pushed forward the work with much energy, however, and by 1734 the road was opened. The intendant, Hocquart, who had followed the road building with much interest, reported to the king that he himself had made the journey in a carriage from Quebec to Montreal in four days. As soon as the road was declared fit for travel post houses were

placed upon it at intervals of about nine miles, and ferries were established for transportation across the broader rivers which crossed the road.

But although no regular postal system was in operation during the French regime, an arrangement existed from an early period, by which the letters of the governor and intendant were carried by an appointed messenger, who was permitted to take with him, in addition to the official letters, any that might be entrusted to him by private persons. The fee allowed the messenger by the intendant's commission was ten sous for a letter carried from Quebec to Montreal and five sous to Three Rivers, with proportionate charges for greater or shorter distances. The commission which was issued in 1705 by Raudot, the intendant, to Pierre Dasilva dit Portugais, made no provision for regular conveyance, but as the messenger conveyed all the governor's despatches within the colony, it is probable that he made his trips with fair frequency. Another messenger, Jean Morau, received a commission in 1727, though he had been performing the duties of the service for ten years before that date. [\[68\]](#)

A curious fact is disclosed in a memorandum prepared during the period between the capitulation of Canada in 1760 and the treaty of Paris, which settled definitively the possession of the country. The writer, who had hopes that the country would be restored to France, was discussing several measures for improving the administration, when the French returned to the government. Among these was the establishment of a royal post office. In submitting his suggestion he pointed out that the system of royal messengers was expensive to the country, as the letters of private persons were carried and delivered free of charge. By the establishment of a post office, the charges of maintaining it would fall on the persons whose letters were carried, and the treasury would be relieved of the expense. [\[69\]](#)

As has been already stated, when Franklin learned that Canada was to remain a British possession, he came to Quebec to arrange for the establishment of a postal service between Quebec, Three Rivers and Montreal, and for a regular exchange of mails between those places and New York. At Quebec he met with Hugh Finlay, a young Scotchman who had been in the country for three years and who had been performing the very important duties of justice of the peace. In 1765, Finlay was made a member of the governor's council, and until his death, thirty-six years later,

took a leading part in the affairs of the colony. Franklin opened a post office in Quebec with Finlay as postmaster and put under his charge subordinate offices at Three Rivers and Montreal. A monthly service by courier was established between Montreal and New York, whose duty it was to have the Canadian mails in New York in time to place those for Great Britain on board the outgoing packet. In making his arrangements for the exchange of mails between the Canadian offices themselves, Finlay sought and obtained the co-operation of the governor, who directed the *maîtres de poste* to provide saddle horses for the mail couriers at sixpence a league, which was just half the charge made to the public for the same service, and who issued orders to the ferrymen along the route to pass the couriers over their rivers promptly and without charge.^[70] The captains of boats running on the river were instructed in their duty to deliver the letters in their hands to the nearest postmasters who would pay them one cent for each letter. The courier's trips between Montreal and Quebec were made weekly each way, and each trip took about thirty hours. As the distance is one hundred and eighty miles, the advantages of the post house system in facilitating the movements of the couriers are manifest.

A difficulty for which provision had to be made was the extreme magnitude of the postage charges. In 1763 the American post office was still working under the act of 1710, which was enacted at a time when Canada as an English colony was not in contemplation.

The system for which provision was made by the act extended from Piscataway (now Portsmouth, New Hampshire) to Charlestown; and if letters were sent beyond the range of this system, the charge for single letters conveyed up to sixty miles was fourpence; and when the conveyance was from sixty to one hundred miles the charge was sixpence. At the rate of sixpence for one hundred miles, it cost two shillings to send a single letter from New York to Montreal and three shillings from New York to Quebec.

This rate was quite prohibitive. Governors Murray of Quebec, and Gage of Montreal, in 1760, represented to the home government^[71] that the people of Canada were almost destitute of cash, and that they would not write to their friends in England until they found private occasions to send their letters to New York. The governors suggested that every interest would be better served if the rates could be made so that the charge on letters between

any two places in America might not exceed one shilling and sixpence for a single letter.

In 1765, the act of 1710 was amended to meet the governor's views.^[72] The scale of fourpence for sixty miles and sixpence for one hundred miles was not changed, but an addition was made to it by providing that for each one hundred miles or less beyond the first hundred miles, the additional charge was to be twopence.

The reduction for the longer distances was very considerable. Between New York and Montreal, the act of 1765 lowered the charge for a single letter from two shillings to one shilling, and between New York and Quebec from three shillings to one shilling and fourpence.

Halifax, which had had a post office since 1755, had until this time but little benefit from it owing to the excessive charges. But the amendment of 1765 provided a rate of fourpence on single letters passing between any two seaports in America, and thus put Halifax in comparatively easy communication with Boston and New York.

Here then in its entirety is the postal system of North America as it was completed by the inclusion within it of the new province of Canada. The most important communications were those between America and Great Britain. Of these there were three: with New York, Charlestown and the West Indies. Between each of these places and Great Britain, packet boats carried the mails once a month. These several divisions were united with one another by a small packet from Jamaica to Charlestown, and by a courier from Charlestown to Suffolk, Virginia, where he met with a courier from New York.

Within the northern district, the centre of which was at New York, there was a well-organized mail service, in which all existing travelling facilities were employed to the limit of their usefulness.^[73] Mails were transported regularly as far south as Virginia and as far north and east as Quebec and Halifax. Within the better settled parts of the country, the service was excellent. Before the Revolution, two trips were made weekly between New York and Boston, and three between New York and Philadelphia. From Quebec to Montreal, there were two trips every week. The courier service at this time was quite equal, if not superior, to the service in England.

The financial affairs of the American post office flourished. For the three years ending July 1764, there was a surplus revenue of £2070.^[74] The succeeding years, though satisfactory, were not equal to those up to 1764.^[75]

But the political troubles were rendering the post office an object of unpopularity, and making it a duty on the part of the patriots to employ agencies other than the post office for the transmission of their letters. As these unofficial agencies were usually satisfied with a much lower compensation than the post office demanded, the pleasant circumstance arose for the patriot that the line of interest coincided with the line of duty.

During the period between the establishment of the post office in Canada in 1763, and the outbreak of the war of the Revolution in 1775, the post office pursued on the whole an even, uneventful course. Canada did not entirely escape the influence of the sentiments which in the older colonies were leading to the Revolution; and, as the war approached, the post office was made to feel the effects.

There were, at the time of the peace of 1763, along with the seventy thousand Canadians which made up nearly the whole of the population, a number of the older British subjects, most of whom had come from the British American colonies. At this time they numbered about two hundred, and when the war broke out in 1775, the number had doubled.

These new-comers to Canada were not without the usual practical ability of Americans, and they very soon gathered into their hands the greater part of the business of the colony. They were, however, a source of much trouble and offence to the governor, and to their Canadian fellow subjects. The governor reported that their arrogance, and repugnance to the social and religious customs of the new subjects—the former subjects of France—as well as the factious opposition they displayed to the mode of government then existing, retarded seriously the progress of the efforts which were made towards conciliating the Canadians to the new regime.

Nothing short of the complete domination of these few hundred English-speaking people over the French Canadians would have satisfied them. The spirit of rebellion grew no faster in the older British colonies than among the few of English extraction in Canada, and the mutual distrust between

these people and the government hampered the work of the post office a few years later.

In 1767 Finlay was called upon to remove a certain friction which had arisen between the *maîtres de poste* and the travelling public. The regulations, which confined travelling by post to persons having special permits from the governor, were no longer insisted upon. Any person desiring to do so was at liberty to hire horses and carriages at any of the post houses for travel to the next post house.

The easing of restrictions enlarged the business of the *maîtres de poste*. But it evidently did not give unmixed satisfaction, as complaints were made that many persons riding post imposed upon the postmen, "threatening and abusing them contrary at all law."

Finlay had no actual warrant for interfering on behalf of the *maîtres de poste*, but as postmaster of the province, he had a strong motive for picking up the reins of authority where he found them lying in slack hands. He required the services of the *maîtres de poste* to help him with the conveyance of the mails, and as those services were rendered for half the charge which was made to the travelling public, he kept the *maîtres de poste* under his influence by constituting himself their champion. Finlay pointed to the fact that in England the postmaster general was also general master of the post houses, and declared that as deputy of the postmaster general he would take the same position in Canada.

There was the essential difference between the situation in England and in Canada that the postmaster general had statutory authority for exercising control over the post houses in England, whereas there was no such authority for control over the post houses in Canada. However, Finlay was a member of the legislative council, and he assumed, without opposition or question, the charge of the *maîtres de poste*, and in 1767 issued public notice that the post house system was to be under the same regulations as were in force in England.^[76] The *maîtres de poste* were confirmed in their monopoly, and protected against imposition on the part of the public.

Finlay's energetic management of the affairs of the Canadian post office attracted the attention of his superiors, and as Franklin had resided continuously in England since 1764 as agent for Pennsylvania and other of

the American colonies, the expanding scope of the American post office demanded a greater degree of supervision than Franklin's associate, Foxcroft, was able to give.

It was resolved to create another office, until then unknown in America, called a surveyorship. The duties of the surveyor in England are the same as those of the inspector in the Canadian or United States services, and call for a general control over the postal service within certain defined limits. The office of surveyor was established in 1772, and Finlay was appointed to the position. He was allowed to retain his charge of the post office in Canada, though his salary here underwent an abatement.

The first duty assigned to Finlay as post office surveyor was to explore the uninhabited country beyond the last settlements on the river Chaudiere extending over the height of land into New England.^[77] The purpose of the trip was to ascertain the practicability of a direct road between Quebec and New England. The merchants of Quebec had made much complaint of the slowness and irregularity of the ordinary communication with New York, which was by way of Montreal, and they hoped that the proposed road would materially shorten the journey to the principal places in the northern colonies.

The road which the merchants of Quebec desired to see built was a project which had occupied public attention at various times for over a century before this time. When Louis XIV, Colbert his minister, and Talon the intendant, were devising schemes for the creation of a New France in North America, they observed that the long Canadian winters, which shut up the port of Quebec, made it desirable that there should be free access to an ocean port.

The treaty of Breda confirmed England in 1667 in its possession of New York and New Jersey, and also established the right of France to Acadia, which in the French view comprised not only Nova Scotia and New Brunswick, but also that section of the state of Maine which lies east of the Kennebec river. In 1671^[78] the king directed Talon to see what could be done towards constructing a road between the mouth of the Chaudiere and fort Pentagoet at the mouth of the Penobscot, which was the headquarters of the French governor in Acadia.

The purposes of the king were not unlike those of the fathers of the present confederation. Canada was French and so was Acadia, and the association of the inland with the maritime settlements could not but be productive of good. The populations were small: Canada had six thousand seven hundred, and Acadia four hundred and forty-one,^[79] but, for a short period, imperial ideas prevailed.

Talon in 1671 despatched two explorers to Pentegoet. They took different routes, although following the watercourses, and their reports confirmed Talon as to the desirability of establishing permanent communication between the two provinces. His plans embraced a line of settlements on the Penobscot and Kennebec rivers with a view to imposing a barrier to the advances of the English. But Talon's health gave way, and he returned to France in the fall of 1672, and as the king's ardour towards Canada was cooling off, owing to his absorption in his European wars, the road was abandoned.

The project was revived eleven years afterwards by de Meulles, a later intendant. He was persuaded that if communication were opened, the merchants of Quebec might secure the trade of the Acadians which went entirely to New England, and the Acadians would become attached to Canada. The road would have to be settled upon, and de Meulles' plan was to place old soldiers upon it, as he did not think the Canadians could be induced to give up their comfortable lives, to enter upon a venture of that kind. De Meulles' proposition, however, fell upon deaf ears, as did all others calling for the outlay of money, and the scheme was allowed to lie until Finlay took it up.

From the New England side a movement towards the height of land separating Canada from the English colonies was made in 1754.^[80] Governor Shirley of Massachusetts in the early part of that year, set out from Falmouth (now Portland) with eight hundred men on an expedition up the Kennebec river. His purpose was to dislodge any Frenchman who might be settled on the height of land, and to establish a fort to secure the country against attack.

Fort Halifax was erected at the junction of a stream called the Sebastoocook with the Kennebec, and the Plymouth company built a storehouse at the

head of navigation on the Kennebec. A carriage road was laid between the fort and the storehouse. The governor anticipated that with fort Halifax as base he might secure the mastery of the Chaudiere and even threaten Quebec.

As Talon in 1671, and Shirley in 1754, so Finlay in 1772 was persuaded that a direct road from Quebec to New England was altogether desirable, and that it might be made without unusual difficulty. It was not, however, in the scheme of things that Finlay should succeed any more than his predecessors. His preparations were soon made. He explained his views to lieutenant governor Cramahe, who headed a subscription to pay Finlay's expenses, and inside of twenty-four hours he had ample means at his disposal for his purpose.^[81]

Finlay set out in September 1773 with a party of Indians, and reached Falmouth after seventeen days of canoeing and following trails. Having become satisfied as to the practicability of the road, he addressed himself to the task of securing the co-operation of those who might be supposed to benefit by the enterprise.

At Portsmouth, New Hampshire, he discussed the subject with governor Wentworth. The governor was eager to help with the scheme of establishing a further connection between Canada and the colonies to the south, but was of opinion that the best route would be over the tract of country between the Connecticut river and the St. Francis river in Canada.

This route had several advantages. It avoided the watercourses which made the road from Montreal to New York, and the proposed Kennebec road, useless for so long a period every year; the passage over the height of land was easy, and the country along the line of the route between the height of land and the St. Francis was favourable for settlement.

As Finlay was prepossessed with the governor's plans, the governor set about putting them into execution. He laid a carriageable road along the Connecticut to the boundary of his province, and by April 1774 had a line of settlements along the road so that the post rider would always have a stage at which to pass the night, and generally have one within four hours' travel from any point on the road.

Governor Wentworth lent to Finlay the services of his own surveyor to explore the country on the Canadian side of the route, but before anything could be accomplished in this way, the discontents in the south had broken out in acts of rebellion, and the post office was the first of the institutions of government to be suspended.

At Boston, Finlay laid his plans before governor Hutchinson.^[82] The interview was not encouraging. The governor declared that, in the existing temper of the people, it would be enough for the legislature to know that the governor favoured a scheme, to ensure its defeat. The New Englanders had, besides this, but moderate grounds for assisting in establishing further communication with Canada.

The proposed road would be beneficial to Massachusetts in so far as it aided colonization in the northern parts of the province, but as the tract through which the proposed Kennebec road would run lay largely in the grants of the Plymouth company, it would be this company which would be the chief beneficiary of the enterprise, and the legislature considered that the company should bear the burden of the expense.

The company were not averse from assisting, but they indulged the hope that with their interest in the legislature the government might be induced to bear the cost. Another circumstance that tended to cool the interest of the legislature was the belief that in a short time this northern country was to be detached from Massachusetts, and erected into a separate government. Altogether Finlay concluded that unless the British government undertook the scheme on the New England side, it would not be accomplished at all.

Finlay's tour of exploration was ended by his arrival in Falmouth at the beginning of October. He then entered upon the more extensive duty of inspecting the whole postal service from Maine to Georgia.^[83] He travelled southward from Falmouth, inspected every post office, studied the conditions under which the mails were carried, and made a full report of his investigations to the postmaster general.

It is plain from his report that the service had deteriorated seriously since Franklin and Foxcroft had made their last inspection ten years before. Franklin, it will be remembered, had resided in England since 1764, and Foxcroft undoubtedly found it impossible to give proper attention to the

post offices throughout the country, and at the same time to keep abreast of the official routine at the head office.

The postmasters on the whole impressed Finlay favourably. They understood their duties and seemed to be making a commendable struggle against the demoralization which confronted them however they turned. Only a small proportion of the letters which circulated within the colonies passed through the post office, although their conveyance by any other means was illegal. The consequence was that the revenues of the post office were small.

At Falmouth the greater part of the letters from Boston were delivered by the masters of sailing vessels. The postmaster on one occasion attempted to enforce the law against illegal conveyance by seizing the letter bag on one of the incoming ships; but the populace made so marked a manifestation of its displeasure that he did not venture on that course a second time.

It was not so much, however, by direct defiance of the postal law, although instances of this were not wanting, as by evasions of it, that the monopoly of the post office was broken down. But in many cases the evasions were so palpable that they could deceive nobody. A popular mode of escape from the penalties attaching to the breach of the monopoly was to seek shelter under one of the exceptions which the post office act allowed.

In none of the acts, for instance, is objection made to a person sending a letter to a correspondent by his own servant, or by a friend who happened to be journeying to the place where the letter should be delivered. Another exception to the monopoly was made in favour of letters which accompanied merchandise to which letters related. Thus a merchant in filling an order for goods has always been at liberty to send with them the invoice, or any other communication, having presumable reference to them. This was the excepted article, which served the turn of those eluding the monopoly.

What Finlay saw at New Haven illustrates fairly what was going on throughout the colonies. Riders came in from other towns, their carts laden with bundles, packages, boxes and canisters, and every package had a letter attached. Some of the parcels consisted of no more than little bundles of chips, straw, or old paper, but they served their purpose. If the postmaster

made objection to the number of letters they carried, the riders asserted their right to carry letters accompanying goods, and the public saw to it that neither postmaster or magistrate took too narrow a view of what constituted goods.

On the route between Boston and Newport the mail carrier was a certain Peter Mumford, who did a much larger business in the illegal conveyance of letters than as the servant of the post office. At Newport the postmaster declared that there were two post offices—the king's and Mumford's—and the latter did the larger business. There was no remedy, as the postmaster declared that whoever should attempt to check the illegal practice would be denounced as the friend of slavery and oppression and the declared enemy of America.

Many of the couriers did so large a carrying business that the conveyance of the mails became a mere incident with them. As he approached New Haven, Finlay was accosted with the inquiry whether he had overtaken the post bringing in a drove of oxen, which the courier had engaged to do, when he came in with the mail.

In all respects but one, the situation described by Finlay presented no unexpected features. There had been no general inspection since Franklin made his tour in 1763, at the time he opened the post office in Quebec. This fact fully explains the shortcomings of the postmasters and couriers. That the postmasters were chargeable with so few irregularities in their accounts, or were open to so little censure for faults in management, is high testimony to their intelligence and fidelity to duty.

Mail couriers have always been less completely identified with the postal service than postmasters. They are held by contract, not by appointment, and their engagements are for short terms. There is nothing irregular in their practice of combining the conveyance of the mails with other means of gaining a livelihood, but in the absence of supervision there was a constant tendency to give undue attention to what should have been merely auxiliary employments of carrying passengers and parcels.

People employing the couriers demanded prompt service, while there was no person to insist on the prior claims of the post office, and indeed there

were probably few people in any community at that time to whom an hour more or less was of any consequence in the receipt of their letters.

The evasion of the postmaster general's monopoly also was too common to excite particular remark. It was beyond doubt a breach of the law, but that it was wrong was a proposition to which few even good citizens gave assent, at least by their practice. Thomas Hancock made a merit of his saving the colony of Connecticut from thirty to forty shillings a year through the interest he had with certain captains, which enabled him to secure the colonial letters, as they came over in the ships, and thus prevent their passing through the post office.

In England, also, the practice was wellnigh universal. The increased rates imposed by the act of 1710 gave an immense impetus to clandestine traffic. Every pedlar and driver of public coaches lent himself to the profitable business of carrying letters for a few halfpence a letter. In London an effort was made to stop the practice by having officials of the post office frequent the roads leading into the city, for the purpose of searching the vehicles of those who had made themselves objects of suspicion.

It is interesting to note that the work for which the post office surveyors or inspectors were first appointed was to detain the mail couriers in the course of travel, and check the contents of the mail bags, and thus prevent postmasters from becoming parties, as they too frequently were, to frauds on the revenue, to their own great advantage.

As late as 1837, when Rowland Hill^[84] laid his penny postage scheme before a public which was impatient for its adoption, Richard Cobden declared to a committee appointed to report on the scheme, that five-sixths of the letters passing between Manchester and London were conveyed by private hand. This state of things continued until the postage rates were brought down to a point, at which the service offered by the post office was cheaper as well as better than any other. The only certain means by which a government monopoly in a free country can maintain its position is to outbid its rivals. There is no safe dependence to be placed in legal process.

In ordinary times, then, the evasion of the exclusive privilege of the postmaster general by any community would deserve no more than passing

mention. It is as part of a general boycott of the government that the action of the Americans is worthy of note.

From the time of the passage of the stamp act in 1765, the attitude of the colonies towards all schemes in which taxation by Parliament could be detected was one of resistance active or passive. When this act went into operation, the Americans bound themselves to import nothing from England, a self-imposed obligation which in the undeveloped state of their manufactures entailed much inconvenience and even distress.

There was an essential difference between the English and the American methods of avoiding the penalties for infractions of the post office law. In England, and to some extent doubtless in America as well, men engaged in the illegal conveyance of letters did their best to conceal their operations from the authorities. The efforts of a public coach driver were directed to rendering the search made by the post office inspectors fruitless. If letters were found in his possession, he suffered the legal penalties as the smuggler does to-day. It was one of the chances of his trade.

In the colonies men who were bent on circumventing the post office pursued another course. They indulged their taste for legal technicalities by carrying their letters openly, and maintaining that the packages which accompanied them took them outside the monopoly, and they gave scope to their humour by making the packages as ridiculous as possible. They incurred no great risk, for the active spirits in every community threatened a prosecutor with a coat of tar and feathers.

The stamp act was repealed in the year following its enactment, and for the moment trade resumed its wonted course. But it was not for long. The British government was determined that the legislative supremacy of parliament should be recognized in America, and the colonies were equally persistent in their denial of this supremacy; and in the conflict which ensued the principle weapons employed by the Americans until the outbreak of the war were non-importation and non-exportation agreements.

As the British merchant exercised a preponderating influence with the government, the stoppage of trade with America, as the result of a constitutional dispute, was an effective instrument in making the government consider the situation seriously. The difficulty with the

government was to understand the attitude of mind which prevailed among the Americans.

The government had no quarrel with the principle that representation should be a condition of taxation. It would have asserted the principle on any occasion, but it could not see that the course it was pursuing was a violation of that principle. Parliament, it declared, was the great council of the nation, representing those parts beyond the sea as well as those at home, and its measures bound the whole nation.

It was still, it must be remembered, half a century before the time when the agitations which preceded the great reform bill of 1832 had familiarized the country with the distinction between virtual and actual representation. The British parliament was far from being, and indeed made no pretence of being a representative assembly in the sense in which the phrase is now used. The right to send members to parliament had for centuries been exercised by the electors of counties and certain ancient boroughs, and no enlargement of the representation was made from 1677 until 1832,^[85] in spite of the great changes in population and industrial importance which had taken place in the course of time.

Great manufacturing towns such as Manchester and Leeds sent no members to represent them in parliament, while Old Sarum which did not contain a single house elected two members. To a people, who saw nothing in this state of things inconsistent with the theory of representative government, the colonial view would be quite incomprehensible.

The colonist on the other hand with his strict representation in town meetings and colonial assemblies, and without the historical aids to an understanding of the point of view of the home government, saw little of a truly representative character in the British system. But he did see, what the home government did not, that a body of distinct and separate interests had grown up in America of which parliament had a very inaccurate conception, and with which it was in no way qualified to deal.

The attitude of the colonists did not appear to the government to be quite free from insincerity. For half a century and more, the government declared, the colonists had been subject to taxes in the shape of post office charges imposed by the act of 1710, and they had never raised a question.

In the Newcastle correspondence, there is a paper, dated 1765, containing a discussion on the legality of a tax on the trade with the Spanish West Indies. In the course of the paper it is asserted that parliament, by the post office act of Queen Anne, imposed an internal tax on the colonies without their presuming to dispute the jurisdiction of parliament over them.

The disturbances in America which followed upon the attempts to enforce the stamp act surprised and alarmed the government, and a committee of parliament was appointed to consider what their future course would be. Franklin who, as the representative of several of the colonies, had been in London for a considerable time, was among the witnesses examined by the committee. His examination took a wide range, but the point of interest was the question as to what ground in principle the Americans stood upon in objecting to the stamp act, since they had accepted the post office act of 1710.

For Franklin this was a crucial question, as he had been not only administering the post office in America for twelve years past, but he did not conceal his satisfaction that by his management he had been able for several years to send substantial sums to Great Britain as profits from the institution.

Franklin answered the questions with much ingenuity. The money paid for the postage of a letter was not in the nature of a tax; it was merely a *quantum meruit* for a service done; no person was compellable to pay the money if he did not choose to receive the service. A man might still, as before the act, send his letter by a servant, a special messenger, or a friend, if he thought it safer and cheaper.

The answer would have been quite just, if the postmaster general of England had not held a monopoly of letter carrying in America. While a person is free to use or not to use a certain service, the charge for the service is not in the nature of a tax. If a person does not like the price demanded by the post office for its services, he may seek other means of having his letters carried. But the post office act does not leave a person free to employ other agencies for the conveyance of his letters. The monopoly has attached to it heavy penalties for its infringement.

It is true, as Franklin said, that the post office act leaves it open to a man to employ a servant, special messenger, or friend in the course of his travel, to carry his letters. But the mention of these agencies shows the absurdity of Franklin's contention. A merchant in New York having business to transact by letter with a customer in Boston or Philadelphia could not afford to pay the expenses of his messenger or servant unless the transaction were one of considerable magnitude. Nor could he await the chance of a friend's making a visit to either of these places. He might, if he were free to do so, have entrusted his letters to a coach driver who made a business of passing between New York and the other two towns, but the monopoly of the post office stood in his way, and the coachman would have made himself liable to a heavy fine.

In short, if the merchant had to correspond with neighbouring places he was compelled to employ the post office. With a country so extended and so highly civilized as the American colonies were at that day, a postal system was an absolute necessity; and if the system maintained by the government were protected by a monopoly, its charges were a tax on the users of the system in so far as those charges exceeded the strict cost of carrying on the service.

Furthermore, since the post office act of 1710 was imposed on the colonies without their consent, and since Franklin's good management had enabled him to pay all the expenses of the service and send a considerable surplus to England for some years past, it is plain that to the extent of the yearly surplus the colonies had been subject to a tax laid on them without their consent, and that Franklin himself was the tax gatherer. This was undoubtedly where the point lay in the question which was asked of Franklin.

Franklin's views on the constitutionality of the post office charges were part and parcel of his views on taxation generally. For instance, he drew a clear line of distinction between a tax on imported goods and an internal tax such as the stamp act. A duty on imported goods it was permissible for parliament to impose on the colonies, while an internal tax could not properly be levied without consent.

The stamp act required that all commercial and legal documents and newspapers should be written or printed upon stamped paper which was sold by agents of the government at varying prices prescribed by the law. As this was a tax which could not be avoided so long as men carried on their business in the ordinary way and by the ordinary means, it was one for which the consent of the colonies was necessary.

An import tax stood on a different footing. It was simply one of the elements entering into the price of the goods imported. If people objected to the price as enhanced by the tax, it was open to them to decline to buy the goods. A tax of this sort was in Franklin's view quite within the powers of the sovereign state.

The ultimate test applied by Franklin to determine whether a tax could in a given case be constitutionally imposed, was whether or not there was a legal mode of escape from the tax. If the tax were an avoidable one, it was constitutional, since submission to it implied consent. If, on the other hand, the tax were one which from the necessities of the case could not be avoided, it ought not to be imposed until it had been assented to by the people.

Opinions may differ as to which of the two classes the application of the test would place postal charges in. They constituted a tax beyond any question since they turned into the government a surplus of revenue after all expenses had been met. Whether they were to be regarded as an avoidable tax to be paid or not as one cared to employ the services of a post office or not, or whether as a tax which the circumstances of the community made it necessary to accept, will depend on one's views as to whether a post office is indispensable to the community.

It is difficult to see how Franklin, who of all men of his generation knew best the requirements of a highly developed industrial community, could believe that the necessities for the interchange of correspondence on the part of a people like the American colonists could be satisfied by private messengers, or travelling friends, or indeed by any agency less comprehensive than a national postal system.

FOOTNOTES:

- [66] *Can. Arch.*, C. 11, LXIV. 110 (Report of progress by grand voyer).
- [67] *Mémoires de la Société Historique de Montréal*, 1870, pt. 5. I. 150.
- [68] *Ordonnances des Intendants*, I. 54, and IX. 109.
- [69] *Public Archives of Can.*, C. 11, X. 338.
- [70] Order of lieutenant governor Burton, to the *maîtres de poste* (*Mémoires de la Société Historique de Montréal*, 1870, pt. 5. I. 268).
- [71] G.P.O., *Treasury*, 1760-1771, p. 99.
- [72] *Imperial Statutes*, 5, Geo. III. c. 25.
- [73] Journal kept by Hugh Finlay, surveyor of the post roads on the continent of North America, 1773-1774 (published by Frank H. Norton, Brooklyn, 1867).
- [74] G.P.O., *General Account Book*, Account April 5, 1765.
- [75] *Ibid.*, Account April 5, 1769. The net revenue for the four years ending 1768 was £1684.
- [76] *Quebec Gazette*, February 16, 1767.
- [77] *Finlay's Journal*.
- [78] *Lettres, Instructions et Mémoires de Colbert*, tome iii. pp. 514 and 520.
- [79] *Census of Canada*, 1870-1871, p. xvi.
- [80] C. O. 5, XIV. 300 (*Can. Arch.*).
- [81] *Can. Arch.*, B. 26, p. 54.
- [82] *Can. Arch.*, B. 26, p. 75.
- [83] *Finlay's Journal*, Brooklyn, 1867.
- [84] *Life of Sir Rowland Hill and Hist. of Penny Postage*, by G. Birkbeck Hill, 1880, I. 301.
- [85] Cf. Porritt, *The Unreformed House of Commons*, I. 16-17.
-

CHAPTER IV

The post office during the Revolution—Its suppression.

But the time was well past when the question as to what was or what was not an allowable tax possessed any but an academic interest. Though the stamp act was repealed a few months after it went into operation, the trouble it aroused was not allayed. The gratitude of the colonists which followed upon the repeal gave way to renewed irritation when it was found that the ministry in London had only postponed, not definitely abandoned, its schemes of taxation, and the late triumph gave vigour to the determination of the colonists to continue their resistance.

Step followed step. All went to widen the breach, and diminish the chances of a peaceful settlement. The post office soon became involved. As we have seen, the ministry endeavoured to convict the colonists of, at least, inconsistency when they objected to the stamp act, while tolerating the post office. Franklin explained what seemed to him the points of difference between the two things, without convincing the ministry.

The colonists had fully shared Franklin's opinions, but the attitude of the ministry caused them to look more thoughtfully into the matter. They finally agreed that the ministry might be right in insisting that the post office charges were a tax, and refused to use the institution any longer. Finlay found that everywhere the view prevailed that the post office was unconstitutional, and it was becoming hazardous to patronize it.

While Finlay was in the southern states the Boston tea riots took place, and before he reached New York on his return home, Franklin had been dismissed, and he had been appointed to replace Franklin.

The reasons which led to Franklin's removal have been frequently stated. They must be related again in order to complete the narrative. Franklin had become possessed, by means still unrevealed, of a number of private letters

written by Hutchinson, governor of Massachusetts, and Oliver, the lieutenant governor, to a friend in England. The letters dealt with the condition of affairs in the colony, and discussed the situation with the full freedom which a confidential correspondence is apt to encourage.

Hutchinson and Oliver dwelt upon the turbulent disposition of Boston, expressed grave doubts as to the possibility of allowing the full measure of English liberty in the colonies, and asserted the necessity of a military force to support the government. When these letters were brought to Franklin, he saw the advantage that a knowledge of them would give the colonists in the struggle then going on, and as the agent for Massachusetts, he asked for permission to send the letters to the colony for perusal by a few of the leading men. Permission was granted on Franklin's express undertaking, that the letters should not be printed or copied.

In Boston, the letters were passed from hand to hand among the popular leaders, and were finally discussed at a secret sitting of the assembly. The assembly adopted resolutions strongly condemnatory of Hutchinson and Oliver, as sowers of discord between the mother country and the colonies, declared the letters to be incitements to oppression on the part of the ministry, and petitioned the king to remove Hutchinson and Oliver from their government.

The publication of the letters gave rise to great astonishment in England, and one of the consequences, before Franklin confessed his part in the transaction, was a duel between a brother of the person to whom the letters were written, and a gentleman whom he accused of disclosing them to the public. In England Franklin met with universal condemnation, and he was at once dismissed from his position as deputy postmaster general in America.

It is noteworthy as illustrating, partly Franklin's good nature, and partly the apparent inability of the officials of the post office to understand the state of mind of the ministry, that in spite of his dismissal or of the reasons for it, Franklin remained on good terms with the heads of the post office.

There was some delay in settling the accounts of Franklin with the post office, but that was due to a lack of promptness on the part of Foxcroft, Franklin's official associate, in rendering the accounts. When the balance

due by Franklin was paid, his relations with the post office did not entirely cease; for he offered himself, and was accepted, as one of the sureties for Foxcroft on the re-appointment of the latter as joint deputy postmaster general with Hugh Finlay.

For some time previous to the events which led to Franklin's removal from the service, plans were being considered for putting the administration of the post office on a better footing. Although New York was, by the terms of the act of 1710, made the official headquarters of the service, it had not been so up till this time. There seems to have been no fixed official residence. In 1749, the deputy postmaster general resided in Virginia, and his predecessor in North Carolina. Franklin and Foxcroft both happened to live in Philadelphia, and that city accordingly became the headquarters of the postal system.

It was determined in England that, after the 10th of October, 1773, New York should be the permanent administrative centre. A central office was to be established, a general secretary appointed, and suitable clerical assistance provided for the carrying on of the work of administration. When Finlay was made joint deputy postmaster general in Franklin's place, he continued to act as travelling surveyor.

But the plans under contemplation did not come to maturity. Already measures were on foot which in a short time deprived the post office of its business in America. In March 1774, the colonists began a movement to establish a postal system, which would be independent of the regular post office.

The committee of correspondence in Boston, which was the organ through which the opponents of government carried on their work, wrote to the committee in Salem introducing William Goddard, and suggesting the advisability of establishing a post office in America.^[86]

The present post office, it was stated, was founded on an act of the British parliament for raising a revenue from the colonies without their consent, and for that reason was as obnoxious as any other revenue act. The post office was being used as a precedent against the colonies when they contested the right of parliament to tax them, and furthermore, was now being employed to prevent the dissemination of popular intelligence.

Goddard, for whom the Boston committee bespoke good will, would explain to their associates in Salem by what means certain newspapers identified with the people's cause were prevented from circulating.

Goddard was not ill-fitted to take the lead in the agitation against the post office. He was the son of the postmaster of New London, and had been himself for two years postmaster of Providence, and in this way was quite familiar with the details of work in a post office. Moreover, during his residence in Providence, and afterwards in Philadelphia and Baltimore, he was constantly engaged in newspaper enterprises.

As Goddard's schemes were, for the most part, unsuccessful, his wits never lost the edge that adversity usually gives. His grievance was that the post office charged rates so excessive on the newspapers he wished to circulate that he was unable to send them to his readers throughout the colonies.

What measure of truth there was in Goddard's statements we have no means of ascertaining. But there was no doubt that the charge might be true, without the post office exceeding its legal rights. The fact was that newspapers had no special legal standing under the post office act.

That act was passed in 1710, when newsletters in manuscript were in service and newspapers were too few and unimportant to engage the attention of the post office or of parliament at the time the law was being framed. Consequently no express provision was made for them in the act. If newspapers were to be carried by the post office under the authority of the act, it could only be by treating them as letters, and a glance at the scale of charges will show the impossibility of newspapers bearing so burdensome a tax.

The newspapers of that day were inconsiderable in size compared with those that are now published, but few even at that time would weigh less than an ounce, and an ounce letter passing between New York and Philadelphia called for a postal charge of three shillings or seventy-two cents. This sum was the lowest charge in the scale for ounce letters passing between any two places of importance in America.

Clearly newspapers could not circulate by means of the post office if they were to be regarded as letters. But as they were not mentioned in the act,

newspapers had at least the advantage of not being subject to the postmaster general's monopoly. Publishers were free to turn to account any means of conveyance that happened to be available, for the distribution of their newspapers. Unfortunately, however, this freedom was of little benefit at that period, as there were no courier services regularly operating between the towns in America.

There was nothing for it but for publishers to take advantage of the postal system if this were at all possible, and the possibility appeared through one of those curious devices, which are the derision of logical foreigners, but which afford a means of escape from the inconveniences of a law, which it is not desired to alter at the time.

In England, where the situation of newspaper publishers was the same as it was in America, the privilege of franking newspapers for transmission through the mails was conferred upon certain officials of the post office, called clerks of the road. Clothed with this privilege the clerks of the road bargained with publishers for the conveyance of their newspapers in the ordinary mails, and put the proceeds into their own pockets.

It was a practice that was not regarded as in any way irregular. The post office was quite aware that its vehicles were being used for the conveyance of newspapers, from which it received no revenue, and it congratulated itself that it had hit upon a contrivance for serving the public without having to tamper with the act under which it operated.

The privilege of franking newspapers, which was enjoyed by the clerks of the road in England, was also conferred upon the deputy postmasters general in America, and colonial newspapers were distributed by the post office under arrangements similar to those described. While the act itself made no provision for the conveyance and delivery of newspapers, this peculiar plan offered great advantages to the publisher.

There was, however, one serious objection to it. Not resting on the law, but on the good will of those in authority, it could be terminated at any time, and the post office might legally charge sums as high as the postage on letters for the conveyance of newspapers. With this power in its hands the post office had complete control over the fortunes of newspaper publishers. If for any reason it desired to suppress a newspaper, all that was necessary

was to cancel the special arrangement between the deputy postmaster general and the publisher, and leave to the latter the option of paying letter rates or of finding some other means of conveyance.

Whether this power was exercised in Goddard's case, is not known; that it would be, if considered necessary, is beyond doubt. In 1737, the clerks of the road in England were directed to take particular care that no newspapers were sent by the post office which contained reflections on the government, [\[87\]](#) and to assure themselves on the point, they were to send no newspapers into the country at all, except such as were purchased from a single dealer named in the order, whose loyalty and judgment were not open to question. The possession of this power by the government was quite sufficient to arouse reasonable apprehensions.

Goddard appears to have succeeded in his mission to Salem, as a few days later the committee of that town, responding to the letter from Boston, declared that the act of the British parliament establishing the post office in America, was dangerous in principle and demanded peremptory opposition. [\[88\]](#) A considerable sum was raised for the fund to set up a colonial post office, although Salem was in financial straits at the time.

Having succeeded in the first part of his campaign, Goddard went a step forward, and drew up a plan for an independent American post office, and laid it before the committees of correspondence in all the colonies. [\[89\]](#) His proposition was that the colonial post office should be established and maintained by subscription, and that its control should be vested in a committee to be appointed annually by the subscribers. This committee would appoint postmasters and post riders, and fix the rates of postage. The immediate management of the service was to be under the direction of a postmaster general to be selected by ballot, and who should hold his office by a yearly tenure.

Goddard set about procuring subscribers for his scheme, and, it would seem, with much success. In the meantime, however, events were taking place which brought into being a body of more authority than the committees of correspondence, and this body took over the establishment of an American post office.

The punitive measures of the ministry which followed upon the Boston riots had the unexpected result of uniting all the colonies into common cause with Boston. In September 1774, the delegates of the colonies assembled in congress at Philadelphia, and by degrees took upon themselves all the functions of government. On the 29th of May, 1775, the question of providing for the speedy and secure conveyance of intelligence was submitted to the congress, and a committee, of which Benjamin Franklin was the leading member, was directed to make a report.^[90]

With the report before it, on July 26, the congress resolved^[91] to appoint a postmaster general for the United Colonies, whose office would be at Philadelphia, and who was empowered to appoint a secretary and as many postmasters as seemed to him proper and necessary. A line of posts should be established from Falmouth to Savannah, with as many cross posts as the postmaster general saw fit.

Goddard was a candidate for the position of postmaster general, but Benjamin Franklin was chosen. Goddard's friends then made an effort to secure to him the secretaryship. In this, also, he was disappointed, as Franklin selected his son-in-law, Bache, for the place, an appointment which brought down upon Franklin a charge of nepotism.

It seems certain, however, that in no case would he have entrusted the secretaryship to Goddard. Goddard had been postmaster of Providence, and when he relinquished the office, he was a defaulter for a considerable amount.^[92] As the loss from Goddard's defalcation fell partly upon Franklin, as joint deputy postmaster general, the latter would be reluctant to place him a second time in a position of responsibility. Notwithstanding the claims he would seem to have created for himself by his work in organizing the colonial post office, Goddard had to be contented with the surveyorship of the posts.^[93]

Shortly after the service had been put in operation, the continental congress discussed whether it would not be advisable to suppress the king's post office.^[94] Those in favour of the measure argued that the ministerial posts were no longer necessary to the people; that they merely subserved the interests of the enemy, and that the postmasters held their offices by an illegal tenure. On the other hand, it was urged that, closely watched as they

were, the ministerial posts could not lend themselves to harm, and that they furnished the people with so many more means of communication.

The argument which finally prevailed, however, was presented by the opponents of the proposition. They pointed out that this would be an extreme and irretrievable measure, an act of hostility, which would not be warranted by the position in which they stood. All that the colonies desired, they declared, was a return to the conditions which prevailed in 1763, when the conquest of Canada removed the last of the obstacles which impeded their progress, and the relations of the colonies with the mother country seemed permanently and satisfactorily established. Late advices from England indicated that parliament was showing a renewed spirit of conciliation, and any course was to be deprecated which would prevent an easy return to the old conditions.

The matter was laid over, but it was settling itself in another way. Great Britain was recognizing the futility of persisting in its efforts to maintain the post office in the colonies. As early as March 1775, the home office advised its deputies in America that all that was to be expected from the postmasters in the colonies was that they should act with discretion to the best of their abilities and judgment.^[95] It ceased for the time to give positive directions.

Finlay, who, at some personal risk, had gone to New York to make up his accounts, reported that the post office was doing but little business, as the rebels were opening and rifling the mails, and were notifying the loyally disposed that it was unconstitutional to use the king's post office.

There was swift punishment visited upon erroneous constitutional views at that time. Finlay foresaw that the post office could not long continue, and he proposed that the work of distributing the mails should be done on one of the war vessels in New York harbour.^[96] At last, on Christmas day 1775, the secretary of the post office at New York gave public notice that on account of the interruptions to the couriers in several parts of the country the inland service would cease from that date, and thus was closed an important chapter in the history of the British post office in North America.^[97]

With the outbreak of the war, the postal connection between New York and Montreal instantly ceased. When this event took place the service to and from Canada was in a very efficient state. Two couriers travelled each week between Montreal and New York, one passing by way of lake George, and the other pursuing the route through Skenesborough (now Whitehall); and post offices were opened at Crown Point and Fort Edward.

It was far, however, from the wishes of the provincial congress of New York to allow the communication with Canada to be broken. This body, after a conference with Price, a gentleman from Montreal, despatched a letter to the merchants of that place, expressing their strong desire that the intercourse existing between New York and Canada should be maintained. ^[98] They disclaimed any intention of aiming at independence, protested their loyalty to the king, and their attachment to the house of Hanover, which they ranked "among our most singular blessings."

All congress desired was the rights belonging to them as British subjects. They proposed to establish a postal courier between New York and either Ticonderoga or Crown Point, leaving it to Canadians to open a communication between Montreal and such of these two places as might be decided upon.

When the American troops, continuing their advance northward, captured Montreal, Franklin established a post office there, appointing as postmaster George Measam, who afterwards entered the American service. ^[99] In the ledger kept by Franklin, as postmaster general of the United Colonies, the account of the postmaster of Montreal appears in its place among the colonial post offices. The postage on letters from New York to Montreal was fixed at four pennyweight, and to Quebec at five pennyweight. ^[100]

Until relief arrived, Finlay was confined within the walls of Quebec, and Foxcroft's usefulness was equally curtailed by the fact that he and Dashwood, the departmental secretary, were held prisoners at New York. ^[101] While the British were being thus deprived of all the usual means of communication, the American service was being put in a high state of efficiency.

In this, as in other respects, the colonists were fortunate in having the services of Franklin. In August, following upon the proclamation of independence, Franklin was directed to arrange a system of communications whereby post riders were placed at intervals of twenty-five or thirty miles over the whole stretch from Falmouth (now Portland) to Georgia, the mails being carried from post to post from one end of the country to the other, three times a week.^[102]

The riders were to travel night as well as day, and there was to be no more delay at the changing posts than was necessary to pass the mails from one rider to the other. Three advice boats, also, were employed to run from North Carolina, South Carolina and Georgia to the place of assembly of the continental congress.

After the royal post office was driven off the mainland, it took refuge on one of the war vessels, which lay in New York harbour. The postmaster of New York received and opened the mails on board the ship, and all letters were advertised, so that they might be obtained either directly or through friends. The Americans, however, had a keen sense of the importance of communications, and from the beginning of the struggle, made every effort to intercept the packets.

Early in May 1775, while the more cautious Americans were opposing any step that would lead to extremities, Finlay reported that he was on board the ship "King Fisher," and that a vessel manned by sixty resolute fellows was cruising about Sandy Hook, in the hope of intercepting the packet "Mercury," which was due to arrive.^[103]

In consequence of the burning of Falmouth by a British naval expedition, letters of marque and reprisal were issued in November by the province of Massachusetts Bay; and in the following March, the continental congress sanctioned the fitting out of private armed vessels to prey upon British commerce.^[104] Seaport towns were enjoined that on no account should they furnish provisions to war vessels coming to them.

The ministry were under no delusions as to the situation. At the end of September, the packets were withdrawn from general post office duty, armed as for war, and placed at the orders of the war office. The movements

of the packets were clothed with secrecy, and it was only when the vessels were bound for Halifax that the public were notified that a mail was being despatched. From Halifax, the mails were taken by the first opportunity to Boston or New York.

The attitude of the post office to all these preparations for war was very curious. It seemed incapable of understanding why exceptional measures were necessary at that time. A steady murmur of discontent was kept up against the war office. Remonstrance after remonstrance was directed against the commander-in-chief for the detention of the packets beyond what seemed a reasonable delay, and there was continual complaint against the restrictions placed upon the post office.

Until the middle of the year 1776, although the service had been on a complete war footing for some months past, there had been no actual clash between the British and American vessels. The correspondence, however, reveals a state of great anxiety for the safety of the despatches, and as the vessels put out, the masters were placed under strict injunctions to sink the mails if there was any likelihood of capture.

The first recorded engagement in which the packets on any of the North American stations were concerned, took place on the 17th of July. The master of the "Lord Hyde" reported^[105] that on his passage from Falmouth to New York, he saw at four o'clock in the morning of that day a ship and a brig three or four leagues distant. They spoke to one another, and then gave chase to the packet. The ship fell out of sight, but the brig followed hard, and at four in the afternoon came up with the packet and began to fire, at the same time running a red English ensign to the topmast head.

The master of the packet, seeing no chance for escape, shortened sail and prepared for action. The brig came up alongside, replacing the English ensign by a flag of thirteen stripes with a small union in it, and without more ado poured into the packet a broadside from eight carriage guns, and a number of swivels and small arms. The packet returning the fire, a warm engagement followed for an hour and a half at a distance of fifty or sixty yards. The brig then bore away. The packet was much shattered in her sails and rigging, but wonderful to relate, the only casualties were the slight wounding of five persons.

The "Sandwich" packet, which left New York on the 20th of August, reported^[106] an encounter with a fast schooner bearing the New England colours, a white field with a pine tree in the middle. After some manoeuvring, in which it appeared that the plan of the schooner was to keep in the wake of the packet outside the range of the latter's guns, but near enough to take advantage of the superior weight of her own guns, the packet managed to bring the schooner into an action which lasted for nearly two hours. The rigging, sails and masts of both vessels were much damaged, but the packet came out of the encounter without any person being even wounded.

The third engagement was a more serious affair. The packet "Harriott," on the New York station, was attacked on the 17th of September by a privateer of twelve guns and over one hundred men. The packet, which was armed and equipped in the same manner as the other packets on this station, had twelve guns, but only forty-five men. Of these five were killed, including the captain, and nine were wounded. Through the gallantry of the mate, Spargo, the packet managed to avoid capture. For his good conduct on this occasion, Spargo was made master of the "Harriott."

On the 1st of March, 1778, the "Harriott," in violation, it would seem, of the instructions given to all the masters of packets to avoid a fight, if possible, captured the American vessel "Sea Nymph," of one hundred and twenty tons burden, laden with gunpowder, saltpetre, gun flints and other wares, and brought it into New York.^[107]

While the packet boats were thus occupied in foiling the enemy's attempts upon them, the course of events had restored to the post office a footing on land in America. The arrival of assistance from England in May enabled Carleton to attack the American force which had held Quebec in siege since the November previous, and the retreat of the Americans which ensued was not stayed until they had been driven entirely out of Canada.

Finlay, who had spent the winter in Quebec, and who has been credited with one of the best anonymous accounts which have come down to us of the conditions of the city during the siege, at once prepared to resume his duties as deputy postmaster general. New York, also, fell again into the hands of

the British, owing to the withdrawal of Washington's army in September, before the superior forces of Howe.

Here Foxcroft, the deputy postmaster general, and Dashwood, the departmental secretary, were prisoners of war; and Antill, the postmaster of New York, had taken up quarters in one of the war vessels in the harbour. Antill lost no time in returning to the city; and Foxcroft and Dashwood were set free by an exchange for two American officers which took place shortly after.^[108]

Like Finlay, Foxcroft made preparations for the resumption of business; but for both Finlay and Foxcroft an unexpected thing happened. Vessels with mails began to arrive at Quebec and New York, but the mails were not taken to the post office, although the statute laid it upon shipmasters as their duty to deliver the mails at the post office before they broke bulk.^[109] On the arrival of the vessels, the commanders-in-chief directed the masters to send the letters up to their headquarters, where they were gone over by confidential officers, on whom were imposed the duties of handling the incoming mails.

The reason of this step will be sufficiently obvious, although the post office professed that they had never seen any good purpose served by it. Even where there was no suggestion of disloyalty among the citizens, there were infinite possibilities of harm in the unguarded utterances, which are constantly occurring in familiar letters. Matters, which it is of the highest importance to keep concealed from the enemy, may be within the knowledge of every citizen, and it becomes necessary either to induce or to compel citizens not to write of such matters.

But it was not only against the undesigned harm which loyal people might do, that it was necessary to guard. There was good reason to suspect that in Quebec, as well as in New York, there was a considerable proportion of English speaking people who were by no means well affected towards the government, and who would not hesitate to impart to the enemy any information which they thought might be of assistance.

The king, in his instructions to Carleton^[110] as governor, enjoined him to signify to the loyal merchants and planters the necessity for caution against

allowing their letters to become the means of conveying information to the enemy, and directed him to use every possible effort to frustrate the schemes of the disloyal carried on through the medium of correspondence.

The method employed by the governor to forestall danger from this source was the simple one of standing guard over the channel through which correspondence must ordinarily pass. In this way, he would discover many of the disaffected, and at the same time show such people the danger to them of being implicated in matters of that kind.

To merchants, however, the governor's course was a great inconvenience. All their letters were delayed, and many not delivered at all, for the governor's staff had neither the training in post office work, nor the sense of the importance of mercantile correspondence necessary to assure the merchants of the safety of their letters, when these passed out of the accustomed courses. The merchants remonstrated against the governor's action, and called upon Finlay to assert the determination of the post office to secure respect for the act, which was being violated by the governor.

Finlay was a man of tact, and a member of the governor's executive council as well, and he counselled patience to the merchants. They acquiesced for a time, hoping that the governor's surveillance over their correspondence would be relaxed, but the governor continued firm. Each season as the vessels began to come up the river, orders were issued for the renewal of the unpopular practice.

What took place at Quebec was repeated at New York; and during the short period of the British occupation of Philadelphia, in that city, also. The postmaster of Philadelphia, who had retired to England when the British office was closed in 1775, returned on hearing that the city was again in the king's hands, but only to find that the letters were delivered to the commander-in-chief, who distributed them not only to the army and navy, but also to the merchants, and no steps were taken to collect the postage.

[\[111\]](#)

At that time, and indeed until a quite recent date, the postage on letters was not paid until the delivery of them was effected, and when, as during the war of the Revolution, the mails were diverted from their usual channel, the

post office was unable to collect anything to meet the expenses it was incurring.

To-day, owing to the greater cohesiveness among the departments of government, the post office would rest content in the fact that the loss of revenue was due to the action of the government as a whole, and could not be imputed to any failure on its own part, but, at that time, it viewed the situation as a private institution would. The loss of revenue seemed to affect it alone, and again and again the post office declared to the war office that, unless the revenue was maintained, it would be obliged to cut off the internal services between Montreal and Quebec.

There was another matter arising out of the governor's lack of confidence in the English-speaking people in Canada which was a source of much inconvenience to the deputy postmaster general. It has been the practice in Canada to grant exemption to postmasters from the billeting of the troops upon them. The barracks which had been erected in Montreal were destroyed by fire, and it was necessary that the soldiers should be provided for by the citizens. But the duty was grudgingly undertaken, and indeed the disfavour with which the soldiers were regarded in Montreal was one of the chief grounds of complaint on the part of the governors.

Exemption from billeting was an ancient privilege of postmasters. In several of the colonies it was expressly granted, and the continental congress relieved its postmasters from all military duties. In Canada the advantages the post office was able to offer to its postmasters were small and insignificant, and one of the most valued privileges was the assurance of relief from billeting.

The postmaster of Montreal complained to Finlay that, in disregard of the understanding on which he had accepted the postmastership, an officer and his servant had been quartered upon him and he demanded their removal. Finlay, nothing doubting, laid the postmaster's letter before the governor, who, to Finlay's surprise, took exception to what he termed the extraordinary and peremptory tone of the letter, and commanded Finlay to dismiss the postmaster.^[112]

To Finlay this order was a great embarrassment, as suitable postmasters were difficult to find, and, besides, the postmaster had accepted the office

merely to oblige Finlay. Finlay laid these facts before the governor and pleaded for a reconsideration, but the governor was inexorable. Carleton relinquished the governorship at this time, and Finlay appealed to Haldimand, who succeeded Carleton, but with no better success.

The post office encountered the same kind of ill-will here as elsewhere from the military authorities. With the greatest vigilance on their part, much correspondence was passing backward and forward of which they could know nothing, and the suspicions natural under the circumstances were heightened by what they knew of the opinions of many of the people.

The regularity of the trips between Quebec and Montreal, which were resumed soon after the Americans had withdrawn from the country, seemed to Haldimand a source of danger. Although there was no large hostile force in the province, affairs were still unsettled, and a mail courier whose movements were known in every detail could easily be waylaid by the marauding parties which infested the long route on the banks of the St. Lawrence. Haldimand would have preferred holding the regular service in suspense until peace was obtained, depending on occasional expresses to maintain necessary communications.

During the year 1777 there was no material change in the situation. When the British occupied New York in the autumn of 1776, the monthly trips between England and New York were resumed. But the activity of the privateers was greatly increased; and while none of the packets on the New York station were taken, the "Swallow" on its way to Lisbon in February was captured by the war vessel which had carried Franklin to France, [\[113\]](#) and the "Weymouth," which was taking the mails from the West Indies was obliged to strike to the "Oliver Cromwell" of New London, a privateer carrying twenty guns and one hundred and fifty-three men. [\[114\]](#)

France, though not at war with England, saw in the revolt of the colonies an opportunity for revenge for late humiliations, and she strained the laws of neutrality to the utmost in her effort to assist the Americans. Cruisers bearing American names, but armed with French guns, and manned by French sailors ranging the channel, wrought havoc with British merchant shipping, and carried their prizes into the harbours of Normandy and Brittany.

Some regard, however, had to be paid to appearances so long as France had not actually broken with England; and it was not until the alliance between the Americans and the French was consummated in February 1778, that the hands of the French were quite free.

From that time England's position on the sea was changed greatly for the worse, and the record of the packet service was one of almost unbroken disaster. On the 15th of June the packet "Le Despencer" on her way from Falmouth to New York, was set upon by two privateers, the "Nancy" with sixteen guns and one hundred and twenty men, and another having fourteen guns and one hundred and fifteen men. After an hour's fighting, in which his vessel was disabled, the captain of the "Le Despencer" was obliged to yield to superior force.^[115]

In September, the "Duke of York," on one of the North American stations, was taken by a French frigate of thirty-six guns;^[116] and in the same month, the "Harriott" and the "Eagle," the one bound for New York, and the other for Carolina, both fell as prizes to the "Vengeance," a privateer of twenty guns and one hundred and ten men, belonging to Paul Jones' fleet and commanded by a Frenchman, Captain Ricot.^[117]

From the year 1779 until 1782, nine packets on the several North American stations were captured, and seven were more or less seriously damaged. Some idea of the extent to which the packet service was crippled during the war of the Revolution may be gathered from the fact that of the five vessels on the New York station in 1777, four were taken and one damaged. Of the six on the West Indian station, four were taken and one damaged, and of the three on the Carolina station two were taken.^[118] The importance of these facts in their influence on the outcome of the war has not so far received the attention the subject merits.

FOOTNOTES:

^[86] *Pickering Papers*, vol. 39 (Mass. Hist. Soc.).

^[87] G.P.O., *Document in Record Room*.

^[88] *Pickering Papers*, vol. 33.

- [89] *Ibid.*, vol. 53.
- [90] *Journals, Continental Congress*, II. 71.
- [91] *Ibid.*, II. 208.
- [92] Foxcroft to Todd, C. O. 5, vol. 135.
- [93] *Am. Arch.*, fourth series, VI. 1012.
- [94] *Journals, Continental Congress*, III. 488.
- [95] G.P.O., *American Letter-Book*, 1773-1783, p. 62.
- [96] C. O. 5, vol. 135.
- [97] *Am. Arch.*, fourth series, IV. 453.
- [98] *Ibid.*, II. 1294.
- [99] *Am. Arch.*, fifth series, I. 725.
- [100] Placard signed by Franklin, *Papers Cont. Cong.*, no. 61, p. 121.
- [101] C. O. 5, vol. 135.
- [102] *Journals, Continental Congress*, V. 719.
- [103] Finlay to Todd, C. O. 5, vol. 135.
- [104] *The American Revolution*, by C. H. Van Tyne, p. 69.
- [105] C. O. 5, vol. 135.
- [106] C. O. 5, vol. 135.
- [107] G.P.O., *Treasury*, IX. 298-299.
- [108] *Hist. MSS. Com.*, 1904, Amer., I. 70.
- [109] C. O. 5, vols. 136 and 137; also *Can. Arch.*, B. 43, p. 95 and G.P.O., *Treasury*, X. 14.
- [110] *Can. Arch.*, M. 230, p. 116, Art. 49.
- [111] G.P.O., *Treasury*, X. 20-22.
- [112] *Can. Arch.*, B. series, CC. 8
- [113] C. O. 5, vol. 134.
- [114] *Ibid.*, 136.
- [115] C. O. 5, vol. 136.
- [116] G.P.O., *Treasury*, IX. 345.
- [117] *Ibid.*

[\[118\]](#) *Ibid.*, X. 171.

CHAPTER V

Beginnings of exclusively Canadian postal service—Administration of
Hugh Finlay—Opening of communication with England by way of
Halifax—Postal convention with United States.

A point has now been reached, beyond which the sequence of events in the American post office no longer forms an integral part of the narrative. There had, indeed, been no actual postal connection between Canada and the revolted colonies since the beginning of war. Communication between Quebec, Montreal and New York had been interrupted in May 1775 by the capture of Ticonderoga.

The abandonment of the colonial post office by the home authorities at the end of the same year, left the four post offices on the banks of the St. Lawrence the sole remnants of the system which had extended from Quebec to Georgia. Though Finlay was nominally the associate deputy postmaster general for the district between Canada and the southern boundary of Virginia, his real authority was confined to the service of Quebec, Three Rivers, Berthier and Montreal.

Finlay occupied important positions in the government of the country, from his arrival in the year when Canada fell into the hands of the British, until his death in 1801. His knowledge of the French language procured for him a nomination as justice of the peace, the duties of which office were, owing to the circumstances of the time, delicate and responsible.

Two years after a regular government was established, Finlay was nominated to the legislative council, and a glance over the proceedings of that body will show that he always took an important, and often a leading part in its transactions. He was clerk of the crown in chancery and provincial auditor, and, for a number of years, chairman of the land committee, the duties of which were to superintend the distribution of the crown lands to the settlers, who came into the country in large numbers.

Finlay was much attached to the French Canadians. He became their advocate in council, and incurred some displeasure on the part of the governor for his pertinacity on their behalf. The *maîtres de poste* were the objects of his special attention. He endeavoured, though unsuccessfully, to assimilate their position to that of the masters of the post houses in England. As their standing and rights were but roughly defined, they had to endure much hardship and oppression from the ill-nature and rapacity of travellers, and Finlay's championship was of substantial service to them. [\[119\]](#)

When Canada was invaded by the Americans in 1775, Finlay drew up a form of pledge for the *maîtres de poste* to sign, in which they bound themselves to defend the country from the king's enemies, to give to the government all useful information they might become possessed of, and to render faithful service in the conveyance of the mail couriers. All the *maîtres de poste* except three signed the engagement. [\[120\]](#)

To Finlay, in truth, the maintenance of the organization of *maîtres de poste* was indispensable. Without them the mails could not be carried, except at an outlay which the revenues were not able to bear. It has always been the practice of the post office in this country to take advantage of any carrying agencies which might be operating on a route, to secure the transportation of the mails on approximately the same terms as those at which ordinary freight of the same bulk would be conveyed. Thus, by utilizing a stage coach, the cost of conveyance between two towns was a mere fraction of what it would be, if the same conditions of speed and security were required in a conveyance used exclusively for the mails.

In the *maîtres de poste* Finlay had a transportation agency, which was unexcelled at that period, and by protecting them and confirming to them the exclusive right to provide for passenger travel along the road from Montreal to Quebec, he obtained not only all the ordinary advantages accruing to the public from the operation of this agency, but secured the conveyance of his couriers from stage to stage at half the charge paid by travellers.

Finlay's efforts on behalf of the *maîtres de poste* were first exerted in the legislative council. [\[121\]](#) He desired to obtain an ordinance defining their duties, and declaring their right to the exclusive privilege of providing

horses and vehicles to travellers. Having succeeded in this, he endeavoured to have himself appointed superintendent of the *maîtres de poste*.

In this he had to encounter the opposition of the governor who, though personally friendly to Finlay, was unwilling to allow himself to be occupied with the matter, while he was engaged with the more important duty of providing for the defence of the country. Finlay was a man of much persistence, and when he found the governor indisposed to give him the appointment, he sought the aid of the postmaster general, to whom he represented that on his control over the *maîtres de poste* depended his ability to secure the conveyance of the mails at a reasonable charge.^[122]

Governor Haldimand resented the pressure thus brought on him, declaring that the postal service of Canada was quite equal, if not superior, to the service in England. Not long afterwards, however, the governor relented so far as to give Finlay a temporary holding of the position he coveted, and when conditions became settled, his appointment was made permanent.^[123]

The stoppage of the service to New York made it necessary to provide otherwise for the maintenance of the connection with Great Britain. While navigation was open on the St. Lawrence occasional visits were made to Quebec by war vessels and merchantmen, and all such opportunities to send mails to England were taken advantage of.

With Halifax, also, communication was opened by means of a vessel which ran from Quebec to Tatamagouche, on the straits of Northumberland, from which point the journey to Halifax was an easy overland trip.^[124] During the summer, therefore, communication with Great Britain was maintained without special difficulty. When navigation on the St. Lawrence closed, however, and vessels could no longer reach Quebec, the situation was entirely changed.

Haldimand, in a letter to a friend, written in November 1778, bemoans his isolation. He will receive no news whatever, unless the rebels should manage to get into the province, an eventuality he has done his best to prevent by destroying their supplies on lake Champlain. The only possible means of establishing a winter communication with Great Britain was to send couriers by the inland route to Halifax.

At this period and for a long time afterwards, this route presented many difficulties. It was very long, and at certain seasons the natural obstacles in the way of travel were nearly insuperable. The connecting links between the Maritime provinces and Quebec were the portages between the waters running into the St. Lawrence and those running into the St. John river. Of those there were several, but the one which was adopted ran from Notre Dame du Portage, a few miles west of River du Loup, in south-easterly direction until it reached lake Temiscouata.

During the French regime, despatches were not infrequently carried between the governor of Quebec and the governor of Louisburg. The courier, who had despatches from the governor of Quebec for Halifax, would travel on foot over a fair road on the south shore of the St. Lawrence, to the portage between Kamouraska and River du Loup. From this point his course ran over the portage between the St. Lawrence and the St. John river systems.

After a toilsome journey of thirty-seven miles over a country alternating between mountains and swamps, the courier reached lake Temiscouata. Having crossed this lake, he came to the entrance of the Madawaska river, which runs due south until it empties into the St. John river. From this point to fort Howe, the site of the present city of St. John, there was a long river journey of two hundred and twenty-eight miles.

The trip from St. John to Halifax took the courier across the bay of Fundy to Annapolis, thence along the Annapolis valley to Windsor, and so on to Halifax. The distance from Quebec to Halifax by this route was six hundred and twenty-seven miles. This route was followed frequently by couriers during the winters of the years of the war of the Revolution.

In 1775, Finlay proposed to introduce some system into the arrangements by having couriers from Quebec and Halifax meet at fort Howe for the exchange of despatches. While the war lasted, the arrangement was to be kept secret. In 1781, the merchants in London who traded to Quebec urged the adoption of this route for a regular winter service, but the danger of having the couriers intercepted by prowling parties of Americans on the long unprotected stretches made it impossible to have more than an

occasional trip. The trips, also, cost at least £100 each, a not unimportant consideration in those days.

Finlay's activity as deputy postmaster general was confined to the inland service in Canada, and he gave his attention to improving the conditions under which the service was performed. The state of the roads was a matter which occupied him considerably. They were probably, as Finlay reported, as bad as they could be.

For many years before Canada passed into the possession of the British, the habitants were fully occupied with the war, and when peace was restored, the roads remained as the war had left them. Work on the roads was never willingly undertaken by the habitants. When Lanoullier constructed the great highway between Montreal and Quebec, it was only by his personal superintendence that he was able to keep the habitant to his task. As soon as his eye was withdrawn the work lagged.

Lanoullier lived until 1751, and during the last few years of his service he failed to maintain the energy that had been an earlier characteristic; and after his death, the country was in a constant state of war, so that even if there had been an efficient grand voyer to succeed him, the general neglect into which the domestic affairs fell must have affected the condition of the roads.

The procedure employed in calling upon the habitants to work upon the roads was that the grand voyer issued an order to the local captains of militia, who published the order to the habitants by notice at the church doors. The grand voyer complained to Finlay that it was impossible to induce the habitants to work upon the roads. When the order was read at the church, the habitants would dismiss the matter with a shrug, and the remark "c'est un ordre anglais."

The consequence of this neglect was seen in the details of Finlay's reports^[125] as he travelled from Quebec to Montreal. As he passes from post house to post house, his journals are a monotonous, though indignant, recital of ruts, bogs and rocks.

The roads were unditched, and the bridges dangerous trap holes. The bridges were no more than rows of poles lying crosswise, and scarcely

longer than the width of a *calèche*. When the water rose, the poles were set afloat. The post houses should have been three leagues apart, but the difficulty of inducing the habitants to undertake the irksome and thankless duties of *maître de poste*, often compelled Finlay to choose persons whose houses were at a considerable distance from where they should have been, and consequently post houses were found quite close together.

There were places where the post houses were no more than one league apart. As a *maître de poste* could not carry passengers beyond the next adjoining post house, the inconvenience of the frequent changes of horses was very great.

The mail couriers were bound to travel by night as well as by day; and it is not difficult to believe Finlay when he says that the courier travels by night at the risk of his neck. When other means of obtaining help with the road work failed, Finlay offered to put the road in good condition and keep it so if given the services of twelve soldiers of the German legion, and a grant of £100.

An application was made to Finlay in 1781 for a postal service to the settlements and forts along the Richelieu river. This was one of the most prosperous sections of the country. When Catalogne made his report on the state of Canada in 1712, he was particularly struck with the evidences of comfort in some of the parishes bordering on the Richelieu.

It was not on this account, however, that it was thought necessary to extend to this district the benefits of the postal service. The valley of the Richelieu was the pathway along which travel from lake Champlain pursued its course into the heart of Canada. Settlements were established along the river at different times by French and English to oppose a barrier to incursions from the south.

British forces were stationed in 1761 at St. Johns, Chambly and Sorel; and it was to keep up a communication with these forces that a postal service was desired. The detachments at St. Johns and Chambly received their letters and despatches from Montreal, but as the most important communications were with the governor, whose headquarters were at Quebec, the commandant of the forces in this district, Colonel St. Leger, wished to have a regular exchange with Sorel at the mouth of the river.

Although Sorel was on the south side of the St. Lawrence, it had maintained connection with the couriers on the grand route between Quebec and Montreal, by means of a courier who crossed the river to Berthier, where a post office had been established since 1772. The postmaster general was disinclined to open a route between Sorel and St. Johns, and the military authorities took the matter into their own hands.

The conclusion of peace in 1783 and the recognition of the independence of the United States was immediately followed by the dissolution of the old establishment which administered the postal system of the northern district of North America. The services of Finlay, as deputy postmaster general of that system, ceased forthwith; and in July 1784, he was appointed to the much humbler position of deputy postmaster general of Canada.

Foxcroft, Finlay's associate in the deputyship was made British agent at New York for the packet boat service, which was resumed between Great Britain and the United States. Dashwood, the departmental secretary of the old establishment, was appointed postmaster general of Jamaica in 1781.
[\[126\]](#)

The first question of importance to occupy Finlay under the new order of things was the means by which communication between Great Britain and Canada was thereafter to be carried on. The merchants of Quebec and Montreal hearing that a line of sailing packets was to be re-established between Falmouth and New York,^{[\[127\]](#)} at once demanded that the service between Canada and New York should be restored.

Conditions were not favourable to its resumption. The rancours of the war were not yet abated, and one or two messengers, who were sent down to New York by Finlay, were insulted and maltreated by the Americans. The postmaster general of the United States, Hazzard, also set up difficulties.
[\[128\]](#)

Finlay's plan was to have the Canadian mails taken down as far as Albany by his courier, and to pay the American postage on them from Albany to New York. But at this time there were no regular couriers between Albany and New York; and consequently the Canadian mails, having to depend on chance conveyance, would often miss the packet boats for which they were

intended. Finlay thought to overcome this difficulty by having his courier take the mails past Albany and on to New York.

Hazzard, however, objected to this plan, and informed Finlay that he would have the courier prosecuted if he attempted to go farther south than Albany. Finlay met this objection, but at a ruinous cost. He arranged with the postmaster at Albany that the Canadian courier should go on to New York, and that at the same time Finlay would pay for this privilege at the rate of three shillings sterling per ounce for the mail, the bag being included in the weight. Thus, if the mail bag weighed twenty pounds—no very great weight—Finlay had to pay £48, the cost of wayleave for his courier to travel from Albany to New York. He had, of course, to pay his courier's expenses as well.

Nor did the situation show a prospect of improvement. The United States perceived that the toll which the Canadian post office would have to pay for leave to pass over their territory might be greatly increased by the simple expedient of establishing a post office near the Canadian boundary, and compelling the Canadian post office to pay a wayleave equal to the ordinary postage for the distance between that post office and New York, as well as the courier's wages and necessary expenses, for the Americans did not propose to be at any expense in the matter. This scheme would net the Americans four shillings an ounce.

But as has happened so often since in the relations of Canada with her neighbour to the south, the Canadian post office was driven by these oppressive charges to the development of the alternative, though naturally much less favourable, opening to the sea. The distance from Quebec to Halifax by the Temiscouata route was six hundred and twenty-seven miles as against rather less than four hundred miles, which is the distance from Montreal to New York.

The route to New York was the natural highway, which for a century and more had been pursued by Indians, soldiers and travellers on their way from the British American colonies to Canada. On the journey southward from Montreal to New York, there was a good road from Laprairie, opposite Montreal to fort St. John, which was connected by the river Richelieu with lake Champlain.

The trip down the lake from fort St. John to Crown Point (or fort Frederic) was easily and pleasantly made by canoe or *bateau*. From Crown Point, the traveller had a choice of routes to the Hudson river, which bore him to New York. Kalm, the Swedish naturalist who visited Canada in 1749, entered the country by the route described, and his account of the trip suggests no unusual difficulties. [\[129\]](#)

Before the war the mail couriers from Montreal to New York made the journey in from nine to ten days. The journey to Halifax was of a very different character. At the best it could not be made in less than a month, and during a considerable period at the beginning and the end of each winter season the trip was very arduous and dangerous.

There has been preserved the journal of a courier, Durand, who carried a mail from Quebec to Halifax and back in the early winter months of 1784. [\[130\]](#) His trip downwards, starting on the 11th of January, offered no features unusual in a winter journey, most of which must be made on foot through a country a large part of which was unsettled. He reached Halifax on the 29th of February, seven weeks from starting.

The journey homeward was exceedingly toilsome and dangerous, and as conditions remained unchanged for many years, at this season when winter was relaxing its hold, it may be worth while to note some of the incidents on the route.

At the Bay du Portage, on the lower St. John, Durand and his three companions broke through the ice, and they with their mails were rescued with difficulty. They managed to get as far as Presqu' Isle, partly on the honeycombed ice, and partly in the woods, when they found themselves face to face with an ice jam. As it was impossible for Durand to land his dogs on the shore, he clambered up the hill of ice, and he and the dogs had to make their way as best they could over the broken heaped-up pieces for twenty miles, when they came upon a stretch of water as clear as in summer.

Durand's guide had abandoned him and taken to the woods, but finding the snow too soft for his snow-shoes, after a league's trudging, he rejoined Durand on the ice. The swift and swollen waters, which they now reached, compelled them to wait till they could build a canoe. Embarking they poled

their way for a couple of miles, as the speed of the current prevented rowing, when the ice began again to come down upon them in great masses.

Harnessing their dogs to an Indian cart, they hauled their canoe another stretch, and on the 14th of April they reached Grand Falls. Above the falls the ice, though bad, was firm enough; and having constructed a sled, they carried their canoe and baggage on it for fifteen leagues. From this point onward, although their difficulties were by no means at an end, they struggled on to the St. Lawrence, and reached Quebec on the 24th of April.

The trip was a great disappointment to Finlay. He had no intention of having it made at this time; but Sir John Johnston, superintendent general of Indian affairs, had informed him that he was about to make a trip to Halifax, and would be prepared to take a mail with him. Finlay lost no time in advertising the fact throughout the colony, and had gathered a large number of letters when Johnston changed his plans and did not go to Halifax.

There was nothing for Finlay to do but to send a special courier. Durand whom he engaged could not tell him what the cost would be, but from the figures furnished by another courier who had frequently carried despatches, he thought that £120 would be about the expense. Imagine his dismay when the account was shown to be £191, and he had collected less than £75 as postage on the letters contained in the mail.

There was no choice open to the colony. At whatever cost, an easy road must be made between Quebec and Halifax. Dependence on a foreign, and, at the time, hostile nation, for communication with the mother country was not to be thought of, still less endured.

Indeed, in January 1783, before the peace was signed, Haldimand had taken steps to establish a road between Canada and Nova Scotia. He sent a surveyor with two hundred men down to work on the Temiscouata portage, and at the same time urged governor Parr of Nova Scotia to do what was necessary to facilitate travel in his province.

Haldimand had observed that a considerable part of the expense of a mail service by this route arose from the extortionate charges for guides and forwarding, which were made by the Acadians settled at Aupaque, a few miles above Fredericton. ^[131] His plan, therefore, was to gather into his own

hands all the agencies for transportation on the route; and with that end in view, he proposed to establish some experienced men at the head of lake Temiscouata, with canoes and other facilities for travel, whose business it should be to convey passengers and mail couriers across the lake, down the Madawaska river, and on down the St. John river as far as Grand Falls, where he intended to settle another post.

From an Acadian courier, named Mercure, whom Haldimand frequently employed to convey despatches to Halifax, he learned that a number of Acadians desired to take up land on the upper St. John, in order that they might be nearer ministers of religion, in the parishes on the St. Lawrence. The plan was to place these Acadians on the lands along the river from Grand Falls up to lake Temiscouata, and it was hoped that the settlement thus formed would extend eventually to the St. Lawrence.

The governor of Nova Scotia responded heartily to Haldimand's proposals, and the settlement, once begun under their united efforts, made rapid progress. When Finlay travelled by this route to Halifax in July 1787, he found no settlers at all on the Madawaska, and only some twenty Acadians huddled together on the south bank of the St. John, opposite the mouth of the Madawaska. [\[132\]](#)

From this point downwards to the Grand Falls, a distance of forty miles, the country was entirely unoccupied. In 1791, a gentleman from Scotland, who was making a tour through Canada remarked with satisfaction on the regularity of the settlement over an extent of fifty miles of very rich country, and on the evidences of material well-being observable on every side. [\[133\]](#) The people carried the modes of life of a self-dependent community with them, as the traveller says that the settlement was entirely isolated and self-contained, electing its own magistrates, and that a high degree of comfort prevailed.

Governor Carleton, of New Brunswick, who had assisted materially in the formation of the settlement, obtained a troop of soldiers from Lord Dorchester, and by manning the posts at Presqu' Isle, Fredericton and St. John, he provided the means for keeping the road in good order.

The section of the long route between Quebec and Halifax, which commenced at the northern end of the Temiscouata portage, and ended at

the mouth of the St. John river, was the one presenting most difficulties. But the other parts of the route, that is, the section between Quebec and the Temiscouata portage, which was entirely within the jurisdiction of the governor of Quebec, and the section from St. John to Halifax, which was partly in New Brunswick, and partly in Nova Scotia, remain to be mentioned.

The courier had a comparatively easy journey from Quebec down the south shore of the St. Lawrence to the entrance of the portage. There had been a fair road for some years through that part of the country, and in 1786 Finlay, by the governor's orders, settled post houses on the route in order to facilitate the travel of mail couriers and others. The gentleman whose travels through Canada have been mentioned, observed that it was a comfortable trip through these parts, and that the country was thickly settled, there being from twelve to sixteen families to the mile.

The eastern end of the long route, that is, the part from St. John to Halifax, consisted of a trip across the bay of Fundy from St. John to Annapolis, and a journey by land through the Annapolis valley from Annapolis to Windsor, thence to Halifax. The road from Annapolis to Halifax is described by Finlay as very rough, but it was covered in three days in a one-horse carriage, and in two days on horseback.

The maintenance of a continuous communication between Quebec and Halifax was effected in the following manner.^[134] Canada controlled the section from Quebec to Fredericton, and provided couriers who made fortnightly trips over this part of the route. The section down the St. John river from Fredericton to St. John, and thence by the bay to Annapolis, was under the supervision of the government of New Brunswick; while the eastern part, which lay entirely in Nova Scotia, was naturally managed by that government. In the summer of 1787, the governor, Lord Dorchester, sent Finlay over the route to Halifax, to see what improvements would be required in order to enable this service to compete with the service over the shorter route from Montreal to New York. Dorchester at the same time submitted the whole scheme to the colonial office, intimating that if the home government saw fit to establish a packet service between England and Halifax, the arrangements for the inland conveyance through the provinces would be found satisfactory.

Lord Sydney, the colonial secretary, expressed the king's approval of the measures taken,^[135] and stated that the postmasters general had directed Finlay to carry the plans into execution in a manner correspondent to Lord Dorchester's wishes. The lack of sufficient packet boats would prevent the establishment of a regular service from England for the moment, but it was hoped that vessels enough might be spared for the route, to make the service though not exactly regular yet of substantial benefit to the colonies.

Finlay in the course of his visit to St. John and Halifax found much to encourage the hope that, with the improvement of the route, a satisfactory outlet from Canada to the sea would be obtained at Halifax. The chief trouble, he foresaw, lay in the divided responsibility for the maintenance of an efficient service, owing to the fact that post office authorities in the several provinces were entirely independent of one another. Indeed, at that very time, the deputy postmasters general of New Brunswick and Nova Scotia were at strife with one another, and were carrying on an active newspaper war as to which of the two was accountable for certain defects in the service.^[136] The distribution of the expense of the part of the service they had undertaken to maintain was another cause of complaint.

Finlay came back to Canada after his trip to Halifax bringing with him two strong convictions. One was that the service to be successful must be in the hands of one person. The other was that the correspondence between the provinces themselves was not of sufficient volume to cover the outlay, and that unless there were frequent English mails exchanged at Halifax, the service would have to be dropped for lack of revenue to meet the large expense. He considered that if six mails a year could be exchanged between England and Halifax, the postage arising would more than pay the expenses of the service.

Dorchester lost no time in transmitting to England the substance of Finlay's recommendations, adding his own opinion that as soon as a continuous road to St. John had been constructed, and a sufficient number of people had been settled upon it to keep it open in winter, the foot couriers would be replaced by horsemen, and then the mails would be carried more speedily and securely than by way of New York.

The governor, also, suggested that the postal service in all the provinces be put under the direction of Finlay, who was a man of much experience, zeal, and practical ability, and who was entitled to this consideration from having lost a similar appointment by the late war.^[137]

The home government approved of Dorchester's recommendation as to Finlay, whose commission as deputy postmaster general was extended to comprise the whole of the colonies in British North America. At the same time Dorchester received the gratifying news that the post office had managed so to arrange matters that commencing with March 1788 the packet boats which ran between Falmouth and New York would pass by way of Halifax, stopping there two days on both the inward and the outward voyages.

The service to Halifax was to be limited, however, to eight monthly trips between March and October, as the admiralty had been informed that the prevailing winds off the Nova Scotia coast during the winter months were so contrary as to make it impracticable for the packets to call there during those months.^[138]

In winter, therefore, it was still necessary to send the mails from Canada for England by way of New York. The mails between Nova Scotia and England during the winter months were exchanged by means of a schooner, which the governor of Nova Scotia put on the course between Halifax and New York.

In the winter of 1790, the conditions were made somewhat easier for the Nova Scotians, by the British post office directing that the packet agent at New York should send the Nova Scotia mails from New York to Boston, so that the governor's schooner was not required to go further south than Boston.

To Canada, the calling of the packet at Halifax, was a great boon. It settled the seaport problem, which had many perplexing aspects. Canada could never dispense with the New York route, unless the charges for transmission through the United States were made quite extortionate, and the success which had attended the efforts of Canada to make an outlet through British territory would not be lost upon the Americans when it became necessary to re-arrange the terms for transit through the United States.

To merchants and others in Quebec who depended exclusively on the Halifax post office for their correspondence with England, the service of the packet boats, curiously enough, developed a grievance, which had a real foundation, as will be seen from the following case.

The postmaster of Halifax reported to the postmaster general that the admiral of the "Leander," which was on the point of sailing for England, expressed much dissatisfaction because a mail was not sent by his ship.^[139] In explanation of his refusal to do this the postmaster stated that before the packet boats began to call at Halifax, he made up and despatched a mail by every ship of war and merchantman that sailed from Halifax for England, but since the commencement of the packet service, he despatched no mails by any other vessels than the packets.

The understanding of the arrangement by the postmaster was that the packet boats would not have been sent to Halifax if they were not to be employed exclusively, and he would no more think of sending a mail by any other steamer than he would send the letters to Annapolis by the first traveller who happened to be going in that direction. The explanation was acceptable to both the post office and the admiralty, but there can be no question that the employment of the packet boats curtailed the opportunities which the Nova Scotians had enjoyed of corresponding with England.

Before leaving the Quebec-Halifax service, it seems proper to mention a remarkable scheme which was submitted to the postmaster general by William Knox, late under secretary of state, for a packet service between England and North America, and between the several parts of the latter.^[140] Knox was under secretary of state during the war, and had in a large measure directed the operations of the packet service on behalf of the army in America.

The proposition, which was the result of a request by Lord Walsingham, the postmaster general, for an expression of Knox's views, was based on the sound principle that, until the post office provided facilities adequate to the requirements of the correspondence which passed between England and North America, it could never compete successfully with the number of private ships continually crossing the Atlantic.

Knox pointed out that there was only a monthly service between England, Halifax and New York, and that, at the very best, five months must elapse before an answer could be returned to a letter written in England and addressed to any of the interior parts of British North America.

The plan Knox unfolded to Walsingham was to have a fleet of fast sailing vessels ply between England and Caplin bay, Newfoundland. At Caplin bay there would be other vessels awaiting the British packets, and, on their arrival, one of these would set off with the mails for Halifax and Rhode Island, and another for Bermuda and Virginia, each vessel returning by its own route, to Caplin bay. These services were to be looped together by auxiliary services, and connected with other lines further south, until Great Britain, Newfoundland, Canada, the United States and the West Indies were all bound together by an elaborate system of intercommunication, which would give an exchange of mails, between all the parts three times a month. This scheme, it is needless to say, was never carried into execution.

The results of the war had other important consequences for Canada, besides that of forcing upon Quebec and the Maritime provinces the first of the series of steps in the direction of common action, which led eventually to confederation. When peace was concluded in 1783, the disbanded soldiers and other adherents of the British cause came and settled in Canada, and there was an early demand for postal accommodation in the newly peopled districts.

The first settlement in Upper Canada was at Niagara, where four or five families took up land in 1780. These were reinforced in 1784, by a number of the men of Butler's Rangers, and at the end of that year, the settlement was increased to over six hundred. Americans came over in large numbers, and between them and the steady stream inwards of loyalists, the district from Niagara to the head of the lake at Hamilton was rapidly settled. A gentleman travelling through that part of the province in 1800 remarked that it was all under settlement. [\[141\]](#)

At the other end of the province, settlement was going forward with much rapidity. From the eastern boundary westward as far as the township of Elizabethtown, near the present site of Brockville, there was a continuous line of settlers. The extreme east was taken up by Highland Scotch as far as

Dundas county, and the western part of this county was occupied by Germans. Both Highlanders and Germans came from the same district on the Mohawk river in New York state.

Westward from Dundas county the settlers were more largely of British-American origin. At Elizabethtown there was a break in the settlement until Frontenac county was reached, as the land in that intermediate district did not appear so favourable. At Kingston, settlement was recommended, and from that point to the western end of the bay of Quinte, farms were taken up with an alacrity that was unsurpassed in any part of the province.

The incomers were all from the states to the south, and in their old homes had enjoyed many of the conveniences of civilized life. In 1787, as soon as they had become fairly established, they petitioned the government for the extension of the post office into the new districts, and two years later post offices were opened at Lachine, Cedars, Coteau du Lac, Charlottenburg, Cornwall, New Johnston, Lancaster, Osnabruck, Augusta, Elizabethtown and Kingston. [\[142\]](#)

This was as far as the regular mail couriers ran. Trips were made once a year during the winter, and in summer, every opportunity afforded by vessels going up to lake Ontario, was taken advantage of for the despatch of mails.

In the first advertisement of the service of the new districts, it was stated that the mails would be despatched every four weeks, but this regularity could not be attained without a considerable outlay, and it was found better to utilize such means of conveyance as happened to be offering, for the carriage of the mails. Though the line of post offices along the St. Lawrence terminated at Kingston, reasonable provision was made for communication with the remote settlements of Niagara, Detroit and Michillimackinac.

Detroit and Michillimackinac are in the territory of the United States, but the forts at these places were detained in the hands of the British until 1796 as security, until the obligations imposed on the Americans by the treaty of Paris were fulfilled. Offices were established in each of the three settlements mentioned, and the post office undertook to send the mails forward from Kingston as opportunities occurred of doing so with safety. [\[143\]](#)

In 1792 the first postal convention to which Canada was a party, was concluded with the United States. Under its terms^[144] the United States post office engaged to act as intermediary for the conveyance of mails passing between Canada and Great Britain. When a mail for Canada reached New York by the British packet, it was taken in hand by the British packet boat agent, who after assorting it, placed it in a sealed bag, which he delivered to the New York post office.

The postmaster of New York sent this bag forward by messenger as far as Burlington, Vermont, from whence it was taken to Montreal by a Canadian courier, who travelled between Montreal and Burlington every two weeks. In 1797 these trips were made weekly.

For this service the Canadian post office agreed to pay the United States department the sum which the latter would have been entitled to collect on the same number of United States letters passing between Burlington and New York. As the mails were contained in a sealed bag, the United States post office had no means of arriving at the amount due to them for this service, and they agreed to accept the sworn statement of the British and Canadian officials on this point.

The convention, also, provided for the interchange of correspondence between Canada and the United States. According to the practice of the period, a letter from Montreal for New York, for instance, was chargeable with the postage due for conveyance from Montreal to the United States boundary. This was collected by the Canadian post office. In addition to this, the United States post office charged the postage due to it for the conveyance from the boundary to New York.

The arrangements for the collection of the postage due to each administration were somewhat peculiar. On a letter from Canada to the United States, the Canadian postage as far as Burlington had to be paid at the time the letter was posted. The United States postage was collected from the person to whom the letter was delivered. On letters passing the other way, that is, from the United States to Canada, another arrangement was possible. The sender could, of course, if he chose, pay the United States postage to Burlington, and the Canadian post office would collect its own postage from the addressee.

But besides this arrangement, which was common to letters passing in either direction, a person in the United States could post a letter for Canada entirely unpaid, and the total amount due would be collected on the delivery of the letter to the person addressed in Canada. In this case, the postage due to the United States was collected by the postmaster at Montreal, who assumed the duties of agent, in this respect, for the United States post office. The United States did not allow any of their postmasters to act as agents for the collection of Canadian postage in the United States, alleging that there were too many post offices in that country for Burlington to look after them properly. The convention of 1792 contained a feature which was at that time novel in post office arrangements. It provided for the conveyance of periodical magazines between Canada and Great Britain, charging for its services the unusually low figure of eight cents a magazine. The convention was signed by the deputy postmaster general of Canada and the postmaster general of the United States.

Under this convention the arrangements for the exchange of correspondence between Canada and Great Britain were very satisfactory. During the eight months when the packet boats called at Halifax, the mails passed by the route through the Maritime provinces. In the winter, while the packet boats did not visit Halifax, the mails were sent by way of New York.

The improvements in the roads on the route through the United States, reduced greatly the time of conveyance between Montreal and New York. Travellers from Montreal to New York in 1800 noted that there was a rough road as far as Burlington, and a rather better one to Skenesborough (Whitehall), while from this place to New York, the journey was made by coach. [\[145\]](#)

In Upper Canada, postal affairs were brought into some prominence when that part of the country was erected into a separate province by the constitutional act of 1791. As will be recalled, the service beyond Kingston was conducted in rather haphazard fashion. It was maintained largely in the interest of the little garrisons at Niagara, Detroit and Michillimackinac.

The first governor of the new province, General Simcoe, was a man of great energy, and zealous in the discharge of any duty laid upon him. The total population in Upper Canada at the time did not exceed ten thousand. But

though these were not neglected, it was in preparation for the thousands whom Simcoe foresaw thronging into the province, that his attention was chiefly occupied.

Before he left London for Canada, Simcoe had written to the government several letters, some of them of great length, discussing every conceivable topic of colonial policy. In submitting the list of officials which he considered necessary for the government of the province, the newly appointed governor stated that he had in mind a proper person who would go to Canada as printer, if he had a salary, and the governor thought that by making this person provincial postmaster^[146] as well as government printer, a salary might be raised from the two offices, sufficient to induce him to go.

When Simcoe reached Quebec in November 1791, he consulted with Finlay on the subject, and was confirmed in his opinion as to the desirability of a post office establishment in Upper Canada. There was, however, a preliminary question of great importance which it appeared to him necessary to have settled.

The question was akin to that which formed the subject of a later controversy between the home government and the colonies, as to whether sums collected from the public as postage were to be regarded as a tax, and as such would require the consent of the colonies before they could be appropriated to the use of the postmaster general in Great Britain.

Franklin, it will be remembered, contended that these sums were not a tax, but simply compensation for services rendered by the post office. The government, which founded an argument for the legality of its course in laying taxes in America, on the fact that the colonies had hitherto contentedly paid postage on the letters conveyed by the post office, and made no objection that the profits of the American post office should be sent to England, insisted that the postage collected was a tax.

Simcoe had no doubt on the subject himself. He fully shared the earlier view of the British government, and proceeded to a further discussion of the subject. In 1778, in a belated attempt to stay the progress of the rebellion in the colonies by a course of conciliation, the government, by an act of parliament,^[147] renounced the right it had hitherto claimed of taxing the colonies except so far as might be necessary for the regulation of

commerce; and in the case of such regulative duties, the proceeds from them were to ensure to the benefit, not of the home government, but of the colony from which the duties were collected.

Whether a post office tax was to be classed among duties for the regulation of commerce was a point on which Simcoe could not quite make up his mind. But if it were to be so regarded, then by the act of 1778, which was embodied in the constitutional act of 1791, the net produce from the Upper Canadian post office should be appropriated to the use of the province, and the question Simcoe asked was whether it did not lie with the general assembly of the province, rather than with the parliament of Great Britain, to superintend the public accounts of duties so levied and collected.^[148] In order that the whole matter might be placed beyond doubt, Simcoe suggested that when a post office bill for the new province came to be drawn up, it should contain a preamble describing its connection with duties for the regulation of commerce, and vesting the collection of the tax in the deputy postmaster general of Lower Canada, who should be made accountable for the revenue so raised, to the legislature of Upper Canada.

Dundas,^[149] the home secretary, to whom the matter was submitted, expressed no decided opinion upon it, but suggested that bills of that nature ought not to be passed upon by the governor, but should be reserved in order that the king's pleasure might be signified regarding them.

The question of a separate establishment for Upper Canada, as will be seen hereafter, occupied the attention both of the local government and of the general post office in England, but though several propositions were submitted by both sides, the objections to it were found insuperable.

The only other event of importance occurring in Upper Canada at this period which affected the history of the post office was the founding of the city of Toronto. Until 1794, when the lines of the present city were laid out under the direction of governor Simcoe, and for some years later, the future capital of Ontario^[150] was in a state of the most complete isolation.

On the way up lake Ontario, settlement reached no further than the western end of the bay of Quinte. An official sent from York, as Toronto was named

in 1792, to Kingston, to meet and accompany immigrants to York, found very few desirous of going so great a distance from all settlements.

The country to the west of Toronto was equally unsettled. The line of farm holdings from Niagara westward, came to an end at the head of the lake about the site of the present city of Hamilton. From that point to York, the country was occupied by the Mississauga Indians. When it was determined to remove the seat of government to York in 1797, the chief justice complained that the lack of accommodation of any kind was so great that the larger part of those whom business or duty called to York must remain during their stay there, either in the open air, or crowded together in huts or tents, in a manner equally offensive to their feelings and injurious to their health. [\[151\]](#)

The exact date on which the post office was established at York, and the name of the first postmaster are unfortunately not disclosed by the records, which are far from complete. There is a probability, however, which amounts to practical certainty, that the post office was opened in either 1799 or 1800, and that the first postmaster was William Willcocks.

Lieutenant governor Hunter states that in 1799, excepting the single trip made annually from Montreal to Niagara, there was no service beyond Kingston, the mails for the posts west of that point being taken by the king's vessels, and their distribution effected by the commandants at the posts. [\[152\]](#)

In 1800, there was certainly a regular postmaster at York, as the legislative council in that year directed the surveyor general to give Wilcox, the postmaster, such information as would enable Finlay to answer certain questions asked by the governor general respecting the establishment of regular couriers between Quebec and York. [\[153\]](#)

Besides the inhabitants of the rapidly growing town of York, the post office at that place served to accommodate for many years the German settlement in Markham township, which was begun in 1797 under the leadership of Berczy, an enterprising promoter.

In October 1799, Finlay's connection with the post office in Canada ceased, and it is unpleasant to add that he was dismissed as a defaulter. He admitted an indebtedness to the postmaster general, amounting to £1408.

To the lieutenant governor Finlay explained^[154] that a large part of the debt arose in 1794 from the disallowance for a number of years past, of certain items of credit, which had been accepted and passed at the general post office. The death in bankruptcy of the postmaster at Three Rivers increased considerably the amount of Finlay's obligations to the postmaster general.

Finlay pointed out, with truth, that he had not only successfully maintained the post office in Canada under very trying circumstances, but that through the relations he had established with the *maîtres de poste*, he had saved to the postmaster general not less than £12,000. He pleaded, therefore, that as large an allowance as possible be made, on account of these considerations, and that he might be given time to pay any balance which might thereafter be found due.

Finlay's plea was strongly supported by the leading merchants in the colony, and by the lieutenant governor, who represented that he was the oldest servant of the crown in Canada, being senior executive and legislative councillor. When the land committee was formed he was made chairman, and on him fell practically all the onerous duties devolving on the committee during that period. He was seventy years of age, forty of which had been spent in the service of the colony, and was suffering from an incurable disease, from which he died not long after his dismissal.

Notwithstanding these pleas, judgment was obtained for the amount of the debt, and some land which had been granted to him in Stanstead county as a special recognition of his services, was attached by the orders of the postmaster general. Either the claim was not pressed rigorously, or the land did not suffice to cover the debt, for after standing on the departmental books as uncollectable for many years, Finlay's debt was finally wiped off in 1830.

FOOTNOTES:

^[119] Notice in *Quebec Gazette*, February 16, 1767.

^[120] *Can. Arch.*, B. series, CC. 2.

^[121] Finlay "Papers," *Can. Arch.*, M. 412.

- [122] C. O. 5, vol. 136.
- [123] *Can. Arch.*, B., CC. 114.
- [124] *Ibid.*, LXII. 164.
- [125] *Can. Arch.*, B., CC. *passim*.
- [126] G.P.O., *Commission Book*, 1759-1854.
- [127] *Quebec Gazette*, November 18, 1783.
- [128] *Finlay's Report to Legislative Council*, July 9, 1785.
- [129] Peter Kalm, *Travels into North America*, 1771, vols. 2 and 3.
- [130] *Can. Arch.*, B., LXXI 72.
- [131] *Can. Arch.*, B., CL. 187 and 204.
- [132] *Finlay Papers*, *Can. Arch.*, M. 411.
- [133] P. Campbell, *Travels in North America* (Edinburgh, 1793).
- [134] *Finlay's "Report," Can. Arch.*, M. 412.
- [135] *Can. Arch.*, Q. 28, p. 28.
- [136] *Finlay's "Report," Can. Arch.*, M. 412.
- [137] *Can. Arch.*, Q. 28, p. 152.
- [138] Record Office, *Admiralty-Secretary In Letters*, Bundle 4072.
- [139] Record Office, *Admiralty-Secretary In Letters*, Bundle 4073.
- [140] *Extra Official State Papers* (Knox), London and Dublin, 1789.
- [141] *Freer Papers*, I. 47.
- [142] *Quebec Gazette*, May 28, 1789.
- [143] *Quebec Gazette*, May 28, 1789.
- [144] *Can. Arch.*, Br. P.O. Transcripts, I.
- [145] *Freer Papers*, I. 54.
- [146] *Can. Arch.*, Q. 278, p. 283.
- [147] 18, Geo. III. c. 22.
- [148] *Can. Arch.*, Q. 278, p. 44.
- [149] The affairs of the colonies were at this period managed by the home secretary.
- [150] The province of Upper Canada became known in political geography as Ontario in 1867.

[\[151\]](#) *Can. Arch.*, Q. 283, p. 117.

[\[152\]](#) *Ibid.*, C. 284, p. 21.

[\[153\]](#) *Ibid.*, Q. 290, p. 200.

[\[154\]](#) *Ibid.*, 87, pp. 251-268.

CHAPTER VI

Administration of George Heriot—Extension of postal service in Upper
Canada—Irritating restrictions imposed by general post office—
Disputes with the administrator of the colony.

George Heriot, who succeeded Finlay, had been a clerk in the board of ordinance for many years before his appointment as deputy postmaster general. He was a man of some literary ability, his history of Canada which was published in 1801 being a high-priced item in catalogues of Americana. Of Heriot's zeal and intelligence the general post office had no reason to complain, but he had a sensitive self-esteem, which was a most unfortunate possession as matters then stood.

Ordinarily, personal characteristics such as these would call for no mention, but the relations between the post office and the provincial authorities at this time were so difficult that the utmost tact on the part of the deputy postmaster general would scarcely gain more than a tolerable success. The position of the deputy postmaster general towards the governor and the legislatures was peculiar.

As an official of the general post office in London, he was subject to the orders of the postmaster general and to no other authority whatever. Neither the governors nor the legislatures had the least right to give him instructions. Although the postal service was indispensable to the conduct of the official and commercial transactions of the colony, and its maintenance in a state of efficiency a matter of first importance to the colony, the power of the colonial authorities went no further than the submission of their views and desires to the postmaster general or to his deputy in Canada.

To a community jealous of its rights of self-government, the situation was irritating enough, but the natural annoyance might have been largely relieved by an appreciative regard, on the part of the post office, for the

wants of the rapidly increasing settlements. This, however, was the last trait the post office was likely to show at this period.

The post office was subordinate to the treasury, a relationship it never permitted itself to disregard. The deputy postmaster general was under strict injunctions not to enter upon any scheme for the extension or improvement of the postal service, unless he was fully satisfied that the resulting expense would be covered by the augmented revenue. Each application for improvement in the service was dealt with from this standpoint.

The fact that the service in any part of the country was very profitable to the post office was held to be no justification for applying any portion of the profits to make up the deficiencies of revenue in districts less favourably situated. On one occasion, where the needs in some new districts in course of settlement appeared to Heriot to demand special consideration, he directed that for a time the whole of the surplus revenue from Upper Canada should be applied to extensions and improvements. When his action was reported to the postmaster general, it was promptly disavowed, and he was compelled to cancel the arrangements he had made. [\[155\]](#)

A policy of this kind was ill-adapted to colonies, which were steadily expanding by the implanting of small, widely-separated communities, and the man on whom devolved the duty of carrying on a postal service under these conditions had no easy task. Finlay had certain advantages as a member of the legislative council which Heriot did not enjoy, and moreover his difficulties were not so great.

It was only after Finlay had ceased to be deputy postmaster general that the settlements in Upper Canada began to insist on a regular postal service; and in cases where demands were made upon him which his instructions forbade him to grant, he could always depend on the good will of his associates in the council to relieve him from unreasonable pressure. As superintendent of post houses, his influence with the *maîtres de poste* enabled him to keep the cost of their services on the main routes at a low figure.

Although Finlay's connection with the post office was terminated under disagreeable circumstances, no attempt was made to deprive him of his provincial appointments, which he held until his death at the end of 1801.

Heriot then lost no time in applying to be appointed to the vacancy in the legislative council, and to the superintendency of post houses. He was successful in neither case.

Heriot was uniformly unfortunate in his relations with the governors of the colony. His self-assertiveness irritated those who were accustomed to look for nothing but deference from the persons about them. Heriot seems to have accepted the decision as respects the council as final. But he made a strong effort to force the hand of lieutenant governor Milnes with regard to the post houses. He appealed to the postmaster general in England, who made representations to the colonial office in the matter.

The post office had already begun to feel the inconvenience of separating the control of the *maîtres de poste* from the office of the deputy postmaster general, as these officials declined to continue to carry the mail couriers on terms more favourable than those granted to the ordinary travelling public.

The colonial office was inclined to the post office view on the subject, but the lieutenant governor was firm in maintaining the position he had taken. The *maîtres de poste*, he stated, were habitants who possessed, each of them, a small property which rendered them quite independent. Their service, which was to carry passengers on the king's road, was an onerous one, and the advances in the price of the articles of life, coupled with the fact that their exclusive privilege was systematically disregarded, made them reluctant to take the appointments.

Men of this kind, Milnes declared, required management as they would not submit to coercion. Finlay through his personal influence with the *maîtres de poste* had managed to obtain the conveyance of the mails at sixpence a league, which was only half the charge made to the public for the same service. For some time before his death, Finlay had difficulty in inducing the *maîtres de poste* to continue this favourable arrangement, and on his death they refused to work under it any longer.

The *maîtres de poste* had the full sympathy of the lieutenant governor who saw no reason for the discrimination in favour of the post office. Although he endeavoured to obtain a favourable arrangement for the mail couriers, he considered it would be most impolitic on the part of the post office to insist on continuing to occupy their position of advantage.

But valuable as the post house system was in the early period of the country's growth, it soon had to yield to a higher class of travelling facility. As travel in the colony increased the two-wheeled *calèches* drawn by a single horse and barely holding two persons would no longer do. The changes at the post houses, every hour or little more, with the long delays while the horses were secured and harnessed, were very wearisome. Before Heriot's term expired, stage coaches had been placed on the principal roads.

In leaving the old system and its ways, it will be interesting to record the impressions of Hugh Gray, an English gentleman, who travelled from Quebec to Montreal in 1806.^[156] The mode of travel, he said, would not bear comparison with that in England, and the inns were very far from clean, but he found many things to lighten the hardships of travel in Canada. If, leaving England aside, he compared the accommodations in Canada with those in Spain, Portugal, or even in parts of France, he found the balance in favour of Canada.

The politeness and consideration Gray received at the inns in Canada offset many inconveniences. Often on the continent, after a day of fatiguing travel, sometimes wet and hungry, he was obliged to carry his own luggage into the inn at which he had arrived and see, himself, that it was put in a place of safety. But in Canada he was charmed with the politeness and urbanity with which he was welcomed at every inn: "Voulez-vous bien, Monsieur, avoir la complaisance d'entrer; voilà une chaise, Monsieur, asseyez vous, s'il vous plait."

"If they had the thing you wanted," continued Gray, "it was given to you with a good grace; if they had not they would tell you so in such a tone and manner as to show they were sorry for it." "Je n'en ai point. J'en suis mortifié." "You saw it was their poverty that refused you, not their will. Then if there was no inn to be had, you were never at a loss for shelter. There was not a farmer, shopkeeper, nay, nor even a *seigneur* or country gentleman who, on being civilly applied to for accommodation, would not give you the best in the house and every accommodation in his power."

The determination of the lieutenant governor to hold Heriot at arm's length, and allow him no part in the local government was unfortunate, as it prevented the mutual understanding between the colonial authorities and the

post office which must have been beneficial to both. Heriot made several later efforts to secure the control of the *maîtres de poste*, but always without success.

The principal feature of Heriot's administration was the establishment of a regular mail service to the settlements in Upper Canada. The single opportunity for the exchange of correspondence afforded by the post office authorities during the many months when navigation was closed was absurdly inadequate to the needs of the rapidly increasing province. The courier set out from Montreal in January of each year, travelling on foot or snow-shoes with his mail bag slung over his shoulder. He did very well when he covered eighteen miles a day. The journey to Niagara, with the return to Montreal, was not accomplished until spring was approaching, three months later.

The lieutenant governor of Upper Canada, General Hunter, was anxious to improve the communication in that province, and opened correspondence with Heriot on the subject.^[157] Heriot laid the lieutenant governor's proposition before the postmaster general with his warm commendation. He pointed out that the rapid increase in the population, the salubrity of the climate, and the fertility of the soil, all encouraged the belief that Upper Canada would soon become one of the first of the British settlements in North America.

General Hunter, Heriot also reminded the postmaster general, had in course of construction a road from the bay of Quinte to York, which in a few months would allow of easy travel by any of the common conveyances of the country. More, his excellency when informed of the views held by the post office on proposals involving expenditure, readily undertook that the province should make up any deficiency arising from the carrying of his schemes into execution.

This was the first considerable proposition submitted by Heriot since his appointment, and the postmaster general made it the occasion of an admonition as to the considerations Heriot should have in mind in dealing with a proposition of that kind. He sent extracts of letters addressed to Finlay on the question of establishing new posts, pointing out that they served to show that unless any new proposition had for its object both the

public convenience and the interests of the revenue, it was not to be encouraged.

The system of posts, the postmaster general went on to say, might be made, comparatively speaking, as perfect in Canada as in Great Britain, but the question was, would the board as a board of revenue be justified in so doing when the amount of the revenue was so trifling. However, he directed Heriot to report fully on the several aspects of the lieutenant governor's proposition, not overlooking the general's offer of indemnification in the event of the postage not amounting to sufficient to defray the expense.

The lieutenant governor having repeated his assurance that any insufficiency in the revenue to meet the additional expense would be made up from the provincial treasury, Heriot set about improving the service—but cautiously. At that time he contented himself with providing monthly instead of yearly trips to Upper Canada during the winter. In summer he continued to depend on the occasional trips of the *bateaux* on the river and the king's ships on the lake.

In order to assist Heriot, who had some difficulty in procuring the services of suitable couriers for the winter trips, the lieutenant governor directed the commandants at Kingston and York to place trusty soldiers at the disposal of the post office.

There were few letters carried during this period except for the public departments, and they found it less expensive to employ a messenger of their own to visit the several posts and take the bulky accounts and vouchers which constituted the greater part of their correspondence, than to utilize the services of the post office. When it was pointed out to the lieutenant governor that by his failure to employ the post office, he was setting a bad example to the inhabitants who used every means to evade the postmaster general's monopoly, the lieutenant governor agreed to have the correspondence from the outposts carried by the mail couriers.

The territory served by the regular post office did not extend beyond Niagara. But at Amherstburg, the western end of lake Erie, and over two hundred miles beyond Niagara, there were a military post and the beginnings of a settlement, which it was desirable to provide with the means of communication.

During his visit to Niagara in 1801, Heriot devised a plan^[158] for this purpose, which appears to have contained all the advantages of a regular postal service, with the charges so much less than the ordinary postage rates as to give the people of the district cause to regret the advent of the regular postmaster and mail courier.

Heriot proposed that the postmaster of Amherstburg should receive letters for despatch, and, from time to time as one of the vessels on the lake happened to be going to fort Erie, at the eastern end of the lake, make up a bag, seal it with the official seal, and deliver it to the captain of the vessel.

At fort Erie the bag was to be placed on one of the flat-bottomed *bateaux*, which traded between that village and Chippewa and the Niagara river. Between Chippewa, Queenstown and Niagara, on the Niagara portage, there were stage coaches running, and the bag was taken to Niagara by this means. If the letters were intended for places beyond Niagara, they were put into the regular post office at that point.

This arrangement was quite as safe and expeditious as the postal service between Niagara and Kingston, and yet the charges were very much less than if the letters had been carried the same distance within the authorized system. The ordinary postage on a letter from Amherstburg to fort Erie by land would be tenpence. Heriot did not consider that he could properly charge more than twopence a letter. From fort Erie to Niagara the postage would have been fourpence, which was the rate Heriot proposed to charge.

The question will arise, in what regard this scheme differed from the ordinary postal arrangements, the charges for which were fixed by statute. The point of difference lay simply in this, that Heriot did not propose to administer the oath of office to the courier, who effected the transportation of the mails from Amherstburg to Niagara. There would be none but trustworthy men employed to look after the mails, and the couriers were under effective supervision in the fact that the postmaster in making up the mail enclosed with it a certificate as to the number of letters in it, which the receiving postmaster verified before the courier was paid for his services.

Heriot's scheme, then, was identical with the ordinary arrangements in all respects but one, and that one was purely formal. Heriot's scruples would

lead one to suspect a desire to show how excessive the ordinary charges were.

There was no change in the arrangements for the postal service in Upper Canada until 1810, though before that date there had been some agitation for improvements. In 1808, the legislative assembly requested that a regular service be established through the year, instead of monthly trips during the winter merely.

Further representations were made on the insufficiency of the existing service, and in 1810 Heriot provided fortnightly trips throughout the year between Montreal and Kingston, but owing to the badness of the road beyond Kingston, he was unable to give a regular service to York except in the winter. During this period, however, the trips between Kingston and York were made fortnightly.

Efficient roadmaking throughout Canada was attended with many difficulties, owing to the great stretches of land which were in the hands either of the crown or held as clergy reserves or which were held by speculators. These absentee holders were not bound by the obligation which lay on the residents to make and maintain good roads through their property, and consequently, even where roads were made by the government through the province, they soon fell into disrepair in those districts, where there were no resident owners to keep them up.

General Hunter in 1800 and 1801 had a road made from Kingston to York, and then on to Ancaster, near Hamilton, where it connected with the road to Niagara, but at their best such roads were little more than bridle paths through the woods. In the autumn of 1811 Heriot yielded another step and placed couriers fortnightly on the road from Kingston to Niagara by way of York. He also arranged for a courier to go to Amherstburg or Sandwich as often as commercial requirements demanded it.

Heriot at this time took a step which drew upon him the sharp attention of the home authorities. He directed the postmaster at York to hold the surplus revenue from the western part of the province instead of sending it to Quebec for transmission to England, and to apply it to improving the arrangements in that section of the province.

The secretary of the general post office expressed a doubt as to whether the whole of the revenue should have been applied towards improving the service, and intimated that approval of his action should be held for the postmaster general. Shortly after, Heriot was informed that his action had not been approved, and that it would be necessary to cancel his instructions to the postmaster of York.^[159]

This incident fairly illustrates how far Heriot's hands were tied by orders from home, and how little he deserved the censures so freely meted out to him for his unwillingness to provide the country with a system of communication adequate to its requirements. In yielding to any extent to the reasonable demands of the provincial authorities, he was courting disapproval and even reprimand from his superiors.

But in spite of the determination of the postmaster general that no expenditure should be made for postal service, which did not promise an immediate return equal to or greater than the outlay, the country was growing too rapidly to permit of any great delay in providing increased facilities for correspondence. While the post office held on to the monopoly in letter carrying, it had to make some sort of provision for doing the work itself.

In 1815, when peace had been concluded with the United States, Sir Gordon Drummond, the commander of the forces, and administrator of Canada, directed Heriot to arrange for two trips a week between Montreal and Kingston, Heriot invited tenders for this service, and was dismayed to find that the lowest offer was for £3276, an amount double the anticipated revenues.

With his instructions from the postmaster general before him, an outlay of that magnitude was not to be thought of, but Heriot did go the length of authorizing weekly trips over the whole route between Montreal and Niagara and arranged for fortnightly trips to Amherstburg from Dundas, a village on the grand route between York and Niagara.^[160] The mails were carried between Montreal and Kingston by coach; between Kingston and Niagara on horseback or by sleigh; and between Dundas and the settlements at the western end of lake Erie on foot.

In reporting these arrangements to the postmaster general, Heriot explained that, with the close of the war, military expresses had been discontinued, and it became necessary to provide additional accommodation to the commissariat and other military departments, but the increased postage more than covered the expense incurred.

In March 1816 the lieutenant governor of Upper Canada pressed for further improvements in order to facilitate communication between the several courts of justice and every part of the province, so that notices might be sent to jurors and others having business with the courts.^[161] In concluding his letter to the general post office recommending the application of the lieutenant governor, Heriot added that there was a strong desire on the part of influential people in Upper Canada that there should be a deputy postmaster general for that province, as well as one for Lower Canada.

Heriot favoured the idea and recommended William Allan, postmaster of York for the position. The postmaster general, however, disapproved of the proposal of an independent deputy for Upper Canada. He agreed with Heriot that there would be advantages in having an official residing in Upper Canada with a wider authority than that ordinarily exercised by a mere postmaster, but thought that the postmaster of York might without change of title be made to answer all the requirements of an assistant to the deputy postmaster general.

Before leaving the service in Upper Canada, an incident should be mentioned, showing the difficulties military men stationed far from a post office had in corresponding with Great Britain. At the end of the campaign of 1813 in the Niagara peninsula, the officers of the right division, which was quartered at Stoney Creek, presented a memorial to the governor general laying before him their hard case, and praying for relief.^[162] They desired to write to their friends and relatives at home, but could not do so, owing to the post office regulation which required that all letters sent to Great Britain should have the postage paid on them as far as Halifax.

The sea postage did not require to be paid, as that could be collected from the person receiving the letter, but unless the letter was fully paid to Halifax, it was detained and returned to the writer. As the nearest post office in operation was York, nearly fifty miles away, and as they had no

acquaintance there or at Montreal or Quebec, who might pay the postage for them, they were without the means of relieving the anxiety of their parents, wives and others who could not learn whether they were alive or not. They asked that a bag be made up monthly, as Lord Wellington did from Portugal, and sent free of expense to the Horseguards in London, from which place the letters might be carried to the post office for delivery.

The postal service in Lower Canada and eastward underwent no change from the time of Heriot's accession to office until the war of 1812. As in 1800, the couriers between Montreal and Quebec still left each place on Monday and Thursday mornings, and meeting at Three Rivers, exchanged their mails, and returned, reaching their points of departure two days later. The mails between Quebec and Fredericton continued to be exchanged fortnightly in summer, and monthly in winter, and between Fredericton and St. John, and St. John and Halifax, there were weekly exchanges as in Finlay's time.

Lower Canada still found its principal outlet to Great Britain in the weekly mail carried between Montreal and one of the towns of the United States near the Canadian boundary. In 1810, the place of exchange of mails between Lower Canada and Boston and New York was Swanton, a small town in Vermont.

But, though the service arrangements remained unchanged, they by no means escaped criticism. In 1810, Sir James Craig, the governor general, complained of the slowness of the communication with the United States and with the Maritime provinces.^[163] Letters from New York seldom reached Quebec in less than fifteen or sixteen days, and it usually took a month for the courier to travel from Halifax to Quebec.

For the course of the post from New York, the governor was not disposed to blame Heriot entirely, as he knew the connections from New York to Swanton to be faulty, but he thought that, by a little exertion, Heriot could do much to remedy the defects. As for the movement of the couriers between Quebec and Halifax, the governor had been informed by certain London merchants that the journey could be made in six days. He would not insist on a speed equal to that, but sixteen or seventeen days ought to be easily within the capacity of the couriers.

Dealing with the Quebec-Halifax complaint first, Heriot was aware that the journey from Halifax to Quebec had been made in six days, but as the distance was six hundred and thirty-three miles, three hundred and sixty-eight of which could not be travelled by horse and carriage, he regarded the trip as an extraordinary performance. The circumstances, however, were unusually favourable. The weather was at its best, and no expense was spared to make the journey as rapidly as possible.

But it was useless, Heriot insisted, to compare speed of that kind with that which was within the power of a courier who had to carry a load sometimes weighing two hundred pounds on his back, for a distance of forty miles, after having rowed and poled up rivers and across lakes for two hundred miles. If the contractor was able to disregard considerations of expense, and employ as many couriers as could be done with advantage, much time might doubtless be saved.

Heriot was sure there were no grounds for believing that there would be any material increase in the revenue as the result of such expenditure. The commerce between the Canadas and the Maritime provinces was so trifling that it was all carried on by three or four small coasting vessels. Indeed, were it not for the correspondence between the military establishments, it would be better to drop regular trips between Quebec and Halifax, as the British mails could be carried much more cheaply and with greater celerity by expresses.

The connection with New York offered matter for criticism, but Heriot could not be reproached for remissness in this regard. He had proposed to the authorities at Washington that his couriers should carry the mails all the way between Montreal and New York, offering to pay the United States just as if their couriers had done the service within their territory, but the United States department would not entertain the proposition. He had also endeavoured, without success, to have the British mails landed at Boston during the winter months, instead of at New York. If this could have been accomplished, there would have been a considerable saving in the time required for the delivery of the British mails at Montreal and Quebec.

The war of 1812 had noticeable effects on the postal service. The mails passing between Quebec and Halifax had to be safeguarded against attack

on the part of hostile parties from across the border and against privateers, who infested the lower waters of the St. John river and the bay of Fundy.

From the time the courier on his way eastward left the shores of the St. Lawrence, he was in danger of surprise. The portage between the St. Lawrence and lake Temiscouata was wild and uninhabited, and it would have been an easy matter for the enemy to waylay the courier if he travelled unprotected. When he reached the St. John river his course lay along the United States border. Indeed a considerable part of his route lay in territory which was afterwards adjudged by the Ashburton treaty to belong to the United States.

Heriot facilitated the couriers' journey over the portage by placing twenty-two old soldiers with their families at intervals on the route. They were supplied with arms, ammunition and rations, as the country was so mountainous, sterile and inhospitable, that no man could derive a subsistence from the soil. The couriers on entering the portage were, also, accompanied by an escort of two soldiers, who travelled with them as far as the Madawaska settlement. From that point downwards, the local captains of militia had orders to render all needful assistance and protection to the couriers.

At Fredericton an entire change was made in the route. The route had till then followed the course of the St. John river to the city of St. John, from which place the couriers were taken across the bay of Fundy to Annapolis, in a small sloop. In order to avoid the chances of capture on the water stretches or in the bay, the couriers were sent across the country through the centre of the province to Cumberland, as Amherst was then called, and thence on to Halifax.

This arrangement left St. John unprovided with connection with either Quebec or Halifax, but it was brought into the scheme by a separate courier who met the couriers on the main route at Sussexvale. The travel on the new route was at first very bad, but the lieutenant governors of the two Maritime provinces, who were interested in the success of the scheme, promised to do their best to induce their assemblies to put the roads in good condition.

In changing the route from Fredericton to Halifax, and requiring the couriers to travel inland, instead of along the waterways, the deputy postmaster general was taking a measure in the direction of safety, but those who had a particular interest in the transmission of their correspondence intact could not look without concern at the exposure of the mails on the long stretch between the foot of lake Temiscouata and Fredericton.

The lieutenant governor of Nova Scotia and the admiral of the Halifax station were both uneasy at the possibility of their despatches being intercepted by the Americans, and grasped eagerly at a suggestion thrown out that the courier from Halifax should not go to Fredericton at all, but on leaving Amherst should pursue a north-westerly course till he reached the Matapedia river at the western end of the bay of Chaleurs. From this point, the route would lie across the bottom of the Gaspé peninsula to the St. Lawrence near Metis.

The suggested route encountered the strong opposition of Heriot.^[164] "The heights of the interior," he declared, "are more elevated than those towards the sea, and some of them with snow on their summits which remain undissolved from one year to the other. The land between the mountains is probably intersected by rugged defiles, by swamps and by deep and impracticable gullies. A region so inhospitable and desolate as from its interior aspect, and its latitude as this may without exaggeration be conceived to be, can scarcely be visited by savages. Suppose a road were cut through this rugged desert, it would not be possible to find any person who would settle there, and no courier could proceed on foot for a journey of some hundred miles, through a difficult and dreary waste alike destitute of shelter and of the prospect of assistance."

Heriot's conviction was that the present route was the only possible one, and if the enemy threatened to cut off communications, it might be necessary to establish two additional military posts, one at the head of the Madawaska settlement, the other between Grand Falls and Presqu' Isle.

A blockhouse at each point, with a non-commissioned officer, a few privates and two savages attached, would in Heriot's opinion afford sufficient protection. The enemy would scarcely incur the trouble and expense of marching one or two hundred men from an immense distance to

take or destroy these forts with the precarious and doubtful prospect of interrupting a courier, to whom the nature of the country presented a variety of means of eluding their utmost vigilance.

The idea of establishing a route between Nova Scotia and the St. Lawrence, which would follow the northern shore of New Brunswick, was not carried into effect at once, but as will be seen it occupied attention from time to time and was eventually realized.

The war affected the postal service in Lower Canada to the extent of causing the conveyance of the mails between Montreal and Quebec to be increased from twice a week to daily.^[165] Sir George Prevost having pointed out to Heriot the necessity for more frequent communication on account of the war, the latter expressed his willingness to increase the trips, but stipulated that the men employed in the service should not be subject to enlistment as it was very difficult to secure trustworthy men.

The governor agreed, and directed the colonels of militia that they were to impose no military duties on post office employees. On the conclusion of the war, the couriers' trips were reduced from six to five weekly, at which frequency they remained for many years.

The last year of Heriot's administration was marked by a disagreeable quarrel with Sir Gordon Drummond,^[166] who was administrator of Canada on Prevost's retirement. In the beginning of 1815, the legislature of Upper Canada adopted an address pointing out that the postal arrangements were very defective, and expressing the opinion that the revenue from Upper Canada was ample to meet the additional expense necessary to put the service on a satisfactory footing. If an efficient service were provided, and it turned out that they were wrong in their anticipation of increased revenues, they were prepared to pay higher rates of postage.

Herein lay a difficulty for the postmaster general. The postal charges in Canada were the same as those in Great Britain, and were collected by the authority of the same act of parliament. The postmaster general was not free from doubts as to the legality of the proceedings of the post office in taking postage in Canada, and he did not wish to raise the question by the enactment of a special act for Canada. He intimated to Heriot his disinclination to bring the question into prominence in Canada, and asked

Heriot to give his mind to the proposition for an improvement in the service.

About the time the letter from the postmaster general containing this instruction reached Heriot, Drummond himself wrote to Heriot, drawing attention to the shortcomings in the service, expressing his conviction that the necessary improvements would lead to enhanced revenues, and concluding with an intimation that unless he were provided with adequate facilities for communicating with that part of his command which was in Upper Canada, he would be obliged to restore military expresses.

Sir Gordon Drummond's services to Canada during the war were such as to entitle him to an honourable place in the memory of Canadians, but he did not appear at his best in his controversy with Heriot. He exhibited too much of that arbitrariness and impatience with other people's views which is commonly observed among military chiefs.

Heriot replied promptly to the governor's letter, stating that he had invited tenders for a semi-weekly service between Montreal and Kingston, and that the offers he received were quite beyond any possible revenue to be derived from the service. He had, however, accelerated the existing service by having the couriers travel on horseback, the horses being changed at convenient distances along the route.

As regards the service beyond York, Heriot directed the postmaster of York to arrange for a regular weekly courier to Niagara, and to set about securing a postmaster at Amherstburg to replace the former incumbent, who had resigned. Heriot wound up his letter by stating that he would have been particularly gratified if he had the power to meet his excellency's wishes in every point, but expressed his regret that his instructions obliged him to act on principles of economy.

The letter was courteously expressed, and showed an evident desire to go as far as his instructions would allow, in meeting the governor's wishes. But Drummond was not satisfied. His wrath rose at the appearance of opposition. In repeating his views that increased revenue would follow upon improvements in the service, he declared that the existing arrangements were slovenly and uncertain, and, in the opinion of

merchants, insecure. Moreover, he did not believe that Heriot's instructions were intended to be injurious to the interests of Upper Canada.

Drummond then most unreasonably found fault with Heriot for leaving to Allan the duty of attending to the requirements of Niagara and Amherstburg, when his excellency had ordered Heriot to give the matter his personal attention. Heriot's time was very fully occupied at Quebec with the ordinary duties of his office, a fact of which Drummond could not have been ignorant; and to order him to leave these duties, and make a journey to the western end of the province, involving a travel of scarcely less than twelve hundred miles, to do a piece of work which any subordinate in the district could do equally well, argued either an indifference as regards the daily calls upon Heriot's time, or a determination to annoy him, either of which was discreditable to the governor general.

Heriot was steadily respectful, however, but maintained that with the powers entrusted to him it was impossible to meet Drummond's views. He cited the incident of 1812, when his recommendation that the whole of the revenue from Upper Canada should be expended on extensions and improvements had been disapproved, and the arrangements founded upon these suggestions had to be cancelled. As for his employment of Allan to secure a postmaster at Amherstburg, Allan knew the district while he himself did not, and in his circumstances he was compelled to rely upon his officials as he did in the west and at Halifax.

The whole of the case was laid by Heriot before the postmaster general. His situation, he declared, was very disagreeable, as people seemed to imagine that he had carte blanche as to the disposal of the post office revenue. Every governor on coming to Canada assailed Heriot with his particular scheme for improvement. Prevost, who had come from the governorship of Nova Scotia, insisted on a large expenditure on the service in that province. Drummond, whose interests lay in Upper Canada, was peremptory in regard to the claims of that part of the country. The consequence of all this was correspondence always lengthy and frequently unpleasant.

What Heriot desired to know was whether his conduct was approved or condemned by his superiors. The official silence left him in uncertainty and

suspense. Heriot concluded by asking to be relieved of the office and to be allowed some remuneration for past services.

After a short lull, trouble broke out afresh, and this time Drummond managed to put Heriot clearly in the wrong. A very sharp letter from the governor drew from Heriot the reply that the deputy postmaster general in Canada was governed by several acts of parliament, and by instructions from the general post office, and he was not subject to any orders, but through the secretary of the post office. He would, however, afford every necessary information when applied to in the mode of solicitation or request.

This was not the tone to take in addressing the chief executive in the colony; and the governor promptly laid the whole matter before the colonial secretary, condemning Heriot for his incapacity, insubordination and insolence, and declaring that nothing but the fear of embarrassing the accounts prevented him from instantly suspending Heriot. He urged his dismissal.

A fortnight later Drummond reported further grievances. Indeed, Heriot seems now to have cast prudence as well as respect for the governor's office to the winds. The governor had demanded to see the postmaster general's instructions to Heriot, and it was not until the demand had been twice repeated that Heriot saw fit to obey.

Among those instructions was one directing the deputy postmaster general to keep the orders of the postmaster general and the table of rates in his office, for his own guidance, and for the satisfaction of all persons desiring to see them. This Drummond insisted on reading as a direction to the deputy postmaster general to make all his communications from the postmaster general public, and he dilates on the disrespect of Heriot in withholding from the governor what he is under orders to disclose to the first comer.

All this is, of course, manifestly disingenuous, and does not impose on Heriot's superiors in the general post office. The secretary of the general post office in discussing Drummond's complaints, has words of commendation for Heriot's zeal and alacrity. He always considered Heriot a judicious, active and efficient officer. Governors, he affirmed, too commonly entertain the idea that the whole revenue of the post office

should be devoted to extending the communications. Whatever view might be held as to the principle, Heriot at all events was precluded by his instructions from acting upon it without the express authority of the postmaster general.

While Heriot had, beyond question, given ample grounds for irritation on Drummond's part, it should be remembered, in dealing with the demand for Heriot's dismissal, Drummond was told that he had been sixteen years in the service, and had on many occasions received the thanks of the board. It might be sufficient to enjoin upon Heriot a more respectful attitude towards the governor, and consult with him as to the extension of communications, and the interests of the revenue.

The postmaster general concurred in the secretary's views. But the quarrel was now past mending, and when after repeated requests to be relieved, Heriot declared that no motive of interest or advantage could induce him to stay in the service longer than was necessary to appoint his successor, the postmaster general decided to accept his resignation.

FOOTNOTES:

[155] *Can. Arch.*, Br. P.O. Transcripts, III. 388.

[156] Hugh Gray, *Letters from Canada*, London, 1809.

[157] *Can. Arch.*, C. 284, pp. 1-16.

[158] *Can. Arch.*, C. 283, p. 42.

[159] *Can. Arch.*, Br. P.O. Transcripts, III. 388.

[160] *Can. Arch.*, C. 284, p. 172.

[161] *Ibid.*, Br. P.O. Transcripts, III.

[162] *Can. Arch.*, C. 284, p. 114.

[163] *Ibid.*, Q. 115, pp. 112, 113 and 121.

[164] *Can. Arch.*, Br. P.O. Transcripts, III.

[165] *Can. Arch.*, C. 284, p. 105.

[166] *Ibid.*, Br. P.O. Transcripts, III.

CHAPTER VII

Administration of Daniel Sutherland—Postal service on the Ottawa river,
and to eastern townships—Ocean mails.

On Heriot's retirement, a number of London merchants who traded to Canada, recommended that the postmaster of Montreal, Daniel Sutherland, be appointed as his successor, and the appointment was made in April 1816. [\[167\]](#) Sutherland entered upon his duties with full knowledge of the postal service in Canada, as he had been postmaster of Montreal since 1807.

An effort was made at this time to remove the headquarters of the department from Quebec to Montreal, but it was not encouraged. The postmaster general was of opinion that, although there were no direct official relations between the governor general and the head of the postal service, it would be inadvisable to diminish in any way the opportunities that then existed of enlisting the good will of the governor towards the post office by the pursuit of a more tactful course than had been taken by Sutherland's predecessor. If, while relations between the chief executive and the deputy postmaster general were thus strained, the office of the latter had been removed to Montreal, the chances of establishing a more cordial feeling on the part of the governor towards the post office would have greatly lessened.

The wisdom of the postmaster general in this matter was soon shown. It was not long before the post office incurred the hostility of the legislatures in both Upper and Lower Canada and its case would have been hard indeed, if it had not obtained the steady support of the governors and the executive councils in the two provinces.

A notable feature of Sutherland's administration was the extension of the service into settlements, which lay far off the beaten lines. The first of these to be provided with a post office was the settlement of Perth. In the summer of 1815, a number of Scotch artisans and peasants sailed from Greenock,

attracted by the inducements held out to settlers in British North America, and of these about sixty families spent the winter in Brockville on the St. Lawrence. When spring opened, they proceeded inland till they reached the Rideau river, and took up homes about the site of the present town of Perth.

The new settlement was almost immediately joined by a large number of disbanded troops, who were set free on the conclusion of peace with the United States. By October 1816, there were over sixteen hundred settlers in the district. They were fortunate in securing the interest of Sir John Sherbrooke, the governor general, at whose instance a post office was opened, and fortnightly trips were made with the mails from Brockville. ^[168]

A road was broken between the two places, but little could be said for it for some time. Dr. Mountain, the son of the first Anglican bishop of Quebec, and himself afterwards third bishop of Quebec, accompanied his father on an episcopal trip into Upper Canada in 1820. Among the places he visited was Perth. Of the road he said: "All the roads I have described before were turnpike and bowling green to this." ^[169] The road was divided into three stages of seven miles each, and the best the party could do was three hours for each stage.

In 1818, another settlement was formed in the same part of the country about thirty miles north of Perth. It was a military settlement, being made up of officers and men of the 99th and 100th regiments. This group did not enter upon its lands by way of the St. Lawrence, but is notable as the first considerable body to come into Upper Canada by way of the Ottawa river. They landed on the site of the present city of Ottawa, but did not stop there longer than was necessary to break a road through to their lands, which were situated about twenty miles to the westward. The settlement was called Richmond, in honour of the Duke of Richmond, the governor general, and this circumstance gave Ottawa its first name—Richmond Landing.

It was at Richmond that the duke came to his melancholy end that same summer, as the result of the bite of a fox. The duke had shown his interest in the settlement which bore his name in a number of ways, and shortly before his death he induced the deputy postmaster general to open a post

office there. In order to provide it with mails, a blazed trail was made between the new settlement and Perth.^[170]

The settlement at Richmond was not the first, however, in the Upper Ottawa district. In 1800, Philemon Wright, a New Englander, who had made one or two exploratory tours into the country, determined to form a settlement at Hull, on the Lower Canadian side of the river, and in that year he brought with him a group of his neighbours from Malden, Massachusetts.

These settlers were thrifty and intelligent, and by 1815, they had brought their settlement to a pitch of prosperity, which won special mention from Bouchette, the surveyor general. At that time there were about thirty families in the district, whose farms were in a respectable state of cultivation; and a large trade in timber, pot and pearl ashes was carried on.

The little settlement was so far from Montreal—one hundred and twenty miles—that it was at first impracticable to give it the benefit of the postal service. The isolation did not last long. Little bodies of settlers were taking up land at different points, both above and below the Long Sault rapids; and for some time before 1819, there had been a steamer running between Lachine and Carillon, at the foot of the Long Sault.^[171]

In 1819, a steamer was put on the Upper Ottawa, running between the head of the Long Sault and Hull, and the Duke of Richmond appealed to Sutherland to open post offices on the river route. The deputy postmaster general at first demurred on the ground of expense, but he withdrew his objections on a guarantee being given by a number of gentlemen interested in the district, that the post office should be saved against any loss which might ensue. Offices were accordingly opened at St. Eustache and St. Andrews on the lower Ottawa, and at Grenville, Hawkesbury and Hull on the upper part of the river.^[172]

Another part of the country to which the postal system was extended during this period was the eastern townships in Lower Canada. These townships lie along the northern border of eastern New York, Vermont and New Hampshire. Owing to their contiguity to the United States, the settlement of these townships gave the British Government much concern.

Lord North, at the close of the war of the Revolution, desired to settle this border country with old soldiers. Haldimand, the governor general, was of another opinion, believing that the interests of peace would be best served by keeping the country uncultivated, that it might serve as a barrier to the restless spirits from the south. Some effort was made to give effect to this view but without much success. Indeed the governors who followed Haldimand made grants in the townships freely; and in 1812, it was estimated that there were not less than 17,000 people settled there.

Lord Bathurst, the colonial secretary, on learning in 1816 the state of affairs, was highly displeased that the policy of the government had been disregarded in this manner, and directed the governor to do what he could to discourage further settlement, and wherever possible to restore the cultivated country to a state of nature.

Mentioning particularly the townships at the western end of the province, the colonial secretary directed that no new roads were to be run into them, and advantage was to be taken of any circumstances that presented themselves of letting the roads already made fall into disuse. For five years this desolating policy was carried into execution.

In 1821, Lord Dalhousie, the governor general reported that the result was an utter failure. "These townships," he says "are the resort of all the felons escaping from justice within His Majesty's province or from the United States. Forgery, coining, and every crime is committed there with impunity. American lumbermen are cutting everywhere the best timber, and sit down where they please, and move about where they find it convenient."

A reversal of the mistaken policy resulted from the Dalhousie report. The first post office opened in the townships was at Stanstead,^[173] the centre of a comfortable, well-settled population of about 2500. The village lay on the main stage route from Quebec into the state of Vermont. The post office at Stanstead was opened in 1817, and with three other offices opened at the same time had a weekly exchange of mails with Quebec by way of Three Rivers.

During Sutherland's administration, there were a considerable number of post offices opened, and many of them established at this period afterwards attained great importance. In 1816, when he became deputy postmaster

general, there were only ten offices in Lower Canada and nine in Upper Canada. When he retired in 1827, there were forty-nine in Lower Canada and sixty-five in Upper Canada. In 1816, Belleville post office was opened under the name of bay of Quinte: in 1825, Hamilton, London, Brantford, and St. Thomas were provided with post offices.

In Lower Canada, besides those already mentioned, a post office was opened at Sherbrooke in 1819, replacing an office established in Aston township in 1817.

A curious fact appears in the post office list of 1819. At this date Toronto was still called York, and Hamilton was without a post office altogether. Nevertheless a post office called Toronto was on the list of 1819 as having been opened in 1817, with Charles Fothergill as postmaster, and another called Hamilton was opened in 1819 with James Bethune as postmaster. There was nothing to indicate where these post offices were situated until changes were made in the names, and Toronto was converted into Port Hope and Hamilton into Cobourg.

Fothergill, who had the post office established at Port Hope, appears more than once in the course of post office history. He was member of the house of assembly and king's printer, as well as postmaster. About this time the house began to express dissatisfaction with the service provided by the post office, and to demand information as to its affairs, which the deputy postmaster general was not prepared to furnish. Among the critics was Fothergill, who was speedily punished for his independence. He was dismissed from the office of king's printer by the governor. [\[174\]](#)

The conveyance of the mails between Canada and Great Britain occupied much attention during Sutherland's term. The packets, that is the vessels employed expressly for the conveyance of the mails, had at this date almost ceased to be employed for the transmission of any but official correspondence. The interests of the governors and other officials in British North America and Bermuda, and of the British minister at Washington and

consuls in the United States, were the only interests considered in the arrangements for this service.

Speedy transmission was sacrificed without a thought, to provide against imagined dangers to safe transmission. When the packet service was established, the vessels made monthly trips during the summer from Falmouth, in England, to Halifax and thence to New York, returning by the same route. The mails for Bermuda were landed at Halifax, and taken to their destination in a war vessel.

During the winter, the vessels from Falmouth did not run to Halifax, but proceeded directly to New York. In 1806, at the instance of the admiralty, orders were given that, whenever possible during the winter, the packets should touch at Bermuda on their way to New York.^[175] On the eve of the war of 1812, Prevost, the governor general, who was fearful for the safety of the mails, begged that this course might be adopted as the regular winter course, and that mails for Canada and other parts of British North America should be put off at Bermuda, and conveyed from there to Halifax.

To make the mails for Canada go as far south as Bermuda seems outrageous, but Prevost was willing to put up with any slowness in transmission rather than have his despatches touch United States soil. This course was pursued until the war ended in 1815, and continued for many winters after that time.

But it was too bad to escape criticism from officials themselves. At the end of the summer of 1816, when the packets were about to be taken off the Halifax route, the rear-admiral on the North American station asked that the packets should continue to call at Halifax during the winter, and, by way of satisfying the post office of the feasibility of his suggestion, furnished a list of some seventy vessels which had entered Halifax during the previous winter, which was allowed to be the severest for many years, and found no more trouble in making this port than the port of New York.^[176]

The suggestion aroused great opposition—an opposition which would be quite incomprehensible to-day. The agent of the packet service at Falmouth assembled all commanders who happened to be in port, and asked them their opinion. They were unanimous in the belief that the only safe course to Halifax would be to go first to Bermuda, thence to New York, and finally to

Halifax.^[177] The prevalence of north-westerly winds during the winter would make a direct sailing from Falmouth to Halifax impracticable.

The commanders did not consider it advisable, however, to adopt this course, as it would lengthen the trip by from two to three weeks, and as the voyages would be much rougher, there would be few passengers. The wear and tear on the packets would be greater, and besides the men would require great coats and spirits. During the late war each packet took sixty gallons of rum each way.

Lord Dalhousie became governor general in 1819 and he made bitter complaint of the length of time taken in the delivery of his winter despatches.^[178] The despatches leaving England in November 1821 and 1822, did not reach him until the following February, and his February despatches arrived in Quebec in May. He asked that the mails containing his correspondence should not be put off the packet at Bermuda, but that they be carried to New York, where he would have his messenger on hand to receive them.

It is difficult to see why this should not have been done. Ever since the establishment of peace in 1783, there had been a British packet agent at New York, whose sole duty it was to act as intermediary for the despatch by the outgoing British packet boat, of all correspondence reaching him from the governors or other officials in British North America, or from the ambassadors or consuls in the United States.^[179]

Dalhousie's messenger took his outgoing despatches to the packet agent, and the governor could not understand the objections to allowing the same messenger to carry the incoming despatches back with him. The packet agent at New York strongly supported the governor's request, and pointed out how his own office might be made of much greater utility, if he were employed freely, not only for the transmission of official correspondence, but for the interchange of general correspondence between Canada and Great Britain. He declared that the United States government had shown the utmost courtesy to the governor's messengers. They had not been molested in any way, and for some time past, the earlier practice of requiring the couriers to be provided with passports had been allowed to drop.^[180]

The agent proposed that during the winter the English exchange office should make up separate bags for Upper and Lower Canada, which on arrival at New York would be delivered to his office. He would then see that the bags were forwarded by special messenger without delay.

His plan, however, was open to strong objection, and the British post office, which was averse to making any change in the direction proposed, was quick to seize upon it. While acknowledging the good will of the United States government regarding the conveyance of official despatches through their territory by British messengers, the secretary stated that the conveyance of ordinary mails by the same means was a very different matter, which would give rise to a justifiable claim on the part of the United States department, and if the charges which would have to be paid to the United States department were added to the other postage rates, the total postage to be collected from the recipients of the letters would be very large.

But the argument of the secretary was based on the supposition that the mails would be carried as the despatches were, by Canadian messengers from New York, and that the letters they carried would be subject to a double charge, viz:—the expenses of the messenger, and the sum which the United States might exact for the mere transit over its territory. If the British mails arriving at New York by the packet were handed over to the United States post office for transmission, as had been the case before the war of 1812, there would have been no such excessive charge.

This was what was desired on all sides in Canada. The service would have been much faster, and for Montreal and all places in Upper Canada the postage would have been lower. Since the spring of 1817, steamboats were employed to carry the mails between New York and Albany twice a week, and with other improvements on the route, the time between New York and Montreal was shortened to three days in summer and five in winter.

From New York to York took from nine to eleven days by way of Montreal, and a day less if the mails were carried from New York along the Mohawk valley route to Queenston on the Niagara river, and thence to York.

Compare this with the time occupied between Halifax and Quebec. A month was the average, and to that had to be added two days to Montreal and eight

days to York. No advantage enjoyed by Halifax over New York on the sea trip could compensate for the disparity from which the land route between Halifax and Montreal suffered in comparison with the route from New York to Montreal, and as Montreal was the gateway to Upper Canada, the whole of the new province suffered in equal measure with that city.

The gain in time by the New York route was submitted to the general post office, but the proposition to land the mails at that port was opposed by the secretary. He found that there would be eightpence less postage on each letter to Quebec, if it were sent through the United States instead of through the Maritime provinces, and, besides, he was doubtful as to the propriety of sanctioning any scheme which would permit private and mercantile letters to reach Quebec before the government despatches, which in any case must come by way of Halifax.

But though the comings and the goings of the packets were a matter of much concern to Lord Dalhousie and to others, whose correspondence had to be carried by this means, they were of little moment to the general public, who had found a very satisfactory means for the conveyance of their correspondence.

In 1826, the treasury set on foot inquiries as to the arrangements for the conveyance of correspondence across the Atlantic, and the information they obtained must have surprised them.^[181] There were three modes of sending letters to Canada from Great Britain. The first was by the official sailing packets. The usefulness of the packets, however, was limited to the conveyance of official despatches.

The high charges and the slowness of the service abundantly account for the failure of the public to employ this means of transmission. The postage on a single letter, that is a single sheet of paper weighing less than an ounce, was two shillings and twopence sterling from London to Halifax by way of Falmouth. To this must be added the postage from Halifax to points in Canada, which was one shilling and eightpence to Quebec; one shilling and tenpence to Montreal; two shillings and twopence to Kingston; two shillings and sixpence to York; and three shillings to Amherstburg.

Thus, employing the more familiar decimal currency, the postage on a single sheet, weighing less than one ounce, posted in London and sent by

packet to Halifax and thence to its destination in Canada was, to Quebec ninety-two cents; to Montreal ninety-six cents; to Kingston one dollar and four cents; to York one dollar and twelve cents; and to Amherstburg one dollar and twenty-four cents. Remembering Dalhousie's complaint that it took upwards of seventy days for one of these precious letters to reach him, the unpopularity of the packet service can be appreciated.

The second agency for conveying letters from England to Canada, was by private ship, but through the medium of the post office. A person desiring to send a letter from London to a post office in Canada would write on the cover a direction that the letter was to be sent by a ship which he would name, and post it in the ordinary way.

The post office would accept the direction, and would charge just one half the packet postage for the conveyance to Halifax or Quebec, that is, instead of two shillings and twopence for the sea conveyance, the letter would only be charged one shilling and one penny. But the high charges between the port of arrival in British North America and the offices in inland Canada prevented the extensive use of this means of conveyance.

The third mode of conveyance was irregular, but it was universally employed. There were lines of sailing vessels, called American packets, running between Liverpool and New York, which were fast sailers, and which would carry letters from England to the United States for twopence a letter, without regard to its weight or the number of enclosures it contained.

The agents of these lines kept bags in their offices in London and Liverpool, and when the vessels were due to sail, the bags were sealed and placed on board. The conveyance of the letter bags from London to Liverpool by the messengers of the sailing lines was illegal, as the postmaster general had the exclusive right to convey letters within the United Kingdom. There could have been no possibility of carrying on the traffic in a clandestine manner, as it was wholesale in character, and comprised the correspondence of the most eminent merchants in London. On inquiry it was learned that one merchant alone sent one thousand letters by this means, and not one by the official packets, and the practice was universal. [\[182\]](#)

On the arrival of the American packets at New York, the letters for Canada were deposited in the New York post office, and forwarded to the Canadian

border office in the United States mails, and thence to their destination. The postage by this course was very much less than by either of the other routes.

It was made up of three factors: the ocean postage of four cents, the United States postage of nineteen or twenty-five cents—according to the point at which the Canadian border was reached—and the inland Canadian postage. The charge on a single letter to Quebec was forty-seven cents instead of ninety-two cents, which would be due if sent by the packet route. To Montreal, Kingston, York and Amherstburg, the postage on a letter from London or Liverpool was thirty-one cents, forty-seven cents, forty-one cents and sixty-one cents, as against ninety-six cents, one dollar and four cents, one dollar and twelve cents and one dollar and twenty-four cents respectively.

Letters to York coming from New York had the advantage of a daily conveyance to Lewiston, where the transfer to the Canadian border office at Queenstown was made, and of the lower charges which the United States post office imposed for long distances. These figures, the lowest then attainable, inevitably suggest comparisons.

It is only a few years since good citizens were rejoicing that the postage rate between the mother country and Canada was brought down from five cents to two cents a letter. Here was a link of empire of daily utility. Communication could be kept up between the British immigrant and his friends at home without too heavy a draft on slender purses. His heart would remain British, and as he prospered he would induce others of his friends and neighbours to come over and settle.

A glance backward will show how little these agencies of empire were able to effect in our grandfather's time. The lowest possible postage charge from London to York fifty years ago was forty-one cents, and that would carry no more than one sheet of paper weighing less than an ounce. If within the folds of this sheet were found another piece of paper no larger than a postage stamp, the charge of conveyance from New York to York was doubled, and with the ocean postage of four cents, the poor immigrant would have to pay seventy-eight cents for his letter.

If the letter weighed an ounce, that is, if it were such a letter as would pass anywhere within the British Empire for four cents, the charge for it coming

from London to York would be one dollar and fifty-two cents. Finally, if this ounce letter were sent by the All-Red route, that is by the British packet to Halifax and thence over British soil to York, the postage charge would be four dollars and forty-eight cents. Imperial sentiment must have rivalled wit in economy of expression in those days.

While the British post office was unwilling to encourage the use of the United States mails for the conveyance of letters between Canada and Great Britain, it was anxious to put the British packet service on a better footing. But the service had been going from bad to worse, and it had reached a stage where it satisfied nobody.

Of the three points to which mails were carried—Halifax, New York and Bermuda—the last named always held the position of advantage during the winter. Until the winter of 1826 the packet called first at Bermuda, leaving Canadian mails there, and continuing on to New York. At the beginning of the winter of 1826 a change was made.^[183] The packet sailed to Bermuda, put off the United States mails there, and sailed northward to Halifax, omitting New York. The United States mails were conveyed by mail boat from Bermuda to Annapolis, Maryland.

This scheme remedied none of the defects of its predecessor, and brought with it the additional disadvantage that it cut off all direct connection between the British minister at Washington, and the governors of the British colonies.

The secretary of the post office in explaining the arrangements to the postmaster general washed his hands of all responsibility for them. He declared that the plan originated with the admiralty, and was sanctioned by the foreign and colonial secretaries as a practical measure. The postmaster general on reviewing the correspondence was not surprised at the general dissatisfaction, and was glad that the arrangements could not be laid at the door of the post office.

The ocean mail service was beyond the control of the deputy postmaster general of Canada. The postal relations with the United States were not, and he exerted himself to improve these. A hardship under which Canadian merchants doing business with the United States laboured was that they had to pay the postage on all their letters as far as the United States border.

It will be difficult to-day to see wherein the grievance of the early Canadian merchants lay. But at that time the postage was a considerable item in every transaction, and the merchant could not afford to disregard it. When he sold a bill of goods to a customer in the United States, he was obliged to throw on the customer the burden of the postage on the correspondence relating to the goods, and the only sure way of doing this was to post the letters unpaid, and leave the customer to pay the postage on the delivery of the letters. If he had to pay from eight to twenty cents which were required to take each single letter as far as the border, he was apt to lose this sum.

To protect themselves the Canadian merchants used to employ private messengers to carry their letters as far as the nearest post office in the United States, and post them there. From this United States office the letters would go to their destination without pre-payment.

Sutherland informed the postmaster general that some of the leading mercantile houses in Canada sent hundreds of letters into the United States by private hand. [\[184\]](#)

The United States merchant selling goods in Canada stood in a better position as regards his correspondence. He was able to post his letters for Canada unpaid, and the letter came into Canada and went to its destination, where the person addressed paid the postage on delivery of the letter. This was made possible by an arrangement between the deputy postmaster general of Canada, and the post office department at Washington, by which the former undertook to collect and pay over to the latter the share of the postage which was due to the United States department, receiving twenty per cent. for his trouble.

The arrangement was a purely private one, for which Sutherland did not feel called upon to account to the general post office. What he desired was that there should be some postmaster in the United States who would act as agent for the collection of Canadian postage on letters entering the United States from Canada, and he found the postmaster of Swanton, Vermont, quite willing to act in this capacity.

As Swanton was the United States post office through which all correspondence passed from Lower Canada into the United States, the postmaster was well situated for this duty. The only difficulty was about the

commission of twenty per cent., which would have to be paid to the postmaster as compensation. It was necessary to obtain the consent of the British post office to this arrangement, as the deputy postmaster general had no power to make abatements in the postage due to Canada, without the authority of the postmaster general.

But this consent the postmaster general was not disposed to give.^[185] Besides the objection that the Canadian post office would receive only eighty per cent. of the postage due on letters going to the United States, the secretary suggested to the postmaster general that it would seem inadvisable, politically, to encourage unlimited correspondence between all sorts of persons in the two countries, without possibility of restriction or of learning (should it be necessary) with whom any particular person was in correspondence.

Indeed, the secretary had his doubts as to the legality of the arrangement by which Sutherland acted as agent for the collection of the United States postage on letters coming from that country into Canada. The rates of postage, said he, are distinctly specified in various acts of parliament, and the Canadian post office had no power to demand more than the sum required by the statutes. If it were thought advisable to have Canadian postmasters collect United States postage, a new legislative provision would have to be made, which would lead to similar applications from other countries, and the result would be confusion and loss of revenue.

Whatever might have been the consequence of a strict interpretation of the law, as intimated by the postmaster general, the deputy postmaster general did not discontinue the convenient, and, to him, profitable practice of providing for the transmission of unpaid letters from the United States addressed to Canada.

So far from that, Sutherland improved on this arrangement. At the solicitation of Canadian merchants, he obtained the consent of the United States department to having British mails, landed at New York, passed on to Canada without being held for the United States postage. The postage due for the conveyance of the letters through the United States was collected by the deputy postmaster general, and transmitted by him to Washington, and

the delays incident to having this work done in the United States were avoided.^[186]

On the 15th of February, 1825, a memorial^[187] was addressed to the British government by the Marquess of Ormonde, the Knight of Kerry and Simon McGillivray, proposing to establish communication between Great Britain and the British North American colonies by steam vessels, and asking for the exclusive privilege of providing such a service for fourteen years.

At this time steamboats were in pretty general use in the inland and coastal waters of Great Britain, United States and Canada, but nothing had up to this time been done to demonstrate that it would be practicable to cross the Atlantic by a steamboat.

In 1819, a sailing vessel, the "Savannah," fitted up with a boiler and engine and provided with a pair of paddles which could be hauled on deck at will, started from Savannah, Georgia, for Liverpool. The voyage occupied twenty-seven days. Only for three days and eight hours was the "Savannah" under steam.

There was nothing in this experiment to induce the conviction that steam could be successfully employed as a means of propulsion on the transatlantic service, and as a matter of fact the machinery was removed from the "Savannah" on her return to her American port, and she spent the rest of a short existence as an ordinary sailing vessel between New York and Savannah.

Lord Ormonde and his associates were convinced of the practicability of steam navigation across the Atlantic, but to make an enterprise of that kind a success, they would have to satisfy the public on the point, and this would involve a large outlay. In asking for a fourteen years' monopoly, they argued that their proposition would not produce the ordinary ill-effects of a monopoly, as any tendency they might exhibit towards excessive charges would be held in check by sailing vessels, and by steamships, which would inevitably be run between the United States and ports on the continent of Europe.

The proposed line was to consist of six vessels, three of 1000 tons, and three of 600 tons, which would make their way across the Atlantic in pairs,

one large and one small steamer. The vessels would sail together between Valentia, Ireland, and Halifax, Nova Scotia. On arrival at Halifax, the vessels would separate, one going to New York and the other to Quebec. When the two vessels reached Valentia on the voyage home, one would proceed to Glasgow, and the other to Bristol. The memorial was not entertained, and the project dropped.

Sutherland, in his personal relations, showed much more tact than Heriot; and in the controversies which arose between him and the colonial legislatures, Sutherland contrived to range himself on the side of the governors, thus making the post office one of the matters of which the ultra-British parties undertook the defence against the attacks of the Radicals.

But the situation of the deputy postmaster general was too difficult for him to secure unalloyed success. The various interests he had to serve, and, as far as possible, to reconcile, were too antagonistic for complete success. On the one side was a country being settled rapidly and clamouring for postal service in all directions. On the other stood the general post office fixed in its determination that its profits should not be diminished, and scanning anxiously every fresh item of expenditure.

Any serious inclination in one direction was sure to arouse resentment in the other. A curious instance of this occurred in 1819, three years after Sutherland had taken office. A number of merchants and others in Montreal appointed a committee to wait on the deputy postmaster general with a memorial containing an expression of their opinions and desires respecting the postal service in Canada.

The post office in Montreal it was urged had become unsuitable as regards site and space for the accommodation of the public, and the assistance employed by the postmaster was unequal to the requirements of an efficient service. The communications with the United States, Upper Canada and within the province, should be increased in frequency, and an interchange of mails should be opened with the Genesee and other settlements in New York state by way of Prescott and Ogdensburg. The memorialists also desired that letters might be sent to the United States without prepayment of postage.

Sutherland, in his reply to the memorial, dealt with the committee with an engaging frankness.^[188] He was well aware, he said, that the accommodation in Montreal post office was inadequate, but what was to be done? The postmaster had only £300 a year salary, and out of that he had to pay office rent and stationery. It was not to be wondered at, that the postmaster endeavoured to economize in every way possible. He, himself, had on more than one occasion advised the postmaster general of the necessity for greater clerical help, but so far without the desired effect.

Only the year before, Sutherland told the memorialists, he had submitted to the postmaster general with his strongest recommendation, a petition from the postmaster of Montreal for increased salary and assistance, but the petition was refused. As for the increase in the frequency of the communications it was beyond his power to authorize such an expenditure. He had done his best on two recent occasions to induce the postmaster general to allow letters to go into the United States without the prepayment of postage, but was told that British postage must be paid on letters going into foreign states.

The memorial and Sutherland's reply were transmitted to the general post office. There they excited much indignation. Freeling, the secretary, in a minute to the postmaster general, professed his inability to understand whether this unreserved disclosure of Sutherland's proceeded merely from indiscretion or from some other motive. The postmaster general was, in effect, accused of inattention and supineness in the discharge of his duties. His decisions were placed in the most invidious light before the inhabitants of Montreal.

Indeed the whole circumstance had to Freeling the air of an understanding between Sutherland and the committee. The postmaster general was equally indignant, and ordered Sutherland's dismissal. But, as so often happened, Freeling changed his attitude, urging a number of countervailing circumstances against this extreme measure, and the postmaster general, who appeared to do little more than to convert the opinions and suggestions which Freeling so humbly submitted into departmental decisions, concurred in this recommendation.^[189]

In 1824, Sutherland met with a serious financial loss. The postmaster at Montreal became a defaulter to the extent of £1706. Sutherland took action against the postmaster's sureties, but owing to informalities his suit was thrown out. He appealed to the general post office, alleging that the reason of his non-suit was its failure to answer certain questions which he had put to the postmaster general. The appeal was not allowed. In 1827, Sutherland retired owing to ill-health, and was succeeded by his son-in-law, Thomas Allen Stayner, the last and, in some respects, the most distinguished of the representatives of the British post office in Canada.

FOOTNOTES:

[167] *Can. Arch.*, Br. P.O. Transcripts, III.

[168] *Can. Arch.*, C. 284, p. 211.

[169] *Memoir of G. J. Mountain, D.D.*, Montreal, 1866, p. 53.

[170] *Can. Arch.*, Br. P.O. Transcripts, III.

[171] C. F. Grece, *Facts and Observations respecting Canada*, London, 1819, p. 52.

[172] *Can. Arch.*, Br. P.O. Transcripts, III.

[173] *Quebec Almanac*, 1818, and *Can. Arch.*, Br. P.O. Transcripts, II.

[174] *Quebec Gazette*, July 17, 1826.

[175] Record Office, *Admiralty-Secretary In Letters*, Bundle 4073.

[176] *Can. Arch.*, Br. P.O. Transcripts, III.

[177] *Ibid.*

[178] *Can. Arch.*, Q. 166, p. 371.

[179] *Ibid.*, C. 285, p. 63.

[180] *Ibid.*, Br. P.O. Transcripts, III.

[181] *Memorandum of W.B. Felton*, October 1826 (*Can. Arch.*, Br. P.O. Transcripts, II.).

[182] At the inquiry respecting Hill's proposition for penny postage, the assistant secretary of the general post office stated that the American packet, which sailed from England every ten days, carried 4000 letters each voyage, which did not pass through the post office (*Life of Sir Rowland Hill*, by George Birkbeck Hill, I. 303).

[\[183\]](#) *Can. Arch.*, G.P.O., Br. P.O. Transcripts, II.

[\[184\]](#) *Can. Arch.*, Br. P.O. Transcripts, III.

[\[185\]](#) *Can. Arch.*, Br. P.O. Transcripts, III.

[\[186\]](#) *Can. Arch.*, Br. P.O. Transcripts, III.

[\[187\]](#) *Ibid.*, Q. 173, p. 372.

[\[188\]](#) *Can. Arch.*, Br. P.O. Transcripts, III.

[\[189\]](#) *Ibid.*, II.

CHAPTER VIII

Postal conditions in Upper Canada—Serious abuses—Agitation for provincial control.

To those who have followed the course of events thus far, noting the uncompromising attitude of the general post office towards all propositions for the extension of the postal system in Canada, it will be obvious that a struggle for the means of communication impended, which the rapid growth of the country was fast precipitating.

The general post office claimed that it, and it alone, had power to establish a postal service in any part of the country, and it used its arrogated powers in the same manner as any commercial monopoly would be exercised. Post offices were opened in all the better settled parts of the country, where they could be operated profitably. They were refused in the newer districts, unless satisfactory guarantees were given that there would be no loss in working them.

A population was coming into the country rapidly, and was tending towards the inland parts of the province far from the line of post offices which skirted the shores of the St. Lawrence and lake Ontario, and the situation was becoming embarrassing, as well as humiliating to the sensitive pride of the people.

It was easy enough to open post offices on the route pursued by the mail courier from the eastern boundary of the province to Niagara. But it was frequently expensive to open new routes, and the provincial government of Upper Canada was disinclined to give guarantees against loss on particular routes, while it had evidence that considerable profits were being taken from the older routes, and sent to the general post office in London.

Just how acute the position of matters was becoming will be clear from a survey of the distribution of population in Upper Canada at this time, with a

view of the post offices provided for the accommodation of the several parts. We are able to throw out our sketch of the state of settlement in Upper Canada, by employing the results of the census of 1824.

The total population of the province in 1824 was 149,941, of whom 63,000 were in the western district, that is, west of York. Between the eastern boundary of the province and York, there were twenty-six post offices. Four of these—Perth, Lanark, Richmond and Hawkesbury—served inland settlements, the nearest of which was over twenty-five miles from the St. Lawrence. The line of settlements which these four offices served was scattered over a territory over one hundred miles in length, and from twenty to thirty in width. It comprised a population of 12,476.

The remaining twenty-two offices, east of York, were, with one exception, situated on the shores of the river St. Lawrence and lake Ontario. Each afforded accommodation to a district about fourteen miles in length, and between twenty and thirty miles in depth. The mails were carried twice a week over this route. These arrangements gave a fair service to the settlements through which the couriers passed, but they compared meanly with the daily service from New York to Buffalo, on the other side of lake Ontario.

But it was the inland settlements west of York that had most reason to complain of the lack of facilities for communication. The Niagara peninsula, embracing the territory between lake Ontario and lake Erie, and lying west of a line dropped perpendicularly from Hamilton to lake Erie, contained a population of 20,000, distributed with fair evenness over a stretch of country forty-five miles in length, and from twenty-five to thirty in breadth.

The people of this district were served by four offices on its northern border—Dundas, Grimsby, St. Catherines and Niagara—and one office—Queenstown—on its eastern border. Although there were settlements in every part of the district, there was not a single post office within it on the lake Erie shore, or, indeed, anywhere farther inland than three miles from the shore of lake Ontario, or of the Niagara river.

Poorly provided as the Niagara district was, the people living in it had less ground for grievance in respect of post office facilities than the settlers in

the London district. This district was an immense irregular block made up of the counties of Middlesex, Oxford, Brant, Norfolk and Elgin. It measured eighty miles in length, and from forty to fifty miles in depth. It contained in 1824 a population of 16,588, which, as in the other districts, was distributed through every part.

This great district had but five post offices in it, one in each county. The two offices on the lake Erie shore—Vittoria and Port Talbot—were sixty miles apart; while the three offices—Burford, Woodstock and Delaware—were twenty miles from lake Erie.

As illustrating the difficulty of moving the general post office to recognize the responsibility, which its claims of a monopoly seemed to impose on it, Dr. Rolph, who represented the county of Middlesex in the house of assembly, stated^[190] that before the post office was opened at Delaware, he had made application to the deputy postmaster general for a post office in Middlesex county, and was told that the office would be established in the county if he would guarantee the expenses of the conveyance of the mails, but that his application could not be considered on any other terms.

As individual effort was plainly hopeless, the subject was taken up by the house of assembly of Upper Canada. The house dealt with the question vigorously, but not on the lines suggested by the foregoing review of the state of the postal service. More serious aspects of the case engaged their attention. Men on the streets and in farm houses believed that they were victims of imposition on the part of the deputy postmaster general, and that he was charging them more for the conveyance of their letters than the imperial statutes warranted, high as the legitimate charges were.

Discussion on these grievances brought the people forward to another point, and they asked themselves by what right the British government imposed on a self-governing community an institution like the post office, which not only fixed its charges without reference to the people of Upper Canada, but which insisted on preventing the people from establishing an institution of the same sort under their own authority.

It was to these questions that the house of assembly addressed itself. The rates of postage which were charged in Canada, were collected under the authority of an act of the imperial parliament passed in 1765. This act

amended the act of Queen Anne's reign, which was regarded as the charter of the post office in British America.

The rates, as fixed by the act of 1765, were, for a single sheet of paper weighing less than an ounce, fourpence-halfpenny currency, if the distance the letter was carried did not exceed sixty miles; if the distance were from sixty to one hundred miles, the charge was sevenpence; from one hundred to two hundred miles, ninepence, and for every one hundred miles beyond two hundred miles, twopence.

The first inquiry of the house was as to whether these rates, and no more, were charged for conveyance in Upper Canada. On February 29, 1820, William Allan, postmaster of York, was called to the bar of the house, and questioned as to the rates charged by him for letters to the several post offices in Upper Canada.

Allan did not know the distance to the post offices, but he furnished the table of rates which had been given to him. The house asked one of its members, Mahlon Burwell, a land surveyor, to state the several distances, when it appeared that every rate charged by the postmaster of York, was higher than the imperial act warranted.^[191]

Thus the legal charge on a letter to Dundas was fourpence-halfpenny. The charge made by the postmaster of York was sevenpence. On letters to Grimsby, St. Catharines, Niagara and Queenston, the legal charge was sevenpence—Allan charged tenpence. Amherstburg, which was at the western limit of the province, was between two hundred and three hundred miles from York, and the charge should have been elevenpence. Instead of this sixteen pence was charged.

So far the house had made out its case, and on the following day it adopted a resolution that for several years past the rates of postage charged in Upper Canada had exceeded the charges authorized by law, and that the lieutenant governor should be requested to submit the question to the imperial authorities for a remedy.

Peregrine Maitland, the lieutenant governor, did as he was requested, and, when the resolution came before the postmaster general in England, Freeling, the secretary of the general post office, admitted, in reply^[192] to

the postmaster general's request for information, that the rates in British North America were regulated by the imperial act of 1765, but he held that there were other circumstances to be considered.

Freeling did not know whether the ordinary rates would produce sufficient revenue to cover the expenses of the service. If not, then he would refer the postmaster general to a letter written by General Hunter, the lieutenant governor in 1800, which contained an undertaking on the part of the lieutenant governor that, in case there was a deficit, the amount of the shortage would be made good either from the contingencies of the province, or by a vote of the legislature. Freeling would call upon the deputy postmaster general in Canada to report whether the legal postage would be equal to the expense. If so, there was no reason to require the province to grant any aid.

This explanation, like so many which had to be made at that period, lacked the essential element of sincerity. Hunter's engagement was to make good deficits, not by allowing illegal postal charges to be made, but by withdrawing the amount of the deficit from the provincial treasury. This was a point on which Freeling himself insisted on several occasions.

In Sir Gordon Drummond's time, there was an application from the military authorities for a more frequent service between Kingston and Montreal, which was coupled with an offer to pay such extra postage as would be necessary to cover the cost of the service desired. Freeling declared that such an offer could not be accepted, unless the additional charges were sanctioned by the British parliament. ^[193]

Another case, involving the same principle, arose about this time. Sutherland, the deputy postmaster general, desired to facilitate the interchange of correspondence with the United States, and reported to the postmaster general that he had arranged to have the American postage on letters coming from the United States to Canada collected by postmasters in Canada, at the same time as they collected the Canadian postage. Freeling objected to this arrangement as of doubtful legality, on the ground that the act of 1765 prescribed the amount which postmasters should take on every letter, and it might be necessary to amend the act to permit this scheme. ^[194]

The house of assembly, however, did not wait for the answer to their remonstrance. In the following session they gave themselves up to the consideration of the more vital questions, as to "how far the present system is sanctioned by law, and whether and in what manner the same can be beneficially altered." This was not the first occasion on which the right of the British post office to collect postage in Canada was called in question.

Governor Simcoe, in 1791,^[195] assumed it as indisputable that, when a postal system was established in Upper Canada, it would be under the control of the legislature, unless the British government by express enactment, retained the management of it in the hands of the British post office, paying over to the local government all surplus revenues arising therefrom. The question was not decided at that time, and it was only when the course pursued by the general post office was so unsatisfactory to Canadians that it was again raised.

A committee was appointed in 1821, to investigate the subject with Dr. W. W. Baldwin as chairman. On December 10 the report was laid before the assembly.^[196] The committee had little help from the post office in pursuit of its inquiries. The only official available, the postmaster of York, was examined, but whether from unwillingness or want of knowledge, he contributed little information to the inquiry.

Allan stated that he was appointed by the deputy postmaster general under his hand and seal. He occasionally received instructions from the deputy postmaster general, but had no idea as to the authority under which the latter acted. He had never been referred to any particular statute for his guidance, and, indeed, the postage on letters within the province had been charged at arbitrary rates, which were fixed by the deputy postmaster general.

Some valuable information respecting the revenue of his office was submitted by Allan, which completely disproved the intimation of the secretary of the general post office, that the offices in that part of the country were conducted at a loss. The post office at York yielded an annual revenue of between £800 and £900, which was remitted to the deputy postmaster general at Quebec.

The committee found it impracticable to call the postmasters of the more distant offices, but having regard to all the circumstances, they were satisfied that there was remitted each year to the deputy postmaster general at Quebec an amount exceeding £2500, of which perhaps ten per cent. or eleven per cent. was foreign postage collected in Canada, and, therefore, due to Great Britain or the United States.

Next the committee addressed themselves to the question as to how this surplus was disposed of, which, after deducting the amount owing to the other postal administrations was probably more than £2000. Allan believed, though he was unable to give it as a fact, that the money was passed over to London. What was beyond doubt, however, was that this revenue in no way inured to the benefit of Upper Canada.

Assuming, as the committee felt they might safely do, that the surplus from Canada was made part of the revenue of the general post office in London, the committee then sought to ascertain how the revenue of the general post office was dealt with, and whether any part of it was employed for the benefit of the colonies.

The post office acts of 1710^[197] and 1801^[198] made this point clear. It appeared that after certain deductions had been made for pensions, the revenue of the post office was applied in various specified ways to the service of Great Britain, the postal rates being avowedly levied for raising the necessary supplies, and for making a permanent addition to the public revenue. The committee could find no instance in which any part of the post office revenues was devoted to the use of the colonies.

Taking it, then, as established that a sum exceeding £2000 was raised each year in Upper Canada as profit from its post office, and that this sum was applied, not for the benefit of Upper Canada, but for the purposes of the public service in Great Britain, the committee next turned its attention to the laws bearing on the situation.

There was an act passed in 1778^[199] in the hope of staying the rising rebellion in the American colonies entitled "an act for removing all doubts and apprehensions concerning taxation by the parliament of Great Britain in any of the colonies and plantations in North America and the West Indies." It declared that the king and parliament would not impose any duty, tax or

assessment whatever, payable in any of the colonies in North America or the West Indies, except any such duties as it might be expedient to impose for the regulation of commerce.

But although the collection of such duties should be made by officials of the British government, it was not intended that the proceeds should go into the British treasury; for it was provided that the net produce from them should be paid over to the colony in which they were levied, to form part of the general revenue of such colony. This seems sufficiently explicit, but that there might be no doubt as to the applicability of the provisions of this act to the provinces of Canada, they were expressly incorporated in the constitutional act of 1791, which was the charter under which the provinces of Upper and Lower Canada were established.

As in the act of 1778, there was reserved to the British parliament, in the general interest of the empire, the power to make laws for the regulation of commerce, but there was also the same stipulation that the proceeds from such laws should be applied to the use of the province in which the taxes were levied, and in any manner the legislature of the province might think fit.

Applying the acts of 1778 and 1791 to the circumstances of the case in hand, the committee were of opinion that the collection of postage could not be regarded as a regulation of commerce, and as such within the scope of imperial legislation.

But even if it should appear that they were wrong in this opinion, and that the British government had the power to set up a post office in Upper Canada with the exclusive right to carry letters within the province, there was one thing the British government could not properly do. While the constitutional act of 1791 remained unrepealed, the British government could not take the net produce from the post office in Upper Canada, and use it as part of the general revenue of Great Britain.

Having satisfied themselves that, however strong the grounds might be on which the postmaster general of England had proceeded in establishing a post office in Canada, they could not prevail against the acts which have been considered, the committee next gave their attention to inquiring what

those grounds might be, and how far they would bear out the pretensions of the postmaster general.

The two acts, which it seemed to the committee the postmaster general would most likely depend upon, were the acts of 1710 and of 1801. The act of 1710, which was the charter for the post office in British America, was dismissed from consideration as not even by its own provisions applying to the colony of Canada, and as annulled so far as concerned any of the colonies by the act of 1778, and as regards Canada by the constitutional act of 1791.

The second of the two acts—that of 1801—repealed all the rates of postage enacted by the act of 1710, and fixed new rates for Great Britain, but made no mention of new colonial rates. Hence, since 1801, there had been no colonial postage rates having the sanction of law, and the committee concluded that the colonies were designedly omitted, when the rates for Great Britain were fixed by the act of 1801, for the reason that the act of 1778 supervened, which made it illegal for the British parliament to impose a tax on a colony for the financial benefit of Great Britain.

The committee admitted that it was a matter for argument whether the unrepealed parts of the act of 1710 might not be held applicable to Canada, but conceding the whole argument on this point, the utmost power remaining in the act was to authorize the establishment of a postal system in Canada. All power to fix the postal charges was taken away by the act of 1801.

As for the act of 1801, which established a scale of rates, by no liberality of construction could it be made to apply to Canada, because the act of 1778 was against it, and the constitutional act of 1791 was against it, and the fact that the revenues to be raised by the act were to be appropriated to the purposes of the United Kingdom made it illegal for the postmaster general to enforce it in the province.

There were other acts passed by the imperial parliament affecting the postage rates, but an examination of these disclosed no intention to make the acts operative in the colonies. Rates were fixed for conveyance in the United Kingdom, and to and from the colonies in America, but nothing was said as to the rates within the colonies. It was quite clear to the committee,

therefore, that the only acts, which by any possibility could be made applicable to the colonies, were inoperative in the Canadas.

The committee clinched the argument by a survey of the laws passed by the British parliament, levying taxes on the colonies. They showed that whenever such taxes were imposed, the proceeds were never applied to the purposes of the United Kingdom, but always to the use of the colony concerned. There was an act passed in 1764 imposing duties on the sugar plantations. The revenue was devoted to the protection of their trade.

The Quebec revenue act of 1774^[200] was the other case. This act imposed duties on rum, brandy, and other liquors coming into the province, and employed the proceeds for the establishment of a fund to aid in defraying the charges of the administration of justice and of the civil government in the province of Quebec. It was clear, then, that the acts of 1778 and 1791 contained no new principle, but were simply declaratory of the steady policy of the British government as disclosed by a review of its earlier practice; and everything combined to satisfy the committee that the legislature of the mother country never contemplated the raising of a tax by inland postage in the colony of Upper Canada.

The committee concluded by submitting for the acceptance of the house a resolution to the effect that the present system of public posts for the conveyance of letters within the province had grown into use without the sanction of law, and that a bill should be introduced establishing public posts and fixing the rates of postage on letters and packets for the purpose of raising a permanent revenue, applicable solely to the improvement of the roads throughout the province.

The proposition of the assembly was thoroughly conservative. It was simply that the profits from the post office should be devoted to improving the means by which the post office was carried on. Settlements were springing up in all parts of the province which reason and policy made it necessary to connect with the more central districts, and it was only proper that the profits arising from the system should be used for improving and extending it.

At this period and for a long time afterwards the roads throughout the province were in a wretched condition. One of the principal mail

contractors informed a committee of the house in 1829, that all the main roads in the province were very bad, and that those in the neighbourhood of York were bringing discredit on the inhabitants. The deputy postmaster general informed the same committee that he had just been advised that the contractors on the road from Montreal to Niagara had to swim their horses over some of the rivers on the route, the bridges having been carried away.

Peregrine Maitland, the lieutenant governor of Upper Canada, forwarded the report of the committee of 1821 to the colonial office, with a letter in which he explained that what the legislature desired was to have the control of the provincial posts vested in them, or at least to have a deputy postmaster general for Upper Canada. With the latter request he fully sympathised, as he was convinced that a deputy postmaster general residing in Quebec could not possibly appreciate the requirements of the rapidly rising communities, situated so far from his headquarters.

The lieutenant governor shared the opinion of the legislature that it was contrary to the acts of 1778 and 1791 to send remittances from Canada to England, but he did not believe that the legislature would have concerned themselves with the subject, if the post office authorities had provided a satisfactory service.

At the general post office in London the report was turned over to the solicitor with directions to prepare a case for submission to the law officers of the crown. The law officers were requested to give their opinion as to whether the postmaster general of the United Kingdom had the right to control and manage the internal posts in the provinces of North America, and, if so, whether the proceeds derived from the inland conveyance of letters in North America ought to be paid into the exchequer of the United Kingdom or whether they ought to be applied to the use of the province from which they were taken.

But the case as prepared did not reach the law officers. The postmaster general had the good sense to see that his case was precarious, and he did not care to risk an adverse decision.

Freeling, accordingly, wrote to Maitland,^[201] admitting that the postal transactions of Upper and Lower Canada together showed a small surplus, but he inclined to the view that the share of Upper Canada in the surplus

must be very small. A number of post offices had been opened in Upper Canada and the impression in the general post office was that they were unprofitable.

If, as Maitland had intimated, the wishes of Upper Canada would be satisfied by the appointment of a separate deputy postmaster general for Upper Canada, the postmaster general, Freeling informed the governor, would make no difficulty on the point, but would naturally select for the position one of the more experienced officers such as the postmaster of York or of Kingston.

In the meantime, while the report of 1821 was being discussed by the secretary of the post office and the lieutenant governor, the members of the assembly were endeavouring to procure further information to strengthen the position they had taken. They desired to learn definitely the amount which was sent to London as postal revenue. The postmaster of York could tell them little beyond the transactions of his own office, but the contribution from that office made it clear that the revenue from the whole province must be considerable.

No information could be obtained by direct inquiry of the deputy postmaster general, but it was thought that the post office would not refuse to answer a question on the subject asked by a member of parliament.

A question was accordingly put in the house of commons in 1822, but Freeling informed the representative of the post office^[202] in the house of commons that the information should not be given, as the provinces were manifesting a disposition to interfere with the internal posts, and to appropriate their revenues to their own purposes, instead of allowing them to flow into the exchequer of the United Kingdom. The maintenance of the packet service, he declared to be of the greatest political importance, as ensuring despatches against passing through foreign hands.

The course pursued by the post office under the influence of Freeling was in no way creditable to it. At a time when it was making grudging admissions that there was a small profit from the Canadian post offices, there was being sent over to London from the two provinces a sum exceeding £6000 a year, an amount which, wisely spent, would have been a considerable contribution to the road fund of the provinces.

The packet, the importance of which Freeling emphasized, was scarcely of any utility to the people of the Canadas. The service by the packets was so slow and expensive that it was not employed at all for commercial or social correspondence, the merchants in London and Liverpool using exclusively the lines of sailing vessels running between Liverpool and New York. But Freeling was obstinate and often disingenuous in maintaining his view that it was proper that the surplus revenues from the provincial post offices should be turned into the British exchequer.

The disinclination of the general post office to discuss the question of the colonial post office was not likely to suppress the subject for long. The assembly of Upper Canada had too strong a case. The political grievances from which the province was suffering were bringing into the political life of Upper Canada a group of men to voice the general dissatisfaction with the state of affairs, and so undeniable an abuse could not remain unexploited.

The house, which adopted the resolution of 1821, was on the whole favourable to the lieutenant governor and his advisers. The succeeding house, which was elected in 1825, contained a majority opposed to the government. This fact did not, however, lead to the overthrow of the lieutenant governor's advisers. They were his own choice and were in no sense responsible to the house. It was not until sixteen years later that responsible government, as now understood, was established in Canada.

The turn of affairs in 1825, which placed the control of the house in the hands of the opponents of the government had its effect on the attitude of the parties towards the provincial post office. In 1821, the lieutenant governor cordially supported the views of the house, and did what he could to make them prevail with the postmaster general. In 1825, when the post office grievance was brought up for discussion, the lieutenant governor's party upheld the position taken by the postmaster general in England.

The consequence was that, for the opposition, the post office was but one more of the many matters calling for redress, while for the government party it was another element in the burden which they had to sustain in their resistance to reform.

In the beginning of 1825, William Lyon Mackenzie presented a petition to the house of assembly to have the affairs of the post office investigated. Mackenzie, who had come to Upper Canada in 1820, was engaged in business until 1824, when, impressed with the various political abuses from which the country was suffering, he abandoned what had every appearance of a successful career, and gave himself to agitation. He established a newspaper—*The Colonial Advocate*—in 1824, and in 1828 secured a seat in the house of assembly. These vehicles of publicity he employed in ceaseless attacks on the governing clique, which from the intimacy of the ties binding its members together was known as the Family Compact, and became the principal actor in the abortive rebellion of 1837. The post office as then managed incurred his unremitting hostility.

A committee was appointed having as chairman Captain John Matthews, who represented the county of Middlesex along with Dr. Rolph, subsequently one of the leaders of rebellion in 1837. Matthews was a retired army officer, who entertained advanced political views, which were irritating to the lieutenant governor. He was later on made to feel the lieutenant governor's resentment for his opposition. As chairman of the committee Matthews reported on the 9th of March, 1825,^[203] that it was in evidence that there were abuses which would be remedied, if the post offices in the province were, as they should be, under the control and supervision of the legislature.

The committee found that there were many populous districts, in which post offices were much required; that many postmasters performed their duties indifferently, letters and newspapers being opened and read before being delivered; and that complaints to the deputy postmaster general had no appreciable effect. The mail bags, the committee also discovered, were often filled with goods, having nothing to do with the post office, to the injury of contractors as well as of the post office revenues.

Editors of newspapers, it was also ascertained, suffered from the hardship of having to pay the postage on their newspapers in advance, and the committee recommended that the postage on newspapers should be collected as the postage on letters was, from those who received the newspapers. Letters on public business should, in the opinion of the

committee, be carried free of postage; and the surplus revenue should be expended on the public roads and bridges which were in a deplorable state.

The final conclusion of the committee was that the provincial legislature should take on itself the entire management of the post office, even though this should involve some temporary expense. It was not anticipated that such would be the case, but in any event the deficits would be of short duration.

In the following session—1826—the post office was again discussed. This time the discussion was on a motion of Charles Fothergill to take into consideration the state of the province. Fothergill was king's printer, and had been postmaster of Port Hope. He was dismissed from the post office for his criticism of the administration, and was soon to be deprived of the office of king's printer, on account of his advocacy of measures distasteful to the lieutenant governor.

Fothergill in his attack on the post office,^[204] had the advantages of experience, and of some inside knowledge. Arguing from the revenue of Port Hope, he declared his belief that the sum remitted to London each year could not be less than £10,000, and that the business was increasing so rapidly that in a few years the surplus revenue from the post office would pay the whole expenses of civil government in the province.

Some of the postmasters, Fothergill complained, acted with much insolence towards those not in favour with the government. Their newspapers were thrown about. Their letters were handed to them open. The mails were often opened in public bar rooms. Sutherland, the deputy postmaster general, had admitted to Fothergill that he was ignorant of the geography of the province, which was a strong reason for the appointment of a resident deputy postmaster general. Fothergill's great objection to the existing arrangements was that they were unconstitutional, and that the tax on newspapers was so oppressive as to check their circulation. To test the feeling of the house Fothergill offered a resolution declaring that the acts of 1778 and 1791 were part of the constitution of the province.

John Beverly Robinson, the attorney general, traversed Fothergill's statements, and desired the house to take satisfaction from the fact that all the other colonies sent their surplus post office revenues to the general post

office, without remonstrance. He did not believe that any large sum was sent from Canada. Indeed, Freeling told him (what was quite untrue) that the Canadian post office was a burden on the home department.

Fothergill was supported by Rolph, and also by Bidwell, one of the leaders of the opposition, and afterwards speaker of the house. Rolph recalled that the postmasters who had appeared before the committee testified that the provincial post office was a remunerative institution. He was satisfied that it could not be otherwise, as he had learned by experience that a post office, however much required, would not be opened until the deputy postmaster general was guaranteed against any loss which might arise. But even if the post office could be shown to be unproductive, he would propose to take it off the hands of the mother country while it was a burden to her, and not to wait until it began to be profitable.

Rolph moved an address to the king affirming that the present system was being carried on contrary to the act of 1791, an act which was held by the house to be a fundamental part of the constitution of the province; that a well-regulated post office, responsible to the constituted authorities of the province, and extended in the number of its establishments would tend to correct and prevent abuses which were found to exist under the present system, would facilitate commercial intercourse, promote the diffusion of knowledge and would eventually become an important branch of the provincial revenue. The assembly therefore begged, with many expressions of loyalty and gratitude, that the control and emoluments of the post office so far as they concerned the province might be conceded to them. There was some opposition to Rolph's motion. Eventually the address was adopted by a vote of nineteen to five.

The address, which it will be recalled had originated with the opposition, was laid before the colonial office under very different circumstances from those attending the report of 1821. On that occasion, the memorial was brought to the foot of the throne with the good wishes of both the government and the legislature. It was accompanied by a letter from the lieutenant governor, commending it to the favourable consideration of the home authorities.

The address of 1826 was also accompanied by a letter^[205] from the lieutenant governor, but so far from commending it, the purpose of the letter was to suggest an answer confuting the arguments of the assembly. Dealing first with the allegation of the assembly that the postage charges were a tax, and as such repugnant to the act of 1778, Maitland recalled Franklin's contention before the British house of commons in 1765, that postage duty was not a tax, but rather a consideration for a service performed, and exacted only from those who chose to avail themselves of that service.

Assuming, as the governor did, that the revolted colonies generally acquiesced in the justice of Franklin's view, while objecting to other duties as unconstitutional, he could not see on what valid grounds the legislature rested its case. This reasoning is directly the opposite of the view expressed by the lieutenant governor in 1821. He then gave it as his opinion that the acts of 1778 and 1791 made it illegal for the Canadian post office to make remittances to London of surplus revenue, but that the matter would not have been noticed in the province, if a satisfactory service had been given by the deputy postmaster general.

Indeed, Maitland left no doubt that his real opinion was unchanged, for he went on to intimate that he would not depend upon Franklin's argument, if it could be shown that there was any considerable surplus from the postal operations in Upper Canada. The lieutenant governor enjoyed his little excursions among the statutes, however, and although the postmaster general had the benefit of the advice of the law officers of the crown, Sir Peregrine did not scruple to take on himself the rôle of legal adviser of the general post office.

Even if the duties were declared to be a tax within the meaning of the act of 1778, since the duties were collected under the amendment of 1765 to the act of 1710 which was anterior to the act of 1778, Maitland argued that it was questionable whether their collection could be regarded as a violation of the act of 1778. But there was one person to whom this gratuitous argument carried no conviction, and that was the propounder of it himself. He would still hark back to his underlying idea, and intimated his persuasion that the British government had no desire to raise a revenue from the colonies through the post office, and suggested that if it could be shown that the post office yielded a large revenue after paying the charges,

the government would be prepared to reduce the rates or to place the surplus at the disposal of the colony.

Although the assembly stated that it would be desirable in the interests of the province to have the post office under the control of its legislature, the lieutenant governor believed that the preponderance of the better opinion, whether in or out of the assembly, would be found opposed to that proposition. It would be impossible to carry on an independent system in an inland province, and the attempt to do so would involve the colony in heavy expenditure. The lieutenant governor discredited entirely the allegations that there were abuses in the service, and he had much reason for thinking that Sutherland, the deputy postmaster general, discharged his duties to the general satisfaction of the public.

Maitland's letter, which bears all the marks of having been written by the attorney general, Beverly Robinson, is a capital illustration of the vicious circle of deception sometimes practised by persons having a common purpose with reference to a scheme. The official class in York, as well as the secretary of the general post office, desired to defeat the wishes of the house of assembly respecting the post office, the family compact group, because any victory gained by the house threatened the privileges enjoyed by that class; Freeling, secretary of the post office, because it would diminish the revenues of which he was a most zealous guardian.

Freeling told the attorney general that the Canadian post office was a burden on the revenues of the general post office, and the attorney general, accepting this statement, told the secretary that such being the case, the statutes on which the house of assembly relied were not applicable. The secretary's statement was demonstrably incorrect, but it furnished the foundation for the opinion which he desired, that the law did not require, nor did expediency suggest, the transfer to the Upper Canadian legislature of the control of the post office in that province.

Robinson wrote to Freeling supporting the views of the lieutenant governor; and at the same time Freeling received a letter from Markland, a member of the executive and legislative council of Upper Canada, protesting against the attempt on the part of the assembly to interfere with the post office as the assumption of a right to which they had not the least pretension. The

best-intentioned and the best-informed people in the province were against such interference.

By way of parrying the demand of the assembly for control over the post office, Markland suggested that it would be well to appoint a post office superintendent for the upper province. Upper Canada was entirely distinct from Lower Canada in all matters of government. The post office alone was subject to the control of a person, outside of the province, who never visited it. The people of Upper Canada were, he declared, energetic and enterprising, and immigration was coming in on a full tide. Freeling considered this an important letter, and laid it before the postmaster general.

The agitation in Upper Canada aroused a flutter of interest in London. When newspaper reports of the discussions in the house of assembly in December 1825, reached St. Martins-le-Grand, they fell under the notice of the postmaster general, who was moved to ask Freeling what it all meant. Freeling replied that the accounts related to great disputes in Canada as to the application of the rates of postage levied in that country, whether the rates should not be devoted to local purposes. At that time, Freeling stated, the rates formed part of the consolidated fund.

The colonial office and the treasury also made inquiries. The colonial office was informed that the revenues of Upper and Lower Canada were blended, and that for seven years previous there had been a surplus from the two provinces which amounted on the average to £5790 a year.^[206] It was also pointed out that the estimated cost of the packet service was £10,000 a year.

Robinson,^[207] the chancellor of the exchequer, with whom Freeling had an interview in October 1826,^[208] did not fall in with Freeling's views quite as readily as the others had done. He expressed the opinion that Canada's contention was in the main sound. The net revenue from the Canadian post office ought in fairness to be applied to colonial purposes, not in the mode or on the principle put forward by the assembly, but under the direction of the home government. It should be in the nature of a civil list.

Freeling was alarmed at the chancellor's utterances, and reminded him that what was granted to Canada could not be withheld from Jamaica. The chancellor admitted this to be the case. Freeling insisted that there could be

no doubt as to the legality of the present practice, though he confessed that the law officers gave no opinion on the case prepared in 1822. Indeed, it had not been submitted to them, as Lord Chichester, the postmaster general, had an invincible reluctance to taking their opinion, and would not do so unless positively instructed by the government.

Then there were the packets. Freeling could not let the opportunity pass of mentioning Canada's obligations with respect to the packet service. He did not, however, endeavour to impose on the chancellor of the exchequer his view that the cost of this service should be set against Canada's post office surplus. In his memorandum of the interview, Freeling merely notes that the opinion between them inclined to the view that as the packets were maintained for the benefit of Canada as well as of Nova Scotia, some part of the expense should be borne by Canada.

Up to this point, the agitation against the post office was confined to Upper Canada, which indeed was the more aggressive province during the whole course of the dispute. In 1827, however, the legislative assembly of Lower Canada took a hand in the controversy, contributing a strictly legal and even technical memorandum embodying an argument in favour of its contention that the colonies should participate with the United Kingdom in the profits of the general post office.^[209]

The memorandum pointed out that the act of Queen Anne established a general post office for, and throughout Great Britain and Ireland, the colonies and plantations in North America and the West Indies, and all other of Her Majesty's dominions and territories; and that of the duties arising by virtue of this act, £700 a week were to be paid into the exchequer for public purposes in Great Britain. Certain annuities and encumbrances charged on the postal revenues by earlier acts, were continued by the act of Queen Anne. When these charges amounting to £111,461 17s. 10d., and the £700 a week already mentioned were satisfied, one-third of the remaining surplus was reserved to the disposal of parliament "for the use of the public."

The house of assembly argued that this act, which by later acts was declared to be in force in Canada, applied to the people of England, Ireland and colonies of North America and in the West Indies. The word "public," therefore, being used without limitation, or qualification, could not signify

exclusively the people of Great Britain and Ireland, or of the colonies. On the contrary, being equally applicable to all who were within the purview of the act, it designated the people of all the dominions of the crown in which the postal revenue was to be levied. The statute thus carried on the face of it a parliamentary declaration that the colonies were entitled to a share of the post office revenues, and it enacted, by implication, that the amount of the share should be determined by parliament at some future period.

Here followed a novel and ingenious application of the statute of 1778, which was enacted for the purpose of conciliating the colonies by conceding the point at issue between them and the mother country.

The assembly stated that by this act it was declared that, for the peace and welfare of His Majesty's dominions, the net produce of all duties, which after the passing of that act were imposed by parliament upon the colonies, should be applied to the use of the colony in which it is levied. Unlike the assembly of Upper Canada, the assembly of Lower Canada did not maintain that the act of Queen Anne was annulled by the act of 1778.

It will be remembered that the British post office rested its claim to collect the colonial postages on Queen Anne's act with its amendments, while the Upper Canada assembly asserted that the act of 1778, which was made part of the constitutional act of 1791, deprived the British government of any right it formerly had to impose a tax on the colonies.

The Lower Canadian house of assembly made another use of the act of 1778. It submitted that, so far as postal revenues were concerned, it was the complement of the act of Queen Anne. The earlier act, in the view of the assembly, left the amounts of the shares of the postal revenues to which the colonies were entitled, to be determined by a future act of parliament, and the act of 1778 had this effect, if not in the letter, at least in its spirit; and consequently Lower Canada, as one of the colonies had a fair and equitable claim to the net produce of the post office revenue levied within the province, after deducting the expenses of the post office established therein.

Shortly before the house of assembly at York took into its consideration the question of the legality of the postal system in operation in Upper Canada, the home authorities were discussing a matter, which was a source of much embarrassment to the deputy postmaster general. The steamboats, which

had been running since 1809, between Montreal and Quebec, had so far improved that they outdistanced the mail couriers, who travelled on the shore of the river, and a great many letters were carried between the two towns by the steamers.

The deputy postmaster general made provision for the conveyance of letters by steamers, by placing official letter boxes on the boats. He allowed the captains twopence for each letter they carried, and charged the public the regular postage rates. But the public paid little attention to the letter boxes. They simply threw their letters on a table in the cabin, and when the steamer reached its destination, those expecting letters sent down to the landing and got them, paying a small gratuity to the captain.

Moreover, in cases where the letters had been deposited in the letter boxes on the steamer, and were delivered by the captain at the post office, many of the people to whom the letters were addressed refused to pay the same charges as if the letters were conveyed by land, alleging that such charges were illegal.

The deputy postmaster general laid the facts before his superiors in England in 1819, asking for some document of an authoritative character, which, when published, would put a stop to the illegal practices. The solicitor of the post office to whom the matter was referred had no doubt that the acts complained of were illegal, and would render the offenders liable to penalties, if the practice were carried on in England, but he could not be sure that penalties for the infraction of the post office act could be recovered in Canada.

Freeling, the secretary, thereupon made a suggestion^[210] which must have caused him some pain. The right of the post office to protect its monopoly was quite clear, and the natural course of the postmaster general would be to direct his deputy in Canada to enforce the law. But as the legislatures had in several instances manifested an inclination to interfere with the internal posts, he recommended that, instead of taking proceedings to protect His Majesty's revenues, and, as he says, to enable them to continue to flow into the exchequer of the United Kingdom, the postmaster general should state the circumstances to the colonial secretary, and request his opinion before instructions were sent out to the deputy postmaster general.

Bathurst, the colonial secretary, fully concurred in the view of the postmaster general that the subject was one of great delicacy, and wrote to the governor general, Lord Dalhousie, setting forth the facts and stating that under ordinary circumstances he would have had no difficulty in recommending a prosecution.

In view of the attention which the house of assembly had been giving to the revenues of the colonial post office, and of the doubt which had been suggested as to the right of Great Britain to receive those revenues, the colonial secretary thought it possible that the enforcement of those rights at that time might embarrass the governor general by giving the assembly an additional ground for contention with the mother country. He, therefore, had given directions that the deputy postmaster general should communicate with the governor general on the subject, and should not institute proceedings without the full concurrence of the latter.

The deputy postmaster general was instructed in this sense in September 1820, and matters remained in abeyance until 1826, when the deputy postmaster general, presumably with the concurrence of the governor general requested the opinion of the attorney general of Lower Canada on the subject. The attorney general, James Stuart (afterwards Sir James) advised that the right of the post office was clear, and he conceived that there should be no difficulty in recovering pecuniary penalties for the infringement of the postmaster general's privilege.

But no action was taken on this opinion. The relations between the provincial governors and the assemblies were becoming more strained as time went on, and the governor general had no desire to augment the grievances of the assemblies by introducing irritating matters, in which the right of the home government might with reason be held to be disputable.

FOOTNOTES:

[\[190\]](#) In course of debate in assembly, December 16, 1825 (Report in *Colonial Advocate*).

[\[191\]](#) *Journals, House of Assembly*, March 1, 1820.

- [192] *Can. Arch.*, Br. P.O. Transcripts, III.
- [193] *Can. Arch.*, Br. P.O. Transcripts, III.
- [194] *Ibid.*
- [195] *Can. Arch.*, Q. 278, p. 44.
- [196] *Journals of Assembly*, U.C., 1821.
- [197] *Imperial Statutes*, 9, Anne, c. 10.
- [198] *Ibid.*, 41, Geo. III. c. 7.
- [199] *Ibid.*, 18, Geo. III. c. 12.
- [200] *Imperial Statutes*, 14, Geo. III. c. 88.
- [201] *Can. Arch.*, Q. 332, p. 95.
- [202] Freeling to S. R. Lushington, June 3, 1822 (*Can. Arch.*, Q. 162, p. 165).
- [203] *Journals of Assembly*, U.C.
- [204] *House of Assembly*, December 16, 1825 (Report of the *Colonial Advocate*).
- [205] *Can. Arch.*, Q. 340, p. 49
- [206] Freeling to Horton, July 25, 1826 (*Can. Arch.*, Br. P.O. Transcripts, II.).
- [207] Afterwards Earl of Ripon: well remembered in Canada as Viscount Goderich.
- [208] October 3, 1826 (*Can. Arch.*, Br. P.O. Transcripts, II.).
- [209] *Can. Arch.*, Q. 180, p. 258.
- [210] Freeling to Goulborn, December 29, 1819.
-

CHAPTER IX

Thomas Allen Stayner deputy postmaster general—Restrictions of general post office relaxed—Grievances of newspaper publishers—Opinion of law officers of the crown that postmaster general's stand is untenable—Consequences.

Owing to failing health, Sutherland retired from the service in 1827. He was succeeded by his son-in-law, Thomas Allen Stayner, the last of the deputies of the postmaster general of England, and in many respects the most notable. Stayner was brought up in the post office, and at the time of his appointment to the position of deputy postmaster general he was in charge of the Quebec post office.

A man of unusual ability, Stayner gained the confidence of his superiors in England, to a degree at no time enjoyed by his predecessors. What was equally important, he managed to keep on good terms with the governments of the two provinces.

When the houses of assembly in Upper and Lower Canada denounced the post office as inefficient and unconstitutional, and proposed to take the management of it into their own hands, the governors and legislative councils in the two provinces took the side of Stayner, and while they urged upon him and the postmaster general the expediency of meeting the reasonable demands of the assemblies, they set their faces steadily against any revolutionary propositions respecting the control of the department.

This attitude was in a measure due to a change in the policy of the postmaster general and his advisers in England. The earlier deputies were held by so tight a rein, and their suggestions and recommendations so little regarded, that they occupied a rôle scarcely more important than that of being the hands and voice of a department, which, unpopular at home on account of its illiberality, aroused general discontent in Canada by adding to its administrative vices, an entire ignorance of the situation with which it had to deal.

At the outset of his administration Stayner's powers were as much restricted as were those of the deputies who preceded him. A few months after his appointment, he opened a post office at Guelph. He assured the postmaster general that he had not done so until he had satisfied himself that the prospective revenue would more than meet the expense. But he did not escape a warning and an intimation that the departmental approval would depend on the financial results.

Shortly afterwards, Stayner established an additional courier on the route between St. John and St. Andrews in New Brunswick, the point at which the mails between the Maritime provinces and the United States were exchanged. This action, though most desirable in the public interest, brought down upon him a rebuke, and a reminder that the postmaster general's sanction must be obtained in all possible cases, before lines of communication were opened which were attended with expense.

The circumstances of the country were making a continuance of this repressive course impossible. Settlements were springing up too rapidly, and the demands for postal facilities were becoming too insistent to leave it possible to delay these demands until formal sanction was obtained from England. In November 1829, Stayner informed the postmaster general that, in Upper Canada, the lieutenant governor, the legislature, the merchants, and indeed the whole population, were calling for increased postal accommodation.

In the United States, Stayner pointed out, almost every town and village had a daily mail, and this excited discontent with the comparative infrequency of the Canadian service. He suggested that he be allowed to expand the service, and to increase the frequency of the courier's trips, wherever he was convinced that the ensuing augmentation of correspondence would more than meet the additional expense.

Stayner had been so fortunate as to impress the postmaster general with the fact that a very considerable discretion might safely be left with him. Besides this, the postmaster general was under a growing sense of the insecurity of the legal foundations of the post office in the colonies. To Stayner's gratification he received a letter from the postmaster general^[211] enjoining him to make it his study to extend the system of communication

in all directions where the increase of population and the formation of new towns and settlements seemed to justify it.

This was a wise step. It gave the department a representative, zealous in its interests, as intimately acquainted with local conditions as the assemblies themselves, and thoroughly competent to undertake the responsibility devolving upon him.

Stayner's commission placed New Brunswick as well as Upper and Lower Canada, under his charge. But before the close of 1828 the service in New Brunswick was transferred to the control of the deputy postmaster general for Nova Scotia.^[212] This change was made at the instance of the deputy of Nova Scotia, who, being in England at the time, explained to the postmaster general how much more closely New Brunswick was associated with Nova Scotia than with Quebec, and pointed out that orders from home affecting New Brunswick and requiring immediate attention were delayed in that they had to pass from Halifax through New Brunswick, and then return to New Brunswick. All the other branches of the imperial service in New Brunswick had their local headquarters in Halifax.

At the time Stayner was placed in charge of the postal service in the Canadas, the system of communication was still simple enough to be described in a few lines. There was a trunk line from Halifax, Nova Scotia, to Niagara and Amherstburg on the western boundaries of Upper Canada. The distances were to Niagara, one thousand three hundred and fifty-six miles, and to Amherstburg, one thousand five hundred and sixteen miles.

The frequency of the trips made by the mail couriers over the several stretches of this long route varied considerably. Between Halifax and Quebec, a courier travelled each way weekly. The section between Quebec and Montreal, the most populous in the country, was covered by couriers, who passed five times each way weekly between the two cities.

From Montreal westward along the shores of the St. Lawrence and lake Ontario to Niagara and Amherstburg, there were semi-weekly trips. Running out from this trunk line there were six cross routes, four in Lower Canada, and two in Upper Canada. Two of these left the trunk line at Three Rivers—one running to Sorel, by way of Nicolet, with semi-weekly mails;

and the other to Sherbrooke, Stanstead and other places in the eastern townships. There was a weekly service over this route.

Mails were carried up the Ottawa river from Montreal as far as Hull, and southward to St. Johns; in both cases twice weekly. In Upper Canada, the only cross routes were one from Cornwall to Hawkesbury, with weekly mails, and another from Brockville to Perth, with mails twice a week. From Perth there was a weekly courier to Richmond.

The two principal points of connection with the United States were at St. Johns, south of Montreal, and Queenston on the Niagara river. As early as 1828, the United States post office had a daily service by steamer on lake Champlain, which ran as far northward as St. Johns. In 1831, Stayner made a notable improvement in the mail service from Montreal to Niagara, increasing the frequency of the trips to five each week, and reducing the time of conveyance between the two points to six days.

The appointment of Stayner in no way diminished the energy with which the houses of assembly pursued their campaign against the administration of the post office. In March 1828, the assembly in Upper Canada named a committee consisting of Fothergill, Ingersoll, Matthews and Beardsley, to inquire into the state of the post office. Their report, which was made in 1829, did not disclose any new facts. Indeed, it would not seem that the assemblies, in the series of inquiries, which were ordered from year to year, thought so much of obtaining new light on the question as of keeping the public alive to the grievances, which they were made to appear to suffer.

The committee of 1829, after affirming the illegality of the existing system and declaring that the surplus revenue which was sent annually to Great Britain, was the result of starving the service, recommended the establishment of a provincial post office, subject to the legislatures. Post routes should be opened to every court house, and the charges on letters and newspapers conveyed by steamboats should not exceed twopence and one farthing each respectively.

The lieutenant governor, Sir John Colborne, though friendly to Stayner, and appreciative of his efforts to meet the demands of the public in Upper Canada, was not altogether satisfied with the system. He maintained that it was impossible for Stayner from his headquarters in Quebec to follow the

rapid changes in the conditions of settlement in Upper Canada, and was of opinion that the remedy for the existing shortcomings of the post office in that province was to appoint an official of a rank equal, or nearly so, to that held by Stayner, and station him in Toronto.

Colborne, in communicating the view to the colonial office,^[213] also requested that arrangements should be made for a regular interchange of correspondence between Upper Canada and Great Britain, by way of New York.

Freeling, the secretary of the post office, was quite willing to meet the views of the lieutenant governor, but was inclined to the view that the people on both sides of the Atlantic had already settled the question their own way. He explained that there was a plan in full operation by which the correspondence between Liverpool and Upper Canada was conveyed across the ocean independently of the post office at twopence a letter, and that there was little likelihood that the public would seek the aid of the post office to have this conveyance done for them, and thereby become subject to charges four times as great.

The people of Liverpool, who had the largest correspondence with the United States, Freeling reminded Colborne, scarcely sent one letter per week by post, though thousands were sent outside the post office, by the same vessels as carried the mails for the post office. As for the appointment of a resident deputy in Upper Canada, Freeling thought there would be no objection to such an arrangement.

In this opinion Stayner by no means concurred. He could see no good reason for such an appointment. The postmaster general was more impressed with the representations on behalf of the province than Freeling thought desirable. Freeling reminded the postmaster general that his powers might not be equal to his desires. He observed that in the lieutenant governor's letter, a question was involved as to whether, and if so, to what extent, the revenues of the post office could be devoted to the general improvement of communications for the public advantage, and he conceived that this was a point of view from which the postmaster general was not empowered to regard the subject.

But the forces were gathering for an attack on the post office, which promised to be much more formidable than any which had preceded it. Until that time, the assailants of the system had been confined to what the official clique regarded as the radicals and republicans and grievance-mongers. In the houses of assembly the grievances of which they complained became the motive of highly effective speeches and resolutions, but the injuries they alleged really hurt nobody.

The rates of postage on letters were, according to present day standards, exorbitant. But they were no higher than those charged in England; and after all the post office was but little used by the masses of the people. It is doubtful if the post office were employed in 1830 any more freely than the telegraph is to-day. In their contention that it was a violation of constitutional guarantees to send the surplus post office revenue to England, the assemblies were undoubtedly correct, but loyal people bear many things of that kind easily.

At this time, however, the question was taken up by a body to whom the postage rates were a personal grievance, and who at the same time possessed the means of successful agitation. In the beginning of 1829, a number of newspaper publishers in Lower Canada approached the governor general, Sir James Kempt, with a request that they might be relieved of the payment of postage on the newspapers which they sent to subscribers.^[214] They did not ask that the postage be remitted altogether. All they desired was that the postage should be collected from the subscribers and not from themselves. They also suggested that the charge might be fixed at one penny per copy.

Stayner declared that he had no power to enter into such an arrangement. The publishers thereupon changed their request, and asked that they might be put on the same footing as the newspaper publishers in England stood, and be thus entirely exempt from postage on their newspapers.

British publishers had enjoyed this concession since 1825, but as they still had to pay a heavy excise duty on the paper they used, they could not be regarded as free from public charges. In Canada there was no stamp duty on paper. This difference between their situation and that of their brethren in

England was pointed out to the publishers, but the explanation failed to satisfy.

One of the publishers, who had some inkling of the fact that the newspaper postage did not go into the public revenue, but formed part of the emoluments of the deputy postmaster general, observed that with as much consistency a toll keeper might insist on farmers paying high charges to him, because they paid no tithes.

With the publishers awake to the fact that they had something to complain of, they made the most of their grievance. They were experts in this line of exploitation. They found that the newspaper charges, which they were convinced had no legal sanction, had been steadily advancing for forty years past. In 1790, a shilling a year was all that was charged as postage for each copy of a weekly newspaper. This rate was increased by degrees to one shilling and threepence, one shilling and eightpence, two shillings, two shillings and sixpence, until, in 1830, it had risen to four shillings a year on weekly papers, and to five shillings for papers published twice a week. The discontent of the publishers was not lessened by the knowledge that in the Maritime provinces, the yearly rate for weekly papers was two shillings and sixpence for each copy.

The agitation against the newspaper charges was set in motion by Robert Armour, proprietor of the *Montreal Gazette*. It had come to his knowledge that the sums collected from the publishers did not appear in the accounts of the postmasters with the department, and he suspected that in some way they were retained by Stayner, though on this point he had no certain information.

After Armour learned that the rates had been subjected to a continuous process of enhancement, he made diligent search for any warrant that might exist for the successive advances or indeed for the original charge. Finding none, he turned to the authorities for information. It was he who led the deputation to the governor general for relief in some form. When this step failed, Armour demanded of the deputy postmaster general his authority for the newspaper charges.

Getting no answer from that quarter, Armour endeavoured to bring matters to an issue by refusing to pay the postage on the copies of his paper which

he posted in Montreal. The postmaster declined to accept the papers without the postage, and Armour appealed to the postmaster general in London. In due time the reply from the department was received, and while it offered no immediate relief, it put Armour in possession of some exclusive information, which, as a newspaper man, he must have considered valuable.

Freeling, the secretary, informed Armour that the postmaster of Montreal had failed in his duty, in refusing to transmit the newspapers simply because the postage was not paid. The postmaster should have sent the newspapers forward, and since the postage demanded by Stayner was not paid, it fell upon the postmasters of the offices to which the papers were directed to collect the postage, at the same rates as were charged on letters.

As each paper was under this ruling chargeable with the rate which was due on four letters, it may well be imagined that no publisher would offer to pay the post office for the distribution of his papers by that means. On these conditions, the postage on each copy sent from Montreal to any of the post offices on the island of Montreal, to St. Johns or to the nearer settlements in Upper Canada would be thirty-two cents. Each copy sent to Three Rivers or to any points between sixty and one hundred miles from Montreal would cost the subscribers forty-eight cents.

It is needless to pursue the charges into districts where the copies were sent over one hundred miles. Freeling went on to explain that, as the post office act had no provision for the conveyance of newspapers, the postmaster general, in order to accommodate the publishers permitted the deputy postmaster general to make private arrangements with them for the transmission of their newspapers. By ancient and authorized custom, the deputy postmaster general was allowed to treat the receipts from this source as his own perquisite. This information with the comments thereon greatly enlivened many issues of the *Gazette*.

Freeling was denounced as a sinecurist, who permitted impositions in the colonies which he dared not make at home. Armour announced that he would carry the matter into the legislature, and, if necessary, into the courts. He had no desire to escape the payment of postage. All he demanded was the establishment of an equitable rate, placed on a legal basis. His idea was that the postmasters who handled the newspapers should be paid from five

to ten per cent. of their cost. The rates charged by Stayner amounted to from twenty to twenty-five per cent. of the subscription price. Armour would resist Stayner's claim to be a sleeping partner in his business, who, contributing neither capital nor talent, dictated what his share of the revenue should be.

Armour could write well, and his onslaught caused Stayner much uneasiness. In a letter to the postmaster general^[215] he attributed it to some neglect or indignity, which Armour fancied he suffered at the hands of a former deputy postmaster general, while, he stated, other newspapers were recognizing with gratitude Stayner's efforts to satisfy the reasonable demands of the public.

Every side of Stayner's work was vigorously attacked in the *Gazette*. Complaints were made of a lack of necessary mail routes, and of an insufficiency of service on existing routes. It was charged also that Stayner's attention was confined to the older and more thickly settled districts, which yielded the largest revenues. But, according to Stayner, Armour's silence could have been purchased by a share of the official printing which Stayner declined to give him. Whatever grounds Stayner had for making the insinuation, there can be no question as to the energy with which Armour bent himself to the task of exposing the methods of the post office. When his papers were held in the Montreal post office on account of his refusal to prepay the postage, he entered actions for large amounts against Stayner.

These failed, as the courts declined to deal with the cases. He then addressed himself to the legislature. In the beginning of 1831, Armour and a number of other publishers presented a petition to the house of assembly of Lower Canada, setting forth the high rates they had to pay as postage for the transmission of their newspapers, and the impropriety of Stayner's practice in appropriating the proceeds; and asking that they might be put on an equal footing with the publishers in Great Britain.

The petition was handed over to a committee of the house, who proceeded to investigate the facts. In this they were only moderately successful, as the only person who was in a position to give them the information they desired, declined to answer the interrogatories put to him.^[216]

Stayner, in reply to inquiries as to the financial condition of the post office and the disposition of the surplus revenues, pleaded that he was employed by a branch of the imperial government, which in none of its instructions had recognized the right of the assembly to institute the inquiries being made. To answer the questions put to him by the committee might lead to disclosures, which would involve him with his superior officers until he had received specific instructions from them on the point.

But though little was learned from Stayner, the committee had obtained some useful information from inquiries made in the British house of commons by Joseph Hume. It appeared that the large sum of £36,000 had been received by the British treasury as surplus revenue for the years 1825 and 1826.

Stayner endeavoured to lessen the importance of this fact by declaring that more than half the amount was postage paid by the army, which was not properly chargeable with postage at all. The committee declined to accept this view; and while perfectly friendly to Stayner, and admitting that he had effected some considerable improvements, they were persuaded that the service was far from being what the people had a right to expect.

Looking outwards from Quebec, the committee observed that there was no postal service whatever in the counties of Montmorency and Saguenay, which embraced the earliest settlements in the country. On the south shore of the St. Lawrence, and along the Etchemin and Chaudiere rivers, there was a wide stretch of well-settled country entirely lacking the means of communication with the capital, though but a short distance from it.

From Quebec eastward to the New Brunswick boundary there were over 100,000 people, and the only postal accommodation for this great extent of territory was afforded by seven post offices lying along the line of the post route between Quebec and Halifax. The peninsula of Gaspé, with a line of fishing settlements all along the coast, had but two mails each year.

The committee regretted particularly the situation as regards the conveyance of newspapers. The post office was under no legal obligation to carry them except as letters, and yet there was no other means available for their circulation. If the law had not conferred on the post office a monopoly of carrying letters, the publishers would have a resource. They might

establish a transportation system, and meet their expenses by carrying letters as well as newspapers.

The secrecy with which the affairs of the post office were surrounded was much deprecated by the committee, as giving ground for speculation and suspicion that could not fail to do harm to the institution. If, under the present system of imperial control, an adequate service were rendered, there would have been no just grounds for complaint.

But if the interests of the province were not regarded, the people were entitled to object to their being limited to a means of conveyance which did not meet their requirements, and to assume that the revenue arising from the service was not properly applied. The committee in conclusion expressed their confidence in the good will of both the postmaster general and his deputy in Canada, and their belief that their complaint had only to be laid before the governor general to secure favourable consideration.

Before concluding to withhold from the house of assembly, the information it sought, Stayner with characteristic prudence had enlisted the support of the governor general, who coincided with him in his view as to the impropriety of his submitting to the questioning of the house regarding the affairs of a branch of the imperial service. When he laid the course he had pursued before the postmaster general, Stayner also gained his approval for the zeal and sagacity he had shown.

But Armour persisted in his attacks in the *Gazette*, and in the two sessions which followed managed to alienate from Stayner a large measure of the good will of the house of assembly. Stayner's determination to withhold information from the assembly was a source of irritation. The facts which had come to their knowledge through questions in the house of commons at Westminster, the ungracious admissions which the possession of these facts enabled the house to extort from Stayner, and his specious and unconvincing defence of his perquisites, all combined to change the house from an attitude of friendliness to one of criticism and even hostility.

The house no longer rested in the belief that, to obtain satisfaction, all that was necessary was to lay their grievances before the department. In 1832, it denounced the methods of the department, and presented an address to the

governor general praying that the home government might place the post office under the control of the legislature.^[217]

In the session of 1833, the pertinacious Armour again appeared before the assembly. He had no new facts to present, but managed to sustain the interest of the house in the facts already before it.

The assembly on this occasion set forth its views at greater length. In an address to the king,^[218] it represented that the post office should not be a means of raising a revenue greater than was needed to enable it to establish offices wherever they might be required; that if the rates were higher than was necessary for that purpose they should be lowered; and that any surplus revenue should be at the disposition of the legislature for the improvement of communications by post throughout the country; also, that newspapers should pass through the post office in Lower Canada, free of postage.

In the assembly in Upper Canada the post office was also vigorously assailed. There was general agreement on the proposition that the existing arrangements were not satisfactory, but on the point of remedy opinions differed sharply. The reformers, of whom Dr. Duncombe was the spokesman, adopting the argument of the Baldwin committee of 1821, insisted that the post office had no legal basis in Upper Canada.

Duncombe and his associates held that it was a violation of the constitution to send any surplus revenue to Great Britain, and that it was the obvious duty of the legislature to pass an act, taking to itself the control of the provincial post office. They believed that the revenues from the service would amply suffice to cover all its expenses, but if it should turn out that such was not the case, they were prepared to meet the deficiency from the general revenues of the province.

The government party, on the other hand, always ready to fight for things as they were, did not accept the argument of the Baldwin committee. They held that the post office was an institution necessary to commerce, and, as such, it was not placed by the acts of 1778 and 1791 under the jurisdiction of the provincial legislature. They did not believe that the provincial post office furnished a revenue sufficient to cover the expenses, but if it should be shown that they were wrong, and that the post office yielded a surplus,

they were convinced that the imperial government had no desire to retain the surplus for its own purposes.

Colborne, the lieutenant governor, was in general agreement with the government party. But he believed that, having regard to the great distances between Quebec, and the rapidly rising settlements in the remoter parts of Upper Canada, an administrator, having his headquarters at Quebec could never understand the necessities of the new districts, and that it was indispensable that there should be stationed at Toronto an officer with powers nearly, if not quite, equal to those of the deputy postmaster general at Quebec.

In the sessions of 1832 and 1833, the subject was warmly debated.^[219] The views of the reformers were presented by Duncombe and Bidwell. They were opposed by the attorney general (Henry John Boulton), the solicitor general (Christopher Hagerman), and Burwell, who was postmaster at Port Burwell.

It was one of the complaints of the reformers that there were in the house of assembly a number of postmasters who voted not according to their own convictions, but according to the orders of Stayner.

As the result of the discussion, it was resolved to present an address to the king, asking that an annual statement of the revenue and expenditure of the department be laid before the legislature; that newspapers should be distributed throughout the province free of postage; that the correspondence of the members of the legislature should pass free during sessions; and finally, that in the event of a surplus being obtained, the postage rates should be reduced, or that the surplus should be devoted to the improvement of the roads.

Stayner, in sending to the postmaster general, copies of the addresses from Upper and Lower Canada, expressed his gratification that the assemblies in both provinces appeared to have dropped the idea of independent provincial establishments, and gave it as his opinion that the legislatures would look for nothing further than such reasonable modifications of existing laws and regulations as the imperial government might determine.

That some changes were necessary Stayner was quite convinced. The postage on newspapers, for instance, could not long remain in its present position, as regards either the amount of the charges or the mode in which the revenue therefrom was disposed of. As for the request of the legislatures that newspapers should be distributed by the post office free of charge, there seemed no sound reason why this should be done. A moderate rate should be fixed, and some arrangement made for the disposal of the revenue from this source. The present plan aroused dissatisfaction, and indeed the amount collected was fast becoming too large to be appropriated in the existing manner.

The postmaster general expressed his satisfaction with Stayner's report, and indeed it appeared at that moment to be of more than usual consequence to him that the colonies should be well affected towards the post office.

It will be remembered that when the Baldwin report reached England in 1821, the postmaster general was sufficiently impressed with the cogency of the argument against the legal standing of the British post office in the colonies, to call for the opinion of the law officers upon it. When the case was prepared by the solicitor for the post office, it was still more impressive, and the postmaster general thought better of his desire to have a definite opinion upon it, as it appeared more than probable that the opinion might be against the post office. He accordingly directed that the papers should be put away, and they lay undisturbed for eleven years.

But the repeated remonstrances of the colonial assemblies, joined to the rising dissatisfaction with the general political conditions in Upper and Lower Canada, made it desirable to remove any real grievances which might be found to exist in the control and management of the postal system.

The first step taken in this direction was to ascertain whether there was any foundation for the contention of the assemblies that the whole system rested on an illegal basis, and that the revenues collected by the post office in the colonies were taken in violation of the fundamental principle governing the relations between the mother country and the colonies.

The case was accordingly submitted to the attorney general and the solicitor general in 1832; and on the 5th of November of that year a decision was given, upholding the colonial contentions on all points. [\[220\]](#)

The questions upon which the opinions of the law officers were required were (first) whether the power to establish posts, and the exclusive right to the conveyance of letters given by the acts of 1711 and 1765, had the force of law in the Canadas, and (second) whether the postage received for the inland conveyance of letters within those provinces ought to be paid into the exchequer and applied as part of the revenue of the United Kingdom, or whether it ought to be devoted to the use of the province in which it is raised.

The law officers gave the case the attention its importance called for. It appeared, they stated, to involve practical considerations of the highest political importance, bringing directly into question the principle of the declaratory act of 1778, respecting internal taxation of the colonies by the mother country.

Their opinion was that the rates of internal postage could not be considered as within the exception of duties imposed for the regulation of commerce, but that if they could be so considered, they would by the terms of that act be at the disposal of the province, instead of constituting a part of the revenues appropriated for the general purposes of the empire.

It had been contended, as a question of law, that since the act of 1765, by which the colonial rates were finally determined, was in operation at the time of the declaratory act of 1788, it had not been annulled by the latter act, the language of which was, not that rates then existing should be no longer levied, but that after the passing of the act of 1778, no tax or duty should be levied. But the law officers had no great confidence in the argument. In their own words they were of opinion that "it would not be safe to agitate the question as a question of law with the colony, and if it could be so discussed, it would not succeed, and that it could not be enforced."

The opinion of the law officers could not have been unexpected, but it gave the postmaster general much concern. In a note appended to the decision, he accepted the opinion of the law officers as conclusive. The department, he said, was beaten off its first position, and his view was that a plan should be drawn up by which the post office should relinquish to the provinces any surplus revenue after the expenses were paid, and permit an account of the

receipts and expenditures to be laid on the tables of the legislatures. While forced to concede this much the postmaster general was convinced that the appointment of the officers of the department should remain with the crown. Otherwise he foresaw the ruin of the colonies, so far as correspondence was concerned; for the postmaster general and legislature of Upper Canada would be at perpetual strife with the postmaster general and legislature of Lower Canada. However, he concluded that before taking any step in the matter he would consult Goderich, the colonial secretary.

It was not until the following March that the postmaster general saw Goderich respecting the post office. The interview was quite satisfactory. The colonial secretary agreed to the propositions. Legislation would be necessary, and to that end Stayner was called to London to give his assistance.

At this time the government received assurances from an unexpected source that the plan settled upon would be satisfactory to the Canadian people. William Lyon Mackenzie, and Denis Benjamin Viger, representing as they maintained, the body of the public in the two provinces, visited England for the purpose of laying before the government the grievances of the Canadian people.

On reaching London, Mackenzie and Viger wrote to the secretary of the post office, requesting an interview with the postmaster general. The request was refused on the ground that the postmaster general did not feel authorized to communicate with any person but the colonial secretary on colonial matters. The delegates then addressed themselves to Goderich, who cordially invited them to lay their case before him.

Mackenzie, thus encouraged, prepared a statement, which, though long and detailed, was studiously moderate in tone.^[221] On all other points of colonial policy, Mackenzie declared, people would be found to differ, but as regards the post office there was absolute unanimity. There must be a change. Stayner himself admitted that the arrangements were imperfect.

The colonial governments were in favour of separate establishments, but Mackenzie was of Stayner's opinion that such would be impracticable. His own belief was that the only feasible scheme would be to bring all the colonies of British North America under one deputy postmaster general,

who should be responsible to the postmaster general of England. Mackenzie apparently would be quite satisfied to see the office of deputy postmaster general vested in Stayner, whom he described as a persevering, active officer.

The other suggestions of Mackenzie were in line with the more conservative recommendations of the colonial assemblies. On one subject, however, he expressed himself strongly. He said the packet service between the Canadian provinces and the mother country was so indifferent that it went far to convince Canadians that Great Britain desired as little correspondence with Canada as possible.

As an instance of the inferiority of the packet service, Mackenzie told Goderich that he had shortly before received a letter by the Halifax packet, which was sixty-five days on the way, and which cost five shillings and fourpence-halfpenny for postage, and another by way of New York, which was only thirty-four days in coming, and cost only one shilling and fourpence-halfpenny. The announcement of the arrival of the English mail by the Halifax packet was scarcely heeded, whereas no sooner was it known that the Liverpool mail had arrived from New York than the Montreal post office was crowded. Mackenzie's statement on this point was fully confirmed by Stayner on his arrival in London in June.

Stayner, when informed of the opinion of the law officers, was not disposed to acquiesce in it as readily as the postmaster general had done. Colonial lawyers, always more imperial and more conservative than the Eldons and Lyndhursts in London, had assured him that the necessity of imperial control of the colonial post office was the strongest reason for believing that parliament never intended to divest itself of the power by the act of 1778. The conviction of the necessity of imperial control was held by all persons qualified to have an opinion, and, Stayner declared, by the legislatures themselves.

The firm belief of Stayner was that, if the imperial parliament failed to legislate on the present critical situation then they must give up all idea of ever having the question settled. The several colonies could never be brought to concur in their views on this or any other subject. They knew this, and did not ask to have the matter submitted to their own legislation.

Stayner certainly overstated the reluctance of the legislatures to deal with the question of the provincial post office. But, as his opinion had the support of so ultra a radical as Mackenzie, the postmaster general could not be blamed for accepting, and, as far as possible, acting upon it.

There was, however, a difficulty. Indeed, the way back into right courses seemed beset with difficulties. The postmaster general was quite willing to furnish the legislatures with annual statements of the revenue and expenditure, to leave with the colonies all surplus revenues, and to satisfy all the reasonable desires of the provinces. But by what steps should he proceed, to legalize the course he proposed?

If the necessary legislation could be enacted by the imperial parliament, all would be well. With a free hand, he would have no trouble in satisfying all the interests concerned. But if the bills had to originate with the provincial legislatures, the postmaster general would despair of bringing the matter to a successful conclusion, as he was convinced that the requisite action on the part of the several provincial legislatures would never be taken. The postmaster general again turned to the law officers. It was essential that they be consulted on the question.

The points on which opinion was desired were two. The first was whether, without any further authority of parliament, the surplus of any postal revenue raised within the colonies under the act of 1765, could be appropriated and applied under the direction of the respective legislatures for the use of the province in which such surplus might arise.

The second was whether it would be competent for the British parliament to fix a new set of rates for the colonies, or whether the acts of 1778 and 1791 made it necessary that the authority for such rates should proceed from the respective colonial legislatures.

Both of these questions were answered adversely to the hopes of the postmaster general.^[222] The law officers had no doubt that the act of 1778 was applicable to the Canadas, and that, if objections were raised in the provinces to the payment of postages fixed by the British parliament, whether by the act of 1765 or by an act to be thereafter passed, the legality of the charges could not be maintained, nor could payment of them be

enforced in the absence of authority from the legislature of the province concerned.

The proper procedure to be followed, in the opinion of the law officers, was for the British parliament to repeal the act of 1765, and leave it to the provinces to establish a new set of rates. The law officers were aware of the difficulties which would arise, if after the act of 1765 had been repealed, the colonial legislatures failed to agree on a scheme of rates or on the necessary arrangements for a uniform postal system throughout the provinces. In such a case, there would be a period in which there would be not even the semblance of legal authority for the postal service within the colonies.

After a further interchange of correspondence between the postmaster general and the law officers, it was decided to introduce into the imperial parliament a bill repealing the act of 1765, but making the operation of the bill contingent upon suitable legislation being adopted by the legislatures of the several provinces. In order to facilitate the passage of identical legislation by each of the legislatures, a draft act was prepared by the solicitor of the general post office, and a copy was sent to the lieutenant governor in each of the provinces for submission to his legislature.

The act of the imperial parliament was passed and received the king's assent on the 26th of March, 1834.^[223] It contained but two clauses. The first provided for the repeal of the imperial act of 1765, so far as that act authorized the collection of postage in the colonies, but stipulated that it should not become operative until acceptable legislation had been adopted in the several provinces, authorizing the collection of postage and making suitable arrangements for a postal service throughout the provinces.

The second clause stipulated that, in the event of the revenues from the colonial post offices exceeding the expenditures, the surplus should no longer be sent to London to form part of the revenues of the United Kingdom, but should be divided among the several colonies in the proportion of their gross revenues.

The draft bill, prepared by the solicitor of the general post office, provided for a complete postal system in each of the provinces.^[224] Under this bill, the postmaster general at St. Martin's-le-Grand was to be the head of each provincial system, and the appointment of a deputy postmaster general in

each province, who should reside in the province and manage the system therein, was to be in his hands.

The postage rates were to be the same in the several provinces; and in the case of correspondence between the provinces, the charge for postage was to be fixed in accordance with the entire distance the articles were carried, without regard to provincial boundary lines.

It will be seen that if the provincial legislatures adopted the bills framed in London for them, there would be no change whatever in the practical working of the colonial system. The postmaster general in London would, as theretofore, control the arrangements, and the charges were fixed, regardless of provincial boundaries. As the imperial act stipulated that any surplus which should arise from the system should be distributed among the colonies, so the proposed provincial bills provided for the contingency of a deficit in its operations.

Each provincial bill empowered the postmaster general to demand from the legislature the amount, which it was agreed that the province should be held responsible for, to make up the deficit. Upper and Lower Canada were to bind themselves to pay in such a case up to £2000 from each province. Nova Scotia was to pay up to £1200; New Brunswick up to £600; and Prince Edward Island up to £200.

In anticipation of the adoption of the bills by the several legislatures, the postmaster general appointed an accountant, who should have general charge of the financial transactions of all the colonies. He was to be established at Quebec. His position in relation to the deputy postmaster general of Lower Canada was somewhat peculiar. While, in general, he was subordinate to the deputy postmaster general, in all matters touching the accounts, he was independent of the deputy, and responsible only to the postmaster general in London.

There were also appointed two travelling surveyors or inspectors in the Canadas, one of whom was stationed at Quebec, and the other at Toronto. Nothing could have been more necessary for the proper administration of the service, and for the expansion of the system to meet the requirements of the new settlements. It was impossible for Stayner to give personal attention

to the duty of supervising postmasters, or to inquiries into the merits of the numerous applications from all parts of the country for new post offices.

The necessity for assistance in this direction was impressed on Stayner by a number of robberies which took place on the grand route between Montreal and Toronto—episodes in post office economy which he was helpless to investigate.

Two of these robberies have incidents connected with them, which are deserving of mention. In February 1835, on a stormy night, the mail bag dropped off the courier's sleigh somewhere in the neighbourhood of Prescott, and it could not be found. As the contents of the bag included banknotes to the value of from £10,000 to £12,000, a reward of £200 was offered for the conviction of the thief and the recovery of the money.

Within half an hour after the placard was on view in Prescott, a man who heard it read, exclaimed excitedly: "I know all about it, I have the bag at home." It turned out that this man had found the bag, rifled it, and used part of the money, and, carried away with the prospect of the large reward, had actually informed on himself.

The other case is noteworthy on account of the energy displayed by the loser of a valuable letter, in pursuing and securing the conviction of the thief. The letter, which contained £200, was posted in Toronto, and addressed to a gentleman living near L'Original. As the department, owing to the lack of effective aid, was limited in its efforts to advertising the loss in the newspapers and by placards, the loser of the letter took the inquiries into his own hands.

He spent nearly a year in his investigations, travelling up and down the country between Montreal and Toronto, and in the state of New York, covering a distance of upwards of two thousand one hundred miles. It is satisfactory to be able to say that he managed to locate and secure the arrest and conviction of the thief. So well had he done his work, that the deputy postmaster general adjudged him to be entitled to the £50 reward offered by the department.

FOOTNOTES:

[211] Freeling to Stayner, August 7, 1830.

[212] Freeling to Stayner, September 25, 1828.

[213] *Can. Arch.*, Br. P.O. Transcripts, II.

[214] *Can. Arch.*, Br. P.O. Transcripts, III.

[215] *Can. Arch.*, Br. P.O. Transcripts, III.

[216] *Journals of Assembly*, L.C., 1831, App. F.F.

[217] *Journals of Assembly*, L.C., 1831-1832, p. 415.

[218] *Ibid.*, 1832-1833, p. 561.

[219] *Report, Journals of Assembly*, 1831-1832, App. 201. Address to king, *Journals*, 1832-1833, p. 137.

[220] *Can. Arch.*, Br. P.O. Transcripts, IV.

[221] *Can. Arch.*, Q. 380, p. 417.

[222] November 27, 1833, *Can. Arch.*, Br. P.O. Transcripts, IV.

[223] *Imperial Statutes*, 4, William IV. c. 7.

[224] The bill for Upper Canada is printed in App. 8 to the *Journals of the Assembly* for 1835. Those submitted to the other provinces were identical except as to the maximum to be contributed by the province in the event of a financial deficit.

CHAPTER X

The beginnings of the postal service in the Maritime provinces—
Complaints of newspaper publishers—Reception given to imperial act
to remedy colonial grievances.

Up to this point the narrative since the American Revolution has been confined to Upper and Lower Canada. The Maritime provinces have been mentioned only in so far as it was necessary to describe the means by which the Canadas maintained communication with Great Britain. It is now time to relate the events connected with the beginnings of the inland posts in the Maritime provinces.

The post office in Halifax was the first opened in the provinces now of the dominion of Canada. It was established as part of the general scheme for closer and more regular communications between the colonies and the mother country which was set on foot as a consequence of the general alarm which seized the British colonies after the annihilation of Braddock's army by the French and Indians at fort Duquesne.

With the placing of a direct line of packets on the route between Falmouth and New York for the conveyance of mails and despatches a post office was demanded at Halifax, in order that Nova Scotia might participate with the other colonies in the benefits of the new service. When in 1755 the post office was opened at Halifax, the English settlements in the Maritime provinces were very recent and very few. The city was founded but six years before, for the purpose of providing a military and naval station; and in the year following, the capital of the province was transferred thither from Annapolis.

In 1751 the only other settlement attached to the British interest at this time was commenced. A number of Germans, attracted by the advertising of the British government, arrived at Halifax. After a short stay most of them re-embarked, and sailing along the southern shore reached Malagash harbour,

where they laid the foundation of the town of Lunenburg. The settlement was augmented by further arrivals in the two following years, and in 1753 its population numbered slightly over 1600. In 1755 the total population in the two settlements of Halifax and Lunenburg was about 5000, and these comprehended all that could be regarded as British subjects.

Few additions were made to the population within the next few years, though the government made a strong effort to re-people the districts from which the Acadians had just been expelled. The only other new settlement founded in the Maritime provinces until the French power in America was broken by the capture of Louisburg and of Quebec, was at Windsor, where a group from New England entered upon the lands from which their former possessors had been removed.

With the passing of the danger of molestation by the French, there was an active movement into the provinces for a few years. The beginnings of settlements were laid all along the Annapolis valley from Windsor to Annapolis; also at several points on the south shore between Halifax and Liverpool, and at the western extremity of the province in the present county of Yarmouth. Little groups established themselves at Truro and Amherst, and on the adjacent lands of New Brunswick, at Sackville and Hopewell.

On the St. John river, a trading village was laid out in 1762 at Portland, now part of the city of St. John; and in 1763 an important agricultural community was formed farther up the river, at Maudersville, a few miles below Fredericton. In 1767 a census was taken of the province, and the total population was found to be over 13,000. Of these 1200 were in the territory afterwards forming part of the province of New Brunswick, and there were 500 in Prince Edward Island. The remaining number were in Nova Scotia proper. The first movement of immigration had now spent itself, and it was not until after the revolting colonies had gained their independence that any great accession was made to the population.

The incoming of the Loyalists was an event of the first magnitude for the Maritime provinces. During the years 1783 and 1784, the population increased to threefold what it was when the migration from the revolted American colonies began. They took up lands in all parts of the provinces.

Eighteen hundred householders made homes for themselves in and about Annapolis, while Digby, which until that time was quite unsettled, leaped into the position of a village with a population of 1300.

Nearly all the settlements formed at this period had within them the elements of permanence, and they became the foundations of the towns, villages and farming communities which cover the Maritime provinces. Until the arrival of the Loyalists, there were practically no inhabitants east of Halifax and Colchester counties. Pictou was not entirely unoccupied, as a small group from Pennsylvania and Maryland had come into the district in 1765, who were joined by a few Highland Scotch families in 1773. But the total number was insignificant, and the two counties to the eastward, Antigonishe and Guysboro, were still practically in a state of nature. They were settled later by Scotchmen who came to Pictou and Prince Edward Island.

New Brunswick benefited to a relatively greater extent than Nova Scotia by the Loyalist movement. At the close of the war, the number of English colonists in this province did not exceed 2500. These were scattered in small groups on Passamaquoddy bay, on the St. John river, and on the Chignecto bay and Petitcodiac river at the eastern end of the province.

By 1787, when the Loyalists had settled themselves, there was a continuous line of settlements along the bay of Fundy from the United States boundary at the St. Croix river to St. John harbour, and with longer intervals onward to the eastern limits of the province. On the St. John river and tributaries over 9000 people were settled. The cities of St. John and Fredericton, and the towns of St. Stephen and St. Andrews sprang into existence during this period.

On the north and east coasts of New Brunswick permanent settlement had begun, the people being mostly Acadians. There were small Scotch fishing settlements on the Miramichi and the Restigouche rivers.

Communication among these settlements was carried on mostly by water. Fishing vessels ran constantly between Halifax and the harbours and coves on the seaboard. The settlements on the bay of Fundy and the St. John river were brought into connection with Halifax by way of Windsor, which lies near the mouth of the Avon, one of the tributaries of the bay of Fundy.

Between Windsor and Halifax a road had been built by the Acadians shortly after Halifax was founded, to enable them to carry their cattle and produce to the new and promising market. The inland settlements along the Annapolis valley had the advantage of an ancient road, made by the Acadians running from Pisiquid, as Windsor was first called, to the Annapolis basin.

The Loyalists and disbanded soldiers settled in the provinces found themselves not ill-supplied with facilities for communicating with one another, but the means of corresponding with the mother country left much to be desired. On the establishment of the packet service between Falmouth and New York in 1755, the mails for Halifax brought out by the packets were sent from New York to Boston, the postmaster of which town was instructed to send them to Halifax by the first suitable war or merchant vessel that offered.

Until the war broke out, there were numerous opportunities for sending the mails to Halifax. The trade returns for 1759 show that during six months of that year one hundred and forty-eight vessels entered Halifax harbour, much the greater proportion of which were from New York or Boston. But with the outbreak of the war, communication with the revolted colonies was carried on at great risks, and the naval and military authorities at Halifax made bitter complaint of the delays to their correspondence with the home government.

With the restoration of peace, an immediate demand was made for a direct packet line to Halifax, and there seemed every likelihood at the time that the line would be established. Lord North wrote to the lieutenant governor of Nova Scotia in August 1783^[225] that Halifax would doubtless increase in importance in becoming the rendezvous of the fleet, and that he was asking the postmaster general to put on a monthly packet to Halifax.

But other views prevailed. In November, the postmaster general re-established the packet service to New York, and as there were not sufficient vessels available for a separate line to Halifax, the settlements in the Maritime provinces had to depend on the New York service for their correspondence with the mother country. The British post office maintained a packet agent at New York, whose duty it was to take over the despatches

and mails brought by the packets for the British colonies, and send them forward by the first opportunity.

The difficulties Finlay found in maintaining correspondence between Canada and Great Britain by way of the New York packets have been related. The Nova Scotia post office had no less difficulty. There were few British vessels running between Halifax and the ports of the United States, and consequently the delays to the correspondence were often intolerable. The complaints of the officials and of the merchants in Halifax were incessant.

A memorial was presented to the government in 1785 by the merchants of Halifax, pointing out the great injury to their trade from the faulty arrangements. Lieutenant governor Parr, in forwarding the memorial, expressed his entire concurrence in its terms, and added that the mails which left England by the November packet did not reach Halifax until the 11th of April following.

But fortunately Canada was now adding an insistent voice in support of the demand of the Maritime provinces. Before peace was declared, the governors of Canada and Nova Scotia were canvassing the possibilities of facilitating communication between their provinces. Despatch couriers passed between Quebec, fort Howe and Halifax, and efforts were made to overcome the obstacles to travel, particularly on the portage between the St. Lawrence and lake Temiscouata.

The results had not been specially encouraging, but the determination of the Americans to exact the last farthing that could be got out of the exchanges between Canada and Great Britain, which passed over their territory, and their unwillingness to assist in expediting the exchanges in any way, compelled the Canadian government to keep before it the question of the connections by way of Halifax.

In 1785 the legislative council of Quebec discussed the question. Finlay, who besides being deputy postmaster general, was a member of the legislative council, impressed on his colleagues the necessity of liberating Canada from its dependence on the United States in its correspondence with the mother country. The refusal of the postmaster general of the United States to allow Canadian couriers to travel to New York, although there was

no regular exchange between New York and any United States post office on the road to Canada, led to delays and exorbitant charges, which were unendurable.

Finlay urged as a first step that Canada should make a passable road as far as the New Brunswick border, believing that the home government would see that the governments of New Brunswick and Nova Scotia would provide the facilities for travel within those provinces. Dorchester, the governor general, who had taken much interest in the question, sent Finlay in 1787 to make a survey of a route from Quebec to Halifax, and to arrange for couriers to pass monthly between the two places. The British government gave its approval to his efforts to establish a connection between the British provinces, and on its part, arranged that, commencing in March 1788, the packets which ran between Falmouth and New York should call at Halifax during the eight months from March to November of each year.^[226]

The call of the packets at Halifax, and the exchange of the mails between Great Britain and Canada at that port marked the commencement of the inland services in the Maritime provinces. Post offices were opened at the important points on the route between Halifax and Quebec.

The couriers passed through Fredericton and St. John in New Brunswick, and Digby, Annapolis, Horton (now Wolfville) and Windsor in Nova Scotia.^[227] St. John post office was opened in 1784, the office of postmaster and king's printer being combined. The courier between St. John and Fredericton travelled over his route fortnightly, and a service of the same frequency was maintained on the route in Nova Scotia.

In order that the post office should have the advantage of conveying the military despatches between the posts on the route, the expresses which had been employed in this duty were suppressed, much to the distaste of the military authorities, who would henceforward have to pay the very high postal charges on their letters.

These charges were prohibitive for all but very urgent letters. A letter consisting of a single sheet cost twelve cents to carry it from St. John to Fredericton if it weighed less than an ounce. If it weighed over an ounce the charge was quadrupled. The following are the rates charged by the

postmaster at Halifax to the several post offices in Nova Scotia: to Windsor fourpence; to Horton sevenpence, and to Annapolis and Digby ninepence.

At the risk of repetition, the reader is reminded that these charges are for letters consisting each of a single sheet, weighing less than one ounce, and that in case the letters should weigh above an ounce, the rates given were multiplied by four, as a letter weighing over an ounce was regarded as equal to four letters.

The postage from Fredericton to London, England, was sixty-four cents for a single letter. As one glances over the long newsy letters in the published correspondence of the time, he is persuaded that those letters did not pass through the post office. The lately published Winslow correspondence^[228] is full of such letters, but they let us into the secret of how they came to be sent.

Leading Loyalists, men who had given up their comforts and taken on themselves the severest hardships for the sake of the old connections, thought no more than the merest rebels of evading the postal laws, and sending their letters by any convenient means that presented themselves. Ward Chipman, the solicitor general of New Brunswick, in writing to Edward Winslow in London, tells him that he would write more freely if it were not for the enormous expense, but he would tax the good will of every person he could hear of, who was going to England. No person was allowed to go on a journey, long or short, without a pocketful of letters entrusted to him by his friends, unless he were unusually disobliging. When he reached his destination, he either delivered the letters in person, or posted them in the local post office, whence they were delivered at a penny apiece.

The service as established in 1788 was carried on unchanged until the war of 1812 made certain alterations in the routes necessary to secure the safe conveyance of the mails. The presence of American privateers in the bay of Fundy rendered the passage of the packets between St. John and Digby hazardous. The course down the St. John river and across the bay to Digby was, therefore, temporarily abandoned.^[229]

The courier with the mails from Quebec did not continue the river route farther south than Fredericton. At that point he turned inland, taking a road which led to the juncture with the old Westmoreland road which ran from

St. John to fort Cumberland, on the eastern boundary of New Brunswick. The road from fort Cumberland was continued on through Truro to Halifax.

For a short period before the war and during its course, the deputy postmaster general was under steady pressure on the part of the provincial governors to extend the means of communication throughout the province of Nova Scotia.^[230] Population was increasing rapidly—the census of 1817 gave it as 82,373—and settlement was well distributed over all parts of the province.

The governors for their part were anxious to have the means of corresponding easily with the militia, who were organized in every county. The deputy postmaster general was in a position of considerable embarrassment. His orders from the home office as respects the expenditure of the postal revenue were as explicit as those under which Heriot was struggling in Canada. He won through his difficulties, however, with more success than attended Heriot's efforts, although he did nothing that Heriot did not do, to meet the two incompatible demands of the post office, on the one side, that he should establish no routes which did not pay expenses, and of the local administration on the other, that he should extend the service wherever it seemed desirable to the governor.

Howe brought a little more tact than Heriot seemed capable of, in dealing with the provincial authorities. He laid the commands which had been impressed on him by the secretary of the general post office before the legislature, and obtained the assistance of that body in maintaining routes, which did not provide sufficient postage to cover their expenses. On his part he engaged, in disregard of the injunctions of the secretary, to allow all the sums which were collected on a route to be applied to paying the postmasters and mail couriers as far as these sums would go, the legislature undertaking to make up the deficiencies.

In April 1817,^[231] Howe made a comprehensive report of the mail services in operation at that date, together with the arrangements for their maintenance.

There were two principal routes in the province. The first in local importance was that through the western counties from Halifax to Digby and thence by packet to St. John. The section between Halifax and Digby

cost £348 a year, of which the legislature paid £200. The packet service across the bay was maintained by the legislatures of the two provinces. The settlements beyond Digby as far as Yarmouth and on to Shelburne, were served by a courier who received £130 from the legislature, and all the postage on letters going to the settlements, which amounted to £65 a year.

The second leading route was that between Halifax and Fredericton by way of Truro. This route, which was begun in 1812, was discontinued at the close of the war. It had been found so advantageous, however, that it was re-established in the beginning of 1817, as the permanent route between Quebec and Halifax.

From Truro, a courier travelled through the eastern counties to Pictou and Antigonishe. This was a district which Howe regarded with much satisfaction. He wrote that the large immigration from Scotland and other parts of Great Britain had increased the number of settlements and thrown open the resources of this part of the province to that extent, that the revenue of the eastern districts would soon surpass that from those in the west.

Antigonishe collected the letters from all the eastern harbours and settlements, and although the post office had been open for only about nine months, the results, as Howe conceived them, were very encouraging. The expenses of the courier at this period far outran the revenues, and accordingly the legislature made a contribution of £130. The remainder of the shortage was made up partly by postages and partly by private subscriptions.

Howe, the deputy postmaster general, set forth the favourable aspects of the service with an eagerness that betokened nervousness, and indeed there was some reason for this feeling. When his statement reached England, the secretary at once drew the attention of the postmaster general to the fact that, while Howe had done extremely well, his actions in appropriating the revenue to any specific object and in establishing new routes and making new contracts without first receiving departmental sanction were inconsistent with the principles which governed the post office.

But it was something that, while Heriot's official zeal was embroiling him with the governor general of Canada, Howe was managing to secure the

good will of the lieutenant governor of his province, and his compromises with post office principles were passed over with a slight warning. Howe retired in 1818 on account of old age, and was succeeded by his son, John Howe, junior.

The postal service of New Brunswick did not advance with equal step with that of Nova Scotia. Until 1820 there was no progress made in improving the system, except that the conveyance between St. John and Fredericton had been increased from fortnightly to weekly.

The first district off the established lines to manifest a desire for postal accommodation was that on the Miramichi river.^[232] There were two flourishing settlements on the river—Chatham and Newcastle—largely engaged in lumbering and fishing, and some means for the exchange of letters was a necessity.

For some years before 1820 a courier travelled between these settlements and Fredericton along the course of the Nashwaak river. He was paid partly by a subsidy from the legislature of New Brunswick, and partly by private subscription. Those who did not subscribe to the courier, might or might not receive their letters. It depended on the caprice of the courier. If he chose to deliver them, he exacted a payment of eleven or twelve pence for each letter. This arrangement was far from satisfactory, as the following illustration will show.

In February 1824, a brig from Aberdeen reached Halifax, bringing a mail, which contained sixty letters for the Miramichi settlements. These letters were forwarded to Fredericton by the first courier. It happened that among the persons to whom the letters were addressed were a number who were not subscribers, and the courier refused to take the letters for these persons with him.

The consequence was that the letters had to be returned to Halifax, to take the chance of the first vessel that might happen to be sailing in that direction. To guard against any similar mishap in future, Howe left the letters for the Miramichi districts with the captains who had brought them over, and allowed them to arrange for their onward transmission.

The lieutenant governor of New Brunswick urged the establishment of a regular post office on the Miramichi. The trade of the district was of considerable proportions. In 1823, four hundred and eight square-rigged vessels from the United Kingdom loaded on the Miramichi. There was some bargaining between the deputy postmaster general and the lieutenant governor. The expense of the courier would be heavy, and the revenue from it would not be large.

Howe proposed that the postages from the route be devoted to its maintenance, and the balance be made up by the legislature. Howe does not seem to have had his usual success in these negotiations, for the governor declined to deal with him, insisting on corresponding directly with the postmaster general in England. This caused some delay, and it was not until 1825 that the post office was sanctioned.

The year 1825 was a notable one in the history of the New Brunswick post office. In that year several important offices were opened. Howe, in his report to the postmaster general, gives an interesting account of his trip in establishing these offices.^[233] He took a vessel from St. John to Dorchester, where he opened an office; thence to Baie Verte, from which point he sailed to Miramichi and to Richibucto. Returning to Dorchester he travelled to Sussexvale.

Howe appointed postmasters at all these places. On arriving at St. John, he was met by the request of the lieutenant governor to open an office at St. Stephen. He finished up his tour by visiting Gagetown and Kingston where offices were opened.

The very considerable enlargement of the system in New Brunswick gave much satisfaction to the lieutenant governor. But as usual the deputy postmaster general received a douche of criticism from the secretary of the post office, who could not bear to sanction an extension of the service which did not turn in something to the treasury. Howe had, indeed, been careful that the post office should not be even a temporary loser by his arrangements. He had gone no further than to apply the postages collected at the new offices to pay the postmasters and couriers, as far as these sums would go. The postmaster general took a larger view of Howe's activities, and expressed his gratification at what had been accomplished.

It was during this period that Cape Breton was brought within the postal system of the Maritime provinces. This island, which had been the scene of great exploits during the French and English wars, had not begun to come under permanent settlement until after the close of the American revolution. After the fall of Louisburg, in 1758, the island was attached to Nova Scotia, and remained a part of that province until 1784, when it was erected into a separate government.

The first lieutenant governor of Cape Breton, Major Desbarres, in casting about for a suitable site for his capital, had the advantage of an intimate knowledge of the coast line of the island, acquired during a series of surveys of the coasts and harbours of the Maritime provinces. Contrary to what might have been expected, he turned away from Louisburg, and placed his capital in a town which he established at the head of the southern arm of Spanish river. Desbarres called the town Sydney, in honour of Lord Sydney, the secretary of state for the colonies.

After an inglorious career of thirty-six years, notable only for the perpetual strife which reigned among the administrative officials, during which the domestic affairs of the colony were almost entirely neglected, the colony of Cape Breton was re-annexed to Nova Scotia in 1820.

The growth of population during this period was slow. In 1774 there were 1241 people on the island, including some roving bands of Indians. On the west coast, about Arichat and Petit de Grat, there were 405 persons, all French. About St. Peters there was a mixed English and French population numbering 186; and on the east coast in a line running north and south of Louisburg there were tiny settlements containing in all 420 persons, nearly all English.

So little progress had been made during the last quarter of the eighteenth century, that at the end of 1801 the population was only 2531, of whom 801 were in the Sydney district, and 192 in and about Louisburg. The remainder were strung along the west coast from Arichat to Margaree harbour.

The increase on the west coast was due to a number of Highland Scotch immigrants, who reached Cape Breton by way of Pictou, and took up land between the Gut of Canso and Margaree harbour. In 1802, the Scotch movement into Cape Breton began to assume considerable proportions. A

ship bringing 300 settlers into Sydney, was followed by others year after year, until, at the date when Cape Breton again became part of Nova Scotia, the population had reached between eight and nine thousand, most of whom were Highland Scotch. The district about Arichat remained French.

There was a post office in Cape Breton as early as 1801. It was at Sydney, with A. C. Dodd as postmaster.^[234] Dodd was a man of prominence on the island, being a member of the legislative council and afterwards chief justice. He held the postmastership until 1812, when he was succeeded by Philip Eley, who was in office in 1817, when the lieutenant governor, General Ainslie, pointed out to the home government the necessity of improving the communications between the island and Great Britain.

The exchange of correspondence was slow and uncertain. The Cape Breton mails were exchanged by the Halifax packet, but it was usual for two months to elapse between the arrival of the letters from England and the first opportunity of replying to them. Half the delay, Ainslie thought, might be avoided, if the packets on their homeward voyages would lie off the harbour of Louisburg for an hour or two to enable a small boat to reach the packet.

The commanders in port at Falmouth were consulted, and gave it as their opinion that the fogs and currents, which prevailed about Louisburg would make it inadvisable to attempt to land the mails there, and the proposition was rejected. In the winter of 1817, an overland communication was opened between Sydney and Halifax, an Indian carrying the mails between the two places once a month during the winter.^[235] When the annexation of Cape Breton to Nova Scotia took place in 1820, the lieutenant governor of Nova Scotia, Sir James Kempt, managed to obtain a weekly mail between Sydney and Halifax.^[236]

The earliest period in which we find a postal service in operation in Prince Edward Island is 1801.^[237] John Ross is mentioned as postmaster of the island in that year. He was succeeded by Benjamin Chappell, in whose hands and in those of his family, the postmastership remained for over forty years.

The connections with the mainland and the mother country were maintained for some years by such vessels as happened to visit the island. The postal service of the island was within the jurisdiction of Nova Scotia. It was not, however, until 1816, that the deputy postmaster general made any mention of the island service in his reports to the general post office in London.

Howe then informed the postmaster general^[238] that when Lord Selkirk was in Nova Scotia some years before, that nobleman urged upon him the necessity of a courier service to Pictou, and thence to Prince Edward Island by packet. This service was established in 1816, and an arrangement was made with the island government, by which the postage was to be applied as far as it would go to maintain the packet and pay the postmaster's salary, and the government would make up the balance.

There were no accounts between the island post office and the general post office. The postmaster simply presented to the deputy postmaster general periodical statements of the postages collected, and his expenses, together with a receipt for the deficiency which was paid by the government. This arrangement had the immense advantage that from the very first the island service was in the hands of the local government, which carried on the post office with no more than a formal reference to the general post office. The postage on a single letter from Charlottetown to Halifax was eightpence.

The communication between the Maritime provinces and the mother country was the subject of some discussion. Halifax was determined to retain, and extend the utility of the packet service at all costs. Owing to the greatness of the charges, and the long delays, the Canadian merchants made but little use of the Halifax packets, but had their letters sent by way of New York.

The merchants of New Brunswick insisted on the same privilege. The provincial government established two courier services between St. John and Fredericton, and St. Andrews on the United States boundary, and the United States post office arranged to have the British mails for New Brunswick conveyed by its couriers to Robbinstown, a point in Maine a short distance from St. Andrews.

Against this Nova Scotia protested. John Howe, the elder, came out of his retirement in 1820, and made a strong plea for an exclusive packet service

between England and Halifax, the vessel to remain at Halifax for one week before returning. He would have the public despatches for New York and Bermuda brought to Halifax, and from that place forwarded to their destination by one of the war vessels in the harbour or by a packet kept for the purpose.

Buchanan, the British consul at New York, urged the opposite view, that all the British mails for the colonies should be sent by way of New York. Dalhousie, who was lieutenant governor in Nova Scotia, at the time supported Howe's view, and matters remained as they were.

The question of newspaper postage was agitated in the Maritime provinces, as well as in the provinces of Canada. Indeed it would be inconceivable that publishers anywhere could be satisfied with the arrangements then in operation. But, most curiously, when the question came before the house of assembly in Nova Scotia, the sympathies of that body ran, not with the publishers, but with the deputy postmaster general.

In 1830, Edmund Ward, a printer, who published a newspaper in Fredericton, petitioned the legislature to be relieved of the charges for the conveyance of his paper. The post office committee of the house of assembly in Nova Scotia took the application into their consideration.

The committee reported^[239] to the house that, having examined the imperial acts, they were of opinion that it was no part of the duty of the deputy postmaster general to receive, or transmit by post, newspapers printed in the colonies, or coming from abroad except from Great Britain. They found, moreover, that the secretary of the general post office in London, under this view of the case, had for a long time made a charge for each paper sent to the colonies by packet, the proceeds from which he retained to his own use.

It also appeared that about sixty years before that date (that is about 1770), the deputy postmaster general made a charge of two shillings and sixpence per annum on each newspaper forwarded to country subscribers by post, which was acquiesced in by all the publishers at that time.

The committee believed, therefore, that the deputy postmaster general was fully justified in the charges he made, but they were much in favour of having newspapers transmitted free. In accordance with this idea, the

committee suggested that the assembly should take on itself the charges due for the conveyance of newspapers. They found that there were seventeen hundred newspapers of local origin distributed by post each week, and three hundred British or foreign newspapers. The assembly did not act on this suggestion.

Though the deputy postmaster general was fortunate enough to have the support of the legislature in his contention with the publishers, his position was by no means free from criticism. Indeed, there were certain features in his case, which were peculiarly exasperating to the publishers.

Howe was not only deputy postmaster general, but was king's printer, and had in his hands the whole of the provincial printing. He was also interested either directly or through his family in most of the newspapers published in Nova Scotia.

The Nova Scotian, *The Journal*, *The Acadian* and *The Royal Gazette*, were all controlled by the Howe family, and it appeared in the examination that all these newspapers were distributed by the post office free of postage. There were two other newspapers published in Halifax—*The Acadian Recorder* and *The Free Press*—and the publishers felt, not unnaturally, that in being compelled to pay two shillings and sixpence for each copy transmitted by post, while their rivals had the benefit of distribution by the post office free of charge, they were being subjected to an unjust and injurious discrimination.

The publishers of *The Recorder* and of *The Free Press* presented a petition to the king, asking that they, also, might be relieved from the burden of paying postage on their newspapers.^[240] Just as their claim appeared to be, it had no support from the authorities in the colony. The lieutenant governor in sending the petition to the colonial office, took occasion to speak of the high character of Howe and of his father, the preceding deputy postmaster general, and to express his opinion that the small fee collected on newspapers could not be regarded as an extravagant compensation for the trouble the deputy postmaster general had in the matter.

The case of the publishers came before the postmaster general in 1834. Freeling, the secretary, then reminded him that there was no urgency in the matter, as they were engaged at the time in adjusting the relations between

the colonial governments and the post office, and if the provincial legislatures accepted the settlement proposed by the home government, the question of newspaper postage would be satisfactorily disposed of.

In the meantime, the petition was easily answered. The practice, argued the secretary, was not illegal as it was founded on an act of parliament empowering the postmaster general to give to certain of his officers the right to distribute newspapers by post. This right had been in existence since the first establishment of a post office and of a newspaper in the colony. Consequently the petitioners, in entering upon the business of publishing a newspaper, must have been aware of the charges to which the publishers would be liable.

The imperial bill of 1834, together with the draft bill prepared by the post office for the acceptance of the provinces reached the lieutenant governors of the provinces in January 1835. The object of the plans, it will be remembered, was in effect to have the stamp of legality placed on the existing arrangements, by obtaining for them the sanction of the several provincial legislatures.

On the adoption by the legislatures of the several bills, which were identical in form, the postmaster general would relinquish the powers he had until that time exercised over the revenues of the provincial system, and allow the surplus, if any should arise, to be distributed among the provinces, leaving it also with them to make up the deficit in case the expenditure exceeded the revenue.

The proposals of the postmaster general were received characteristically by the different provinces. Nova Scotia and New Brunswick had no fault to find with the existing arrangements. So far from objecting to the irregular emoluments of the deputy postmaster general for the Maritime provinces, they recommended, when the question arose, that his emoluments be increased. Whenever the lieutenant governor or the legislature of either of the provinces desired the extension of the postal system into sparsely settled and unremunerative districts, the local governments without demur took the deficiencies on themselves, and did not ask why the profits from the more populous districts were not devoted to meeting these shortages.

When the imperial scheme for settling the difficulties of the colonial postal system was laid before the legislatures of the Maritime provinces, it found them quite unprepared to discuss it. Until then, they had apparently not realized that any such difficulties existed. The thirteen years controversy between the British post office and the assemblies in Upper and Lower Canada appears to have excited no attention in the lower provinces. When the proposition from the British post office was submitted to the assembly in New Brunswick, it was put aside until the following session, and then, as it appeared not to suit the views of the assembly, it was dropped.

In Nova Scotia, the subject received more consideration. The draft bill was referred to a committee of the legislature, which went thoroughly into its merits. The committee were of opinion^[241] that, if modified in certain respects, the bill would be well adapted to accomplish the object in view. In their view the bill should not be a permanent one, but should be renewable every three years, in order that any defects, which experience might disclose, could be remedied.

It also seemed advisable to the committee that the chief administrative officer in the province should be selected, not by the postmaster general, but by the governor of the province, who would be more conversant with the character and abilities of persons qualified to discharge the duties of the office.

As the legislatures of Canada and New Brunswick had declined to adopt the bill, the committee would not recommend that any bill should be adopted that session. The only point to which they invited the attention of His Majesty's government was the salary of the deputy postmaster general, which was not only inadequate, but would not bear comparison with the emoluments of the deputy in the other provinces.

The Nova Scotian assembly did not, however, rest at this point. Though they had acquiesced quite contentedly in the arrangements made by Howe, the deputy postmaster general, and had shown no disposition to join the Canadas in their agitation, the implied admission of the home government that the surplus post office revenues belonged of right to the colonies, put a different face on the subject.

The post office committee called the deputy postmaster general before them, and on going over the accounts with his assistance, they discovered that there was a considerable amount remitted annually to England, as profit from their inland posts, and satisfied themselves that if this amount were retained by the deputy postmaster general, and devoted to paying for the unremunerative services, the sum contributed by the province for the maintenance of these services would be much reduced, if not wiped out altogether.

The legislature, thereupon, with a boldness which seemed to betoken ignorance of the course of events in Canada, resolved to take over the control of the provincial post office. A bill for that purpose was adopted in 1838,^[242] and received the assent of the lieutenant governor. By it, the deputy postmaster general was directed to pay into the provincial treasury any surplus revenue, and the legislature on its part undertook to make good any deficiency, if such should arise.

The position of matters as regards the inland service of Nova Scotia was complicated by the geographical situation of the province with reference to the other provinces. The British packets, by which mails were exchanged between Great Britain and the North American colonies, landed at Halifax, and it was essential that the conveyance of the mails across Nova Scotia between Halifax and the inland provinces should be maintained unimpeded.

The legislature recognized this fact, and agreed to provide for this through service at its own cost, on condition that the British post office should pay the salaries of the deputy postmaster general and his staff at Halifax, from the revenues of the packet service.

The home government disallowed the Nova Scotia bill as being inconsistent with the objects sought to be accomplished by the imperial act of 1834. The aim of that act was to secure a uniform code of laws for the regulation of the posts in British North America. Any partial legislation would be unacceptable, and this was particularly the case with legislation on the part of Nova Scotia, the key to British North America. By obtaining control over the expenditure for the mail service through the province, the legislature of Nova Scotia would have the entire power over the postal communications with the interior, and they might not only object to defray the expense of

particular services, but might interdict them altogether, as, in their opinion, unnecessary.

The colonial secretary added another consideration to this argument of the postmaster general. One of the chief advantages which the government hoped to derive from the mission of Lord Durham, who was then in Canada, was that of devising some plan for the regulation of questions, which, like that of post office communications, was the subject of common interest to the colonies collectively.

The assembly showed some resentment at the rejection of their bill. The despatch informing the governor that the measure had been disallowed, also contained notice of the refusal of the home government to sanction several other acts adopted by the Nova Scotia legislature. In the resolution expressing regret that the measures in question had not been allowed to go into operation, the assembly were careful to intimate their confidence in the disposition of Her Majesty to meet the reasonable expectations of the assembly, and attributed the several disallowances to a want of correct information on the part of the home government due to its not going to the proper sources therefor.

In order to remove the misunderstanding which the assembly conceived to exist between themselves and the home government, William Young and Herbert Huntingdon were sent as delegates to confer with the colonial secretary on this and other subjects lying open. In London the delegates were brought into communication with the treasury.^[243]

As the chief objection to the Nova Scotia bill for the regulation of the post office was that it would give the government of that province control over the posts to the provinces in the interior, the delegates lost no time in disclaiming any desire to exercise control over any but their own inland service. They were willing that the great through lines should remain within the jurisdiction of the postmaster general of Great Britain, and that the provincial authority should be confined to the management of the side or cross posts. This proposed dual control was, of course, obviously impracticable, as the whole provincial service, with its main lines and cross lines, was so blended together, that any attempt to treat them as under two different administrations could not fail to lead to unfortunate results.

The mission of the delegates was, however, far from fruitless. The fact that the legislature had without complaint paid out considerable sums each year for the maintenance of the service, appeared to the British government to entitle Nova Scotia to liberal treatment, as these payments would not have been demanded if the post office had understood the matter.

The treasury, therefore, decided that so long as the revenue from the inland post office was sufficient to meet the expenditure for the inland communications, no demand for that purpose should be made upon the provincial funds. Should, however, the legislature deem it advisable to add to the lines of communication, the treasury would rely upon the legislature to defray the expenses of such additional communications, so far as these were not covered by the augmented postage receipts.

There was no more than justice in this decision, but the concessions of the treasury did not stop at this point. It also intimated its willingness to allow all the packet or ocean postage collected in the colonies to remain at the disposal of the local government, whenever the imperial act of 1834 should come into operation.

The British government did not desire to force the imperial act upon the colonies, if, as appeared to be the case, there were valid objections to it. It was prepared to consider any amendments which might be proposed to meet those objections. The packet postage, it should be explained, belonged entirely to the British government which provided and paid all the expenses of the packet service, so that the offer to allow the local governments to retain for their own use the packet postage they collected, was a real concession.

FOOTNOTES:

[225] *C. O. Rec. (Can. Arch.)*, N.S., A. 103, p. 134.

[226] See p. 86.

[227] *Quebec Gazette*, December 13, 1787.

[228] *Winslow Papers*, 1776-1826 (printed under the auspices of the New Brunswick Historical Society, 1901).

- [229] Heriot to Howe, August 30, 1812 (*Can. Arch.*, Br. P.O. Transcripts, III.).
- [230] Howe to Freeling, June 20, 1816 (*Can. Arch.*, Br. P.O. Transcripts, III.).
- [231] *Can. Arch.*, Br. P.O. Transcripts, April 4, III.
- [232] Freeling to postmaster general, August 11, 1823, with enclosures (*Can. Arch.*, Br. P.O. Transcripts, III.).
- [233] Howe to Freeling, October 18, 1825 (*Can. Arch.*, Br. P.O. Transcripts, II.).
- [234] *Quebec Almanac*, 1802, p. 71.
- [235] Capt. Im Thurm to Freeling, April 5, 1819 (*Can. Arch.*, Br. P.O. Transcripts, III.).
- [236] Kempt to colonial office, March 26, 1821.
- [237] *Quebec Almanac*, 1802, p. 71.
- [238] *Can. Arch.*, Br. P.O. Transcripts, III.
- [239] *Journals of Assembly*, Nova Scotia, 1830, p. 717.
- [240] Hay to Freeling, January 15, 1834, and accompanying papers (*Can. Arch.*, Br. P.O. Transcripts, IV.).
- [241] *Journals of Assembly*, Nova Scotia, 1836, App. 73.
- [242] *Journals of Assembly*, Nova Scotia, 1839, App. 8.
- [243] Letters from Young and Huntingdon to Baring, June 21, 1839, and accompanying papers (*Can. Arch.*, Br. P.O. Transcripts, VIII.)
-

CHAPTER XI

Continuance of agitation in the Canadas for control of the post office—
Much information obtained by committees of legislatures—Difficulty
in giving effect to reforms.

The proposals of the British post office for removing the objections to the existing arrangements without endangering the efficiency of the colonial postal system had a very different reception in the assemblies of Upper and Lower Canada from that which they met with in the Maritime provinces.

Owing to a general indisposition on the part of the legislatures of Nova Scotia and New Brunswick to push their contentions to extremes, and doubtless also, to the fortunate relationship between the deputy postmaster general of the Maritime provinces and Joseph Howe, the leader of the reform party in Nova Scotia, the post office had been subject to no authoritative criticism in those provinces up to the time when the plans of the British post office were laid before the legislatures.

In the Canadas the situation was exactly the reverse, as regards both the state of public feeling and the claims of the deputy postmaster general upon the forbearance of the assemblies.

The discussion of political grievances was arousing in the popular party a bitterness which was fast carrying the agitation for remedies beyond constitutional bounds; and as for Stayner, he had quite alienated from himself the good will of the assemblies in Upper and Lower Canada, by his open identification of himself with the government party. When, therefore, the British proposals were laid before the assembly of Upper Canada by the lieutenant governor in 1835, they were rejected with the contemptuous observation that the provisions of the proposed bill were so absurd and inapplicable that no benefit could be expected from any attempt to amend them. [\[244\]](#)

The legislatures were not aware of the circumstances which had led to the British proposals. The fact that the views for which they had contended had been upheld by authorities so eminent as the law officers of the crown was withheld from them. The changed attitude of the postmaster general was therefore regarded by the assemblies as a proof of the success of their agitation, and they girded themselves up for renewed efforts.

As a preliminary to fresh attacks the assemblies in both provinces demanded from Stayner a mass of information, the extent of which filled him with dismay. But no further refusals on his part were possible. The colonial office was scarcely more pleased with Stayner and his methods than the provincial assemblies were, and the postmaster general was requested to see there were no more concealments.

The work which fell upon Stayner in the preparation of the returns called for was enormous. As printed by the legislature of Lower Canada, the documents produced filled two hundred and sixty-eight quarto pages. Stayner appears to have withheld nothing. He became as effusive as he had formerly been reticent. He published letters written by himself to his official superiors, which must have proved embarrassing to them.

In the correspondence Stayner disclosed was a letter from the postmaster of Montreal, pleading for a more suitable room for his post office.^[245] From this letter it appears that in 1835, the post office in Montreal was in the upper storey of a building standing between the *Gazette* printing establishment and a boarding house, and underneath it was a tailoring and dry goods shop. To get to the post office the public had to grope up an unlighted flight of stairs at the risk of their limbs, and when they reached the top they had to make their way across a small lobby half-filled with firewood.

As an inducement to the department to provide more suitable quarters, the postmaster stated that the merchants were so sensible of the inconvenience and danger from fire, that the postmaster thought they would help with the erection of a proper building, if applied to.

Stayner also produced the copy of a letter he had written a short time before, to the secretary of the general post office protesting his inability to meet the wants of the provinces with the means which the postmaster

general had placed at his disposal. The letter deals chiefly with the conditions in Upper Canada, and as a description of the situation in that province it could not be bettered. The occasion of the letter was a complaint made by a gentleman in England that it had taken from the 12th of June until the 12th of October for a letter, addressed by him to his son in Barrie, to reach its destination.

Stayner in reporting on the subject, admitted that this was quite likely the case, but insisted that no blame was imputable to him. The nearest post office to Barrie was from thirty to forty miles distant, and it was probable that the letter had lain a couple of months at that office before being called for.

The case of the Barrie settlers was typical of that of thousands of well-educated people inhabiting the back parts of Upper Canada, where they had formed thriving towns and villages from twenty to fifty miles from the existing posts. These people with whom postal accommodation was almost a necessity of life were entirely without the means of corresponding with their distant friends, unless they sent and received their letters by private agency.

Stayner declared that he was well within bounds in saying that at that moment there were between two hundred and three hundred distinct societies of people spread over the country in Upper Canada alone, who, like the settlers in Barrie, were suffering from want of that accommodation which he would fain give them, if he had the power to do it. The case was to be the more lamented from the fact that the reasonable wants of these people could be supplied without burdening the post office revenue.

So active was the spirit of enterprise amongst the class of persons crowding into the new settlements throughout the whole extent of Upper Canada, as well as in many parts of the lower province, and so great was their disposition for letter writing, that Stayner was sure in a short time the increased revenue would amply repay the outlay required. But with the assistance allowed him, it was impossible to meet those demands.

It was indispensable that he should have at least two travelling officers, whose duty it should be to examine into the merits of applications, to settle questions of site, and arrange for mail carriers. As for mail carriers, Stayner

believed that the surveyors would save their salaries by that item alone, as in the absence of officials who would make arrangements on the spot, the post office was being constantly exposed to imposition by carriers, against which it was impossible to provide.

During the first five years he had been in office, Stayner had increased the number of offices under his control from ninety to two hundred and seventy, but beyond that it was impossible for him, with his present assistance, to go. The parts of the country where new offices were called for were so remote, and the means of information so unsatisfactory that it would be improper for him to open offices and make contracts for serving them, without the advice of persons acting under his orders, upon whose judgment he could rely.

At that moment, Stayner further told the committee, the provinces of Upper and Lower Canada required not less than five hundred offices, that is, practically double the number then in operation, and in ten years, at least one thousand offices would be necessary to provide the requisite accommodation. With proper assistance he could establish and put into successful operation all that were wanted at the rate of one hundred a year. Less than that scale of advancement would fail to satisfy the public.

The complaints of the people had become so loud and threatening that, unless they were speedily met, Stayner was apprehensive they would be engrafted upon the catalogue of provincial grievances. Before he left England, Stayner had the postmaster general's promise that two surveyors would be at once appointed. He had waited as long as he felt that he dared, but the situation had become so alarming, that he had taken it upon himself to appoint two surveyors who would act under his directions, until regular appointments could be made.

After Stayner laid before the houses of assembly in the two provinces the various returns they had called for, committees were struck in each house to consider the information contained in the statements. The committee in Lower Canada took the evidence of Stayner and of William Lyon Mackenzie who happened to be in Quebec at the time, conferring with the reform leaders in Lower Canada.

Mackenzie's statement was a general arraignment of the administration of the post office. He declared that, as then constituted, the post office in the opinion of the assembly of Upper Canada, was an illegal institution, monopolizing the conveyance of epistolary correspondence which it taxes heavily, and appropriating the proceeds in England, without the knowledge and consent of the assembly.

It arbitrarily and often capriciously, the reformer from Upper Canada complained, fixed the sites of post offices, and dismissed and appointed the incumbents. It resolved that one section of the country, though thickly settled, should have no post offices, while another part which was almost destitute of inhabitants had regular mails. Newspapers were taxed at such a rate as the post office thought fit, and the proceeds were held by the deputy postmaster general as his perquisite.

In short, Mackenzie was emphatic in his declaration that the establishment was a poor substitute for a provincial post office, which would be regulated by law, and its revenues disposed of by the authority of the legislature. He gave some curious illustrations of the inequalities which marked the operation of the newspaper regulations.

While Mackenzie was in England, Joseph Hume secured the production of a number of documents relating to the Canadian post office, which the legislatures in Canada had tried in vain to obtain from Stayner. Among these was a statement showing the amount paid by the several newspaper publishers for the distribution of their papers by the post office. On looking over the list Mackenzie was surprised at the very moderate amounts paid by publishers of some of the most widely-circulated papers. *The Montreal Gazette*, for instance, distributed nearly two thousand copies by post, but paid postage on only two hundred and fifty copies.

Mackenzie made some further inquiries, and found that all sorts of irregularities prevailed, which Stayner in the weakness of his position was fain to connive at. The publisher of one paper in Kingston told Mackenzie that he entered seventy-five copies as sent by post, while mailing four hundred copies; another reported sixty copies and sent three hundred. A third publisher, who objected to paying the usual charge of four shillings

per copy per annum, was let off with two shillings and sixpence per copy; while a fourth publisher paid no postage at all for several years.

Until that time Mackenzie had been paying the regular charges for all copies of his newspaper—*The Colonial Advocate*—which he sent by mail. But he determined to be no longer the victim of such barefaced discrimination, and he accordingly began to enter for postage only a part of the total issue distributed through the mails.

In order that he might not be open to a charge of dishonesty, and perhaps also to help in the exposure of a vicious system, Mackenzie told the postmaster at Toronto what he was doing, and at the same time published the facts in his newspaper. This, of course, could not be tolerated by Stayner, and he demanded from Mackenzie the full postage on all his papers sent through the mails.

Mackenzie refused to pay, but declared that if Stayner would allow the case to go before a jury in Toronto, Stayner might employ all the counsel in the colony to support his demand, and if the jury could be persuaded to render a verdict against him, he pledged himself to pay the demand and all expenses. The offer was, of course, declined and the claim was dropped.

In the course of a long examination, Stayner was taken over all the points in controversy between the postmaster general and the Canadian provinces. Dr. O'Callaghan,^[246] who soon afterwards acquired notoriety as a leader in the rebellion, was chairman of the committee. He and his associates in the inquiry had sat on several earlier committees and were well versed in the points at issue.

With the aid of the documents produced, the O'Callaghan committee managed to elicit from Stayner a fairly complete statement of the position of the post office in the Canadas in 1834-1835. Asked as to his authority for appropriating to his own use the proceeds of the newspaper postage, he was unable to point to it. But he stated that he knew it had been repeatedly recognized by the head of the department in London, and he had never considered it incumbent upon him or even proper to inquire into the date or form of the authority.

To a committee convinced that everything appertaining to the post office bore the marks of illegality, this answer could not be satisfactory. Stayner was consequently next asked whether he considered that any usage, precedent or custom could give him a right to tax any portion of His Majesty's subjects without the express consent of parliament. To this he replied in the negative, but added that he never doubted that the postmaster general, in permitting his deputy in Canada to send newspapers through the post for a compensation to himself, was borne out by law.

What the statute was which the postmaster general held to be his authority, Stayner could not, with confidence, say. But it occurred to him that it might be an act passed in 1763,^[247] which confirmed certain officers attached to the principal secretaries of state and to the postmaster general, in the privilege which they long enjoyed of franking newspapers and other printed matter.

As a matter of fact, this was the statute cited by the postmaster general when required to produce his authority for allowing Stayner and other deputies to treat the proceeds from newspapers as their perquisites, and as we consider this act, we may admire the prudence with which Stayner declined an argument as to its sufficiency as authority for the practice.

Stayner was on firmer ground when he pointed out that the post office act had made no provision for the conveyance of newspapers, and that, as things stood, the only alternatives before the publishers were to pay the prohibitive letter rates on their newspapers, or to come to terms with him, under the permission of the postmaster general.

The committee were loath to leave this controversial advantage with Stayner and asked him whether, since the newspapers were carried in the mail bags, he paid from the newspaper postage any part of the mail couriers' wages. He said he did not, and then committed himself to the extraordinary proposition that it cost nothing to carry newspapers because they were in the same bags with the letters. The committee did not waste any time arguing such a point as that, but called the contractor for the conveyance of the mails between Montreal and Quebec, who testified that if he were relieved of the newspapers, he could carry the mails on horseback, at a saving of £200 a year.

The O'Callaghan committee in their report to the assembly—a report which was made on the 8th of March, 1836, invited attention in the first place to the large sums which were sent by the deputy postmaster general to England from the revenues of the Canadian post office. During the thirteen years ended in 1834, the large amount of £91,685 sterling had been remitted to the British treasury on this account, and the remittances for the last four years averaged annually £10,041 sterling.

These remittances, and the usage under which they were made, the committee denounced as a violation of the fundamental rights of the people of the colony, and as an instance of the disregard of the declaratory act of 1778, which had cost Great Britain her American colonies, "now the flourishing and happy United States of America." Regarding the imperial act of 1834 as an admission that the British government had acted illegally in appropriating to its own use the surplus Canadian postal revenues, the committee assumed that the deputy postmaster general would cease to make remittances of Canadian revenues to England.

On discovering that this was not the case, the committee gave Stayner notice that the assembly would probably hold him personally responsible for any further remittances thus improperly made. Stayner, however, paid no attention to this warning, as he had but a short time before deposited \$20,000 in the commissariat office for transmission to London.

Stayner's course in treating the newspaper postage as his perquisite came in for the strongest reprobation. The statutory authority which he ventured to put forward was easily shown to be no authority at all, and the committee declared it to be a monstrous absurdity that the head of the department should, in defiance of all law, presume to fix the charges on newspapers, and put the proceeds in his pocket.

From the statement furnished by Stayner, it appeared that no less than £9550 currency had been appropriated by him from this source during the six years he had held the office of deputy postmaster general, and the committee suggested that, as he had no shadow of right to any part of this large sum, legal proceedings should be taken by the province to recover the amount from him.

The total income which Stayner acknowledged having received was beyond belief. In each of the three years ending with and including 1834, his emoluments amounted on the average to £3185 currency. These emoluments were described graphically by the committee as nearly equal to the salary of the governor general, three times more than the salary of any of the puisne judges in the province, almost equal to the whole amount paid as compensation to the one hundred and thirty-seven postmasters in Upper Canada, and one-third more than the total amount received by the one hundred and seventeen postmasters in Lower Canada.

The committee endeavoured to convict Stayner of having misled the postmaster general as to the magnitude of his income. They were unsuccessful in this attempt, as the postmaster general was quite aware of the amount Stayner was receiving, and had expressed no disapproval.

The committee as a conclusion to its report urged that the provincial government should take over the control of the provincial post office, and they submitted the draft of a bill which they had prepared for the purpose of sanctioning the action recommended. The house of assembly adopted the report of the committee, and having passed the bill, sent it up to the legislative council for approval.

In the legislative council the bill was rejected. The majority of the council were Stayner's friends, and they saw that he had a full chance to express his views before a committee appointed by the council. He set the draft bill prepared by the postmaster general beside the assembly bill, and effectively contrasted the strong points of the former with the weakness of the latter.

The imperial bill, Stayner emphasised before the committee of the council, dealt with British North America as one territory as regards regulations and charges, and in his opinion, unless the several provinces were to be so regarded, an efficient service among the provinces themselves, and between the provinces and other countries, would be impossible.

In order to encourage correspondence between the distant parts of the colonies, the imperial bill fixed the comparatively low rate of eighteen pence for all distances beyond five hundred miles. Thus a letter could be sent from Amherstburg to Halifax or Charlottetown for that sum. If each colony had its own separate postal administration the charge on letters

passing between those places would, in the most favourable circumstances, cost two or three times as much. Stayner was far from agreeing that, in all its details, the imperial bill was perfect, but he was convinced that the principle on which it was based was the only practicable one.

The great objection Stayner saw in the bill of the assembly was that it was a local bill operative only within the province. Intercourse between Lower Canada and the other provinces had to be provided for, since where there are several states under one supreme head, the free exchange of correspondence between them is indispensable.

The British government, whose interests in the different provinces required that communication between them and the mother country should be uninterrupted, could never consent, Stayner was sure, to any local arrangements by which those communications might be jeopardized. The cost of communication between province and province would be prohibitive, and the consequence would be moral isolation. The separate states of the American Union, jealous as they were of any impairment of their rights, recognized the necessity of a common postal service.

Stayner dwelt convincingly on the technical difficulties of accounting and distributing the charges on inter-provincial correspondence, and on correspondence between Canada and Great Britain. As it happened at the time, most of the letters sent between Canada and England passed by way of the United States. But that was a courtesy on the part of the United States government which might be terminated at any time, and then the Canadian provinces would be entirely dependent on the province by the sea.

If each province charged its full local rates on correspondence passing through it, and Stayner could see no reason why any of the provinces should favour its neighbours at the expense of its own people, the charge on a letter sent from Upper Canada to England would not be less than six or seven shillings, while under the British draft bill, the charge would scarcely ever exceed two shillings.

The legislative council adopted Stayner's reasoning entirely. It admitted that if the post office were an institution of merely local utility, there would be little to amend in the bill sent up by the assembly. Since, however, there were several provinces concerned, whose concurrent action was essential,

the conflict of interest which must inevitably arise would make the harmonious working of the separate parts of the system difficult, if not impossible.

As an instance of the difficulties springing out of the divergence of interest among the provinces, the council recalled the fact that it became necessary to invite the intervention of the mother country to settle the apportionment of the customs revenues between the provinces of Upper and Lower Canada. The council suggested to the governor general that if this line of reasoning were found acceptable, a satisfactory settlement of the whole question would be reached by requiring the deputy postmaster general to furnish annually full information as to the conditions, financial and other, of the post office.

The free transmission of the correspondence of members of the legislature, the council urged, should be provided for. The deputy postmaster general should be removable on the joint address of the two houses of the legislature; the salaries of all officials should be fixed, and perquisites of every kind withdrawn. Finally such alterations should be made in the rates of postage, such post offices established and such arrangements adopted for the regulation and management of the service, as were called for by the joint address of the two houses.

The plans elaborated by the British post office for the settlement of the colonial difficulties found no more favour in Upper Canada than in the other provinces. The assembly condemned the draft bill as unworthy of consideration. The terms in which the scheme was dismissed by the assembly were sufficiently slighting, but the colonial secretary was not in the mood to be resentful.

Lord Glenelg was impressed with the substantial justice of the claims of the assemblies in the two provinces, and would not make a stand on a point of manners. As Sir Francis Bond Head was about to come to Upper Canada to take up the lieutenant governorship in succession to Colbome, Glenelg, in his letter of instructions^[248] directed Head to make every effort to bring the post office question to a satisfactory conclusion.

Noticing the opinion given by the assembly on the postmaster general's scheme of settlement, Glenelg thought it right to say that the bill had the

very careful consideration of the postmaster general before being sent to the several provinces. The government, however, had no desire to urge the adoption of any measure to which well-founded objections existed. They were content that the bill should be withdrawn, to make way for any better bill that might be proposed by the house.

The assembly might find, on approaching the subject more closely, continued Glenelg, that unexpected difficulties would crop up, particularly with regard to intercourse by post with places beyond the limits of the province. The lieutenant governor was authorized to assent to any judicious and practicable measure which the house might incorporate in a bill, and to regard as of no importance, when opposed to the general convenience of the public, any considerations of patronage or revenue derivable from this source.

Notwithstanding this conciliatory statement, the house proceeded along the same lines as those followed by the assembly in Lower Canada. They drew up a series of resolutions^[249] providing for the establishment of a post office department with headquarters in Toronto. Specified sums were allotted for the maintenance of a head office, and for the salaries of the postmaster general and his staff. The rates were fixed on letters and newspapers, and the percentage of revenue to be allowed postmasters as salaries was defined.

The house was unsparing in its condemnation of Stayner. They estimated that during the ten years preceding, the large sum of £48,000 had been withdrawn from the province through the exactions of the post office, an amount which they said would have sufficed to establish five district banks, suited to the wants of as many different sections of the country.

The advantages of a provincial establishment appeared to the house to be very great. A large amount of wealth would be kept in the province, which was sent to Quebec, either for transmission to England, or to make up the perquisites of officials; post offices could be opened wherever they were required, and no distant part of the province would be without the means of cheap and convenient accommodation; postmasters would be better paid, and the postage on letters and newspapers would be reduced; and extravagance could be checked and abuses corrected.

The house was fully aware of the objections to a local post office system, but in their opinion those objections were not to be mentioned beside the numerous advantages the provincial post office would provide. It would be far easier for the department to open accounts with the present or any other post office department that might be organized, than it was to arrange with the United States for the interchange of correspondence with that country, and yet there was a very extensive exchange between Canada and the United States without the aid of any law whatever.

In considering the terms of a post office bill, the house had before it a list of conditions—thirty-one in number—which a committee recommended for consideration. Many of these were obvious. Others concerned matters of detail. Some were trivial.

One peculiar condition was that £100 a year should be allotted for the purchase of books and instruments, which might be useful in helping to keep the roads in a proper state of repair. The plans for the establishment of a post office department in Upper Canada did not reach completion, as the assembly was dissolved a month after the resolutions were adopted, in consequence of its refusal to vote supplies.

The termination of these agitations in the assemblies of Upper and Lower Canada, mark the close of a period in the relations between the provincial legislatures and the post office. The resolutions which were directed against the constitutional status of the post office, and the demands for separate provincial establishments ceased at this point. This was due rather to the disappearance of the opponents of the existing system than to the removal of the causes for complaint.

The Lower Canadian assembly held a session of less than a fortnight at the end of September and the beginning of October 1836, and another of a week in August 1837, when it was dissolved, not to be resumed. During those sessions the affairs of the post office were not mentioned. In Upper Canada the election, which followed upon the dissolution of May 1836, resulted in a great victory for the government party.

Before resuming the narrative of events in the British North American provinces, it will be convenient to see how the late proceedings were regarded by the home government. Lord Gosford, the governor general, in

transmitting to the colonial secretary the bill framed by the assembly of Lower Canada, observed that it was intended as a substitute for the imperial bill of 1834, which did not suit the ideas of the house.

One of the reasons adduced against the post office was that the money which the deputy postmaster general sent to England was the produce of an illegal tax levied in violation of the act of 1778. In December 1835, some of the members of the assembly waited on Gosford, and requested him to stop the remittance of about £3000 which was being made by Stayner to the department in England.

Gosford declined to take such a step for reasons which he set forth. The members, also, asked that the governor should take measures to recover from Stayner the sums which he was shown to have taken as newspaper postage. Gosford replied that as this allowance was permitted by the imperial department, and had been sanctioned by the Duke of Richmond as late as 1831, he could not assume to do what they asked, but he would bring the subject to the attention of the home government.

The whole arrangement regarding newspapers appeared to Gosford to be improper. He was of opinion that the emoluments received by Stayner were unreasonably large, and that the practice of allowing the deputy postmaster general to draw a considerable private income from the public business was wrong in principle.

But the post office in London was already in possession of the Lower Canadian bill. Stayner had sent a copy to the secretary immediately on its adoption by the assembly, and before the legislative council had had time to consider and reject it.

At the post office the receipt of the bill with the notice that it would go into operation on the 1st of May, 1836, gave rise to great perturbation among the officials. Freeling, in passing the bill on to the postmaster general, declared it to be perhaps the most important document he had ever received. ^[250] It was neither more nor less than an entire suppression of the postmaster general's patent, and of the powers of an act of parliament, authorizing the levying of certain rates of postage and the payment of the amount of all such postages into His Majesty's exchequer.

Freeling was a very old man—he was born in 1764—on the point of retiring from the charge, which he had held for forty-five years, and it may be that he had forgotten that four years before, the law officers had given it as their opinion that there was no act of parliament giving the postmaster general authority over the colonial post office and postages. At Freeling's instance the postmaster general hastened to put the matter into the hands of Glenelg, the colonial secretary. Having taken time to consider the situation, the colonial office drew up a statement of the subject for the attention of the postmaster general.^[251]

Observing that the assembly of Lower Canada, not being satisfied with the imperial bill of 1834, had drawn up a bill of their own, and that the legislative council, in declining to approve of this bill, had asked the intervention of the home government with the British parliament, the colonial secretary stated that the British government was not prepared to accede to this proposition.

By the act of 1834, the regulation of the post office in the several colonies was referred to the local legislatures, and His Majesty's government, the colonial office concluded, could not call in the authority of the imperial parliament for the solution of any difficulties that may arise until it could be shown conclusively that there were no other means of settling them; and then it would be only with the concurrence of the legislatures to whom the matter had been submitted.

But while determined that, in matters involving legislation, the colonies should be left to work out their own salvation, the colonial secretary observed that there were certain matters within the competence of the postmaster general which, if given effect to, would ameliorate the situation.

The legislative council had among their requests asked (1) that all information required by the legislature should be furnished; (2) that the accounts of receipts and expenditures should be laid before the legislature annually; (3) that the officers of the department should be placed on moderate fixed salaries, in lieu of all perquisites and fees.

These objects, Glenelg pointed out, would have been to a certain degree attained by the bill of 1834. But as it had not become law, no time should be lost in putting these changes into effect, as they did not require legislative

sanction. The colonial secretary also animadverted on the emoluments of Stayner. These he considered entirely excessive, and besides they were levied on an objectionable principle. The postmaster general was requested to put an end forthwith to the receipt by the deputy postmaster general of any fees on account of the transmission of newspapers. His salary should not be excessive.

As a guide to the postmaster general in fixing it, the colonial secretary gave a list of the salaries of the principal officers in the colony. Omitting that of the governor general, the highest salary in Canada was that of the receiver general which was £1000 a year. No other salary exceeded £500 a year. As against these, Stayner's emoluments of £3185 for each of the three preceding years were out of all proportion.

Glenelg further impressed upon the postmaster general the anxiety of His Majesty's government that no time should be lost in removing any real grievances which might be shown to exist. The postmaster general concurred with Glenelg as to the necessity of removing all reasonable grounds of complaint, and stated that steps had been, or were about to be, taken to that end.

To the postmaster general the newspaper postage question was one of real difficulty, in view of the absence of necessary legislation. As matters stood, newspapers could only be sent as letters or under the deputy postmaster general's privilege. If the law officers could see any way out of the difficulty, the postmaster general would be glad to adopt it.

As the law officers' ingenuity was not equal to the difficulty, the situation remained essentially unchanged for some years. Meantime Stayner was enjoying to the full the peace and quiet which followed upon the altered conditions in the two provincial assemblies. It was some years since he had heard a complimentary reference to himself in either house, though no man could have shown more zeal for the improvement of the service he administered.

But an agreeable change was at hand. On February 17, 1837, the legislative council of Upper Canada had before it the report of a committee it had appointed to inquire into the post office. The chairman of the committee was John Macaulay, formerly postmaster of Kingston, and Stayner's chief

support in Upper Canada. When there was a question of appointing an assistant deputy postmaster general for Upper Canada, it was Macaulay that Stayner desired for the position.

The burden of the report of the committee of the council of 1837 was that the interests of the several provinces could be maintained only by preserving to the post office its character as an imperial institution. In Stayner's hands the service would be carried on efficiently, now that he had been furnished with the assistance he had applied for. Indeed the magnitude of his labour could be understood only by those connected with the service.

The committee drew up a series of conditions which they considered would place the institution on an efficient footing. The conditions were very similar to those suggested by the legislative council of Lower Canada in 1836. The bill of the Lower Canadian assembly appeared to the committee to illustrate the impracticability of any scheme such as that proposed by the imperial government in 1834.

If the acceptance of a post office bill was left to the provincial legislatures, they would almost certainly insist upon a scheme of low rates, based entirely on local considerations. The excessively reduced scale of rates proposed by the Lower Canadian assembly could not fail to leave a large deficit. Hence the wisdom of leaving the rates as they stood until their effects could be seen.

Ten days after the committee of the legislative council made its report, the house of assembly adopted an address to the king, in which the same ideas were embodied, and in the following month a joint address was prepared by the assembly and the legislative council. [\[252\]](#)

The address began with a recital of the facts making up the existing situation, and then proceeded to an effective criticism of the imperial scheme of 1834. It pointed out that the colonial secretary had stated that, in order to conform to the imperial plans, a uniformity of views should pervade the bills passed by the several provinces; that a careful consideration of the bill prepared for the acceptance of the provinces, and of the action taken upon it in the province discloses no reasonable grounds for the hope that the legislatures would soon (if indeed ever) arrive at such uniformity as would ensure the establishment of a practicable system.

Even if such unanimity on the terms of a bill were reached, it would doubtless happen frequently, the committee conceived, that amendments in this bill would be necessary, but as all the legislatures would have to be convinced of the necessity of the amendments which seemed desirable or even indispensable to any one of them, the difficulties in the way of making needful alterations to meet the changing conditions in progressive communities would be insuperable.

These conditions led inevitably to the conclusion on the part of the committee that the only means of securing a practicable system in which all interests, provincial and imperial, would be considered, was to maintain the supremacy of the British post office, and to continue to entrust to it the supreme power of making laws and regulations for the management of the post office in the several provinces. The interests of the provincial legislatures would be amply safeguarded, the committee was confident, if their demands for information respecting the post office were acceded to, and if it were understood that complaints against the deputy postmaster general, preferred by petition to the legislature and supported by the joint address of the two houses, would have the attention of the postmaster general in London.

The turn which affairs had taken was naturally gratifying to Stayner, who urged the postmaster general to give careful heed to the terms of the joint address, which, if carried into effect, would, in his opinion, provide a remedy for all warranted dissatisfaction.

The secretary of the post office did not share Stayner's hopefulness. He observed to the postmaster general that, however desirable uniformity of system might be in the post offices of British North America, the success of any act of the imperial parliament would be jeopardized, if it involved the imposition of a tax upon the colonies. The secretary was prepared, however, to listen to any suggestion Stayner might have to make in the way of improving the existing system.

Although Stayner's friends were in control of both legislative chambers in Upper Canada, his peace of mind on that account was not of long duration. In April 1837, both houses passed a franking act, under which the members were authorized to send their letters free, during the sittings of the

legislature. This act, as Stayner pointed out to the postmaster general, subverted the imperial acts, upon which the existence of the post office depended, and he was placed in a very awkward situation.

Stayner, according to his letter to the postmaster general, had either to violate the instructions from St. Martins-le-Grand or to bring himself into collision with both the legislature and the executive. This act appeared to Stayner to be a fresh illustration of the unfitness of local legislatures to deal with an institution like the post office. If part of the revenues could be withheld, as would be the case where members did not pay their postage, any of the legislatures might, by passing an act for the purpose, oblige him to pay into the local treasury the whole of the revenue which came into his hands, or it might in any other way supersede the laws of the British parliament.

The bill had received the assent of the governor. Constitutionally it had thereby become an act. But on Stayner's remonstrance the governor admitted to the colonial office that he should not have given his sanction to it. The act was disallowed by the home government.

The question of franking the correspondence of the provincial governments and of the members of the legislatures was one upon which the legislatures in the several provinces had particularly strong convictions. For a considerable period before 1837, the legislatures of Upper and Lower Canada had not paid their accounts for postage.

The account against Upper Canada, which amounted to £1629, was paid in the beginning of 1837; while the account against Lower Canada was not paid until after the dissolution of the last assembly at the time of the rebellion. It amounted to £4043.

The governor general, Gosford, in reporting the payment of the account of Lower Canada, suggested to the colonial secretary that the sum might be remitted as an act of grace on the part of the imperial government, and he urged that if the home government should not feel warranted in making this concession in its entirety, the correspondence of the governor general and his civil secretary, which embraced all the executive business of the province, might be exempt from postage charges.

Gosford's suggestions were in harmony with the whole character of his administration. Indeed his persistence in his policy of conciliation brought down upon him the distrust of the ultra-Loyalists.

Stayner, to whom Gosford's suggestion was referred, opposed it vigorously. If, he argued, this concession were made to Lower Canada, immediate demands of the same character would be made by the other provinces. This would be followed by requests for the free transmission of members' correspondence, and the post office would speedily find itself in a deficit.

It would be specially inadvisable to grant this privilege to Lower Canada, Stayner averred, as the postage received from that province, after deducting the British packet postage, which was the admitted due of the British post office, barely sufficed to pay the expenses of the service in the province. The revenues from Upper Canada exceeded the expenses by a considerable sum, and any extension of the advantages now enjoyed by Lower Canada, would be at the expense of the upper province.

The first of the annual statements of revenue and expenditure for which the legislatures had been contending for many years was presented to the legislatures on the 17th of January, 1838. The statement contained an undivided account of the operations in Upper and Lower Canada. This was not quite satisfactory to the house in Upper Canada, but as the services for the conveyance of the mails ran from one province into the other, it was impossible to assign accurately to each province its share of the expense for their maintenance.

As the statement showed a surplus of £11,264 for the years 1836-1837, the legislature of Upper Canada saw no reason for hesitating to press its demand that the franking privilege be granted to its members. They went, indeed, much further, and asked that the whole amount of the surplus revenue, which arose from the post office business in Upper Canada, be transferred to them.

In support of their request, the legislature pointed out that, in the imperial act of 1834, it was provided that as soon as the consent of His Majesty should be signified to the bills of the several colonial legislatures, the net revenue from the post office in British North America should be distributed among the several provinces in the proportion indicated by their gross

revenues; that the suspension of the legislature in Lower Canada, in consequence of the rebellion, made it impossible to procure joint legislative enactments; and the financial condition of Upper Canada made it necessary that the province should have at its disposal all the means to which it was legally entitled.

The terms of this memorial were entirely in accord with Stayner's views as to the proper settlement of this long standing difficulty, and he urged the postmaster general to do what was possible to give effect to the petition. He pointed out that, with Mackenzie and Papineau out of the country, and fugitives from justice, there was no further disposition on the part of the legislatures to wrest from the imperial post office the control of the postal systems in the provinces, and that the appropriation of the surplus revenues to provincial purposes removed the only valid argument against existing arrangements.

The postmaster general, however, was not to be moved from the position he had taken. He replied to the address stating that no disposition could be made of the surplus post office revenues, until the several colonial governments had come to an agreement on the subject.

FOOTNOTES:

[244] Seventh report of the committee on grievances (*Journals of Assembly*, 1835, App. 21).

[245] Second report of a committee of the house of assembly of Lower Canada, 1835-1836.

[246] This gentleman was afterwards the editor of the monumental *Documentary History of New York*.

[247] 4, Geo. III. C. 24.

[248] Glenelg to Head, December 5, 1835.

[249] *Journals of Assembly*, Upper Canada, 1836, p. 320, and Appendix, No. 52, to these *Journals*.

[250] Freeling to postmaster general, March 28, 1836 (*Can. Arch.*, Br. P.O. Transcripts, VII.).

[251] June 6, 1836 (*Can. Arch.*, Br. P.O. Transcripts, VI.).

[\[252\]](#) *Journals of Assembly*, 1837, p. 580.

CHAPTER XII

Durham's report on the post office—Effects of rebellion of 1837 on the service—Ocean steamships to carry the mails—The Cunard contract—Reduction of Transatlantic postage.

The long controversy which had agitated the legislatures of the provinces was approaching its end. The decision on the constitutional point was given in their favour, though they did not know it; but the specific thing for which they had contended, they were constrained to relinquish.

The Upper Canada legislature which had commenced the agitation, and elaborated the argument against the constitutional standing of the British post office in the colonies, had become convinced that the provincial system, which they demanded, was not in the interest of either the mother country or the colonies. They therefore asked the British government to put the stamp of legality on the existing system, by suitable legislation in the imperial parliament.

But the argument of Upper Canada had done its work too well, and it became the turn of the British government to employ it, to show the impossibility of meeting the desires of Upper Canada. The difficulty now, however, was not one of principle, but of ways and means.

The British government were quite willing that the colonial legislatures should have full information as to the financial operations of their post offices, and that the surplus revenue, if any, should be divided among them. All they required was that the colonial legislatures should by concurrent action devise the means by which the ends in view might be effected. The British parliament was, in the opinion of the law officers, precluded from interposing its authority in the settlement of the difficulty.

Durham, who was sent out to Canada as high commissioner to inquire into, and, if possible, remedy the defects in the system of government, which

kept the colonies in a chronic state of dissatisfaction, was directed to give his attention to the condition of affairs in the post office.

In his general report, he dealt briefly with this topic, expressing full sympathy with the colonial view, and giving it as his opinion that if his proposition for a union of the provinces should be adopted the control of the post office should be given up to the colonies.^[253] But he added the recommendation that, whatever arrangements of a political nature might be made, the management of the post office throughout the whole of British North America should be conducted by one general establishment. This suggestion was not realized until the confederation of the provinces in 1867.

The rebellion in Upper and Lower Canada in 1837 and the following year was productive of much embarrassment to the post office. Many of the postmasters, particularly in Lower Canada, were open sympathisers with the rebels, and, through the opportunities afforded by their post office duties, assisted largely in the carrying out of their leaders' schemes.

Stayner had realized the impolicy of many of the appointments to post offices in Lower Canada. But as the local government was continually appointing to the highest offices men who were conspicuous in the support they lent to the views of Papineau, he did not conceive himself warranted in noticing facts which were ignored by the governor.

There were at least from thirty to forty postmasters besides several mail couriers in Lower Canada implicated in the rebellion. The governor general in Lower Canada, and the lieutenant governor in Upper Canada gave their attention to the conditions, each after his manner.

Gosford, the governor general, having been informed of the disloyalty of the postmasters at Stanstead and Lacolle, suggested that these officials should be dismissed as soon as it could be done without prejudice to the service.^[254]

Bond Head, the lieutenant governor of Upper Canada, directed the local surveyor to dismiss the postmaster at Lloydtown instantly, for having, as he said, sent to Mackenzie a series of traitorous resolutions to which the postmaster had attached his name as corresponding secretary of the West

King and Tecumseth Political Union. Head explained to Stayner that he was aware that the usual course was to have the dismissal made by the deputy postmaster general, but as he desired to produce a certain moral effect by instant punishment, he was compelled to act through Stayner's agent.

Furthermore, Bond Head asked that Stayner should delegate to Berezy, the surveyor, the power to dismiss peremptorily any person connected with the post office whom the lieutenant governor should judge to have failed in loyalty. Head was an arbitrary personage, who never gladly suffered the execution of his wishes to linger after their utterance.

A painful instance of the hardships inflicted upon innocent men in times of political turmoil was the dismissal of Howard, the postmaster of Toronto. [\[255\]](#) His offence was not disloyalty. Even Bond Head would not venture to say that he was disloyal—but merely that his friendships were so far inclusive as to embrace men of widely differing political opinions.

James Howard had been connected with the post office in Toronto for eighteen years, during eight of which he had been postmaster. Testimony abounded as to his zeal and efficiency as a public official. Stayner reported to the postmaster general that Howard was a man of excellent character, and one of the best officers in the service.

An aspect of Howard's conduct, which won Stayner's warm commendation, was his withholding himself from all forms of political activity. "People in our department," wrote Stayner to Howard, some years before, "cannot too carefully abstain from identifying themselves with factions or parties of any kind."

Secure in the approbation of his chief, Howard, following his natural inclination, moved quietly through the troubled times, which were heading for an outbreak, and delivered the letters to Loyalist and Reformer, to Tory and Radical, with even-handed indifference. It would seem, too, that in the choice of his friends, he exhibited a like insensibility to the explosive possibilities of some of their opinions.

A few days after the public disturbances began, it was intimated to Howard that his general attitude towards affairs was not quite satisfactory, and he at

once demanded an investigation. There was nothing to investigate. But a hint was conveyed to him that he was too intimate with "those people."

It was decided to have the correspondence of suspects placed under surveillance. But the duty was not confided to Howard. Letters supposed to contain information of the rebels were sent to the bank of Upper Canada, where they were subjected to scrutiny.

On December 13, 1837, eight days after the rebellion broke out, at Montgomery's Tavern, Toronto, Howard was removed from his office by the orders of the lieutenant governor. He was replaced by Berezy, the post office inspector, who throughout the rebellion was active as the confidential agent of Bond Head. Howard appealed to the lieutenant governor, protesting his perfect loyalty, and declaring that so far from concerning himself with politics, he had never voted in his life.

No statement could have been more unfortunate. Head, always a partisan, was unable to understand how a man could suppose himself to be loyal, and confess to such a degree of indifference, when the safety of the country was at stake. The admonition of the deputy postmaster general was pleaded. Bond Head would not listen. Friends of the government, of the tried qualities of Fitzgibbon, vouched for Howard's loyalty. It was to no purpose.

The lieutenant governor declared that he had his reasons for believing, not only that Howard favoured the disaffected party, but that he had actually become "subservient to the execution of the treasonable plans." No evidence has ever been produced to support these accusations. But Head, in his flamboyant style, prated about the struggle being waged between monarchy and democracy, and contrasted Howard's indifference with the zealous devotion of the chief justice and one of the judges, who, shedding the ermine, took up their muskets in the defence of the country—and their jobs and perquisites.

Head indulged himself in several similar excesses of authority, always justifying himself on the ground that he was a protagonist in a death struggle with the arch-enemy Democracy. When quiet was restored, Howard renewed his appeals for redress, but the clique surrounding the governor contrived to frustrate all his efforts in that direction.

In the spring of 1839, a robbery of the mails took place on the grand route, at a point between Kingston and Gananoque, under circumstances of peculiar aggravation.^[256] The robbers, who lived on an island in the St. Lawrence, within the territory of the state of New York, made no attempt at concealment. They openly declared that this was only the first of a series of similar interferences with the courier passing between Upper and Lower Canada.

The New York state authorities, who were appealed to, were powerless to act, but the secretary of state at Albany intimated that it would not be regarded as a breach of amity if the Canadian officials arrested the robbers on the island. In view, however, of the excitement which prevailed at that period on both sides of the border, it was thought prudent to refrain from so provocative a proceeding.

While Durham was occupied with his preparations for his mission to Canada, events occurred which were not only of unsurpassed importance to communication between Europe and America, but which seemed to promise a strengthening of the relations between the mother country and her colonies.

In April 1838, two steamships sailed from the United Kingdom for New York—the "Great Western" from Bristol, and the "Sirius" from Cork—and reached their destination safely, the former in fifteen days, and the latter in seventeen days.^[257]

As the voyages were made in the face of stiff, westerly winds, the speed of the "Great Western" and the "Sirius" gave much satisfaction, and it was accepted as settled that thereafter steam would be the motive power in the faster vessels employed in the transatlantic trade.

The rapidity with which this conviction established itself was remarkable. There is nothing surprising in the immediate recognition of this new achievement of steam by speculative publicists, who saw in the events only the realization of their visions, but the British treasury, the arcanum of conservative caution, yielded with almost equal readiness to the argument provided by the two vessels.

The British consul at New York was the first to bring to official attention the importance of this advance in the art of navigation. By the return of one of the vessels, he suggested to the colonial office that all official despatches and commercial letters for the Canadas should be directed to the consulate at New York. He undertook to assort the correspondence, and forward it to Montreal and Toronto by queen's messengers.

By avoiding the delays to which the regular couriers were subject, and taking advantage, wherever possible, of the steamboats running on the inland waters and of the railroads, which were beginning to be constructed throughout the eastern states, the messengers would be able to provide a greatly accelerated service. The answers to letters sent from London or Liverpool to Canada should be back in those cities in from thirty to thirty-five days—approximately the time taken by the Halifax packets on a single trip.

The British post office saw reasons for declining the proposal, so far as it regarded commercial correspondence. It was, however, prepared to transmit official despatches by this means, and to arrange for their conveyance from New York in the manner indicated by the consul.

The people of Halifax—who had always regarded with a jealous eye the disposition of the inland British colonies, to use the port of New York in preference to their own—managed, at this juncture in the history of ocean transport, by an appeal to imperial considerations to make a strong case for their port. By a happy chance, the "Sirius" on its first homeward voyage, overtook the mail packet from Halifax, and the captain of the packet, impressed by the higher speed of the steam vessel, induced the captain of the "Sirius" to take the mails, with the result that their arrival was advanced by several days.

Joseph Howe and some other gentlemen from the Maritime provinces who happened to be passengers on the sailing packet when this incident occurred, were struck with this demonstration of the superiority of steam, and discussed among themselves whether this fact might not indicate the means of overcoming, in favour of Halifax, the advantage enjoyed by the port of New York.

On the arrival of Howe in London, a meeting was called of men interested in the subject, and it was resolved to press their views on the attention of the government. Several of the gentlemen wrote to the colonial secretary, and a memorial of a more formal character was submitted, bearing the signatures of Howe, as representative of Nova Scotia, and of William Crane, a member of the legislature of New Brunswick, as representative of that province. [\[258\]](#)

The views and arguments were of a character similar to those employed by imperial federation leagues since that period—the shorter sea voyage, the fostering of common interests among the provinces, and the desirability of an interchange within the empire of news and correspondence, uncontaminated by passage through a foreign channel.

At that period, the last of these points had a peculiar timeliness. The rebellion in Upper Canada had just been subdued, but the embers were ready to blaze up afresh with the first favouring breeze; while in Lower Canada the outbreak was still unchecked. The fast sailing packets on the New York-Liverpool route so far outsailed the post office packets which ran to Halifax, that the news carried by way of New York was sometimes weeks in advance of that which arrived by the Halifax packets.

As American popular sympathies, as distinct from official sympathy at Washington and Albany, lay mainly with the rebels, and as newspaper publishers were in general less scrupulous as to the veracity of their news than they are to-day, it often happened that the British public, and even the government in Downing Street, were grossly misled as to the movement of events in the Canadas. The truth reached England eventually, but it had the proverbial difficulty in catching up with the nimble fiction, which had earlier circulation.

In September the treasury made its decision. [\[259\]](#) In the early part of that month, the Great Western Steamship Company, which was organized in 1836 for the purpose of providing a steam service between Great Britain and America, and which had been for some months past demonstrating the entire feasibility of this class of service, applied to the government for a contract for the conveyance of the mails to New York.

But the plea of Howe and Crane for a direct service prevailed. On September 24 the treasury announced the substitution of steam vessels for the sailing packets on the Halifax route, and directed that tenders should be invited for such a service as the admiralty and post office considered most suitable.

The treasury deprecated the haste with which the plans were being pushed forward, suggesting that a winter's experience would be valuable in dealing with so important a matter. But there were strong reasons for avoiding unnecessary delay. Relations with the United States were causing some anxiety, and as regards transatlantic correspondence, that country stood in a position of advantage, which it seemed the business of Great Britain to equalize as far as possible.

Tenders were invited for a steam packet service between Liverpool and Halifax in November. But none of those submitted satisfied the conditions prescribed by the government. Samuel Cunard, of Halifax, who had had a large experience as a contractor for packet services, visited England, and as the result of negotiations, entered into a contract with the admiralty.

The contract called for two trips monthly each way between Liverpool and Halifax, and for trips of the same frequency between Halifax and Boston, and between Pictou on the gulf of St. Lawrence and Quebec: the vessels to be employed to be of three hundred horse power for the transatlantic service, and of one hundred and fifty horse power for the other two routes. The contract was signed on May 4, 1839, the rate of payment being £55,000 a year.

This rate underwent a rapid series of augmentations. Two months after the contract was made £5000 a year was added to the rate on consideration that the vessels should leave the American ports, as well as Liverpool, on fixed dates. On September 1, 1841, the decision was reached that vessels of a larger size than in the service should be employed, and to secure these the rate was raised to £80,000.

Two years later, in consequence of representations by the contractors that the amount of payment was insufficient to enable them to carry on the service, £10,000 was added to the subsidy; and further additions were made

as the result of changes in the arrangements, which will be detailed in their proper place.

In addition to the provision for the exchange of mails by the Cunard steamers, between Great Britain and Canada and the United States, arrangements were made for subsidiary services to Newfoundland and Bermuda. Halifax, indeed, was being made the pivotal point of the most extensive scheme ever attempted for the distribution of mails. All the communications between Great Britain and the North American continent were comprised in the plans.

The first trip by steamer between Liverpool and Halifax was made by the "Britannia," which left Liverpool on July 1, 1840. The vessel reached Halifax after a passage of twelve and a half days. The mails for Canada were carried overland from Halifax to Pictou, from which point they were delivered at Quebec five and a half days after their landing at Halifax. As the vessel conveying the mails up the St. Lawrence from Pictou to Quebec was delayed a day in the gulf by fog, there was reason for hope that the passage from Liverpool to Quebec would not materially exceed fifteen days.

The post office authorities at Halifax bent every effort to make the enterprise a success. As an instance of their zealous energy, the "Britannia," on its September sailing, reached Halifax on a morning at seven o'clock. At a quarter to nine the mails for Canada were on their way to Pictou; at ten the "Britannia" set out for Boston; and by noon the vessels for Newfoundland and Bermuda had left for their destinations.

Prince Edward Island did not at once enjoy the full benefits of these efficient operations, but by a slight improvement in the arrangements, the island was put on an equal footing with the other colonies.

The scheme, however, admirable as it was in conception, and successful as it appeared to be in operation, had weaknesses, which were revealed by time—weaknesses which before many years led to its abandonment.

The test of the success of such a scheme lay in its capability to provide adequately for the exchanges with Canada. The mails to and from Upper and Lower Canada were not only much greater in volume than those

exchanged with the other provinces, but owing to the existing political conditions in the Canadas, were at the time of greater importance; and, if, owing to any lack of co-operation on the part of the provinces participating in the transmission of the mails between Halifax and Quebec, or through other causes, these mails required a notably greater length of time in their passage by the Halifax route than they would have taken if landed at a port in the United States, the Halifax route must be considered a failure.

This is exactly what happened. When the British government decided to give the scheme a trial, it reminded the provinces concerned that there were several months in every year when the mails must be carried between Halifax and Quebec overland, and that this could be done successfully only if the roads in Nova Scotia, New Brunswick, and Quebec, over which the mails must pass, were put in a condition to permit of fast travel by carriage, night as well as day.

At the time—1840—the steamships began to run to Halifax, the situation as regards the land routes was as follows: the distance from Halifax to Quebec—seven hundred miles—was rarely covered by the mail couriers in less than ten days. In the depth of winter, when the sleighing was good, and advantage could be taken of the ice road on the St. John river between Fredericton and the mouth of the Madawaska river, the journey was made in some hours less than six days.

But it was seldom that conditions combined to make so fast a journey possible, and it was not considered prudent to reckon on an average of less than ten days. In the spring and autumn this length of time was often greatly exceeded. Stayner, who went over the route in the autumn of 1838, after calculating the effect of all practicable ameliorations, did not believe that the time could be reduced to less than seven days. As against this possible time, there was the fact that the journey from New York to Quebec occupied only six and a half days in winter.

The farther west the point of comparison was carried, moreover, the greater the disadvantage at which Halifax stood. The shortest time to be anticipated in conveying the mails from Halifax to Montreal, after all improvements had been made, was nine days. The courier from New York, who had but half the distance to travel, delivered his mails in Montreal in five days.

Toronto, the capital of Upper Canada, and the entrepôt for the thriving and rapidly-spreading settlements in the west, was still more easily reached from New York than from Halifax. The journey from Halifax to Toronto covered a distance of one thousand two hundred and twelve miles, and occupied more than two weeks. New York was only five hundred and forty miles from Toronto, and the mails were carried between the two places in seven days in winter.

Halifax is five hundred and fifty miles nearer Liverpool than is New York, and consequently gained two days on the ocean voyage. But, in point of time, the odds were hopelessly against Halifax, as the landing port for the Canadian mails. The obvious political reasons, however, for maintaining Halifax as the port of exchange between the North American provinces, as a whole, and the mother country, provoked a determined effort to remove, as far as possible, the natural obstacles which seemed to prevent the achievement of that end.

Inquiry was directed first to the question of the best route. From Halifax to Fredericton, the first important point at which the courier arrived on his western journey, there were alternative routes, both of which had been used in the conveyance of the mails to Canada. Since the war of 1812, the courier had travelled along the northern shore of the bay of Fundy, passing Truro, Dorchester and the bend of the Petitcodiac, now Moncton.

This route was adopted first to avoid the necessity of the mails crossing the bay of Fundy from Annapolis to St. John, with the risks of falling in with American privateers, but after the termination of the war, it was continued from choice.

The earlier route, from Halifax to Windsor and along the Annapolis valley to Annapolis, still had its advocates, however; and inquiry was made as to the advisability of returning to it. Under certain ideal conditions, a better journey could be made by this route, but as these involved heavy additional expense, and a nicety of connection between the couriers and the packet boat at Annapolis, which was frequently unattainable, the proposition was rejected.

The real difficulties for the courier began when he left Fredericton on his journey to Quebec. The route lay along the shore of the St. John river to the

point where the Madawaska empties into it; thence in a generally northern direction until the St. Lawrence is reached at the head of the portage.

At this period—1840—there was no road whatever over any part of this section of the route, though in 1839, a road called the Royal Road was in course of construction between Fredericton and Grand Falls. The schemes for the building of a road were embarrassed by the fact that for nearly one hundred miles, the proposed road lay in the territory claimed by the state of Maine, with the resulting risk that the expenditure upon it might be lost.

The only mode of travel from Fredericton northward to the mouth of the Madawaska was by canoe in summer. In the winter, when the ice was well set, travel was very easy. But during the early spring and late autumn, the floating ice made the journey in this part of the country one of great hardship. On a trip made in April 1842, it required three men and twelve horses to carry over this section a mail weighing not more than seven or eight hundred pounds.

The Special Council of Quebec, which was in existence in 1838-1840, owing to the suppression of the legislature due to suspension of the constitution of 1791 in Lower Canada, at the urgent instance of Sydenham, appropriated £5000 for a road over the portage between the St. Lawrence and the St. John rivers. The legislature of New Brunswick also made a liberal grant for the section lying in that province.

It is evident, therefore, that Halifax stood at an insurmountable disadvantage as compared with the New York route during the winter season. But, at least so far as concerned eastern Canada, the provincial route was not greatly inferior to that through the United States, during the period of open navigation on the St. Lawrence. The passage from Liverpool to Quebec did not usually exceed sixteen days, and to Montreal eighteen days.

An essential link in this conveyance was the overland route from Halifax to Pictou. As this service furnished the connection between the steamers on the Atlantic and those on the St. Lawrence, it was of the first importance that the route should be traversed at a high rate of speed. The route had been in use for many years for the exchange of local mails, but the means of conveyance, which were sufficient for that purpose, were entirely inadequate to the requirements of the ocean mail service.

Cunard—who had every motive for expediting not only the mails, but the passengers and freight passing to and from the Canadas—drew attention to the necessity for ample provision for the new conditions. Unless he were able to afford a fast and comfortable conveyance at a moderate charge to his Canadian passengers, he could not hope to hold the business. As it was desirable that he should be able to exercise control over this part of the passage, he offered to provide the service between Halifax and Pictou on terms, which were accepted by the deputy postmaster general of Nova Scotia.

The service afforded left little to be desired in point of efficiency. Four horse stages ran over the route three times each way weekly in summer, and twice weekly in winter; the trip was to be made within seventeen hours, and the charge to passengers was not to exceed £2 10s. The charge for each person had been, until the contract was made, £6.

But accommodation such as this necessarily entailed considerable expense, and the compensation to Cunard under the contract was so great as seriously to embarrass the financial position of the post office in Nova Scotia. This amount—£1550 per annum—was £1265 in excess of what had been paid for this route before the British mails were carried over it.

The revenues of the provincial post office were quite unequal to this demand upon, them, and relief was sought from the legislature. That body agreed to contribute £550, and Canada was asked to add £750 to that sum. When Howe reported the facts to the postmaster general, the latter was disposed to tax him with having acted without consideration, and Sydenham was asked to give his opinion of the bargain.

The governor general laid the subject before the post office commission, which was then sitting, and they denounced the whole arrangement. The rate was extravagant, and the service provided for was entirely beyond the necessities of the ocean mails. As the steamers were to sail only twice a month, an express conveyance of that frequency was all that was required.

As for Canada's being at any expense for this service, the commission scouted the idea. The Cunard contract called for the transportation of mails between Great Britain and Canada, which was to be effected by two steamers, one running between Liverpool and Halifax, and the other

between Pictou and Quebec. Any expense there might be for overland conveyance should fall upon the packet postage, that is, it should be a charge upon the postage collected by the British post office for the transmission of letters between Great Britain and Canada.

The British post office took a somewhat curious course in the difficulty. It resented the criticism of the commissioners, and sanctioned the agreement made by the deputy in Halifax, for a term of eight years. It made no effort to convince the Canadian authorities of the error in their views, which would indeed have been impossible; and, on the other hand, it refused to allow the additional expense to be thrown upon the packet postage. There was but one alternative—Nova Scotia must bear the whole charge. And that was the decision of the postmaster general.

The resentment throughout Nova Scotia at the injustice of this decision, and the manifest inability of the provincial post office to carry the added burden determined the postmaster general to make an effort to put an end to the situation. In 1842 he sent an officer of the department to Halifax to inquire into the whole provincial system, instructing him to give his special attention to the question of the expediency of continuing the use of the port of Halifax as the entrepôt for the Canadian mails.

The thing to be avoided was the long carriage by land, and the agent was directed to consider the ports of St. John, New Brunswick and Boston with this end in view. Boston was regarded with particular favour on account of the railway lines, which were being extended inland from that port. St. John was dismissed from consideration on a report from the admiralty that until some progress had been made in the survey of the bay of Fundy, especially of its tides and soundings, it would be very hazardous to send the mails by that route.

On the question of the comparative advantages of the Halifax and Boston routes there was practical unanimity in Canada. All classes of the mail-using public were agreed as to the superiority of the Boston route. The editors of newspapers complained that the British newspapers on which they depended for their foreign news—newspapers which were transmitted by way of Halifax—were useless by the time they reached Canada, as the

news they contained had been received from New York or Boston several days earlier.

As for the objection to having the exchange of mails between Great Britain and Canada carried on through a foreign country, the publishers made light of it. The mails from England for India, were carried across the Continent through France and Italy; and there was no reason why the mails from England for Canada should not be carried through the United States.

These views were strongly presented by Stayner, and reinforced by the secretary of the post office, who laid them before the postmaster general. The Cunards also rendered assistance to the same end. They represented to the postmaster general that the service proved to be much more expensive than they had anticipated when they undertook the contract, and that the steamer on the St. Lawrence was a very heavy burden. In discussing the question of an increased subsidy, the company expressed their willingness to regard relief from the river service as equivalent to £10,000 a year.

These concurrent appeals, together with the fact that the change in the seat of government from Kingston to Montreal, established the governor in the city which would derive the maximum of benefit from the Boston connection, decided the government to make Boston the landing port for the Canadian mails; and the British minister at Washington was instructed to open negotiations for an arrangement by which the British mails would be permitted to cross the territory of the United States. ^[260]

It had long been an object of desire with the United States government to retain the hold its geographical situation has given it upon the correspondence between Great Britain and Canada. Before steam service was a practicable scheme, the president in a message to congress suggested that, to that end, the sailing packets should be put under post office regulations, and a greater degree of security to the mails thereby effected.

The United States government consequently were prepared to accept very moderate terms. They based their offer on the terms of the contract between the British and French governments for the conveyance of the Indian mails from Calais on the Channel to Marseilles on the Mediterranean. The British government paid the French government two francs per ounce of letters and ten centimes for each newspaper transmitted across French territory, and as

the distance from Boston to St. Johns in Lower Canada was rather less than half that from Calais to Marseilles, they proposed that the British government should pay them half the rates paid to the French government.

These rates were regarded by the postmaster general of England as unusually favourable, and the proposal of the United States government was at once accepted. Under this arrangement, the postmaster general calculated that, besides the great saving in time that would be effected, there would be a reduction in the charges for the inland conveyance of the mails to and from Canada of £4600 per annum.

The course of conveyance across the territory of the United States was to be, in summer, from Boston to Burlington, Vermont, towards which a railway line was approaching completion, and from Burlington to St. Johns by steamer on lake Champlain. In the winter, the mails were to be carried from Boston to Highgate, Vermont, where they would be taken over by couriers attached to the Canadian post office. The time occupied would, under usual conditions, be forty-eight hours between Boston and St. Johns, and fifty-three hours between Boston and Highgate.

Thus was the great experiment brought to its appointed end. It had its origin in one of those imperial impulses, which seem to come most frequently from the colonies, and which now and then carry the Briton off his feet. But, as conditions stood, the scheme was foredoomed to failure. It was not until the construction of the Canadian Pacific railway in 1889, across the state of Maine between Montreal and St. John, that a Canadian ocean port was able to enter into successful competition with a United States port, as the point of exchange for mails passing between Great Britain and Canada.

While the plans for substituting steam for sailing vessels were being brought to maturity, the question of a substantial reduction in the postage between Great Britain and the colonies in North America were being discussed. ^[261] Stayner pointed out that it would be useless to enter upon an expensive scheme for reducing the time occupied in conveying the mails between Great Britain and Canada, unless the postage were brought down to a figure that would place the steamship service within reach of the farmers in western Canada.

As Sydenham observed, the new settlers, while living in great material comfort, had little money at their disposal. To them it was an impossibility to pay the postage—four shillings or more—which had accumulated on a letter on its way from the inland parts of the United Kingdom to the backwoods in which they were making homes for themselves. They were served, and far from inefficiently, by the American ocean sailing packets, which left Liverpool weekly for New York; and unless the steam line were able to provide for the exchange of their letters at rates as low as they were paying, they would no more patronize the new line than they had the ten-gun sailing brigs, by which the British packet service was then carried on.

Stayner, with full knowledge of the conditions he had to meet, was convinced that the first step towards an effective reform was to sweep away the cumulative rates made up of the inland charges in the United Kingdom, the ocean postage and the inland colonial charge; and replace them by one fixed rate which would carry the letter from any post office in the United Kingdom to any post office in the colonies. When he first laid the proposition before the postmaster general, the Duke of Richmond, he recommended that this uniform rate should be two shillings a single letter.

But after some years' opportunity for reflection, aided beyond doubt by the argument of Rowland Hill for penny postage in Great Britain, Stayner concluded that his proposed rate was too high, and that, at one shilling and sixpence, or even one shilling and threepence, the increased patronage of the line by the public in the motherland and the colonies, would bring about an actual augmentation of the revenue.

How great the reduction in the charges would be, if Stayner's proposition were carried into effect, may be gathered from the fact that one of the elements making up the total postage was much in excess of the whole sum suggested by Stayner. On the supposition that the steamships landed the Canadian mails at Halifax, every letter brought by that means to Toronto would be subject to a charge of two shillings and ninepence for the conveyance from Halifax to Toronto, to say nothing of the shilling charge for its passage from Liverpool to Halifax, and the postage from the office of posting in the United Kingdom to Liverpool.

While negotiations with Cunard were still in progress, and the colonies waited expectantly for what was to be achieved by the new service, Stayner was much surprised and gratified to receive from the general post office in London a circular addressed to the postmasters in the United Kingdom stating that the postmaster general had decided to do away altogether with the inland rate or rather to incorporate it with the ocean rate which thenceforward would be one shilling.

This was beyond any anticipations Stayner had formed, and he lost no time in apprizing the public in Canada of the boon conferred upon them. There was rejoicing in Canada over the prospect of easy communication with the mother country, and the postmaster general received many commendations on his statesmanlike measure. ^[262]

But the rejoicing was not of long continuance. With the first intimation at the general post office of the announcement made in Canada there was despatched a letter from the secretary informing Stayner that he had quite mistaken the purport of the circular. Though sent to Stayner for his information, it was not intended to apply to Canada. The intention was merely to take off the British inland postage, and to leave the colonial inland postage to be collected as before. The reduction, in reality, amounted to very little, as the bulk of the postage on letters from Great Britain to Canada passing by way of Halifax had been that part levied for the conveyance from Halifax to the office of delivery in Canada.

Stayner was in no way to blame for the interpretation he placed on the circular, and he had the satisfaction of knowing that his misconception made the continuance of the high postage impossible. The public on both sides of the ocean had tasted the blessings of communication with their relatives on the other side, at an expense not considered beyond their means, and they were determined not to have the benefit withdrawn.

Accordingly when Poulett Thomson, afterwards Earl of Sydenham, came out as governor general with special instructions to remove all legitimate causes of dissatisfaction, he addressed himself to this question, and after a conference with Stayner, wrote to the colonial secretary urging the adoption of the shilling rate.

The colonial secretary submitted the governor general's views to the postmaster general, and in practical coincidence with the sailing of the first steamer under the Cunard contract, instructions were issued to make the total charge on letters to the British North American colonies one shilling, if the letter was addressed to Halifax, and one shilling and twopence, if its destination was inland, however distant. [\[263\]](#)

At the same time, a change of great importance was made in the principle on which the postage was based. It had been the practice to charge postage, according to the number of enclosures the letter contained. When penny postage was introduced in England a few months previously, one of the features of the new plan was the establishment of the weight principle in determining the charge on a letter, in substitution of the principle under which letters were taxed according to the number of their contents.

The operation of the new plan in Great Britain caused much confusion and loss in the correspondence with the colonies. The British or Irish people, who had become accustomed to having their postage fixed by the application of the rate of one penny for each half ounce, could not in many cases be made to understand why the same principle did not apply to their letters to their friends and relatives beyond the seas.

Hence many letters weighing less than half an ounce were sent to Canada, which on examination were found to contain enclosures, and the postage was, in accordance with the regulations, doubled or even trebled, though their weight would not call for a charge of more than one shilling and twopence.

Poulett Thomson drew attention to the obvious embarrassment occasioned by the application of the two different principles, and he had the satisfaction of finding a ready acquiescence in his views on the part of the postal authorities at home. Accordingly, by the treasury minute of July 6th, 1840, the rate on letters conveyed by direct packet from any post office in the United Kingdom to Halifax was made one shilling the half ounce. If, for any other post office, the rate was one shilling and twopence.

FOOTNOTES:

[253] *Report on the affairs of British North America* (Oxford, 1912), p. 143.

[254] Stayner to governor general's secretary, December 8, 1837 (*Can. Arch.*, Br. P.O. Transcripts).

[255] Maberly to postmaster general, March 29, 1838, and accompanying papers (*Can. Arch.*, Br. P.O. Transcripts), and Q. 402-409 *passim*.

[256] *Can. Arch.*, Q. 416, p. 49.

[257] Colonial office to post office, May 25, 1838 (*Can. Arch.*, Br. P.O. Transcripts).

[258] *Speeches and Public Letters of Joseph Howe*, 1909, I. 188.

[259] The succession of measures taken regarding the Cunard service may be followed in the Br. P.O. Transcripts for 1838-1839-1840.

[260] Maberly to postmaster general, April 3 and September 28, 1844, with accompanying papers (Br. P.O. Transcripts).

[261] The papers on the reduction of the ocean postage rates are gathered together as accompaniments to a letter from Mr. Poulett Thomson, the governor general, to Lord Russell, of April 16, 1840. See Q. 271, p. 224.

[262] Stayner to Maberly, May 12, 1839, and accompanying documents (Br. P.O. Transcripts).

[263] Treasury Minute, July 6, 1840 (Br. P.O. Transcripts).

CHAPTER XIII

Diminution of powers of deputy postmaster general—Commission on post office appointed—Its report—Efforts to secure reduction of postal charges.

The arrival of Poulett Thomson as governor general marks the passing of the uncontrolled authority of Stayner as administrator of the post office in the Canadas. By the terms of their commissions, the deputies of the postmaster general in the colonies, were responsible to the postmaster general alone for the conduct of the affairs of the post offices within their jurisdiction.

Subject to the approval of the postmaster general, the deputies opened all post offices, appointed all postmasters and other officers of the department, and made all contracts for the conveyance of the mails. Until Stayner's time, the department at home exercised a watchful oversight in one particular. It insisted that the deputy postmaster general should not extend the system, or increase the accommodation within it, unless he could satisfy St. Martins-le-Grand that the additional outlay required should be met by a corresponding increase in the revenue. Assured on this point, the department gave the deputies a practically free hand.

Insistence on the point of finances brought the general post office into sharp collision with the colonial legislatures for a number of years. But shortly after Stayner's assumption of office, the department in London loosened the reins, and directed him to study the wants of the rising communities, and extend postal accommodation to whatever districts seemed to him to require it.

The confidence bestowed by the postmaster general on his young deputy in the Canadas was not misplaced. Stayner was a man of energy and authority, who had grown up in the service under the administration of his father-in-law, who was his predecessor in office, and his loyalty to the interests of

both the postmaster general and the community he served stood unquestioned. With his appointment to his high office, he fell heir to a dispute which had been waged for a number of years between the general post office and the legislatures of Upper and Lower Canada, involving the legal right of the post office to do business in the colonies under existing conditions.

Stayner was fortunate in finding in each province differences between the administration and the houses of assembly, which gave little promise of settlement, and he promptly attached himself to the side of the administration. This, indeed, was the only course open to him, in view of his accountability to a department, which, in according him a certain freedom of action, took jealous heed that he should not abuse it.

But Stayner had important interests of his own, which called for protection by the government. His extra-official emoluments—from the postage on newspapers, and from his agency for the collection of United States postage, due in Canada—now far exceeding his official salary, began to excite public attention, and he required all the support he could gather to himself, to enable him to brave it out with the assemblies, when they insisted on his showing by what right he took these emoluments.

His position, however repugnant to popular notions, was officially unassailable, and as he managed to identify his interests with those of the administrations, the governors of the two provinces remained steadily his friends and protectors. He had even the gratification of being commended for his great services by the assembly of Upper Canada in 1837.

But a change was coming for Stayner, and indeed had come. Ever since the amount and the sources of his income became known to the home government, there had been disapprobation. The secretary of the post office, a large part of whose income had been derived from similar extra-official sources, deprecated the criticism which began to spring up, and the postmaster general weakly and reluctantly agreed that Stayner's exceptional services entitled him to exceptional emoluments.

The colonial secretary, Lord Glenelg, however, was of another mind. The two provinces were seething with dissatisfaction, and it was not clear to him in what the grievances of the colonials consisted. A committee of the house

of commons had sat in 1828, heard evidence, and reported, and the leaders of the assembly in Lower Canada had declared that if the recommendations of the committee were carried into effect, the province would be content.

Guiding his policy by that report, and seeking every opportunity to make good its findings, the colonial secretary observed that the political dissatisfaction and unrest, so far from disappearing, was spreading year by year. His bewilderment sharpened his eyes, and as they rested on Stayner's case, he saw a condition which offended his sense of justice, and he at once demanded of the postmaster general that he should remove this obvious wrong.

For a time Stayner's tactics, or his luck, held him scatheless. The postmaster general and the colonial secretary had agreed that the remedy for all the ills that afflicted the post office was to be provided by the bill adopted by the imperial parliament in 1834. This bill, however, could not become operative until the acceptance by the several colonial legislatures of a common measure for the regulation of the post office in the several provinces by the postmaster general of England. As all the colonies had rejected this measure, the situation remained unchanged.

Stayner continued to take his exorbitant emoluments, and the government was helpless. The postmaster general asked the colonial secretary to furnish him with an expedient for settling the matter, but the colonial secretary could think of nothing, to which overriding legal or political objections could not be made. While, however, Stayner enjoyed immunity from attacks by the government, he was a marked man, and when Poulett Thomson came to Canada, he lost no time in making Stayner realize that the period of his exceptional fortunes was at an end.

Poulett Thomson's special mission to Canada was to lay the foundations of responsible government in the country, and he began by taking things into his own hands. In dealing with the post office he sent for Stayner, and, instead of treating him as an officer of independent authority, Thomson informed Stayner that it was his intention to reform the post office in its construction and duties.

All the governor general required of Stayner was that the latter should furnish him with any information he considered necessary. Although

Thomson had never had any actual experience in the workings of a post office he had opportunities of acquiring a sound theoretical knowledge on the subject. He was a member of the committee of the house of commons which was appointed in 1837 to examine the proposition of Rowland Hill for penny postage.

As Hill's scheme involved an entire change in post office methods, the *modus operandi* at that time pursued was thoroughly set out to the committee, its weaknesses exposed, and the merits of the new proposition fully discussed. No observant man could attend the work of that committee without gaining definite views as to the principles upon which a post office should be conducted.

In June 1840, Stayner reported to the secretary of the general post office a state of affairs that indicated that Thomson had taken the direction of post office affairs into his own hands. He had ordered Stayner to enter into negotiations for the conveyance of mails by steamer between Quebec and Montreal, and upon lake Ontario, and when the negotiations failed, he expressed a determination to obtain authority to build vessels for post office purposes. He also directed Stayner to draw up a bill for the administration of the post office in British North America upon principles to be determined by the governor.

The colonial secretary, in July, instructed the governor to appoint a commission to investigate and report upon the post office in the colonies in all its bearings. The committee as appointed consisted of Dowling, legal adviser to the governor, Davidson, senior commissioner of crown lands, and Stayner.

In point of ability the committee was a competent one. Its members all had that sort of experience in public affairs, which would enable them to apprise fairly the mass of information laid before them—evidence which would satisfy the public as to the justice of their conclusions.

But having in mind the aims of the committee, its composition was not such as to give hope for harmonious co-operation among its members. The colonial secretary in instructing the governor general to appoint the committee, directed that it should investigate and report on the state of the British North American post office, including its administration.

The work of the committee was necessarily a scrutiny into the methods of the administration of Stayner, and involved an attitude of defence on his part. And the other members of the committee did not fail to make him feel the difficulty of his dual position. Although he signed the report as a commissioner, he appended a note to it stating that he did so, merely because he conceived it to be his duty as a commissioner.

But he also intimated that he was far from agreeing with all the conclusions of his associates; and a few months later he presented a statement to the governor general, pointing out the respects in which he differed from the other commissioners, and defending himself against charges which were set forth in the report.

The committee entered upon their work by calling upon the deputy postmasters general of Canada and the Maritime provinces for a body of statistics and other matter, which, when furnished, provided them with a survey of the whole colonial system, and its methods of operation.

Detailed information was given in tabular form of every post office in the colonies—the name and date of appointment of its postmaster, the revenue of the office, and the several items that composed the postmaster's income; and of every mail route, with its cost of maintenance. All regulations for the guidance of postmasters in the management of their offices were submitted to the commission.

The commissioners addressed circular letters to all the postmasters, and to prominent people in every section of the colonies, inviting them to give their views on the post offices in their locality, and asking particularly as to the extent letters were carried by agencies other than the post office, and their opinions as to why these other agencies were employed in preference to the post office.

The information obtained was most voluminous, and the report of the commission based upon it was comprehensive.^[264] It began with a historical sketch of the post office in the colonies, from its origin down to the time of the commission; passed on to a survey of the institution as it then stood; pointed out the defects they discovered in its arrangements; and concluded by a number of recommendations for the removal of the defects, and the improvement of the system.

The defects which most impressed the commissioners were the want of uniformity within the system, and the uncontrolled power of the representatives of the postmaster general in the colonies. As illustrating the lack of uniformity, they pointed out that though the colonies were in postal theory an undivided whole, they were under the control of two deputies of the postmaster general, who were entirely independent of one another, and that no effort seemed to have been made to co-ordinate the practice in the two jurisdictions.

The absence of organization was more noticeable in the Maritime provinces, a condition which the commissioners attributed to the failure of the deputy at Halifax to establish general regulations, and to the want of travelling surveyors or inspectors, who might have introduced uniformity of practice among the postmasters.

A striking instance of unauthorized variation from usual post office practice was the existence of way offices. These were, to all intents and purposes, post offices, and yet they had no official recognition as such.

These way offices were set up at any convenient place along the line of the post roads. They were put in operation, sometimes by local magistrates, or other people of importance in the districts; sometimes by neighbouring postmasters, and sometimes by the deputy postmaster general. They had no accounting relations with the head of the department, but carried on their work under the control of an adjacent postmaster who was held responsible for the postage collected by them.

In spite of their anomalous character, these way offices had a usefulness of their own; for they were not abolished until after the Nova Scotia post office was absorbed in the post office department of the dominion in 1867.

The commission in support of their second conclusion, that the power of the deputies of the postmaster general were subject to no practical control, and that the abuses usually associated with irresponsibility were not absent from the administration of the colonial post office, submitted two cases which had come under their notice, and which seemed to show that in these cases at least Stayner was chargeable with maladministration and nepotism.

Stayner in his rejoinder defended himself with vigour and success against the imputations of his colleagues, and retorted upon Dowling, the chairman, with charges of unfairness and studied discourtesy towards himself. The bearing of Dowling was so offensive that Stayner was with difficulty restrained from severing his relations with the commission.

The remedies proposed by the commission for the two cardinal defects to which they had drawn attention, were simple and efficacious. They would place the whole colonial postal system in the hands of a single deputy postmaster general, who should own responsibility, not only to his official superior in England, but also, in all points which did not conflict with his primary duty, to the executive heads of the several provinces, so far as related to the parts of the system within their respective jurisdictions.

The headquarters of the deputy postmaster general, the commission urged, should be at the capital of the province of Canada, and he should be under the orders of the governor general. The authority of the deputy postmaster general in the other provinces should be vested in local inspectors, whose relations with the lieutenant governors were to be identical with those which should subsist between the deputy postmaster general and the governor general.

In cases occurring in the other provinces, which appeared to transcend the powers of the local inspectors, the lieutenant governors might correspond with the governor general, and the inspectors with the deputy. Stayner objected to the plan proposed, in so far as it took the appointments to postmasterships and other offices out of the hands of the representative of the postmaster general, and made them the subject of political patronage.

Having disposed of the questions relating to the organization and administration of the department, the commissioners proceeded to discuss matters bearing upon its operations.

The first of these was the rates of postage. In dealing with this subject the commission had before them a mass of evidence from all parts of the colonies, which convinced them that the great bulk of the letters exchanged, did not pass through the post office. It was asserted by responsible persons that, in some parts of the country, scarcely ten per cent. of the letters written

were conveyed by the post office, and in few cases was the estimate of letters carried by private means less than fifty per cent.

Though various other reasons were given for this systematic evasion of the only lawful means of conveying letters—the infrequency of the couriers' services, and the public distrust in the security of the mails—there was practical unanimity in the declaration that the chief obstacle in the way of the public's using the post office was the excessive rates of postage.

The commission found that there was a strong sentiment among their correspondents, favouring the adoption of the system then recently introduced into England by the genius of Rowland Hill. Until 1840, the postal rates in England were substantially the same as those which hampered the post office in the colonies; and the general avoidance of the post office by the merchants and other writers of letters in that country was as marked as it was in Canada.

Richard Cobden declared that not one-sixth of the letters exchanged in England were transmitted through the post office, and other observers of equal authority bore similar emphatic testimony. The displacement of the complicated system of charges based on the number of enclosures and the distance the letters were carried, and the adoption of a penny rate carrying letters to all parts of the United Kingdom, immediately turned all the streams of correspondence into the channels of the post office. Not only were the private letter-carrying agencies put out of business, but the low, easily comprehended rate called into existence a vast body of new correspondence.

Few people in Canada believed in the possibility of a rate as low as a penny for the Canadian post office, but many were attracted by the fascination of a uniform charge even though it should be higher than that, which was so vastly augmenting correspondence in England.

To all such, whether the uniform rate they advocated were a penny or higher, the commission addressed themselves, pointing out that the geographical, social and industrial differences between England and the colonies, made it impracticable to base an argument for the one upon the experience of the other.

Uniform penny postage was an immediate success in the United Kingdom because in the United Kingdom there were three thickly-populated countries, with highly developed social and industrial systems. Hill discovered, by a study of the postal statistics laid before the house of commons, that in consequence of the great volume of correspondence exchanged, the comparatively short distances letters were as a rule carried, and the highly developed system of transportation, the average cost of carrying a letter in the United Kingdom did not exceed one farthing. A sum equally small covered the expenses of administration and the maintenance of post offices.

A further discovery of equal importance, which surprised Hill as much as it did anybody, was that the difference in expense between carrying a letter the shortest and the longest possible distances in the kingdom was so small that it could not be expressed in the least valuable coin in use.

In these facts lay the whole case for uniform penny postage. At a penny a letter, there was a clear profit to the post office, and the augmentation in the number of letters as a result of this inducement to correspondence made almost any imaginable profits possible; and the insignificant difference in cost between carrying letters long and short distances, led inevitably to the ideal uniform rate.

The conditions in the British North American colonies were in all respects the reverse of those existing in England. The vast extent of their territories, the sparseness of their populations, and their undeveloped state, socially and industrially, all combined to make the postal system very costly, and the returns meagre; and the great, almost unsettled, stretches between the centres of population made the difference in the cost of conveyance between long and short distances very considerable.

The commission, with such statistics as were available before them, estimated that the average expense of delivering a letter was threepence for conveyance, and twopence-halfpenny for overhead and maintenance charges. These figures showed the impracticability of either low or uniform postage rates, unless the legislatures were willing to take on themselves the yearly deficits, which were certain to occur.

The commission, however, were prepared to recommend considerable reductions in the charges, even though these should result in a noticeable shrinkage in the revenue. Indeed, it seemed to them a distinct advantage that the revenue should be brought down to a point, at which it would no more than meet the expenses. They took it as settled that the British government would adhere to the principle of the imperial bill of 1834, under which the surplus revenues were to be divided among the colonies; and they foresaw serious difficulties among the provinces in dealing with the problem of distributing the surplus.

The rates they recommended—ranging from twopence a letter when the conveyance did not exceed thirty miles up to one shilling for a distance over three hundred miles—were much lower than those charged at that time by the post office.

Dealing with the question of newspaper postage, the commission condemned the impropriety of allowing the sums accruing under this head to pass into the pockets of the deputies of the postmaster general, and recommended that newspapers should be charged at the rate of one-halfpenny each, and that the proceeds should go with the other postage into the treasury.

A point, interesting as illustrating one of the differences of view between ourselves and our grandfathers, was that the commissioners strongly recommended that the prepayment of postage on newspapers should not continue to be compulsory, but that it should be optional whether the sum should be paid by the sender or recipient of the newspaper.

It had never been held that the sender of a letter should pay the postage; and to the public it appeared a hardship that there should be a different practice as regards newspapers. Indeed the committee saw very good reasons from the standpoint of the post office why the payment of postage on newspapers should be deferred. If postmasters could add to their revenues, and consequently to their salaries, by collecting the postage when delivering newspapers, they would have a strong motive for seeing that the papers were delivered.

The commission closed their report by noting a number of the details of post office practice: the demand for more post offices throughout the

provinces, which they endorsed; complaints of the inconvenience of sites of post offices; the hours post offices should be open to the public, and the time for closing the mails; special handling of money letters, and the enforcement of the terms of mail contracts, and the salaries of postmasters. On all these matters they commented at length, and made a number of helpful suggestions.

The report was presented to the governor general on December 31, 1841. While it was in course of preparation—on November 29, 1841—the post office building in Quebec was destroyed by fire.

For Stayner this was a serious misfortune. Not only was he compelled to withdraw his attention from the affairs of the commission, in order to make provision for carrying on the departmental work, but he was crippled in drawing up his rejoinder by the fact that all his papers were consumed with the building, and material upon which he had depended for explanation and justification of transactions called in question was no longer available. His statement was not laid before the governor general until the April following.

In it, besides confuting the conclusions of the other commissioners on the matters affecting his administration of the post office, Stayner discussed a number of questions, in which he differed in opinion from his colleagues. He expressed a qualified approval of the scale of postage rates recommended in the report, and agreed entirely with them in their proposals respecting the postage on newspapers.

But Stayner was convinced that his colleagues took entirely too favourable a view as to the effect of the postage reductions on the revenue of the department, and he strongly recommended that, before the proposed changes should be approved, the whole scheme should be submitted to the provincial legislatures, with its probable financial consequences, in order that an assurance might be obtained from them that the deficits which he foresaw should be made good by the provinces.

The first of the measures taken by the government on the report of the commissioners was to deprive Stayner of a portion of his power. The proposal to place him under the direction of the governor general was not entertained in its entirety. But in August 1842, the appointment of his

postmasters was taken out of his hands, and transferred to the governor general. [\[265\]](#)

Stayner protested that it would be out of his power satisfactorily to discharge his responsibility as resident head of the post office if he were deprived of the selection of his officials. The postmaster general may have agreed with Stayner, but the decision of the matter was not allowed to rest with him. Consequently, he had no choice, but to inform Stayner that the question was closed, and that he would have to conform to the new conditions.

So much freedom of action, however, was still left with Stayner that he was not expected to retain the services of any official who failed to satisfy his requirements. But he could no longer dismiss peremptorily. The official under condemnation was to be afforded an opportunity for defence before his case was finally disposed of. Thereafter, and until the post office was transferred to the control of the Canadian government, whenever a vacancy occurred among the postmasters, the nomination was made by the governor, and the official appointment of the person selected, was made by the postmaster general.

In August 1843, Lord Stanley, the colonial secretary, notified the governor that on assuming office, he found awaiting him the report of the commission, but owing to the complexity of the matters involved, and to the fact that further representations on the same subject had been received from the colonies, the government was unable to arrive at a conclusion until that time. [\[266\]](#)

The decisions arrived at by the government and imparted to the governor were of far-reaching importance. The practice which had prevailed ever since the post office was established, of fixing the postage on letters, according to the number of enclosures they contained was to be abolished, and the weight system to be introduced to replace it. A single letter thereafter was to be one which weighed less than half an ounce, and the postage determined by the number of half ounces it weighed. The rates themselves were not changed, nor was the principle of regarding the distance a letter was carried any factor in the postage, in any way affected.

But though the effect of the substitution of the weight system for that based on enclosures was not great, so far as concerned the amount of postage required on a letter, much was gained in the direction of simplicity and propriety, when there was no longer the constant appeal to the postmaster's curiosity, and, at times, cupidity, which was made by the regulation requiring him to hold up every letter between him and a lighted candle, in order to satisfy himself as to the number of its contents.

Another reform, no less welcome to the public, was the abolition of the privilege conceded to the deputy postmaster general of putting into his own pocket the proceeds of the postage on newspapers. The recommendation of the commission that newspapers should be charged one-halfpenny each, the proceeds to form part of the post office revenue, was adopted by the government.

These changes went into operation on the 5th of January, 1844. By way of compensation to the deputy postmaster general for the loss of his newspaper and other perquisites, he was given the not unhandsome salary of £2500 sterling a year. This was an amount much beyond what the treasury considered should be paid as salary for this office, in the absence of the special circumstances of Stayner's case, and the salary of his successor was fixed at £1500 a year.^[267]

The merchants and other large users of the post office, while perhaps not unmindful of what had been gained, still had little cause for satisfaction with the results of the labours of the commission. Substantial reductions in the postage were still unattained. The movement in the colonies was greatly stimulated by the course of events in England as regards penny postage.

Post office officials had, from various motives, decried the great reform, and ministers of the crown, with their eyes on the diminished revenue, doubted whether the public benefits had been commensurate with the cost. Opposition to the continuance of the experiment had reached a point when it became a question whether modifications in the direction of higher charges should not be made.

In 1844 the government appointed a committee of the house of commons to inquire as to the measure of public benefit that could fairly be attributed to penny postage. The committee made no report, but they submitted a mass of

evidence taken from every quarter of the kingdom, and from every walk in life, that effectually silenced objectors, and aroused a desire in all civilized countries for the enjoyment of a similar boon, to the extent that their circumstances would permit. The United States, in 1846, after a period of agitation, reduced its charges to five cents a letter, where the conveyance did not exceed a distance of three thousand miles, doubling the charge for greater distances.

The British North American colonies shared to the full in the general desire for the abatement of the impediments to the freer circulation of correspondence. The Canadian legislature, in 1845, was called upon to deal with a number of memorials on this subject, and asked Stayner for his advice.

Stayner was prepared to welcome any reductions that the legislature might be able to obtain, but he warned them that whatever might be the ultimate effect of lowered postage rates on the augmentation of correspondence, there would be an intermediate period, in which the shrinkage of revenue would be considerable, and it was for the legislature to determine whether the general financial condition of the province would warrant their incurring even a temporary deficit in the post office.

The legislature having in view the fact that the surplus revenue of the post office was only £8000 at the time, decided that it would be unwise to embark on any undertaking that threatened them with additional financial burdens.^[268] But the public in Canada were of a different opinion. The boards of trade of Montreal, Toronto and Quebec petitioned the postmaster general for a rate of twopence-halfpenny a letter, and, in 1846, the legislature casting caution aside presented a strong address to the queen. In it they pointed out the hardship endured by British subjects in one portion of the empire, in being compelled to pay extravagant charges for that which is enjoyed by others at merely nominal cost; and begged to be put on an equal footing in this regard with the citizens of the United States.

The legislatures of the Maritime provinces were pressing on the home government demands of a similar character with equal vigour, and as the policy adopted by the home government was the result of the combined pressure, and affected all the colonies identically, it is desirable, before

dealing with that policy, to bring the narrative of events in the Maritime provinces forward to this point.

FOOTNOTES:

[264] This report, with the data obtained by the commissioners, is printed as Appendix F to the *Sessional Papers of Canada for 1846*.

[265] Circular Letter of Instructions, August 1842 (*Journals of Assembly*, N.B., 1843, p. 36).

[266] *Journals of Assembly*, Canada, 1843, p. 51.

[267] Maberly to Stayner, July 27, 1844 (Br. P.O. Transcripts).

[268] *Journals of Assembly*, Canada, 1844-1845, App. P.P.P.

CHAPTER XIV

Continuation of account of post office in Maritime provinces—
Departmental inquiry into conditions—Agitation for reduced postage.

The information elicited from Howe by the general post office in London, and the house of assembly of Nova Scotia, in the course of the inquiry as to the financial position of the post office in that province, disclosed matter for considerable surprise to both of them.

The general post office learned for the first time that for some years the provincial post office was carried on partly with the assistance of the legislature. The assembly on its side was equally unaware of the fact that, while they were making annual grants in aid of the provincial establishment, a very considerable sum was being remitted each year by the deputy postmaster general to the British treasury as surplus postal revenue.

This anomalous state of affairs was corrected, and a more satisfactory footing was established as the result of the mission of the Nova Scotia delegates to England in 1839. But one is inclined to wonder how this condition of ignorance could continue with Howe, a perfectly honest man, in constant communication with his official superiors in England on the one hand, and with the legislature on the other.

It would seem to have arisen from the fact that the post office in Nova Scotia was a much more intimate institution than the post office was in Canada. Circumstances, as has been seen, maintained a gulf between the post office in Canada and the provincial legislatures. The antagonism of the legislatures in the two Canadas towards the post office, arising from their belief in the illegality of its foundation, and the steady struggle on their part to bring the institution within the sphere of their authority, operated to prevent the establishment of intimate relations between the legislatures and the deputy postmasters general.

All these separative factors were absent in Nova Scotia. The Howes, father and son, had administered the post office for nearly forty years. They were constantly occupied with the public life of the province. They published the principal newspapers, and Joseph Howe, son of the one, and brother of the other, was one of the leaders in the legislature. The younger Howe was also a commissioner for the summary trial of actions, and for the poor, both of which appointments he held without salary.

The interests of the Howes were as much engaged to the affairs of the province, as to those of the general post office, and this fact was recognized by the legislature. When, therefore, there was a question of extending the postal lines into new districts, Howe was fully sympathetic, and it was felt, by the assembly, when he informed them that they must be prepared to make up any deficiencies in the cost of the new services, that he spoke as one of themselves, but with authority, and there was no more question.

As a consequence, new routes sprang up gradually in different parts of the province, under the simple arrangement that the postage collected on the route would be applied as far as it would go to meet the expenses of the postmasters and mail couriers, and that the legislature would make up what was lacking.

Thus, on the western line, from Halifax to Yarmouth, and around the shore to Lunenburg, the revenue collected was in 1839 only £378, whereas the expenditure was rather more than £900 beyond this sum. On the eastern line, the shortage to be made up by the legislature was over £450. The northern line, that is, through Londonderry, Amherst, Wallace, Dorchester and Parrsboro nearly paid its expenses. The province had to contribute no more than £60, to cover the deficiency.^[269]

All that the general post office had been informed regarding these routes was that the revenues from them were being held to pay expenses. They had no idea that there were heavy deficiencies, which the legislatures provided for by annual votes, arranged between Howe and the post office committee of the legislative assembly. Howe held, when brought to account for his remissness, that as these routes were under the authority of the province, and not of the postmaster general, there was no object in embodying them in his accounts.

The general post office did not know of the existence of the post offices of Yarmouth, Shelburne, Liverpool and Lunenburg on the west and south coasts; Antigonishe, Wallace and Parrsboro on the north; and Arichat and Sydney in Cape Breton, all of which had been in operation for a number of years.

The only route in the province that yielded a revenue sufficient to meet expenses was the grand route leading to Canada, with its branch to Pictou. As the grand route was employed for the conveyance through the provinces of the valuable mails exchanged between Canada and Great Britain, it was naturally very remunerative.

The agreement with the treasury, satisfactory as it was in appearance, had in it the seeds of misunderstanding. The treasury announced its willingness that, so long as the revenue from the internal post office was sufficient to meet the expense of the internal communications, no demand for this object should be made upon the provincial funds. The terms of the minute seem to lack nothing in clearness, unless some of the words employed were held to have a significance other than that usually accepted. That is what was the case in this minute.

The treasury, in selecting the words it used, meant nothing more or less than that, if the revenue collected on letters passing within the territories of Nova Scotia were sufficient to cover the expense of maintaining the post offices and mail couriers within the province, the provincial authorities would be exempt from all liability.

The legislature accepted this view of the case on all but one point. They maintained that Halifax post office existed mainly for imperial purposes, [\[270\]](#) in that its chief function was to provide for the interchange of the mails between Canada and Great Britain, and that its value as a provincial institution was fully offset by the advantages extended by Nova Scotia to Great Britain and Canada in providing for the transmission of their mails across its territory.

Holding this view, the assembly examined the accounts laid before them by Howe, and satisfied themselves that, omitting the expenses of Halifax post office from consideration, the internal postage practically covered the expenses of the internal service. They therefore resolved that no vote would

be required during that session. They pledged themselves, however, in case the revenue of that year should prove inadequate, to provide for the deficiency, so that the services should not be interrupted or diminished.

In the following year, 1840, there was an unquestionable surplus of revenue over expenditure; consequently no demand was made upon the legislature. In 1841, the friction, which was certain to develop when Howe's loose methods were subjected to any strain, began to make itself felt.

In April of that year, Howe advised the lieutenant governor, Lord Falkland, that the funds available for the payment of the post office expenditure were deficient to the extent of £546.^[271] He, at the same time, submitted to the lieutenant governor his correspondence with the general post office in London, from which it appeared that the general post office, fearing that the omission of the legislature to make any provision for the service would lead to a deficiency, intimated that it might be necessary to make some curtailments, and asked whether some of the less productive routes might not be discontinued.

Howe, following his usual practice, had consulted with several members of the legislature, and being satisfied that the legislature would make up any shortage that arose, concluded that there would be no necessity of abandoning any of the lines.

It was only when the legislature was prorogued without making provision for a possible shortage, that Howe submitted the question to the governor. Falkland was rather embarrassed by the responsibility thus unnecessarily thrust upon him. But as he was of opinion that it would cause much inconvenience to stop any of the mail routes, he directed the amount of the shortage to be paid. The lieutenant governor, however, in relating the circumstances to the colonial secretary, took occasion to complain of Howe's methods.

The communications respecting the post office passed him by entirely, unless some trouble arose which made an appeal necessary. In the present case, if he had been made acquainted with the circumstances in time, he would have laid them before the legislature, and left them to decide whether any of the services were to be dropped, or the deficit made up. As a result, Howe was admonished that his irregular practice must cease, and that when

recourse to the legislature was necessary, he should approach them through the lieutenant governor alone.

In 1842, the situation became more acute. The assembly had before them the accounts of 1841, in which figured the additional expenses due to the ambitious transatlantic steamship scheme. At the best, the revenues from the inland services were no more than sufficient to meet its expenses, and the increase in the cost of the conveyance between Halifax and Pictou from £285 a year to £1937 (£1550 sterling), and the additional expense in the Halifax post office from £625 a year to £1694 due to a large augmentation in the staff, involved the legislature in a situation, to which they were disinclined to submit.

The trouble was precipitated by a letter from Howe to the lieutenant governor, informing him that, as the sum of £1143 had been advanced by him from the packet postage, which belonged to the British treasury, and as the legislature had appropriated only £550 to meet this advance, there was still the sum of £593 due to His Majesty.

The assembly to whom Howe's communication was referred, took the opportunity of reviewing the whole situation. It was beyond doubt that, in 1839, the internal postal service was self-supporting. This condition was disturbed to the detriment of the financial position of the post office by burdening it with the total expense of the Pictou service, which was maintained principally for the benefit of New Brunswick and Canada, and of the Halifax post office, which since the establishment of the ocean steam service for all the colonies was in reality much more an imperial than a provincial institution.

As, in justice, the inland colonies were chargeable with the major part of the outlay for the Pictou service, and the maintenance of Halifax post office should properly be defrayed from the packet postage, the legislature declined to meet the demand made upon it by the post office.

The lieutenant governor was in full sympathy with the legislature, and after fortifying himself with the opinions of his law officers as to the legal aspects of the case, appealed to the governor general to induce the Canadian government to take on themselves the proper share of the charge.

The Canadian government for the reasons given could not see the propriety of their taking on themselves any part of the expense of conveying mails to their outpost at Quebec, and the British government were powerless to bring pressure on the Canadians, since the treasury was in receipt annually of large remittances from Stayner as surplus post office revenues, which the British government, by their act of 1834, admitted to belong to the colonies, and which only awaited colonial legislation to be handed over to the several legislatures.

The treasury was willing also as a measure of grace to allow the colonial legislatures to retain the part of the packet postage collected in the colonies, if they would only adopt the scheme involved in the act of 1834. But it was not prepared to admit that any part of the packet was, as a matter of right, chargeable with the maintenance of the post office at Halifax or of the Pictou coach service, and as it was becoming plain that the scheme of making Halifax the distributing centre for the Canadas, was not proving the success they hoped for, they determined to inquire as to the feasibility of having a port in the United States utilized in the exchange between Canada and Great Britain.

To that end, an official of the British post office, W. J. Page, was sent to Nova Scotia to investigate this subject, and at the same time to make a thorough inquiry into the condition of the Nova Scotia post office, which had been animadverted upon rather severely by the royal commission, in its report of 1841.

By means of Page's reports and of the report of this commission, we are enabled to give a clear account of the Nova Scotia post office in the beginning of the forties. There were eighteen post offices in the province at this period, and fifty-one sub-offices. The mails were carried on the route from Halifax to Pictou and St. John three times a week in summer and twice a week in winter.

From Pictou the mails were carried to Antigonishe twice a week, and with the same frequency from Halifax to Annapolis. Mails were carried in all directions throughout the province, but, with the exceptions mentioned, only once a week.

The management of this considerable system was in the hands of the deputy postmaster general and his assistant. It was impossible with the work demanding their attention in Halifax, and the deficiency of facilities for travel, that these two could give any attention to the offices which were not under their immediate eye, and consequently all attempts to exercise control over the operation of the system came by degrees to be abandoned. When postmasters were appointed, all the instructions they received were a few short directions from the deputy postmaster general, or from an outgoing predecessor, whose knowledge was a combination made up of the official instructions and the interpretations placed upon them, when occasion arose that required some action or decision on his part.

The way offices—those peculiar products of the Maritime provinces—excited the ridicule of English and Canadian trained officials. Page, in a letter to the secretary of the general post office, expressed his despair of comprehending the varieties of origin or practice of these offices. Not one in ten of the keepers of these offices were appointed by Howe; nor did he or any one in his office know the names of many of them, though Howe considered the offices to have been sanctioned by him.

What happened was like this: a postmaster would write to Howe telling him that there ought to be a house for leaving letters at, in such or such a village or settlement. If any person were mentioned as willing to take charge of the letters, Howe generally agreed to his being appointed, and considered the matter settled. If no particular person was mentioned, Howe agreed to the suggestion that there should be a receiving house in the place indicated, and left the selection to the postmaster.

The whole affair was considered as a private matter between postmaster and way office keeper; no letter bills or forms of any description were ever supplied to the way office keepers, and so long as they paid to the postmasters the amount of postage due on letters sent to them for delivery, the very existence of these offices was ignored.

These way offices were known locally as twopenny offices, that is, the keepers charged twopence on every letter passing through their hands. An instance will explain the mode of operation in these offices. A gentleman living in Port Hood, on the west coast of Cape Breton, stated that he had

sent a double letter weighing less than half an ounce a distance of fifty miles; and as it had to pass through five way offices, the charge was one shilling and eightpence (thirty-three cents). He received letters from England, which cost one shilling and fourpence (twenty-seven cents) from England to the Straits of Canso; but the conveyance from that point to his home, a distance of twenty-six miles, cost one shilling and fourpence more.

The anomalies were due partly to the mixed character of the control of the system in the province, and partly to the inability of the deputy postmaster general, owing to his lack of efficient help, to supervise the system. Howe was under the authority both of the postmaster general in England, and of the provincial government, which provided for the maintenance of a number of offices, which would not have been sanctioned by the postmaster general on account of the expense.

Illegal conveyance of letters was the rule in this province, as well as in all the others. The great proportion of the correspondence between the towns and villages on the long coast was carried by trading vessels. On some of the main routes, notably from Halifax to Pictou and to Annapolis, there were fast four-horse coaches. They travelled eight miles an hour in summer and five in winter. They were employed to carry the mails, but it never happened that the mail bags contained as many letters as the pockets of the passengers.

In Cape Breton there was not a single carriage road in the island. Most of the roads were mere bridle paths, and in many parts there were no roads of any kind. It took five days to carry the mail bag from Halifax to Sydney during the summer, and from eleven to eighteen in the winter.

The deputy postmaster general had a salary of £400 a year, which was supplemented by the amounts collected as newspaper postage. In 1841, the amount of this perquisite was £330 a year. It was a cause of complaint on the part of rival publishers that the *Nova Scotian*, the leading newspaper in the province, paid no postage. As the circulation of this paper—1400 copies a week—was more than double that of any other paper in the province, the grievance was a real one.

In explanation of the exemption, Howe stated that for ten years before he purchased the *Nova Scotian*, the proprietor, Joseph Howe, had assisted him

in the management of the office for eleven months while the deputy postmaster general was in England, taking full management of the provincial system. For these services Joseph Howe had asked no compensation, and the deputy postmaster general had therefore taken no remuneration for mailing the newspapers. ^[272]

There were only two towns in the province where letters were delivered by carriers—Halifax and Yarmouth. In Halifax, the city was divided between two carriers, whose pay consisted of the fees they were entitled to take from the recipients of the letters they delivered, at a penny a letter. They attempted to charge the same sum for the delivery of each newspaper, but many persons would not pay the fee. The carriers received £2 10s. and £2 a week respectively. Yarmouth also had two carriers, whose penny fees gave them each about £12 10s. a year.

The relations between the deputy postmaster general and the provincial government were the subject of much critical comment on the part of Page. The fact that the government contributed to the maintenance of the less remunerative routes and post offices gave the executive and the assembly a colour of title to interfere in the management of the post office, which was exercised, in Page's opinion, beyond all due bounds.

The governor's secretary was in the habit of giving Howe orders, and if Howe showed any hesitation in complying with them, he became offensively peremptory. Investigations into complaints against postmasters were taken into the hands of a committee of the assembly, in disregard of Howe's authority. As it appeared to Page, there was a determined effort to set aside the authority of the postmaster general and to take over the management of the system by the government. Howe at Page's instance, took a firm stand and informed the governor that, in case of conflict between the directions he received from England, and those given by the governor, it was the directions from St. Martins-le-Grand he was bound to obey.

The disappointment in the general post office over the failure of the plan to remove the difficulties with the government of Nova Scotia, which was largely due to the hopeless complication of the accounts, changed the attitude of the officials at home towards Howe from one of good will to one

of censure, which reached the point that nearly determined them to dismiss Howe.

Page pointed out the injustice of such a step. Howe's position was one in which it was impossible to escape criticism from either the provincial authorities or his official superiors, whose views were frequently in sharp antagonism to one another. The part of the provincial system under Howe as deputy of the postmaster general in England had its accounting scheme, and the part, which was maintained by the legislature, had another, separate and distinct.

But the passing of letters between the recognized post offices and those established by the legislature, gave rise to accounts between the two systems under Howe's management, which it was practically impossible to adjust satisfactorily, unless by the adoption of a give-and-take system, to which neither the general post office nor the legislature showed any disposition.

Howe's death in January 1843 closed the question as to whether or not his administration was deserving of censure. It also brought to an end an era, within which the postal service had expanded from the single route extending from Halifax to Annapolis and Digby, over which the mail courier travelled but once a month, to the network of routes whose ramifications covered every part of the province.

Judged by the only possible test, the administration of the Canadian service under Heriot, Sutherland and Stayner, the administration of the two Howes must be pronounced a conspicuous success. The deputies in Canada were faithful to their superiors in London, but they were so at the expense of the popularity of the postal service in the provinces.

The Howes managed to extend their service equally with their Canadian colleagues, and at the same time held the good will of the authorities in the province. Howe was a man who left no enemies. The governor, in discussing the postal difficulties of the province with Page, expressed the utmost good will for Howe himself, the only ground of complaint against him being an embarrassing intimacy with the members of the legislature.

Page, who visited Nova Scotia for the purpose of inspecting Howe's administration, bore testimony, before Howe's death, to his kindly disposition and to the high respect in which he was held, officially and in private life. His rectitude in all his relations was never in question. ^[273]

Howe's successor was Arthur Woodgate, who had served in the post office in Jersey. Woodgate administered the post office in Nova Scotia until the provincial system was absorbed in that of the dominion, when the confederation of the several provinces took place; until 1851, he was, as were his predecessors, deputy of the postmaster general in England; after that date he was postmaster general for the province of Nova Scotia.

An immediate consequence of the death of Howe was the removal of the post office in Halifax from the site it had occupied to the Dalhousie college building. The merchants objected to the continuance of the post office in its former situation, and in the search of a more convenient location, it was observed that the ground floor of the college building, which was occupied as a tavern, offered advantages, which satisfied the mercantile community.

A lease was effected for the new quarters on the 6th of July, 1844, and the post office surveyor reported to the secretary that there was at the disposal of the department, a large and capacious room solely for the purposes of the inland sorting office; a delivery office, and a large room for sorting papers, all on the ground floor; while in the second storey there was ample accommodation for the deputy postmaster general and his staff. ^[274]

The question of a reduction in the postage rates engaged the attention of the legislature every session, after the beneficial results of penny postage in Great Britain became known. In March 1842, the assembly, which was at this time under the speakership of Joseph Howe, petitioned to have the charges taken entirely off newspapers and pamphlets. As newspapers were almost the only vehicles of information in the province, and the postal charges were collected entirely from the rural parts, they were a heavy burden on people who could least bear it.

The postmaster general in reply stated that the proposition to relieve newspapers altogether from postage could not be considered, but a reduction in the charge was at that time being considered by the treasury. Newspapers were increasing so rapidly, at the existing rates, that it was

becoming a question, with the bad state of the roads, as to how to provide for their transmission. Pamphlets were being charged as letters in England, and it would be impossible to sanction their free conveyance in the colonies.

At the same time the assembly requested the lieutenant governor to have inquiries made as to the feasibility and effect on the revenue of a uniform rate on letters of fourpence per half ounce within the province. The deputy postmaster general, to whom the question was referred, was strongly opposed to the proposition. He was convinced that the increase in the correspondence would be slight, and that, at the rate mentioned, the revenue would not be sufficient to pay the cost of any one of the principal routes in the province.

At the beginning of 1844, the changes, already mentioned, of charging letters by weight instead of number of enclosures, and of charging newspapers a halfpenny per sheet, came into operation in the Maritime provinces. These ameliorations went as far as the officials of the post office were prepared to recommend, in the existing state of the finances of the provincial post office. The assembly in Nova Scotia were persistent in their demand for a reduction in the charges on letters. They had before them the evidence taken that year in England as to the effect of penny postage, which had then been in operation three years.

The resolutions the assembly adopted were fully borne out by that evidence. They resolved that the experience of the parent state had clearly established that "the introduction of a uniform rate of penny postage has had a beneficial effect upon the social and commercial classes of the United Kingdom; has largely increased the number of letters passing through the post office and prevented the illicit transmission of letters by private opportunities, and that its effect has been fully counterbalanced by the other important consequences resulting from it."^[275]

The assembly were therefore satisfied that a fourpenny rate established under the same regulations as to the use of postage stamps, would promote the public interests, not add materially to the labour of management, and ultimately increase the public revenue.

Coupled with this resolution was another to the effect that it would be desirable to have the provincial post office under the control and management of the legislature. With this point, the secretary of the post office dealt at length in a memorandum to the postmaster general.

In his opinion very great advantage resulted from the present system, by which the control of the post offices in the greater part of the British colonies was vested in the postmaster general. To abandon it would be extremely prejudicial, and would have the effect of breaking up the existing organization (which he was at that time endeavouring to make as uniform as possible for the whole empire) into various conflicting systems framed according to the views and feelings of each separate colony, to the great detriment of the general interests of the empire.

Loud complaints, the postmaster general was reminded by the secretary, were being made respecting the post offices in Australia, where four different scales of rates of postage were in operation, resulting in inconveniences which a recently appointed commission of inquiry were authorized to obviate. He regarded it as a great advantage that one uniform system of management and one uniform scale of rates of postage should prevail in the North American provinces, in Newfoundland and in the West Indies.

The reply of the postmaster general, which was based on the secretary's report, ^[276] received the cordial assent of the legislature. After reviewing the condition of the colonial post offices in their relation to the imperial system, the postal committee of the legislature declared that "the promptness and celerity of intercourse is unrivalled in the world, and has greatly contributed to the commercial advancement of the nation. So complicated is the British postal system that, without the details, it is not possible to obtain a conception of its present perfection. Nowhere is inviolability of letters more respected than in England and the United States, and by the constitution of the latter, adopted in 1789, exclusive power is given to congress to establish post offices and post roads, thus preventing the difficulties which would have resulted from leaving this department to the several states."

On this point, then, the committee advised that the house should yield to the wisdom of the imperial parliament. They returned, however, to the question

of a uniform fourpenny rate for letters, which in their opinion would facilitate intercourse, and ultimately carry the revenue far beyond the amount expended for the maintenance of the service. Since Hill made the use of postage stamps an integral and important part of his scheme for penny postage, the legislature, in again expressing its faith in the benefits and feasibility of the uniform fourpenny rate, directed attention to the merits of postage stamps.

The postmaster general was of opinion that this suggestion should not be entertained. Any proposal for allowing postage stamps to be used in the colonies had hitherto been resisted from a fear, amongst other objections, that forged stamps would find their way into circulation with little fear of detection. The solicitor of the post office was of opinion that if forgery were committed in the United Kingdom it could not be punished in the colonies, whilst on the other hand, if committed in any of the colonies, it could be visited with no penalty on parties in the United Kingdom.

With the acquiescence of the Nova Scotia legislature in the view of the general post office as to the desirability of maintaining a centralized imperial postal system, and the only outstanding question on which there was disagreement that of a reduction of postage rates, it will be expedient to bring forward the narrative of events with respect to the post office in New Brunswick. The information amassed by the royal commission makes this an easy task.

What strikes one at first glance is the little progress that had been made since 1825, when Howe made his official tour through the province. In 1825, the population stood at 75,000, and in 1841 it had risen to nearly 160,000. The increase was distributed with considerable evenness over every part of the province, though the preponderance found its way to the outlying districts. The numerous settlements thus established would seem to call for a wide extension of the postal service.

But little was done to meet the requirements. There were nine post offices in the province in 1825: in 1841, when the population had more than doubled and was scarcely less than half what it is to-day, there were no more than twenty-three. Between Fredericton and Woodstock, a stretch of sixty-two miles of well-settled country, there were no post offices. The

districts lying between Fredericton and Sussexvale, eighty-eight miles, and between Fredericton and Chatham, one hundred and fifteen miles, embracing many farming communities, were equally unprovided for, which is the more inexplicable since couriers travelled through all these districts to the several points mentioned, and the expense for post offices would have been more than covered by the revenues of the offices.

The system of mail routes can be described shortly. From Halifax there was a main post road, which entered New Brunswick a few miles west of Amherst, and following in its general lines the course of the inter-colonial railway passed the bend at Moncton, and continued its way on to St. John. At a point near the present Norton station, called the Fingerboard, there was a route to Fredericton.

Over these routes the courier travelled twice each way weekly. Between Fredericton and Chatham, there was a service of the same frequency. Chatham was the distributing point for the line of settlements, skirting the shore, northward to Campbellton, and southward to Dorchester. On the former route, the trips were made weekly, and on the latter, twice a week. Mails were carried daily between Fredericton and Woodstock, Fredericton and St. John and St. John and St. Andrews.

Though, in comparison with the other provinces, the mail conveyance in New Brunswick was not greatly open to criticism in point of frequency, the post office was no more popular there than elsewhere. Steamers, which ran daily between St. John and Fredericton, were employed by the post office to carry the mails, but though the steamer carried many every trip, there were few of which the post office got the benefit.

There was a practice of taking letters to the steamer and tossing them on to the table in the cabin. On the arrival of the steamer in port, a crowd of messenger boys who were awaiting it picked up the letters from the table and delivered them through the town at one penny or twopence each.

The stage coaches were laid under contribution in the same irregular manner. Every passenger between St. John and Fredericton was expected to take with him all his friends' letters, which he either delivered to the persons to whom they were addressed, or deposited in the post office, the postmaster receiving a penny each for delivering them. A stratagem

sometimes employed was to place letters in the midst of a bundle of paper and sticks of wood, the freight of the bundle being less than the postage on the letters it contained.

It was at this time that the legislature of New Brunswick began to manifest an interest in the management of the post office. In 1841, a special committee of the assembly reviewed the operation of the system, and among the questions discussed was the authority.

The committee expressed the opinion that no arrangement could be satisfactory which did not combine provincial control of the local post office with a general imperial oversight over the whole system; and they recommended that a deputy postmaster general should be appointed whose duty it should be to prescribe mail routes, open post offices, appoint postmasters, and generally to manage the business of the post office in the province.^[277]

The question of local management the general post office proposed to solve, not in the manner desired by the assembly, but by separating New Brunswick from the jurisdiction of the deputy postmaster general at Halifax, and establishing a department in the province, under a deputy postmaster general who should be stationed at St. John, and who should be, as the deputies in the other provinces were, subject to the postmaster general of England.

Local control was partially effected, as in the other provinces, by vesting the appointment of all officials, except the deputy postmaster general and the inspector, in the lieutenant governor. On the 6th of July, 1843, a separate establishment was set up in New Brunswick with John Howe, the son of the late deputy postmaster general for Nova Scotia, in charge as deputy postmaster general.

The arrangement had, at first, only a qualified success. It was criticized by the legislature as having nearly doubled the expense of the establishment, and by the post office officials on the ground that it introduced the local politician into the system.

As illustration of the introduction of local political mechanics, Page reported to the secretary of the post office that the deputy postmaster

general, having had to dismiss a postmaster for very gross mismanagement, applied to the lieutenant governor for a nomination for the vacant office. [278] The lieutenant governor nominated the dismissed man, and when the nomination was refused, he proposed to appoint the late postmaster's son. The explanation was that the postmaster was a leading politician, and his re-nomination had been insisted upon by the political manager, whom the governor consulted.

The lieutenant governor viewed with no favour the independent powers of the deputy postmaster general. In the course of a dispute over the dismissal by the deputy postmaster general of a person whom he had appointed, the lieutenant governor laid his opinions and desires energetically before the colonial secretary. He requested that the general post office should be removed from St. John to Fredericton in order that the latter might be more effectually under the control of the lieutenant governor; and that the post office surveyor or inspector should make his reports to himself and not to the deputy postmaster general. His views were held to be quite untenable, the postmaster general pointing out that if carried into effect, they would make the governor the deputy postmaster general.

St. John and Fredericton were the only towns in New Brunswick in which correspondence was delivered by letter carrier. In St. John there were two carriers, who covered the city together, one delivering letters, the other newspapers. They were paid a penny for each letter or newspaper. In Fredericton there was only one carrier, who was in the employ of the postmaster, who retained the sums collected as his own perquisite.

New Brunswick was in no respect behind the sister provinces in its demand for the essential thing—a reduced rate of postage. The chamber of commerce of St. John, in 1841, petitioned the postmaster general to reduce the rate on letters exchanged between any of the post offices on the route between St. John and Halifax to threepence, arguing that British letters for places anywhere in the colonies were carried from Halifax inward for one penny (the rate was really twopence), and that letters were exchanged between the remotest places in the United States for one shilling and threepence.

To the point respecting the conveyance of British letters, the postmaster general replied that this part of the service was carried on at a heavy loss, which was only to be justified as an imperial measure.

A legislative committee sitting in the same year went beyond the chamber of commerce in its recommendations.^[279] It was of opinion that there should be a uniform rate on letters circulating within the province, and that that rate should not exceed twopence. They, also, recommended that newspapers, legislative papers and small pamphlets, being for the political education of the people, should be exempt from postage altogether. They foresaw a temporary loss if their recommendations were carried into effect, but considered that any such loss should be made good by the legislature.

In 1843 the legislature took up the subject again, repeating their desire for free newspapers, and requesting that the rate on letters exchanged within the province be fixed at threepence a single letter.^[280]

The assembly, in 1845, addressed the king on the whole question of the post office.^[281] After remonstrating on the large increase in the cost of the provincial service, as the result of erecting a separate establishment, they complained that, in order to bring the expenditure within the revenue, the department had cut off several routes and reduced the frequency of the couriers' trips on others. The charges on letters and newspapers were so high as to impede correspondence.

The assembly in this address gave it as their opinion that if the charges on letters were reduced by one-half, and were abolished altogether as regards newspapers, the receipts would soon be greater than they were. The legislature had expended £145,000 on the main roads during the preceding ten years, and it was disheartening that the postal accommodation was less than it had formerly been.

In their requests in 1845 for reduction of charges, the legislature were more conservative than they had been in earlier sessions. Still maintaining that newspapers should circulate free of postage, they were content to ask that the charges on letters should range from sixpence to twopence, according to the distance they were carried. They asked that the deputy postmaster general be required to establish such additional service as the legislature

might see fit to demand; that the accounts of the provincial system be laid annually, in full detail, before the legislature, and that any surplus revenue be devoted to extending the facilities for inter-provincial communication. In consideration of the foregoing requests being granted, the legislature pledged themselves to provide such additional sums as might from time to time be required to defray the current charges.

The colonial office replied to this address in October of the same year.^[282] The principal points dealt with were the petition for free newspapers, and the complaint that the accommodation to the public had been diminished.

On the latter point, the colonial secretary stated that no services had been affected, except where they were unnecessary. As for the question of free newspapers, if New Brunswick could be dealt with separately from the other provinces, there could be no objection to meeting their wishes, but in view of the fact that the effect on the other provinces had to be considered, the request of New Brunswick could not be granted.

The legislature in the following session took issue with the colonial secretary on this point. It was quite open to Nova Scotia or any of the other provinces to adopt the same policy as New Brunswick considered advisable. The legislature took a course, which had not hitherto been pursued by the other provinces. They besought the co-operation of a sister province in an effort to have their desires carried into effect. They sent a copy of the address of the previous session to Canada and suggested a joint effort to secure reduced rates for the North American colonies, by guaranteeing a sufficient sum in proportion to the business of the respective provinces to make up any deficiency of a temporary nature that might be caused by such reduction.

The post office in Prince Edward Island was involved in none of the controversies, which agitated the people of the other provinces. It owed its immunity to its low estate. Its revenues were never equal to the cost of its maintenance, and consequently it was not a subject for exploitation. A post office was opened at Charlottetown in the beginning of the nineteenth century, and until 1827 it was the only institution of the kind in the island.

Letters addressed to persons dwelling outside of Charlottetown, no matter how far, remained in the post office in that town until called for. This state

of things led to many inconveniences, but it was not until 1827 that it received official attention.

Lieutenant governor Ready, in the course of his speech at the opening of the legislature in that year, pointed out the necessity of establishing a postal system in the island, "as affording the means of a speedy and safe communication with our distant population, and of conveying to them a knowledge of the laws and proceedings of the government, which, while it contributes to the security of the people, serves also to guard them against the effects of misrepresentation and misconception."[\[283\]](#)

The legislature having expressed their concurrence in these views, the postmaster of Charlottetown was directed to open a number of post offices, and establish the necessary courier routes. The system began operations on the 1st of July following.

There were three routes established. The western courier exchanged mails at New London, Malpeque, Traveller's Rest and Tryon River, his route being nearly ninety miles in length. The eastern courier served St. Peter's Road, St. Peters, Bay Fortune and Grand River. This route was upwards of one hundred miles. The south-east courier travelled fifty-three miles, and exchanged mails at Seal River and Three Rivers.

The couriers performed their services weekly in summer and fortnightly in winter. The rates of postage were fixed by the legislature without regard to the postmaster general of England, and were twopence a letter and one-halfpenny a newspaper. The report of these proceedings rather disturbed the deputy postmaster general at Halifax, whose jurisdiction included Prince Edward Island and who expressed his disapproval of the course pursued by the authorities. He notified the postmaster of Charlottetown that there was no power possessed by the government of any colony of Great Britain to establish post offices and set up couriers, and demanded to be furnished with the orders under which the postmaster had acted.

The secretary of the general post office, in a letter to the postmaster general, pointed out that the measures taken by the legislature of Prince Edward Island were entirely illegal, but that it was a question how far it might be expedient or politic to interfere in a settlement where the deputy postmaster general had not thought it necessary to establish internal communications;

particularly when the communications, if established, would probably not produce revenue sufficient to cover the expenses.

He therefore suggested no interference be made for the present with the arrangements in the island, and that Howe, the deputy postmaster general, should watch the financial results of the system. If it should appear that a revenue should arise, then the local authorities might be advised that the postmaster general would take the arrangements into his own hands, under the powers given by his patent, and by various acts of parliament.

The postmaster general concurred, and Howe was duly instructed. As it appeared at the end of the first year's operations, that the revenue derived from the posts set up by the legislature amounted to £268, while the expenses were £383, the postmaster general decided to leave the service in the charge of the legislature, with instructions to Howe to keep his attention alive to the subject in case a change in the financial results might make it desirable for the postmaster general to assert his authority.

The outcome of the negotiations was that the revenue collected by the post office in its internal system was passed over to the provincial treasury, which defrayed the cost of maintaining the couriers. The situation remained unchanged until 1851, when the control of the post office was formally transferred to the colonial legislature. The financial results of the system were at no time of any considerable magnitude, and the expenses constantly outran the revenue, though not sufficiently to make the post office a serious burden on the provincial revenues. In the year 1850, the total net receipts were £1441, and the expenditure was £1528.

FOOTNOTES:

[269] Howe to Lawrence, September 2, 1839 (Br. P.O. Transcripts).

[270] *Report of Committee of Assembly*, February 25, 1842 (enclosure in Howe to Maberly, April 4, 1842, Br. P.O. Transcripts).

[271] Falkland to colonial office, April 30, 1841 (Br. P.O. Transcripts).

[272] *Journals of Assembly*, Canada, 1846, App. F. (E).

[273] Howe's death took place on January 18, 1843.

- [274] Watson to secretary, G.P.O., July 17, 1844 (Br. P.O. Transcripts).
- [275] *Journals of Assembly*, 1844.
- [276] *Journals of Assembly*, 1846, and Br. P.O. Transcripts for 1845 and 1846.
- [277] *Journals of Assembly*, N.B., 1841, p. 266.
- [278] Page's *Inquiry*, II. 72 (Br. P.O. Transcripts).
- [279] *Journals of Assembly*, N.B., 1841, p. 266.
- [280] *Journals of Assembly*, N.B., 1843, p. 285.
- [281] *Ibid.*, 1845, p. 334.
- [282] *Ibid.*, 1846, p. 54.
- [283] Howe to Freeling, June 10 and September 29, 1827 (Br. P.O. Transcripts).
-

CHAPTER XV

Reversal of attitude of British government on post office control—
Instructions to Lord Elgin—Provincial postal conference—Control of
post office relinquished to colonies.

The ministry formed by Lord John Russell, which took office on July 6, 1846, gave its immediate attention to the condition of the post office in the North American colonies, and a few weeks after taking office, Lord Clanricarde, the postmaster general, laid a proposition before the treasury^[284] which had for its object the severance of the relations between the colonial system and the general post office and the withdrawal of the latter from all responsibility respecting the service in the provinces.

The reversal of policy in this case was as remarkable for suddenness as that which, in the same year, had brought about the abolition of the Corn Laws. As late as June 9, the secretary of the post office submitted a proposition from Stayner for a substantial reduction in the rates, with many doubts as to the propriety of accepting it. He pointed out that it would involve, at least temporarily, so great a shrinkage in the revenues, that the treasury would be faced with alternatives almost equally distasteful, but one of which it would be obliged to adopt. The treasury must be prepared either to take on itself the deficits certain to arise, or must call upon the colonial legislatures to meet them.

While the treasury was deliberating, a new postmaster general supervened, who was quite prepared to face the idea of colonial postal systems over which he ceased to have control. With the insistent petitions from Canada and New Brunswick before him, he came to the conclusion that the time had arrived when it was no longer expedient for the general post office to continue responsibility for postal systems, which had to subserve interests understood only by those whom they concerned. With certain safeguards, he had no fear for the impairment of imperial interests.

The course of reasoning by which Clanricarde reached the conclusions he communicated to the treasury were as follows: The unanimity of the demands of the colonial legislatures left no doubt that the postage rates must undergo a very considerable reduction; and there was equally little doubt that the consequences of this reduction would be a diminution of revenue so considerable that a large deficit would be inevitable. New Brunswick, the new postmaster general recalled, had undertaken to make good its portion of the deficiency, and there was every probability that the other provinces would assume the same obligation.

In these deficiencies, however, in spite of the utmost good will on the part of the provinces, lay the seeds of certain trouble. The principle governing the establishment of a postal system, and its expansion to meet local requirements, was fundamentally different in a new country from the principle by which they were guided at home. In a new country a postal system was expected to afford the means of extending civilization, and to advance with equal step with settlement, whereas in a long settled country, the postal system followed in the train of civilization.

The consequence of this difference is naturally a frequent clashing of opinion between the authorities at home and the public in the colonies. Disputes were constantly arising as to the extent of the accommodation to be given to new settlements, the amount of the salaries to be paid to officials, and above all as to the principle upon which new and expensive posts should be established.

As to this last point, the general post office had just disposed of an application, which threw a strong light on the different elements, which had sometimes to be taken into consideration in dealing with questions of extensions of the system in a country like Canada. [\[285\]](#)

Sir George Simpson, the deputy governor of the Hudson Bay Company, represented that the company had a post at Sault Ste. Marie, for which postal accommodation was desirable. The post office having but one test to apply was disposed to reject the application on account of the insufficiency of the prospective revenue to cover the cost of the service.

Gladstone, at that time colonial secretary, sought information from Lord Cathcart, administrator of the government, as to the merits of the

application and learned that, besides the Hudson Bay interest, there were prospects of large mining developments in the district, and that a body of troops was about to be sent to fort Garry, which would certainly require regular communication with headquarters.

These were considerations which post office officials in Great Britain would seldom have to take into account, and while the accommodation was authorized in this case, owing to the standing of its advocates, there would be many cases, where the necessity would appear equally great to local authorities, which would not impress the authorities at home sufficiently to cause them to disregard their customary regulations.

Parenthetically it may be stated, as instances, that when the North-West territories were taken over by Canada in 1869, it became necessary to establish a mail service over a stretch of nine hundred miles between Winnipeg and Edmonton, at a cost of \$10,000 a year, while the revenue from the route would scarcely exceed as many hundreds; and for many years after the Canadian Pacific railway was carried to Vancouver in 1886, the expenditure of the post office for the conveyance of mails into that country exceeded the revenue by some hundreds of thousands of dollars.

On this point the postmaster general says: "there is no more fertile source of contention in the North American colonies than the establishment of new posts; and if the means of extending such posts throughout the colonies were provided by funds not of the post office, but granted from the general colonial revenue, however well administered a department might be, I fear it would constantly be subjected to accusations of favouritism and of undue influences."

Clanricarde conceded that it would only be reasonable to expect that the legislative assemblies would endeavour to ascertain whether by rearrangements, or other alterations in the administration, the deficiency would not be diminished, and whether economy could not be introduced with respect to salaries. The struggle of members for local advantages would heighten the feeling with which the department administered from England would be regarded.

The postmaster general summed the situation up by declaring his conviction that any measure producing a large deficiency in the post office revenue

would be tantamount to a surrender of the administration by the postmaster general; and as he was of opinion that the general colonial interests called for a large reduction in the postage rates, he considered that it would be better that the postmaster general should resign his control over the post offices at once.

The imperial interests, which had determined the department in the past to retain its control over the arrangements remained in undiminished strength; and in order to safeguard these, it would be necessary to stipulate for certain conditions to which the colonies would be required to agree, before the colonial post offices were relinquished to the colonial legislatures.

The first was that correspondence passing between two colonies through the territory of a third, should not be subject to a charge on the part of the latter for transportation. This stipulation ensured that an intermediate colony should not have the power to compel the colonies on either side of it to raise their charges to meet exorbitant rates for transportation.

The second condition was that, in the case of correspondence passing between Great Britain and the colonies, the postage on which was one shilling and twopence, the part of this amount, which was for the inland conveyance, viz. twopence, should remain in operation, unless the ordinary inland rate should be less than twopence. In this case the correspondence to and from Great Britain should have the benefit of the lower rate.

The third condition was that prepayment or payment on delivery should be optional with respect to correspondence passing from one province to another, and, in order to avoid complicated accounts between the provinces, the practice should be for each province to treat as its own all the postage it collected whether it were on letters paid at the time of posting, or on letters from other provinces, the postage of which, being unpaid at the office of posting was collected at the office of delivery. The postmaster general also suggested, as highly desirable, that a uniform system and rate of postage should be maintained throughout the provinces.

As the proposition of the postmaster general provided for the reservation to the treasury of the full amount of the packet postage, part of which had until that time been used in the colonies to defray the expenses of their services,

there could be no objection in point of finances to leaving to the colonies the control of their post offices.

Lord Elgin, who came out as governor general in the beginning of 1847, brought with him instructions to convey this information to the several legislatures. In these instructions Lord Grey, the colonial secretary, after alluding to the great change in the economic policy of the United Kingdom towards the colonies as a consequence of the adoption of the principle of free trade—the abolition of the preferential tariff which the colonies had hitherto enjoyed, and the concomitant removals of the restrictions, which had existed on their trade with foreign countries—pointed out that in order that they might reap the largest measure of benefit from the greater freedom of trade, it was necessary that they should be united for customs purposes, on lines perhaps similar to those of the German Zollverein.

Grey further intimated that it was also desired, in order to complete the commercial association of the colonies, that some arrangement should be come to for settling the affairs of the post office. He suggested that a conference of the representatives of the colonies should be held in Montreal, to discuss these important subjects, and to endeavour to arrive at some agreement as to the principles to be adopted in giving effect to united colonial action.

Elgin delivered his message to the Canadian legislature in opening the session of 1847, on the 4th of June. He stated that he was enabled to inform the legislature that His Majesty's ministers were prepared to surrender to the provincial authorities, the control of the department in the colonies as soon as, by consent between the several legislatures, arrangements should be matured for securing to British North America the advantage of an efficient and uniform postal system.

But before this official intimation reached the colonies, action had been taken in one of them, on lines so closely parallel to those defined in the letter of the postmaster general to the treasury, as to suggest that Elgin, on his arrival in Boston on the 25th of January, had at once despatched a message to Halifax, since, on the 27th of January, the question of the post office was brought up for discussion in the legislature of Nova Scotia.

A committee was appointed to inquire generally into the conditions of the post office, and, particularly, into the advantage of one general system being adopted for the colonies, and the best means of accomplishing such an object.^[286] Their task was to submit such a scheme as should be likely to command the approval of the other colonies and of the imperial authorities. This scheme should be founded upon some principle of central supervision and management of the various colonial post offices that would ensure uniformity in their operations, security against conflict with the general post office of the empire, and a proper degree of responsibility of the local heads to their legislatures.

Addressing themselves first to the question of postage rates, the committee at Halifax decided, though with some misgivings, to recommend for adoption the rates proposed by the commission approved by Sydenham to investigate the affairs of the post office. These rates were based on the principle of charging according to the distance letters were carried.

The preference of the committee was for a single uniform rate. But they were prepared to waive it, and adopt the rates proposed by the commission, "because those suggestions had already received the sanction of able men well acquainted with the subject, because they believed their adoption would involve very great benefits to the people of this colony, and because they believed those suggestions were more likely to be concurred in by the authorities in England, and by the other colonies, than would be any that proceeded directly from themselves."

The concurrence of the legislatures of the other provinces should be obtained in the recognition of common principles, and of the necessity for an independent authority placed in one of the colonies, whose function it should be to organize and centralize the department within certain limits to be prescribed and defined.

The report of the committee was submitted to the assembly of Nova Scotia on the 29th of March, and was adopted on all points, except the important one of the rates of postage. The house was not disposed to concur in the continuation of a system of postal charges, which had been definitely abandoned in Great Britain and the United States, and which had been condemned by every public body in the colonies, which had considered the

subject. The assembly substituted for the rates proposed by the committee the uniform rate of threepence, and were prepared to face such deficits as should result. The lieutenant governor was requested to send the resolutions to the other colonies, with the earnest desire that they would be pleased to give them consideration.

On the 30th of June, the Nova Scotia resolutions were laid before the Canadian legislature, and no time was lost in carrying into effect the suggestion of a conference between representatives of the colonies on the mainland. Wm. Cayley, the inspector general of Canada (in practice the minister of finance), J. W. Johnston, the solicitor general of Nova Scotia and R. L. Hazen, of the executive council of New Brunswick, were appointed representatives of their respective provinces.

These representatives of three of the four provinces met in Montreal, on the invitation of Elgin; and in October, the result of their deliberations was presented to the governor general. [\[287\]](#)

In considering the question of the establishment of an independent management within the provinces, thus taking over the functions of the general post office so far as they related to the colonies, the delegates discussed the relative advantages of a scheme of a central department for the four provinces with united revenue and management such as then existed, or of one that would place the management of the postal arrangements in the hands of the local governments of each province, with no greater central control than should be necessary for securing imperial and inter-colonial interests.

The former of the two alternatives was rejected, as open to practically all the objections that had arisen from the control being continued in England. There was the further consideration that the most practical security against an imprudent excess in postal accommodation would be found in the consideration that undue encroachments on the general revenue for the benefit of the postal service would diminish the means required for other and not less valuable purposes. This motive, powerful when confined within the limits of a single province, might lose much of its force, were the postal revenues of the four provinces gathered into one fund.

The other alternative appeared free from the objections mentioned. The delegates, therefore, recommended that the post office departments in the several provinces should be separate and distinct from one another, and under the control, each, of its own provincial government, which should appoint all officers, make arrangements for mail service, pay all expenses, and retain all collections, except the balances due to Great Britain on packet postage.

For expenditures common to all the provinces, there should be an office of central audit in Canada of which the postmaster general of Canada should be the head. The duties of the office were to audit the accounts of the several provinces, returns of which should be presented annually to the different legislatures; to collect and transmit to England the balances due from the four provinces on the packet service; and, in concert with the postmaster general in each province, to make all necessary arrangements for the transmission of the mails along the chief or central route from Canada to Halifax and between Nova Scotia and Prince Edward Island.

This office was anomalous in character, implying the inability of the several independent provincial departments to make all necessary business arrangements among themselves, and when the provinces assumed control of their post offices, it was not established.

In dealing with the question of the rates of postage, the delegates had before them the various representations from the several provinces as to the desirability of establishing, if possible, a low uniform rate of postage; and the success of penny postage in Great Britain and of the rates adopted in the United States in 1846 encouraged the belief that a low uniform postage would not only confer immeasurable commercial and social benefits, but would within a reasonable time be productive of a revenue ample for all the needs of the service.

It was, therefore, agreed to recommend to their respective governments the adoption of the threepenny or five-cent rate for each half-ounce letter. Lest, however, any of the provinces should fear for the financial results of conveying letters over the greater distances for this sum, they confined their recommendation to letters carried less than three hundred miles, leaving it optional to charge a double rate for letters carried beyond that distance. For

the purpose of fixing the charge the provinces were to be regarded as one territory.

No change was recommended in the charges on newspapers, parliamentary documents, or other printed papers, but the several legislatures were left free to exempt these from postage, if they thought fit to do so. Prepayment or payment on delivery of letters should be optional, and franking abolished.

The treasury to whom this report was submitted, approved of the arrangements proposed, except that relating to the payment for the British mails to and from the port of destination in America. But they contented themselves with observing that this remained a matter of negotiation between the home and the colonial departments; and stated that as soon as the arrangements had been sufficiently matured, the requisite steps would be taken for the transfer of the postal communications to the provincial authorities.

Nova Scotia, which had taken the leading part in the negotiations which had brought matters to the point they had reached, again took up the leadership. On the 21st of March, 1848, the legislature adopted the report of the commissioners, and directed the attorney general to prepare a bill based on the view of Grey and Clanricarde, pledging themselves to make good any deficiency which might take place in the post office revenue of that province.

The bill to effect this arrangement was adopted by the legislature on April 4. [\[288\]](#) Thus all necessary action on the part of that province was complete, and the measure was ready to be put into operation, as soon as the British government and the other colonies had taken the necessary action on their part.

Following up the enactment of this measure, the Nova Scotia legislature appointed James B. Uniacke, the chairman of the post office committee, to visit Canada, and lay before the governor general the views of Nova Scotia on the subject of the provincial post office and to endeavour to settle with Canada the questions necessary to be disposed of before the post office could be established.

Uniacke arrived in Montreal on the 8th of June, and had interviews with Elgin and the executive council. Two days later the council adopted a report drawn up in terms differing but slightly from those of the commission of 1847, and recommending the adoption of a uniform rate of threepence (five cents) throughout British North America.

The other recommendations were the same as those submitted by the committee, with the addition that postage stamps should be issued for the use of the public. The council were of opinion that the provisions recommended should be introduced in a bill, to be laid before parliament, and expressed the hope that the postmaster general might be given full discretionary powers in matters referring to the colonial post office, and that Her Majesty's government might be persuaded to adopt the above rates and regulations without further delay, the council pledging the administration to make good any excess of expenditure over revenue which may possibly arise in carrying out such arrangement. [\[289\]](#)

The government of Nova Scotia then approached that of New Brunswick, the lieutenant governor at Fredericton being informed of the result of Uniacke's visit to Canada and that all that was now required was the assent of the government of New Brunswick and the approval of the imperial authorities. The governor general added a word to the intimation of the lieutenant governor of Nova Scotia, and it was settled that legislation would be introduced into the New Brunswick legislature in accordance with the terms agreed upon. [\[290\]](#)

All requisite measures for establishing the colonial post offices on an independent footing were matured, so far as could be done, by the legislatures themselves, and nothing now remained but the imperial sanction. This the law officers were of opinion would require an act of the imperial parliament, and on the 28th of July, 1849, [\[291\]](#) an act was passed empowering the legislative authorities in any of the colonies to establish and maintain a system of posts, to charge rates of postage for the conveyance of correspondence, and to appropriate to their own uses the revenue to be derived therefrom. With this action taken, the control of the imperial government over the colonial posts should cease and determine.

The government of Prince Edward Island, though invited by Elgin to participate in the conference at Montreal in October 1846, took no part in it. In November 1847, Johnston, one of the representatives from Nova Scotia, sent to the lieutenant governor a copy of the report of the Montreal commission, requesting an expression of his sentiments, and inquiring as to the prospect of the legislature concurring in the opinions contained in the report.

The deputy postmaster general in the course of an examination of the report pointed out that the only valid objection the government of Prince Edward Island could have to the adoption of its conclusions, was that the uniform charge of threepence on inter-colonial correspondence would make a serious inroad in the receipts of the Prince Edward Island post office.

The island post office had been in the practice of adding to the postage charged on inter-colonial letters, the inland rate of twopence a letter. If the terms of the report were adopted in their entirety, and a uniform rate were charged throughout the provinces of threepence a letter, the island would have to relinquish its inland charge.

The deputy postmaster general took a serious view of the effect of the proposed relinquishment of the inland postage. The revenue for 1850 was £1440. Applying his estimates of the proportions by which the receipts from the several classes of correspondence would be reduced, he concluded that, under the scheme submitted, the revenue would probably not exceed £660. [\[292\]](#)

Notwithstanding this unfavourable anticipation, the government gave its assent to the scheme agreed upon by the other colonies, and the rate of postage on letters exchanged with other colonies became threepence per half ounce, while the charge on letters exchanged within the island remained twopence per half ounce.

FOOTNOTES:

[\[284\]](#) *Can. Arch.*, G. series v. 126 (August 18, 1846).

[285] Cardwell to postmaster general, June 10, 1846, and accompanying papers (Br. P.O. Transcripts).

[286] *Journals of Assembly*, N.S., 1847.

[287] *Journals of Assembly*, Canada, 1849, App. B.B.B.

[288] *Journals of Assembly*, N.S., 1848.

[289] *Journals of Assembly*, Canada, 1849, App. B.B.B.

[290] *Ibid.*, N.S., 1849

[291] *Imperial Statutes*, 12 and 13 Vict., c. 66.

[292] *Journals of Assembly*, P.E.I., 1850, App. H.



WILLIAM HENRY GRIFFIN
(Deputy Postmaster General 1857-1888)

CHAPTER XVI

Provincial administration of the post office—Reduced postage—Railway mail service—Arrangements with United States.

The several provinces took over the post offices within their territories in 1851, Canada on the 6th of April, and Nova Scotia and New Brunswick three months later. The postmaster general of Canada was made a member of the executive council—the provincial cabinet—from the beginning. The postmaster general of Nova Scotia was never a member of the council, but administered the department as a subordinate official. In New Brunswick, the department was administered on the same plan until 1855, when the postmaster general was made a member of the government.

During the period of separate provincial administrations, which continued until 1867, when they were merged in the post office department of the dominion of Canada, the record is on the whole one of steady uneventful progress. Postal accommodations were extended, always as occasion demanded, and seldom as immediate prospective revenues warranted, with the result that the expenses generally outran the revenues. This condition, however, caused little or no discontent, as the provincial governments realized, as the British government could not, that on the efficiency of the postal service depended in no small measure the welfare of their people.

Stayner, in his valedictory to the postmasters of Canada, took credit for the thriving and effective state in which he left the post office. He believed that the improvements had fully kept pace with the growth of the country during the period of his administration. In that period, he pointed out, the increase in the number of post offices, amount of revenue, and in the number of miles annually travelled with the mails was more than six hundred per cent., a measure of progress not exceeded by any public institution within the province.

Stayner's words contained no more than the truth. When he entered on the office of deputy postmaster general he brought with him considerable experience as a subordinate in the service. He gained early, and retained to the end, the esteem and confidence of his superiors in England, and if he lost popularity for a period in this country, it was because he saw the folly of trying to serve two masters.

No one perceived more keenly than Stayner the inadequacy of the accommodation he was permitted to extend to the rapidly expanding settlements of the country; and no one could be more persevering in bringing the facts to the attention of the postmaster general. The contrast between the mail service on the north and south side of lake Ontario affected him, as it did the people of Kingston and Toronto, and he risked the regard of St. Martins-le-Grand by expressing sympathy with the general feeling. The postal accommodation, which did not hold out the prospect of, at least, self-maintenance, the authorities there did not desire to have brought to their notice.

While sharing the general sense of the necessity of postal communication in many parts of the country, Stayner took on himself the blame that they were not provided. Fortunately for him, he was abundantly able to take care of himself. By attaching himself to the government party he earned a measure of the odium, which fell on them. But he entrenched himself against too violent attack, and secured champions whom the British government would willingly listen to. He managed to secure a very large income from obnoxious perquisites, but it would seem from later developments that this was rather a matter of good fortune, than of any deliberate effort on his part.

The postmaster general and the colonial secretary had the strongest objections to these perquisites, but when they sought the means to get rid of them, they tried for some years in vain. The perquisites would fall to somebody, since they were of the appurtenances of that position.

That Stayner served the country, as well as his relations with the department in England would permit, admits of no doubt. William Lyon Mackenzie, who abhorred the post office and all its ways, was fain to concede that Stayner was the man, whom, of all he knew, he would most readily support for the position of deputy postmaster general.

With how vigorous a hand the postmaster general of Canada set about his task of providing adequate postal accommodation for the country, may be judged from the fact that the number of post offices which in 1851 was six hundred and one, was increased to eight hundred and forty-four during the first twelve months.^[293] The system was extended in Canada as far west as Kincardine. The courier services to Sarnia and Goderich on lake Huron were made daily, as was that to Bytown (afterwards Ottawa).

Within five years the number of post offices had risen to one thousand three hundred and seventy-five; and in 1861, ten years after the postal service was taken over by the Canadian government, the number had been augmented to one thousand seven hundred and seventy-five offices, practically threefold the number in operation in 1851. When Canada entered confederation it took into the postal system of the dominion two thousand three hundred and thirty-three post offices.

The people of Canada responded with great readiness to the invitation to use the post office, which was offered through the reduction in the charges. When the Canadian post office was taken over, the rates varied according to the distance letters were carried. The postmaster general estimated that they yielded on the average ninepence a letter. The reduction to threepence was, therefore, a diminution of two-thirds.

It is noteworthy how completely fulfilled was the prediction that the low rates would so increase the number of letters carried that, in a short time, the revenue, which was certain to fall for the moment, would recover itself and return to the figures of 1851. For the year ending April 1851, the last year of the high rates, the revenue was \$335,208. In the following year, with the reduction of the rate to one-third of what it had been, the revenue fell to \$239,608. But it was observed that the number of letters posted had increased by over fifty per cent.

In 1855 the effect of the reduction, coupled with the extension of the facilities to the public, was to produce a revenue of \$368,168. Ten years after the great reduction in the rates the revenue had risen to \$683,035, and at the time of entering confederation it was \$914,784.

Among the most important of the facilities introduced in 1851 were postage stamps, the values being threepence, sixpence, and one shilling. Curiously

enough, the obvious advantages of postage stamps did not strike the people at the time. This is in large measure accounted for by the fact that the use of stamps involved a change in attitude on the question—who should pay the postage.

The old theory was that the service rendered to an individual by the post office should not be paid for until the letter was actually delivered. There was always a certain proportion of letters the postage of which was paid at the time they were handed in at the post offices, but the proportion was small. The regular practice was to allow the recipient of the letter to pay for it.

This attitude had to be overcome, and natural conservatism delayed the change for some time. Indeed, it was not until a fine in the shape of additional postage was imposed in cases where letters were not prepaid, that the practice was entirely changed.

The charges on the transmission of newspapers in Canada were among the matters that received early attention. There was a strong feeling throughout the colonies, that, in the absence of libraries, the high price of books precluded their general diffusion in the several communities, and it was therefore necessary that newspapers, the only remaining means for extending public information should be distributed at the cost of the government.

In the agreement on the conditions, under which the several colonies should assume the administration of their post offices, it was stipulated that, while threepence should be the charge on letters, and one-halfpenny on newspapers, the several legislatures should have the power to provide for the free circulation of newspapers through the post offices.

Nova Scotia abolished the charges altogether when she took over control; and New Brunswick took the same measure with the restriction that the newspapers to which the free conveyance would apply should not exceed two ounces in weight.

In Canada the same end was reached but with more deliberation. The rate charged at the close of the old regime—one-halfpenny per sheet—was continued until 1854. In that year this rate was reduced on general

newspapers, and was abolished altogether on periodicals devoted exclusively to the furtherance of the special objects of agriculture, education, science and temperance. The postmaster general calculated that this measure would reduce the revenue by \$32,000. In the year following, the final step was taken, and the charges on provincial newspapers circulating within the British North American colonies were removed altogether.

The money order system was established in Canada in 1855, on the plan of that in operation in the United Kingdom. The amount which might be sent by a single order was limited to \$40, and there was a uniform charge of twenty-five cents for each order. In 1857, the amount transmissible by single order was raised to \$400, but after a short experience, it was reduced to \$100, and the charges were fixed at one-half of one per cent. for the smaller amounts, and at three-quarters of one per cent. for amounts above \$30.

On the 1st of June, 1857, a money order exchange was established between Canada and the United Kingdom, the limit of a single order being fixed at \$20. This was an accommodation which had been called for for a number of years.

The colonial secretary, as early as 1852, wrote to the postmaster general of England, pointing out the large increasing emigration to the colonies, and the desire of persons prospering there to assist their relatives to follow them. He estimated that over £1,000,000 was sent yearly through the agency of private firms for this purpose. This the colonial secretary declared to be worthy of encouragement, and he asked the postmaster general to consider the question of extending to the colonies the system of money orders which had proved so successful in Great Britain. This appeal produced no immediate result.

In 1855, a registration system was introduced. Long previous to this time, there had been a practice of entering money letters on letter bills accompanying the mails, but as receipts were not given to those posting such letters, nor taken from those to whom they were delivered, the practice was defective as a measure of safety. Under the regulation of 1855 receipts were given and taken, the charge being two cents.

The greatest advantage the post office was enabled to extend to the public during this period was due to the opening of railway lines. For some years progress in this respect was tardy. The first line built ran from Laprairie, opposite Montreal to St. John's. It was constructed in 1836, and its purpose was to improve the communications between the Canadian metropolis and the cities of New England and of the state of New York.

No further steps were taken in this direction until 1847, when another link was laid in the connections between Montreal and the eastern states by the building of a line between Montreal and Lachine. These two short lines, with one opened the same year between Montreal and St. Hyacinthe, were all the railway lines in operation in Canada until 1851.

During this and the following year, additional lines were laid, but their object was still the same, to improve the facilities for transportation between Montreal and the cities of the United States. The line from Montreal to St. Johns was extended to Rouse's Point, New York, on lake Champlain, and that to St. Hyacinthe was carried on to Sherbrooke and the international boundary, where it joined with the Atlantic and St. Lawrence railway (an American line), and opened a connection by railway between Montreal and the Atlantic seaboard at Portland. This city became the winter port of the Canadian steamship line, the operations of which began in the winter of 1853.

Until 1853, no part of what could be described as the Canadian railway system had been built. The lines then under operation were all for the purpose of bringing Montreal within the benefits of the American system. But this year—1853—three extensive schemes of communication were begun: the Grand Trunk Company started building the line running from Quebec to the western limits of the province at Sarnia; the Great Western Company built a line across the Niagara peninsula from the Niagara river to Detroit river; and the Northern Company, a line from Toronto northward to Georgian Bay at Collingwood. These lines brought the advantages of railway communication to every rising settlement in Upper and Lower Canada.

As construction progressed the new lines were utilized by the post office department until the completion, in October 1856, of the Grand Trunk from

Brockville and Toronto brought Quebec into direct communication by means of the Great Western railway with Windsor at the western end of the province.

The reduction in time, which the railways had made it possible to effect in the delivery of the mails between Quebec and the leading points in the western part of the province was great. In 1853 the ordinary time for the winter mails to travel from Quebec to Kingston was four days; in 1857, they were carried between the two places in thirty-one hours; to Toronto the saving in time was the difference between seven days and forty hours. Before the era of railways ten and a half days were occupied in the journey from Quebec to Windsor. The railway carried the mails regularly in forty-nine hours.

The use of travelling post offices, with mail clerks assorting and distributing the mails from the railways in the course of their trips, was an early feature of the postal service in Canada. This mode of utilizing the railways had been in operation in England since 1838, and before the leading railways in Canada were completed, an officer of the post office department was sent to England to study the system. Thus, by 1857, this system, which is the leading feature of mail conveyance and distribution, was in full course in this country seven years earlier than in the United States.

But gratifying as were the results from the use of railways in the conveyance of mails, through the sparsely-settled districts over the immense stretches of our territory, the substitution of steam for horse conveyance introduced a perplexing financial problem. The postmaster general noted the peculiar fact that while passengers and merchandise reaped the benefit of improved speed with an accompanying reduction in the expense, the change threatened to burden the public with a vastly augmented charge for the mail service.

Comparing the service by railway with that by stage, it was noted that, while the stage driver waited at each office he visited, until the mail he brought was assorted, and arranged for his farther conveyance, it was impossible owing to the brevity of the stops at the stations, to do this in the case of the mails carried by railway.

The post office consequently was compelled to train and employ a distinct class of clerks to travel on the trains, and perform that duty while the train was in movement. A portion of a car—generally about one-third—was partitioned off and fitted up exclusively for postal service. The salaries of these clerks constituted what the postmaster general regarded as the enormous expenditure of \$32,000 a year; and the necessity created by the nature of the railway service for the provision of an office on the trains, formed the principal ground on which a comparatively high rate of compensation was claimed by the companies.

But that was not all. The railways not being able, like the stage coach, to exchange the mails directly with the post offices of the towns along the line, side services of an expensive character were required to maintain the connection between the post offices and the stations. The expenditure for this class of service, coupled with that for the employment of the clerks who travel on the railway, exceeded, in most cases, the whole of the previous expenditure for the superseded service by stage; and then there were the demands of the railways to be satisfied.

The rate of compensation for the conveyance of the mails was a subject of dispute between the postmaster general and the railway companies. The claims of the latter, however legitimate, were considered by the postmaster general as out of the power of the department to meet from its revenues. Several tentative settlements were made, but the final adjustments were not reached until the appointment of a royal commission in 1865, which, after hearing the statements of both sides, decided the terms on a basis which lasted practically unchanged for nearly half a century.

Nova Scotia entered on the administration of the postal service of the province with much energy.^[294] There were one hundred and forty-three offices in the province in 1851. These were rapidly augmented and on the more important routes, that is, those radiating from Halifax to the eastern and western ends of the province, and to New Brunswick, were given a frequency, conformable to the importance of the communications.

The number of post offices was in Nova Scotia doubled in four years; trebled in ten years; more than quadrupled in fifteen years; and had reached

a total of six hundred and thirty when the provincial office was absorbed into the postal service of the dominion.

Communication with Canada was confined to the land route, seven hundred miles in length, over which it took ten days travel to reach the nearest point of importance. By 1854, two other modes of communication had presented themselves. The Cunard steamers, which called at Halifax on their way to Boston and New York, were laid under contribution to carry mails between Halifax and Canada; and the completion of the railway between Montreal and Portland, Maine, afforded an opportunity of a connection which was made by a steamer running between Portland and St. John, New Brunswick.

The value of this service was not as great as it afterwards became when there was a complete railway connection between Halifax and St. John, but it nevertheless effected a considerable reduction in time. Thus, in November 1855, mails were carried between Quebec and Halifax by way of St. John and Portland in four days, though the average, through the winter, was about a day more. The steamer carried the mails between St. John and Portland three times a week in summer, and twice a week during the balance of the year.

The postage on letters circulating throughout the North American provinces was threepence a half ounce, and newspapers were transmitted free of all postage. The registration of letters was introduced in 1852, the fee being sixpence; and a money order system established in 1859. The limit on the amount of a single order was fixed at the low sum of \$20 and the charge on each order was the rather high one of tenpence an order.

By 1860 a fully equipped postal system was in operation in Nova Scotia. The revenue of the department responded with fair readiness to the accommodation afforded to the public. For the last year under the old system, when rates were excessively high, and the accommodation limited, the revenue was \$28,260. The immediate consequence of the great reduction was a shrinkage in the revenue by \$4856 in the following year. Five years after the low rates were established, the revenue for the year 1851 was surpassed, and in thirteen years it was practically doubled. In 1866, the last complete year under the provincial regime the revenue had reached the respectable sum of \$69,000.

The steady expansion of the service entailed an outlay which considerably surpassed the revenue. In 1852, the first complete year under the provincial administration, the deficit was \$10,500. This deficiency steadily mounted until for the years 1859 to 1861, it averaged \$29,000. Thereafter it descended as steadily as it had risen, and during the last three years before the provincial system was absorbed by the post office department at Ottawa the shortage was \$17,500 a year.

Neither Nova Scotia nor New Brunswick had the advantage of an extended railway mail service until some years after Canada had been in enjoyment of it. The service by railway began at the commencement of 1857, the mails being carried between Halifax and Grand Lake, a distance of twenty-two miles. In the following year it was extended to Truro and Windsor, which was the total extent of the railway mail service at the time of confederation.

It was resolved at the time New Brunswick assumed the administration of its postal system, to make the postmaster general a member of the provincial cabinet. But the legislature did not act on its resolution until 1855, the postmaster general in the interim being, as in Nova Scotia, merely an officer of the government. In 1851, the post office in New Brunswick had, in regular post offices and way offices, exactly one hundred offices. [\[295\]](#) These were increased with much rapidity. After five years, the number had increased to two hundred and forty-six offices; and at the period of confederation, there were four hundred and thirty-eight post offices in New Brunswick.

The conditions under which letters and newspapers were carried in New Brunswick were the same as those which prevailed in the other provinces. The postage was threepence per half ounce for letters, and newspapers were carried without charge. The effect on the revenue was the same as in the other provinces.

In the first year after the low charges were introduced, the reduction in the revenue was considerable. On comparing the revenue for the first six months under the reduced rates with the revenue for the corresponding period of the preceding year, there was found to be a diminution of \$3959. But the rebound was as rapid as it was in Canada. In 1853, the revenue had

nearly attained the figures of 1850-1851. Thereafter the progress of the revenue was steady, reaching the sum of \$50,769 in 1866.

As in Nova Scotia, the cost of maintaining the service at its existing efficiency outran considerably the revenue produced. The deficiency of revenue to meet expenses amounted in 1854 to \$15,316. This shortage increased to nearly \$24,000 in the years 1856 and 1857. There were variations during the years that followed, but in the last three years the average annual deficit was rather more than \$20,000.

The department at Fredericton took a philosophical view of these deficits which the government were called upon annually to make good. The large expenditure, it was maintained, might be fairly viewed in the same light as the amounts annually granted by the legislature for roads and bridges and for the support of common schools. "The mail carriage to all parts of the province secures to the travelling public conveyances which would not otherwise exist, and the very large amount of newspapers, etc., which passes through the post office affords strong evidence that the department may be considered a branch of our educational system."

Some friction existed between the three provinces, arising from their geographical relations to one another. The British government made an arrangement in 1845 for the conveyance of the Canadian mails through the United States to and from the port of Boston, paying the United States on the basis of the weight of mails carried. The letters were carried under this arrangement. But, as the newspapers were not regarded as so important, the government decided that they should not be carried on to Boston, but landed them at Halifax, leaving them to be carried by the couriers who conveyed the mails overland from that city to Quebec.

It was an arrangement which gave no satisfaction to any of the provinces. Nova Scotia complained that it had to bear the expense of conveying this mail matter for Canada and New Brunswick across its territory without any sort of compensation. New Brunswick declared its case was no better than Nova Scotia's, as it had to forward the Canadian matter through that province, while Canada protested that the matter complained of was due to no action or desire on its part, as the arrangements delayed the delivery of the newspapers until they were useless. A combined representation to the

British government removed the grievance, by the newspapers as well as the letters being thereafter sent by way of Boston.

The relations between Canada and the United States were, as was to have been expected, cordial. A convention was made in 1848 between Great Britain and the United States, providing for the conveyance of the mails exchanged between Canada and Great Britain, and in this convention it was stipulated that the letters and newspapers exchanged between Canada and the United States should be subject to the combined postage of the two countries.

Thus the postage on any letter weighing not more than half an ounce, and sent from Canada to any part of the United States was ten cents. An exception was made in the case of letters passing between Canada and California and Oregon. The charge in these cases was fifteen cents.

The construction of the Great Western railway between Niagara Falls and Windsor afforded an opportunity to the United States to improve its postal communications between the eastern and the western States, while, on the other hand before the Grand Trunk railway was built, Canada took advantage of the lines in the United States running along the south shore of lake Ontario to accelerate the mails exchanged between Toronto and Montreal.

FOOTNOTES:

[293] The facts respecting the growth of the post office in Canada are to be found in the reports of the postmaster general, which began in 1852.

[294] The facts respecting the post office in Nova Scotia are to be found in the reports of the department, in the appendices to the *Journals of the Assembly* from 1852 onwards.

[295] The facts respecting the post office in New Brunswick are to be found in the reports of the department, in the appendices to the *Journals of the Assembly* from 1852 onwards.

CHAPTER XVII

Canadian ocean mail service—Want of sympathy of British government therewith.

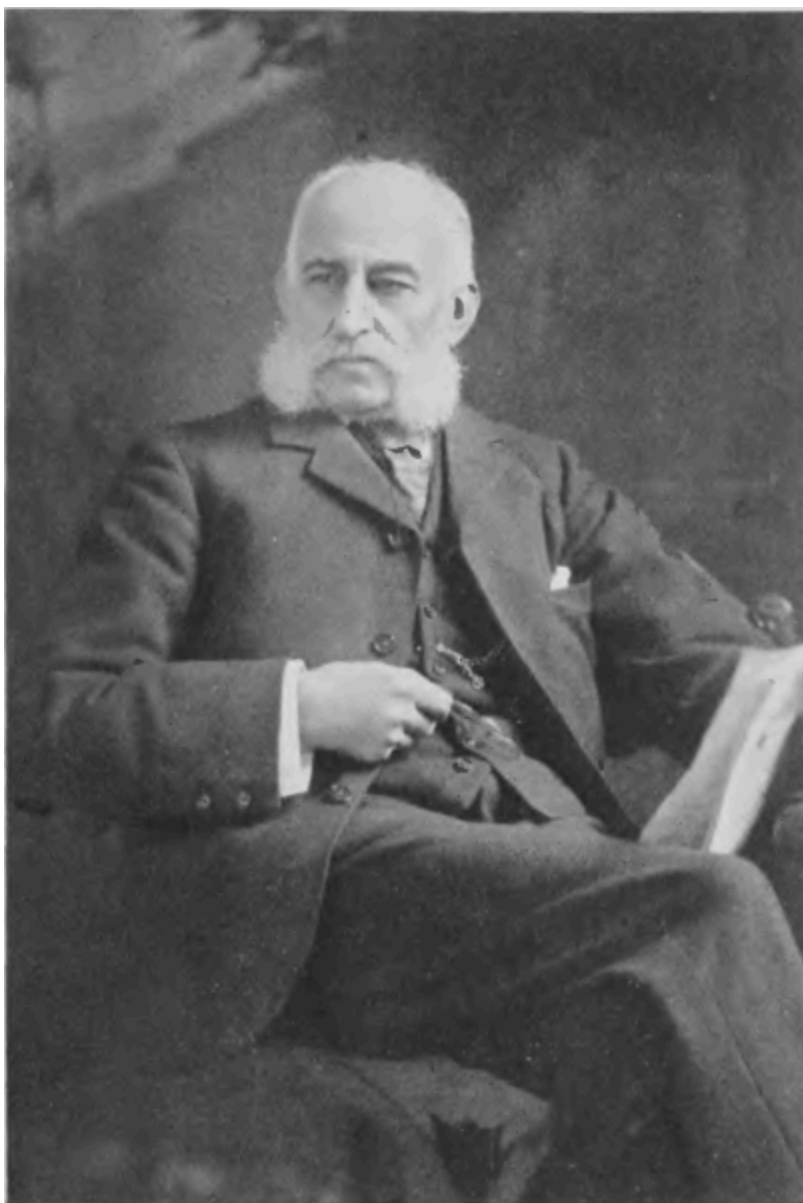
The progress of the Cunard line had a consequence which was neither anticipated nor welcomed by the British government. The plan of the government to concentrate its transatlantic communications on Halifax had been given a thorough trial and had proven a failure, and as the expressed wish of the Canadians to have their correspondence with the mother country exchanged at either Boston or New York coincided with the interests of the owners of the steamers, the principal port of call on this side of the Atlantic shifted through a series of arrangements from Halifax to New York.

In 1852, the contract between the British government and the Cunards provided for a direct service of weekly frequency between Liverpool and New York, with a subordinate service by slower steamers to Halifax and Boston. The subsidy had also undergone successive augmentations until, in 1852, it reached the immense sum of £173,340 a year.^[296] But although the service was now to all appearances Anglo-American in character the British government assumed to regard it as Anglo-colonial, as imperial, because it provided the means for exchanging the mails between Great Britain and Canada.

In 1855, the British government set on foot one of those large colonial schemes which ought to have excited mistrust both as to its practicability and its expediency. It proposed to establish a low and uniform rate between Great Britain and all her dependencies excepting India, Cape of Good Hope, Mauritius and Van Diemen's Land. The postage was to be reduced from one shilling to sixpence per half ounce letter.^[297]

Coupled with the reduction in rate was a proposal that arrangements should be made by which the maintenance of the services, which had hitherto

fallen entirely upon the mother country, should be shared by the colonies having the benefit of them.



WILLIAM WHITE, C.M.G
(Deputy Postmaster General 1888-1897)

Canada's participation in the scheme was invited, and the arrangement made by the British government with the Australian colonies was submitted to the Canadian government. ^[298] Under this arrangement the British government was to make the contract for the service, and the colonies should pay half the expense involved.

The proposal found no favour in Canada. The Cunard service, the expense of which Canada was expected to share, was far from being an unmixed advantage to the British North American provinces. It was indeed a most serious obstacle to the realization of plans, which Canada conceived essential to its expansion on the lines marked out by nature.

For many years the thought of Upper Canadians had turned to the advantages which were to be derived from the utilizing of the great water system extending through lake and river, from the head waters of the lake Superior to the ocean, and measures had been carried forward to overcome the obstacles caused by the falls and rapids on the course of the passage.

By 1849, the canal system was completed, which permitted the free passage of inland vessels from the upper lakes to Montreal, and it was anticipated that the greater part of the movement of immigration and freight to and from Upper Canada and the western states, would be upon Canadian waterways. Merchandise could be carried from lake Erie to Quebec at less cost than from Buffalo by the Erie Canal to New York. But in spite of these facts, trade on the Erie Canal increased largely and steadily, while the trade on the Canadian water routes increased but slowly.

The principal reason for the apparent disregard of the economic law that trade will follow the superior route was found in the fact that for a large proportion of the traffic the destination was Europe, and that the charges to the out-ports of New York and Quebec were only a part of the total charge to which the traffic were subject. If, for any reason, the conveyance across the Atlantic from New York to Europe was so much cheaper than the conveyance from Quebec, that the total charge from lake Erie to Europe was lower by way of New York than by way of Quebec, then it is obvious that the trade would not be attracted to the route which seemed to be naturally the superior one.

This was the case at that time. Owing to the large subsidies given by the British government to the steamers sailing to and from New York, vessels running to and from Quebec could not compete with those from the rival port. The assistance to the Cunard line, therefore, which the British government desired Canada to give in part, was a positive detriment to the development of the transport business of upper and lower Canada.

The question of establishing a steamship line from a St. Lawrence port had engaged the attention of the legislature of the United Provinces as early as 1851. In that year a resolution was offered to the house of assembly, setting forth the advantages of the Canadian route, and the fact that these advantages were offset by the aid given by the British government to the Cunard and Collins lines (the latter was owned by an American company), and asking that the British government be approached with a request that they grant assistance to a Canadian line similar to that given to the lines running in and out of New York.^[299]

A committee of the assembly took the subject into consideration, and in the following year a contract was made with a British firm,^[300] which was shortly afterwards converted into the Canadian Steam Navigation Company, for a service from Liverpool to Quebec and Montreal during the season of open navigation in the St. Lawrence, and to Portland, Maine, during the five months when the river route was not practicable. The trips were to be fortnightly to the Canadian ports and monthly to Portland; and the steamers to be employed were to be of at least 1200 tons burthen.

Twenty-four thousand pounds a year were to be paid to the company by way of subsidy—£19,000 by the government of Canada, £4000 by the Atlantic and St. Lawrence railway (later a section of the Grand Trunk railway) and £1000 by the city of Portland.

Trips were made during the winter of 1853, and throughout the summer of 1854, but there was so general a disregard of the terms of the contract, that it was terminated, and a contract was made with Hugh Allan in September 1855.^[301] The new contractor entered upon his engagement with laudable energy; and at the end of the first season the postmaster general of Canada was able to make a comparison between the Canadian service and that to the port of New York.^[302]

On the westbound voyages the Canadian steamers were practically a day slower than the Cunard steamers—the Allan steamers taking twelve days, twenty and a half hours, to eleven days and twenty-two hours occupied by vessels of the Cunard line. The Canadian steamers were also slower than the Collins line on these trips by four hours. But on the voyage to Great Britain, the Canadian line made the speediest trips of the three. These

steamers took but eleven days two hours, while the Cunard steamers were eleven hours and the Collins thirty hours longer in reaching Liverpool.

It was with the successful inauguration of the Canadian service that the friction with the British government began. There developed immediately a clash of interests.

The first note of dissatisfaction came from Great Britain. The postmaster general communicated to the colonial secretary^[303] the information that the earnings of the packet service were much reduced by the fact that the Canadian post office was sending its correspondence by the first steamer that sailed whether it was British or American, and not confining its despatches to the steamers of the Cunard line.

To the British post office, the Canadian line was an American line, and in spite of all protests and remonstrances, it insisted on treating the Allan line steamers as foreign. Ordinarily there would be no practical consequence of this wilful misunderstanding, but as letters conveyed by the Cunard line were charged eightpence the half ounce, while those carried by the American lines were made to pay fourteen pence, the hostility to the Canadian enterprise was marked.

The postmaster general did not stop at this point, and leave the public on both sides of the Atlantic to consult their own interests as to whether they would send their letters by the Canadian or British subsidized lines. Taking up the case of interests adversely affected by the discriminatory rates, he pointed out that, as many unpaid letters were sent by the American lines, recipients of these letters had to pay sixpence more than if the letters were sent by the Cunard line.

That the remedy lay in the hands of the postmaster general, of reducing the rates on letters carried by the Canadian (or American line as he persisted in calling the Allan line) was not to the point. He called upon the colonial secretary, if the secretary concurred in his views, to remonstrate with the Canadian government as to the course it has chosen without reference to the home government. These views do not seem to have been communicated to Canada. But shortly afterwards the British government submitted for the consideration of the Canadian government, the Australian scheme for a postal service to practically all the self-governing colonies of this period.

The postmaster general of Canada had doubts as to the applicability of the Australian arrangement to the Canadian service.^[304] He presumed the proposition was limited to the Cunard line, and would not be extended to the equally British line running directly from Canadian ports to Liverpool. Special interests, similar to those which had induced the British government to subsidize the Cunard line, had led the Canadian government to extend assistance to the Allan line, and it seemed scarcely expedient for the Canadian government to lend aid to the British government in the maintenance of the Cunard line in the absence of any evidence of intention on the part of the British government to reciprocate with regard to the Canadian line.

It was further observed by the postmaster general of Canada that even if the Canadian government should concede the equity of the British proposition it would be impossible to determine satisfactorily the proportion of the cost which should be borne by the North American provinces, since much the larger part of the mails carried by the Cunard line was exchanged between Great Britain and the United States.

The position taken by the Canadian government gave rise to great irritation in Great Britain. Fortunately the expression of this feeling was not communicated to the Canadian government until some years later, when the question, though by no means settled, had passed out of the irritation and friction phase.

It is fortunate, also, that the intermediaries between the two governments were men of good sense, with an appreciative understanding of the view of the colonial government. The Duke of Argyle, postmaster general, in the Palmerston government of 1855-1858, declared that the measures taken by the Canadian government afforded no relief whatever to the British government. They had, indeed, withdrawn from the British government part of the postage it was entitled to expect when it embarked on the Cunard contract. If on the expiration of the contract existing, which had still five or six years to run, the Canadian government should undertake to perform half of the effective service, it might fairly claim exemption from all share in the other half of the service, and furthermore might claim a right to apply the amount received by way of sea postage, towards defraying the cost of the Canadian packets.

But, Argyle affirmed, the British government could hardly admit the propriety of a demand made upon it for assistance to a line of steamers, which was established by the colony—a line which had no other effect than to diminish the postal revenue upon which the British government relied to meet the outlay occasioned by the contract with the Cunard company.

Labouchere, the colonial secretary, to whom the duke's views were communicated, declined to submit them in their existing shape to the colonial government. If the British government had been in no way parties to the agreement made by the Canadian government with Allan, the Canadian government were equally unconsulted when the British government entered into the contract with the Cunard company; and Labouchere pointed out that the British government were without the means of enforcing its views on the Canadian government.

If the postmaster general or the treasury, which coincided in his views, were of a different opinion, Labouchere desired to know what steps they proposed to take in the highly probable case that the province declined the responsibility it was sought to impose upon it. On the whole, the colonial secretary thought the preferable course would be to allow the present arrangements to subsist until the Cunard contract had expired, and then enter upon negotiations with the Canadian government for sharing with it upon equitable terms in the general expense of the transatlantic service.

The correspondence between the departments of government in London—the tenor of which has been described—was submitted, confidentially, to the governor general of Canada for his opinion on the 17th of July, 1856. Sir Edmund Walker Head replied, confidentially, to Labouchere, and set out Canada's position with gratifying clearness. A Canadian, he observed, looked at the circumstances from a point of view rather different from that in which they had presented themselves to the postmaster general at St. Martins-le-Grand. The Canadian asked: "Why are we Canadians obliged to pay a subsidy at all for a line of steamers running into the St. Lawrence to a British port, by a route which we hold to be the most advantageous route? The merits of the route itself might make our bounty unnecessary, were it not that Her Majesty's government gives a large bounty to a line running into foreign ports."

"It might be admitted," continued the governor general, "that Canada was benefited by the rapid transmission of mails through the United States; but she was no party to an arrangement as one that could never be revoked. Canada, then, thought that she could arrange for the conveyance of her own mails to and fro by way of Quebec in summer and Portland in winter, more rapidly and advantageously than by Boston and New York. Why should Her Majesty's government discourage this new enterprise on behalf of Her Majesty's subjects and by a large subsidy drive the business to the United States ports?

"Canadians entertained the hope," the governor general further observed, "that no course would be pursued by the British government adverse to the principles of free trade, by the continuance of a large bounty to the Boston and New York lines. Leave the natural resources of the Canadian route to find their own level, and in the meantime do not use all the influence of the British post office so as to bear as hardly as possible on the first effort of the colony to open the St. Lawrence to a regular line of British steamers."

Head disclaimed the idea of giving these arguments as his own, but stated that, they expressed the opinion of many Canadians, among whom were some of the members of his council. In December, Labouchere informed the governor general that his view had prevailed, and that it was decided to leave the matter as it stood, until the Cunard contract expired, when it was hoped that an arrangement might be made more in conformity with what was regarded as an equitable consideration for the finances of the United Kingdom.

The lack of cordiality displayed by the government of the mother country towards the ocean transport enterprise of her colony in its initial stages yielded to no warmer feeling with the progress of the scheme. The Allan service was performed during 1856 and 1857, as the postmaster general stated, with meritorious punctuality.^[305]

In the beginning of 1858 the Quebec-Portland service attracted the attention of the British post office, which intimated a desire to utilize it for the conveyance of mails between Great Britain and the United States during the period of the year when the Allan steamers made Portland their port of arrival and departure.^[306]

Sidney Smith, the postmaster general of Canada, was of the opinion that the Canadian line would be found the preferable one during all seasons, particularly for those parts of the United States bordering on the Great Lakes, as they were brought into direct connection with the ocean at Quebec by means of the Grand Trunk railway.

As an additional attraction to use the Canadian line, Smith offered to reduce the charge for sea postage, that is, the portion of the total postage between Great Britain and North America, which was allocated to the ocean conveyance, from eightpence to fourpence a letter. This would enable the public on both sides of the Atlantic to send their letters for eightpence instead of twelpence.

On consideration of this proposition by the governments of Great Britain and the United States, it was found open to the objection that the postage of letters carried by the Cunard line must remain at one shilling, owing to the sea postage claimed by the British government on letters carried by that line. Until arrangements could be made between the British government and that of the United States by which the charge on letters passing between the two countries by the Cunard line could be reduced from one shilling to eightpence, it was deemed inadmissible to accept the Canadian proposition.

That seemed a reasonable decision, and it would have been supposed that until the Canadian proposition could be accepted the amount of sea postage paid for the Cunard service would be applied to the Canadian service.

The British post office took no such view. It maintained that the Canadian post office was entitled to no more than the rate which it offered to accept, viz., fourpence, and as this rate added to the land postage in Great Britain and the United States, would only call for an eightpenny postage, it proposed that the difference between the eightpence and the shilling, which the public were actually charged, should be divided equally between the post offices of Great Britain, the United States and Canada.

Smith protested that his proposition was part of the scheme to reduce the postage from a shilling to eightpence sea postage, and that until the reduction of the postage between Canada and Great Britain to eightpence was affected, the Canadian government were entitled to eightpence sea

postage as much as the British government were for the letters carried by the Cunards.

Alexander Tulloch Galt, inspector general of Canada, who was in London at the time, laid the whole case before the colonial secretary, pointing out that the attitude of Great Britain, in attempting to make the United States a party to the scheme to force Canada to take one-half the amount for sea postage that was claimed by and conceded to the United States and Great Britain in respect to their subsidized lines, was the more objectionable, as there was no reason for believing that the United States had attached any such stipulation to their consent to use the Canadian line.

Galt's remonstrance had the effect of inducing the British government to withdraw from its untenable position in this instance. In the course of his communication Galt mentioned the disappointment with which it was learned in Canada that the Cunard contract, which would not have expired until January, 1862, had been renewed in June 1858.

This action on the part of the British government, Galt insisted, did not seem consistent with the assurance given by the colonial secretary to the governor general in December 1856, when he wrote that the lords of the treasury had apprised him "that the existing arrangements with respect to the Canadian mail service will continue until the expiration of the Cunard contract, when they hope arrangements may be affected more in conformity with what they would regard as an equitable consideration for the finances of this country."

The Canadian legislature on the first opportunity, voted an address to the queen, expostulating strongly against the course of proceedings so injurious to the interests of Canada.

The action of the British government in prolonging the arrangements with the Cunards was set in a strong light by a review of several circumstances connected with it.^[307] The application of the Cunard company, for an extension of their contract, was made in October 1857, only nine months after the discussion with the Canadian government. It was referred by the treasury to the admiralty and to the postmaster general.

The treasury recommended that it be granted, while the postmaster general deprecated an extension, for reasons not connected with the Canadian representations. On March 2, the treasury decided that it was premature to discuss either an extension or a renewal of the contract, though they expressed their readiness to consider favourably, any application that Cunard might make when the contract had advanced nearer to its termination.

On the 20th of the same month, Cunard made another application on the same general grounds; and this time the treasury, without further light on the subject, yielded, and directed the extension, requesting the postmaster general to communicate his views as to any modifications that might be introduced into the contract, without materially affecting the basis of the existing agreement.

The postmaster general, in reply, pointed out that the rate of payment made to Cunard was considerably higher than that for any other packet service, also that he had before him another offer for the conveyance of the transatlantic mails for an amount much less than was paid to Cunard. The new offer was from Inman, agent for the Liverpool, New York and Philadelphia line, whose vessels made their voyages at a speed not much inferior to Cunard's, and who agreed to convey the mails for the amount of the sea postage.

The offer had been received on the 1st of March, nineteen days before the application of Cunard; and as the postmaster general had had occasion to correspond with the postmaster general of the United States respecting Inman's offer, he had not thought it necessary to communicate this proposal to the treasury, nor did the treasury consider that their duty required them to make any further investigation before awarding the contract for £173,340 a year.

These facts are taken from the report of a select committee appointed by the house of commons in 1860, to inquire into the manner in which contracts have been made for the conveyance of mails by sea. The committee found that, in the making of these contracts, there was an extraordinary division of duty and consequent responsibility, between several departments of government.

The parties by whom these contracts were actually entered into, were the lords of the admiralty, but the authority for making them rested with the treasury, who prescribed their terms and conditions. The treasury before coming to the decisions which they communicated to the admiralty, consulted with the postmaster general, the colonial secretary, and with the admiralty themselves, in reference to the postal, colonial and nautical questions involved.

Theoretically, the arrangements were scarcely open to criticism. It was proper that the information necessary for a decision, respecting, in the first place, whether a service was required at all, and, in the next place, what the terms and conditions should be, on which the service should be performed, should be concentrated somewhere, and there seemed no place more fitting as a focal point than the lords of the treasury, who were responsible for obtaining and spending the money required for the maintenance of all the services called for by the government.

But the fault lay not in the organization. It was to be found in the lack of co-ordination among the contributory departments. Several instances are given of the results of the failure of the departments to co-operate with one another. One which has a certain piquancy is the provision for the mail service to Australia.

It will be remembered that the first jarring note in the relations between Great Britain and Canada concerning mail services arose when Canada declined to fall in with the proposition that the British government should arrange for the conveyance of the mails across the Atlantic, and that Canada should pay its share of the resulting outlay.

The colonial secretary submitted, as the model arrangement, one which had been made between the governments of Great Britain and the Australian colonies, under which each government should pay half the cost of the service. The contract was to be arranged for entirely by Great Britain, and the colonies were assured that such care should be exercised in the arrangements that they could depend on their interests being safeguarded.

How the government acquitted itself of the trust it assumed on the behalf of Australia, the parliamentary report shall relate. "That contract involved a yearly subsidy of £185,000, of which one-half was to be paid by the

Australian colonies, who had no opportunities of being consulted in the framing of the contract; so that special circumspection was required. The tender accepted was that of a new company without experience, and who had no ships fit for the work.

"One of their vessels," continues the report of the committee, "the 'Oneida' which was reported against, by the professional officer of the admiralty, and had not the horse power or tonnage required by the contract, broke down on her first voyage. Time was not kept, and though the colonies complained, it appears that no steps were taken to ensure the fulfilment of the contract with suitable vessels."

"The company," added the report of 1860, "in one year lost their capital, £400,000; the service proved a complete failure, and great risk of an interruption in postal communication was incurred. This contract had been entirely arranged by the then financial secretary, whose acts in these matters do not appear to have received confirmation by any other authority."

It is not perhaps surprising, with the Australian venture in mind, that an explanation involving the same sort of incompetence on the part of the departments of government should be made regarding the Cunard contract.

The explanation of the Cunard contract was that when the decision of the treasury granting the renewal was made, the then financial secretary, who had only entered office with the change of ministry in the month of March immediately preceding, was not aware of the existence of the correspondence between the home government and that of Canada in 1856; nor, though that correspondence was among the records of the treasury, and the authority on which the colonial secretary had written his despatch of December 3, 1856, was a minute of the treasury, did the proceedings appear to have been known to any of the officers of the department charged with this branch of the business.

The committee observed that they had not received any satisfactory explanation of the circumstance that a matter so recent, and of such importance, should have been lost sight of.

But the painful story of the relations between the government of the mother country and that of her North American colony with respect to the ocean

transport enterprise set on foot by Canada, does not end here. In the autumn of 1858, an Irish company known as the Lever or Galway Company, which had a contract with the Newfoundland government for a mail service between Galway and St. Johns, proposed to the British government to establish a service with fortnightly frequency between Galway and America.

This scheme excited considerable interest, particularly in Ireland; and several representations were made to the government, by deputations and by memorials from chambers of commerce, setting forth their sense of the advantages which it would confer on the trade of that country. The publicity given this project brought into the field the two applicants who had been disappointed when the Cunard contract had been extended in 1857.

Inman on October 15 protested against the granting of a subsidy to a new line, and expressed the hope that, if it should be decided to give assistance to a line from Galway, the proposed service should be put up to public competition. The treasury replied to Inman, informing him that when a new service was about to be established by the government it was their practice to invite tenders by public advertisement, thereby affording to all parties the opportunity of tendering therefor. Inman heard no more from the government on the subject before the contract with Lever was concluded.

The Canadian government, also, advanced its claims for consideration. Galt wrote to the colonial secretary on November 11, 1858, and the London agent of the Canadian line on January 18, 1859, submitted an application to the treasury. He pointed out that the effects of this subsidized line would be disastrous to the prospects of his company, and expressed the trust of his principals "that before interfering to crush a provincial company of such magnitude, your lordships will at least afford the company we represent an opportunity of being heard."

This appeal was so far successful, that it obtained for the company the honour of an interview at the treasury. They were promised that their representations would be considered; but no further notice was taken of their application.

On the same day on which the Canadian company's letter was dated, viz., January 18, the Lever company submitted an offer for the conveyance of

the mails from Galway to Portland, Boston and New York, calling at Newfoundland for £3000 a voyage. The treasury, following the practice laid down for their guidance, asked the postmaster general for his opinion on the proposal.

The postmaster general reported adversely, observing that it was not expedient to enter into any contract for the service, which would bind the government to a heavy annual payment. He was also of the opinion that the vast mercantile traffic between the two countries afforded abundant opportunities to secure additional service that might be desired on favourable terms.

Here then were three strong reasons to call for the government staying their hands from entering into a contract with Lever: the remonstrance of Inman, coupled with the intimation from the treasury that in the event of their deciding to establish the service, they would put it to public tender; the expostulation of Galt on November 11, 1858, and the appeal of the Canadian company for an opportunity to be heard on January 18; and the unfavourable report of the selected adviser of the treasury.

Yet, in the face of all these circumstances, the treasury on February 22, authorized a contract to be made for a fortnightly service to Galway and New York, and Galway and Boston, alternately, at the rate of £3000 a voyage. The parliamentary committee in seeking an explanation for this extraordinary course, examined Lord Derby, the chancellor of the exchequer, as to the reasons which moved him to authorize this service.

Derby stated that he was influenced mainly by the consideration of the social and commercial advantages which this service would confer on Ireland, and of the preference due to the Lever Company on account of its enterprize, in first establishing a line of steamers from Galway.

Derby stated, however, that when he authorized the service he had not before him some materials, nor had he in view some considerations, which, the committee believed, should have been held essential elements in the determination of the question. He had no knowledge of the correspondence which had passed between the home government and that of Canada, and between the treasury and Inman.

Consequently then, in the words of the committee of the house of commons, Derby's decision was given "in ignorance of the strong feeling in Canada as to the injury done to their interests by the system of subsidizing what they deemed rival lines; of the assurance given in 1856, on which the Canadian government relied, as a pledge that they would have an opportunity of being heard before that system was renewed or extended; and of the surprise and dissatisfaction already occasioned by the renewal, without hearing them, of the Cunard contract; and in ignorance, also, of the implied pledge given to Mr. Inman, that the new service would be thrown open to public competition.

"It was likewise given," the committee added, "without any consideration of the question, whether, assuming the interests of Ireland warranted the establishment of the service from Galway, that object might not have been secured by an arrangement which would, at the same time, have provided for the wants, and satisfied the just claims of Canada."

The round condemnation by a committee of the house of commons, of the course pursued by the government, gave Smith, the postmaster general of Canada, a handle of which he was not slow to make full use. The report of the committee was laid before the house of commons on May 22, and on the 30th of the same month, Smith again approached the government on the subject, setting forth the grounds of his appeal to the British government, and concluding by asking that the government should aid the Canadian line by a subsidy of £50,000 a year. He pledged the Canadian government to give a like amount for the same purpose.

The application was refused, and Smith, whose resources seemed endless, approached the subject from another angle.^[308] The contract which was made with the Lever Company called for a fortnightly service, the consideration being £3000 a trip, or £78,000 a year. The Lever Company was in no position to fulfil the terms of its contract, and Smith opened negotiations with the company to take over their contract, stipulating to allow the company £35,000 of the £78,000 which the contract would bring, as the consideration for the assignment.

An agreement was concluded on these terms, and the deeds were signed on July 6, 1860. The only condition now was the consent of the British

government to the arrangement, which was required by the contract, but which under the circumstances was regarded as purely formal. The terms being laid before the secretary of the treasury and the postmaster general, secured the approval of both those authorities; and on the 11th of July, the sailing arrangements under the contract were settled between Smith and the official in charge of the post office packet service. Success seemed now assured, but before the day was over, the situation had undergone an entire change, for the British government had refused its assent to the assignment of the contract.

No reason was given for the refusal of the British government to sanction the transfer of the Lever contract to the Canadian line. Smith wrote to the secretary of the treasury for an explanation. He pointed out that the negotiations were made with the assent of Lord Palmerston and the treasury, that the arrangements had all been made on the secretary's assurance, and that in view of the strong feeling already existing in Canada on account of the treatment meted out to Canada in regard to its ocean mail service, he would be wanting in respect to the imperial authorities if he accepted the secretary's intimation literally, and in its full significance.

The secretary in his reply, gave away the whole case of the government. He admitted that for himself he had never concealed his opinion that the arrangement proposed by the Canadian government would have been a desirable one, but insisted that he had not used Palmerston's name beyond that. He had ascertained Palmerston's views as to the importance of meeting the wishes of Canada, sufficiently to warrant him, not in concluding negotiations, but in advancing them to the point where a definite proposal might be made to the government.

The ground on which the treasury based refusal of assent to the agreement made between the Lever Company and the Canadian government, was that the contract contemplated the grant of £78,000 a year for a fortnightly service from Galway, in addition to the other ocean services which were then in operation, while the transfer of the Lever contract to the Allan's would have the effect of merely substituting one contract for another, leaving the service just where it stood before—with an additional charge of £78,000 a year against the government.

There was another consideration and an extraordinary one. The government had suffered severe condemnation at the hands of the committee of the house of commons for their disregard of the pledge given, that, before a contract was awarded it would be put up for public competition. Their action in awarding the contract to the Lever Company without tender was an undeniable injury to the interests of Canada, and now this censure was made the cover for another blow at those same interests.

The secretary of the treasury observed that the pledge formerly given and unfortunately overlooked had acquired much notoriety and must in any contingency afterwards arising be treated with rigour. "If the Galway contract be considered binding," he concluded, "the government cannot be accused of breaking this pledge as long as they simply continue to pay the subsidy for the same services and to the same parties." But the case became different if they sanctioned a new arrangement involving material modifications, particularly when the arrangement transferred the contract to a party of undoubted, from one of questioned, solvency.

Smith next addressed Palmerston, and his letter shows clearly the incomprehensible and provoking course pursued by that statesman. At every step in the negotiations the treasury was consulted, and its approval gained. The solicitor of the Galway Company was also in frequent communication with the treasury, and he actually altered the form of the deed of transfer upon the suggestion of the secretary.

The resolution of the Galway Company, accepting the proposal of the Canadian government, was adopted, and on the same day the treasury was informed of the fact. A week later—on July 5, 1860—Smith and Galt, the Canadian minister of finance, waited on the secretary of the treasury, who informed them that Palmerston was much gratified that the arrangements had been made, and on the strength of these assurances Smith executed the assignment of the contract, and provided securities for the purchase money, of all of which Palmerston expressed his high approval.

The matter was regarded as so far concluded that on July 9 a meeting took place between the Canadian representatives and the officials of the treasury and post office, the details of the scheme were reduced to writing, and the secretary of the post office received the approval of a communication to the

postmaster general of the United States informing him of the arrangement, and that thereafter the Canadian ships would be considered as British and not as United States packets.

Considering the arrangements as completed, Smith and Galt decided to return to Canada, and on the 11th they called on Palmerston for the purpose of taking their leave, when, to their utter stupefaction, they were informed that the government peremptorily refused to sanction the transfer.

The reasons put forward for this unusual action on the part of the government lacked even the merit of plausibility. It was first argued that the Lever contract contemplated the grant of £78,000 a year for a fortnightly service from Galway, in addition to all the ocean service which might be existing, while the transfer would have the effect of substituting the Galway service for one of the existing services, and thus continuing the charge of £78,000 a year with a positive diminution of public accommodation.

Smith had a conclusive reply to this argument. He pointed out that at the time the Galway contract was entered into, that is on May 21, 1859, the Canadian service was only fortnightly; and the arrangement for which the sanction of the government was sought would have given exactly the accommodation contemplated when the contract was given—a weekly service between Ireland and America.

As for the modifications in the contract, which formed part of the ground of the government's refusal to sanction it, the first was that "the arrangement transferred the contract to a party of undoubted, from one of questioned, solvency." Smith's only comment on this was to complete the sentence by adding "or in other words would ensure its performance efficiently."

The only other important modification sought by Canada in the terms of the contract was the substitution of Canadian for United States terminal ports in America. Apart from the slight to Canadian interests involved in putting forward such a reason, it must be clear that the Cunard line, in which the British government did not conceal its interest, would have been benefited and not injured by the withdrawal of a line running to United States ports. Smith concluded his protest by pointing out the distinction which the Canadian people could not fail to draw in comparing Palmerston's refusal, with that of previous governments.

The grants to the Cunard and Galway lines were stated to have been made in ignorance of the Canadian interests, and the inability of the government to remedy these and other evils was deplored. In the case under consideration the British government, Smith pointed out, deliberately opposed themselves to that which would have benefited Canada, and had determined that the competition of which they complained should be maintained. The protest was quite without avail. The Galway Company entered on the performance of its contract, but its service was marked with so much irregularity, that the postmaster general was compelled to cancel it.

FOOTNOTES:

[296] First report of select committee on packet and telegraphic contracts, May 1860 (*Br. Parl. Papers*, No. 328).

[297] Report of P.M.G. of United Kingdom, 1855.

[298] *Sess. Papers*, Canada, 1859, No. 26.

[299] *Journals of Assembly*, 1851, p. 85.

[300] Report of commissioner of public works, 1852-1853.

[301] Report of P.M.G. to council, December 7, 1863 (*Sess. Papers*, 1864, No. 28).

[302] Annual report of P.M.G., 1856.

[303] *Br. Parl. Pap.*, 1859, XXII.

[304] *Br. Parl. Pap.*, 1859, XXII.

[305] Report of P.M.G., 1857.

[306] *Sess. Papers*, Canada, 1859, No. 26

[307] First report of the select committee on packet and telegraphic contracts May 1860 (*Br. Parl. Papers*, No. 328).

[308] *Sess. Papers*, Canada, 1861, No. 21.

CHAPTER XVIII

Canadian ocean mail service (*cont.*)—Series of disasters to Allan line steamers.

The year 1859 was a notable one in the history of transportation in Canada. In May, the steamers of the Allan line commenced their weekly trips between Liverpool and Quebec. In November, the completion of the Victoria Bridge over the St. Lawrence carried the lines of the eastern division of the Grand Trunk into Montreal, thus connecting by uninterrupted railway communication the cities of Quebec and Portland with the metropolis, and establishing a continuous line of railway from the Atlantic seaboard to the western boundary of the provinces. In the same month, also, the Grand Trunk extended its line across the border as far as Detroit, bringing, by means of allied systems in the United States, the cities of Chicago and New Orleans into communication with the eastern states and with Europe by the railway system along the shores of the Great Lakes and the St. Lawrence.

The system of land transportation between the ports of the Atlantic and the cities on the Mississippi being thus perfected, and available for the conveyance of mails between Europe and the heart of North America by practically continuous conveyance, the postmaster general of Canada, Sidney Smith, proceeded to Europe to improve, as far as possible, the communication between the important cities of Great Britain and the sailing ports of the Canadian vessels, and to arrange for the exploitation of this transportation system, in the interests of Canada.

Before leaving for England Smith paid a visit to Washington, and laid before the postmaster general there the advantages offered by the system under his control. He pointed out that, by the Grand Trunk railway, the journey between Portland and Chicago was made in forty-nine hours, and between Quebec and Chicago in forty-five hours, and, by making Cork a

port of call for the mails, the voyage between land and land would be several hundred miles shorter than by any other route.

Smith's proposition was to convey the United States mails to and from Europe for the sea postage only, and to allow these mails to be carried across Canada without charge on the understanding that the Canadian mails to and from Great Britain should be carried free across the United States territory during the period of winter when the steamers called at Portland. The proposition was accepted by the postmaster general of the United States.

In London, where he arrived at the end of November, Smith submitted his scheme to the postmaster general,^[309] who made the objection that the sailing arrangements interfered with the plans made for the other transatlantic mail steamers. Fortunately Smith had the support of the postmaster general at Washington, who was much impressed with the merits of the Canadian scheme, and who, in his annual report expressed the opinion that it would afford the most direct and probably the most expeditious communication between Chicago and Liverpool.

At the instance of the department at Washington, the general post office agreed to send by the Canadian steamers the correspondence for both the eastern and western States, and also agreed to Smith's request for special trains for the mail service from London to Cork. This special railway service, with its connecting mail boat service across the Irish Channel gave the British public a full business day more to prepare their correspondence for the States.

The mails had, in ordinary course, to be prepared in London early Wednesday morning to catch the outgoing steamer which left Liverpool the same evening, but the special train from Dublin to Cork enabled correspondents to hold over their urgent letters until Wednesday evening and send them by the evening mail to Ireland, where connection was made on Thursday morning with the steamer which had left Liverpool on the previous evening.

But this was not the only, or perhaps the greatest, of the advantages of the scheme. Transatlantic cables were still in the future, but the telegraphic systems on both sides of the Atlantic were fully developed, and messages

for New York or Montreal could be addressed to the steamer, which would deliver them at Father Point, on its way up the St. Lawrence, from there they were sent by telegraph to their destination.

One of the leading London papers declared that the plan would save two full days for telegrams, and permit transactions on the stock exchange in London up to Thursday afternoon to be communicated to the stock exchanges in the United States on the Saturday of the following week, and the action taken in these centres transmitted to London by the Canadian steamers leaving Quebec the same day.

Having completed these arrangements in London, Smith next addressed himself to the postal administrations of France, Belgium and Prussia. In the month that had elapsed since the negotiations with London had been concluded, the steamers had crossed the Atlantic both ways, and the Canadian postmaster general was able to inform the continental administrations that on the first voyage the mails from Chicago had reached London in twelve days, and that the conveyance from New Orleans, in which France had a special interest, ought to be effected in less than fifteen days.

The French government, to whom Smith offered the same terms for conveyance by steamer and railway in Canada as had been accepted in the United States, immediately closed with Smith on these terms, subject to the consent of Great Britain. In a few days Belgium took similar action, while Prussia deferred acceptance until the postmaster general of Canada could confer with the United States.

Entirely satisfied with the success of his mission to the Continent, Smith returned to London to conclude the transaction by obtaining the permission of the British post office to act as intermediary for the payments which would be made by the French and other Continental governments to Canada for the conveyance of their mails to America.

The necessity for having Great Britain as the intermediary for the settlement of these accounts arose from the following considerations. Great Britain had open accounts with all these countries. The mails from these countries were carried to the United States by British steamers, for which they became indebted to the British government; while on the other hand mails from

Great Britain for the countries of eastern Europe and for India, passed over one or other of these countries through their postal systems, which gave rise to an indebtedness on the part of Great Britain.

Under conventions with each of them, settlements were made from time to time. None of this accounting machinery existed between Canada and any of these countries. The only country in Europe with which Canada had an open account was Great Britain.

In consequence of Canada's isolation in this respect the only way these countries could settle their debts to Canada was by direct payments. This, however, would involve legislation, at least in the case of France, which would have delayed the beginning of the plans for many months. Canada, therefore, had but one way open, which was to ask the British post office to receive from France the amounts due by that country to Canada, and apply these sums to the account between Great Britain and Canada.

The favour to Canada appeared slight enough but the British post office refused to grant it. First, it objected that the arrangements would involve a great deal of trouble; and afterwards, when driven from that ground, it took an extraordinary position. The British post office declared that the British mails exchanged with the United States were treated in that office as mails carried by packets under contract with the United States, and that it would be inconvenient and objectionable to treat French mails, carried by the same Canadian vessels, as mails conveyed by British packets.

It maintained, furthermore, that the postmaster general of the United States, having entered into an agreement with the Canadian post office for the transmission of United States mails by the Canadian vessels, might very naturally object to any arrangement between the British and French post offices under which the French mails were paid for as mails conveyed by Great Britain's packets.

The pettifogging of disobliging illwill could go no further. In no single respect did the service rendered to the United States by the British government, in conveying the mails of that country to Great Britain, differ from the services rendered to the United States by the Canadian government in the conveyance of the United States mails to Great Britain by the steamers of the Canadian line. Both were paid by the United States for the

service, and the fact that the British took pay from the United States no more rendered the Cunard an American line, than a similar fact regarding the Canadian government made the Canadian an American line.

Smith, in dwelling upon this point, affected to discover that the ground of the British official objection, was that the Cunard Company received a subsidy from the British government, while the Canadian Company did not. If this were indeed the difficulty at which the British office stumbled, and the Canadian line could be made British by granting a subsidy for its maintenance, it was important that it should have impressed upon it this distinctive mark of British nationality.

But these arguments fell upon deaf ears. The French office tried to make the British officials see reason, but their success was no better. The situation became one of real difficulty. The French could have invoked the assistance of the United States and asked that country to act as intermediary in the settlement of the account between France and Canada, but there would have been much delay, as the United States would almost certainly seek an explanation of the attitude of Great Britain toward her colony, and that would not have been easy to give.

The British post office, however, suggested a way out of the difficulty. Taking its stand on the ground that the Canadian steamers were part of the United States packet service, the British post office held that the proper course for France was to arrange the matter of payment with the United States post office. But as the negotiations between the United States and France might delay the start of the service, the British expressed its willingness as a temporary measure to take from the French government the sums due to Canada, and pay them over to whom? To the Canadian government to whom alone they belonged? Not at all. It would pay these sums to the postmaster general of the United States.

Smith, the postmaster general of Canada, contended no further. He thanked the postmaster general of England for his consideration, and addressed himself to the director of the French posts, and to the postmaster general in Washington. But the director was completely puzzled, and sought an explanation of the British post office. Disclaiming the right to interfere in any agreement between the British and Canadian offices, he declared

himself unable to understand why this payment should be made to the United States, or how it could possibly happen that the United States should have any right to claim any sea rate. He set out all the facts of the case, and after looking them over carefully, he repeated that he did not understand why the amount paid by the French government to the British office for conveyance under the British flag by Canadian packets should be paid over to the United States office. [\[310\]](#)

By the middle of February 1860, Smith was back in the United States, and at Washington. Within a day he concluded arrangements by which, among the other matters, the United States post office agreed to accept the sums due to Canada by France and the other Continental countries. Provision was also made for the exceptional handling of correspondence for New Orleans and other southern cities by the officials of the Canadian service.

The matter of accounting having been arranged on this basis the Canadian line began to be employed extensively on both sides of the Atlantic. Two changes were made in 1860, which augmented its efficiency. As it was found that Cork was out of the way of steamers from Quebec to Liverpool, in May, Londonderry, at the north of Ireland was substituted as the last port of call.

This change had the additional advantage that it enabled the steamers to take a later mail from Scotland, and it avoided the rivalry with the Cunard and Inman lines, which made Cork their port of call in Ireland.

The other amelioration in this arrangement was the taking on and the disembarkation of mails at Riviere du Loup, a point on the St. Lawrence one hundred and twenty miles below Quebec. The extension of the Grand Trunk railway to this point shortened the sea-voyage by some hours, as the stretch of water between Quebec and Riviere du Loup present difficulties, and not infrequently dangers, which prevent rapid travel.

With the arrangements thus complete, the St. Lawrence route was much superior to any other as far as the Canadian mails were concerned. In 1863, four-fifths of the mail carried between Canada and Britain were carried by the Canadian steamers, the remainder being taken by the Cunards. In order to participate in the exchange between Great Britain and the United States,

it was necessary to make its arrangements conform with the arrangements made by those countries.

Under this scheme, the week was divided into two parts, Great Britain providing for the total conveyance for one of the parts and the United States the other. Thus the United States took upon itself the accumulated mails for the first three days of the week from England, and the Cunard steamers, which left England on Saturday, took those of the last part.

There was an American steamer which sailed from Southampton on Wednesday, which took all the mails for the United States that could be gathered at that point until the time of its departure, and the Canadian steamer, which was adopted by the American post office, took those which could be gathered at Liverpool for the sailing from that point on Thursday and at Londonderry on the following day.

The Canadian steamers offered great advantages to northern England and to Ireland and Scotland. In the conveyance from this side of the Atlantic, the arrangements were reversed, the British steamers sailing from New York on Wednesday, and the American later in the week. The Allan Company were fortunate in securing Saturday as their sailing day from Quebec, as their steamers were able to take a large American mail as well as nearly all that from Canadian offices.

Most of the foreign correspondence of Michigan, Wisconsin, Iowa, Illinois, Minnesota and Indiana were carried by the Canadian route, while, during the winter months, half the mail from New England and a large volume from New York were despatched by this line. By the arrangements with the post offices of France, Belgium and Prussia, a considerable quantity of mails were exchanged by this line between the United States and nearly every country in Europe.

The achievement of the Canadian steamship line, in the face of unusual difficulties, was a matter of pride to the people of Canada, and the postmaster general, who had exhibited noteworthy energy in exploiting the possibilities of the service, dwelt with much satisfaction, in his several reports to the legislature, on the measure of success attained in competition with the lines running to the ports of the United States.

But these successes were bought at a heavy price. In the weekly race across the Atlantic, much was sacrificed to speed. Risks were taken which, with the imperfect knowledge then existing of the sailing route, could lead to but one result. Vessel after vessel was lost under circumstances that excited a growing horror and resentment among all classes of the people. During the seven years between June 1, 1857, and February 22, 1864, no less than eight of the finest vessels in the service went down, carrying with them many hundreds of human beings.

The first mishap took place within six months of the commencement of the service by the Allan line. In November 1856, the "Canadian," in her course up the St. Lawrence, ran ashore, owing to either the negligence or the ignorance of the pilot. She was got off without injury. But the "Canadian" was less fortunate in June 1857, when, from the same cause, she again ran ashore. This time it was impossible to free her, and she had to be abandoned, a total loss. The year 1858 passed without trouble of any kind, and as the voyages were increased from fortnightly to weekly, confidence was high that the superiority of the Canadian line was to be demonstrated, and the supremacy of the Atlantic wrested from the Cunards.

But with the inauguration of the weekly service, and of the declared competition with the steamers sailing in and out of New York, a series of disasters commenced, which threw a shadow over the whole enterprise. In the five years following the establishment of weekly service, the Canadian line lost more first class vessels than all the other companies engaged in transatlantic conveyance, and during the same period, as if to remove any doubt as to the locality to which these disasters were attributed, every vessel lost went down on this side of the Atlantic. [\[311\]](#)

In the winter of 1859, two of the finest vessels of the line were lost, and with them a great number of lives. The winter route of the Allan steamers between Liverpool and Portland ran westward from Ireland to Cape Race, the south-eastern extremity of Newfoundland, thence to the waters between Sable Island and Nova Scotia, the coast of which the steamers skirted for its whole length. After getting clear of Cape Sable, the southerly point of Nova Scotia, vessels had a deep water passage for the rest of the voyage.

The Nova Scotia coast was a source of much anxiety to navigators. The "Columbia," the only vessel of the Cunard line which was lost until this time, was wrecked on this coast, as were also the "Humboldt" of the American line and the "City of Manchester" of the Inman line. It was on this coast also that the two Allan ships were wrecked. On the 29th of November, the "Indian," on her way out from Liverpool, ran ashore on the "Deal Ledges" near the fishing hamlet of Marie Joseph. Parting amidships, some sixty of her passengers were lost. It was made clear that the captain had taken every precaution after leaving Cape Race, but he had been misled by defective charts.

Three months later, on the 20th of February, 1860, the "Hungarian" went down among the rocks off Cape Sable, and not a soul on board was saved. This steamer was the pride of the fleet. She was a new vessel, and had a record of three consecutive passages in twenty-seven days and twenty-three hours. The facts disclosed by the investigation were few. But it did transpire that the captain was noted for a certain dash rather than for seamanly prudence. It was said that by his skill in shaving sharp corners and scudding over shoals, and by his recklessness in keeping up a head of steam, he had converted the slowest of the Canadian steamers into the fastest.

News of the disaster to the "Hungarian" soon reached Montreal. It was melancholy news for the city, and public grief was soon followed by popular anger with the Allan Company and with the postmaster general. Smith was denounced by the legislature as *particeps criminis* in the destruction of the lives which had been lost on the "Hungarian."

A parliamentary investigation was ordered into the circumstances, and the report^[312] of the committee is instructive in the information it gives on the coast lights, and on the problems, which the substitution of iron for wood in the construction of steam vessels raised for those dealing with questions of navigation.

Neither Sable Island nor Cape Sable, on the winter route, were provided with lighthouses; and the lower St. Lawrence was most inadequately furnished with the indispensable guides for sailing by night. From Forteau Bay on the straits of Belle Isle, a vessel ran four hundred and fifty miles before it passed a lighthouse, and it then entered a stretch of one hundred

and twenty miles which it was obliged to make without the assistance of lights.

On the comparative merits of iron and wooden vessels, expert opinion was unanimous in favour of wooden vessels. It was considered that, in the event of a vessel being wrecked or stranded, there was less liability of loss of life in the wooden vessel. There was also the effect of the material of which the vessels were built on the working of the compass. In iron vessels, the compasses were a source of great and continued anxiety.

Before the vessels proceeded to sea, the local attraction from the ship was neutralized by magnets and, thus adjusted, the compasses acted with tolerable accuracy while the vessel was at sea and beyond the influence of land attraction. But when approaching the land the compasses were not to be depended upon. There was, it was asserted, an attraction from the land, but whether the mass of iron in the vessel was first acted upon by the land attraction, was a problem of which the existing state of science did not afford a solution.

The Cunard line at this time—1860—consisted of ten vessels. Only two were of iron; and it was noted that the irregular action of the compass on the iron vessel "Persia," after it left Cape Race, led the vessel into danger which was only averted by unusual care with the soundings. The committee of the legislature concluded by expressing a fear that, until new light had been thrown on the susceptibilities and workings of the mysterious magnetic forces, it might be necessary to abandon the construction of iron vessels.

Misfortune continued to dog the course of the Canadian steamers. In 1861 two more vessels were lost—both on the St. Lawrence route.

The "Canadian," the second of the name, launched in 1860, set out from Quebec for Liverpool on the 1st of June. Reaching the straits of Belle Isle two days later she encountered a heavy gale and great masses of ice. About eight miles from Cape Bauld, the northernmost point of Newfoundland, the vessel was struck by a sunken floe, which tore a hole in her side under the water-line, and she sank in two hours. Twenty-nine of the passengers and crew were drowned, including James Panton, the mail officer, who neglected the means of safety in his endeavours to save the mail.

The only criticism made by the board of trade court was that the straits route being a perilous one except at the height of the season, the sailing instructions which gave masters a discretion of taking this route after the 20th of May ought to be amended by fixing the earliest date at a month later.

At the end of the season—on the 5th of November—the "North Briton" ran ashore in an attempt to make the passage between the Island of Anticosti and the Mingan Islands. The circumstances that the vessel entered the passage an hour after midnight, with a heavy sea running, were noted by the marine court. But they confined themselves to a censure on the captain for some lack of vigilance, not considering it necessary to deprive him of his certificate.

Again there was a burst of public indignation, and a demand that the government should dissociate themselves from the contract. The postmaster general pleaded that such action would, in the eyes of the foreign governments, be tantamount to a confession that Canadians had lost faith in their route. He assured the legislature that he was bringing effective pressure on the Allan Company to compel them to perform their contract satisfactorily.

The complete immunity from accident during 1862 seemed to indicate that the measures forced upon the company by the postmaster general were successful. But the faith of the Canadian in the superior advantages of their route was soon to be put to further trials.

Between the 27th of April, 1863, and the 22nd of February, 1864—a scant ten months—three vessels of the line were lost. The first of these, the "Anglo-Saxon," which crashed into the rocky coast of Newfoundland, a few miles above Cape Race, gave some point to the observations of the commission as to the disturbing influences operating upon the compasses of vessels as they approached land.

The "Anglo-Saxon" left Liverpool on the 16th of April, and for the first nine days made an uneventful voyage. A clear, bright day on the 26th gave the captain an opportunity to make observations, and ascertain the ship's position; and as the weather was steady, he was able to run under full steam and sail.

Next morning it was foggy; and John Young—a former commissioner of public works, and one of the chief advocates of the Canadian ocean service—asked the captain if it was his intention to make Cape Race. The captain said it was not, as by noon they would be twenty miles south of the Cape. About eleven o'clock Young's attention was directed to what appeared to be a huge iceberg close at hand. He ran towards the deck, but before he could reach it the ship struck, and he found himself facing a precipitous mass of rock so lofty that in the fog he could not see the top of it.

Instead of being sixteen or seventeen miles south of Cape Race, the vessel was four miles above it. Though they were so close to land that many passengers saved themselves by creeping along the mast to the shore, 238 passengers were drowned, including the captain, whose faulty seamanship had brought about the calamity.

This shore is the most dangerous on the north Atlantic. Besides the magnetic influences, there is an underplay of powerful currents, which makes navigation in these waters difficult and dangerous. The Newfoundland government published a list in 1901 showing that seventy-seven vessels, great and small, had been lost on the Cape or within a few miles to the north or west of it.

Not quite two months later than the disaster of April 27, 1863, while excitement in Canada was still running high, the public were dumbfounded by the news of another disaster. The "Norwegian," a vessel built only two years, left Liverpool on the 4th of June. On the 10th she entered a dense fog which continued at short intervals until the 13th. At noon that day the fog lifted and the steamer put on full steam. At two o'clock in the morning land was sighted, which the captain took to be Newfoundland.

The ship's course was altered in accordance with that view, and although the fog fell densely, speed was not reduced. At seven o'clock there was a cry of breakers, and before the steamer could be checked or turned, she struck heavily upon the rocks of St. Paul's Island, a point in the Gulf of St. Lawrence, a few miles north of Cape Breton. The ship's position was so dangerous that the passengers were landed on the island. Afterwards the cargo and mails were secured.

The public were bewildered by the accumulation of disasters. The captain of the "Norwegian" was especially known as a careful and skilful navigator, and there was a persistent and vigorously expressed demand on the Allan Company for an explanation. To their plea of the danger of the route, the answer was that the "Hungarian," "Indian," and "Anglo-Saxon" were wrecked on a route over which the Cunard steamers had been passing in safety for years.

Iron vessels accordingly came in for condemnation. Except two, all the Cunard steamers were of wood, and these iron vessels were run only between Liverpool and New York, over a route all the way on the broad ocean.

The wreck of the "African" of the Cunard line on the coast of Newfoundland, which took place about this time, under circumstances similar to those attending the loss of the "Anglo-Saxon," showed, it was claimed, the superiority of the wooden vessels, when overtaken by accident. She was pierced in several places, but was not smashed as an iron hull would have been. Consequently, when the vessel got free of the rocks it was able to reach St. Johns where it put in for repairs.

The remainder of the summer of 1863 passed without incident, and a considerable part of the winter, when on the 22nd of February, 1864, the "Bohemian" in her passage to Portland, struck on Alden's Rock, close to her destination, and overturned, sinking within an hour and a half. The passengers and crew numbered 317 persons, and of these forty-three were drowned by the capsizing of one of the lifeboats. The court of inquiry attributed the catastrophe to the neglect of the captain to take the ordinary precautions, when confronted with a perilous situation, and he was deprived of his certificate for twelve months.

During the period between the wreck of the "Canadian" the first, in 1857, and the sinking of the "Bohemian" in 1864, there were thirteen vessels lost, of all lines engaged in the transatlantic trade, and of these eight were of the Canadian line.

The Canadian government and the Allan Company were subjected to a pitiless condemnation; and, with a change of administration in 1863, the new government lost no time in taking steps to end the contract.

Oliver Mowat, the new postmaster general, on the 12th of August, 1863, presented a report to the executive council recounting the attempts of the Canadian government to establish a Canadian line of steamers from 1853, when the first contract was made with the Liverpool firm of Mackeen, McLarty and Company. The contract with this firm called for a fortnightly service in summer and monthly in winter, with screw steamers of not less than 1200 tons, the subsidy from which was to be £24,000 a year.

In consequence of the default of the contractors, a new contract was made with Hugh Allan. The frequency of the service, and the amount of the subsidy remained unchanged, but Allan engaged to employ vessels of 1750 tons, instead of 1200.

On the 12th of October, 1857, a new contract was entered into with Allan for weekly service to commence on the 1st of May, 1859. The size of the vessels required was again increased, and the new steamers had to be built to 2000 tons. The subsidy was to be £55,000. By 1860, three vessels had been lost, and Allan, having found that the loss in carrying on the weekly service was far beyond his calculations, notified the government of his intention to terminate.

The government, believing that it was essential to hold public confidence in the route, and that this could be best done by enabling the contractor to provide larger and more powerful vessels to replace those which had been lost, determined to offer a much larger subsidy, and to stipulate for vessels of 2300 tons. A new contract embodying these conditions was made, and the compensation was fixed at £104,000.

In brief this was the situation when Mowat became postmaster general, though there had been negotiations between Smith and the Allan Company for a reduction of the subsidy. With the sanction of the government, Mowat cancelled the contract on April 1, 1864, and began negotiations for a new contract.

Mowat perceived that, unless there was to be a lapse in the service on the 1st of April, he must make his arrangements with Allan, since there was no other vessel owner in a position to take up the service on the termination of the contract. Mowat was the less reluctant to renew an engagement with Allan, as he recognized the courage, energy and perseverance of the latter,

and was convinced that Allan's experience would give him a great advantage over any other contractor.

The new contract contained provisions which were a confession that the government had been far from blameless for the losses of the several vessels of the Allan line. The mail steamers were expressly forbidden to approach Cape Race when the weather was so foggy or tempestuous as to make it dangerous to do so; when the presence of fog or ice should render it perilous to run at full speed the captain was to be impressed with the duty of slackening speed or of stopping the vessel as the occasion dictated, and the time so lost was to be allowed to the contractor in addition to the time specified for the length of the voyage.

Other precautions were taken by the contractor. The first vessel lost—the "Canadian" in June 1857—was cast on shore by the incompetency of the pilot, and the contractor made it his business to secure the best pilots, instead of taking the first that presented himself, as the practice had been. Another vessel was wrecked on a dangerous shore of the Island of Anticosti. This channel was thereafter abandoned by the vessels of the line.

As a consequence of these provisions and precautions, aided, doubtless, by greater care on the part of the sailing masters, accidents to the vessels ceased altogether. During the twenty-five years that ensued there was but one vessel lost. The outstanding feature of the whole business was the dogged resolution of Allan to justify his faith in the possibility of the Canadian route, and in his ultimate success he rendered an incalculable service to Canada.

FOOTNOTES:

[309] *Sess. Papers*, Canada, 1860, No. 8, contain all the papers bearing on the continental negotiations narrated.

[310] A lengthy review of the papers included in the *Sess. Papers*, No. 8, of 1860, appears in the *Toronto Leader*, the leading government organ of March 8, 1860. The writer notes that "Lord Elgin and Rowland Hill seem to have been firmly convinced, in their own minds, that a Canadian steamer is an American steamer," and observes that "the English officials shifted the grounds of their objections several times, till finally, as rheumatism is said to do after shifting

from one part of the body to the other, they vanished altogether before the force of Mr. Smith's arguments, till nothing but naked obstinacy remained."

[311] P.M.G.'s report to council, December 7, 1863 (*Sess. Papers*, Canada, 1864, No. 28).

[312] *Journals of Assembly*, Canada, 1860, App. 14.

CHAPTER XIX

Postal service of Manitoba, the North-West provinces and British Columbia
—Summary of progress since Confederation.

When Sir Adams Archibald, the first lieutenant governor of the newly-formed province of Manitoba, reached Winnipeg in the summer of 1870 for the purpose of taking over his government, he made a survey of the administrative system which he found there.

The postal arrangements were very simple. ^[313] There were but four post offices in the province, and three mail routes. The principal route, that upon which the settlement depended for its communication with the outer world, ran down the Red River from Pembina, on the border, to Winnipeg. The second followed the river down as far as St. Andrew's; and the third connected the town of Portage La Prairie with Winnipeg, by a weekly-courier service along the Assiniboine river. The mails on the other two routes were carried twice each week.

The carriage of the mails between Pembina and Winnipeg was originally a private enterprise, but was afterwards assumed by the government of Assiniboia. There was a postage charge of one penny on all letters and of one-halfpenny on all newspapers, passing in and out of the territory, in addition to the postage due for conveyance between Pembina and the place of origin or destination.

The system in the settlement was not recognized by the United States government, and letters were not considered as regularly posted until they were deposited in Pembina post office. Consequently the only postage stamps were those of the United States, which were sold in the post offices of the settlement.

The letters and newspapers passing between Winnipeg and Pembina during the month of August 1870 were counted, and it was found that within that

period, there were 1018 letters and 196 newspapers sent from Winnipeg to Pembina, and 960 letters and 1375 newspapers passed into the settlement.

The opportunity afforded by the extension of the United States postal service into the northern parts of Minnesota was a great boon to the inhabitants of the isolated settlement. Until that time, the only communication between the Red River and the world outside was by means of the semi-annual packets, by which the Hudson's Bay Company maintained its communication with its posts, which were scattered over its vast territories. [\[314\]](#)

Once in each year a vessel sailed from the Thames for York Factory on the western shore of Hudson's Bay bringing the goods used for barter with the Indians, and carrying back to London the peltries which were the produce of the previous year's trade. To meet this vessel, a brigade of dog-sleighs set out from fort Garry about December 10, when, the ice having formed and the snow fallen, travelling was easy. The first stopping place was at Norway House, at the northern end of lake Winnipeg. The distance, about 350 miles, was travelled in eight days.

Here the contents of the packet were separated, one portion being detained for the posts in the west, and the other for York Factory. The couriers with the mails from the ship in Hudson's Bay connected at Norway House with those from Red River, and after mails had been exchanged, each returned to his point of departure. The mail from England reached fort Garry in February.

The other means of communication was by the packet which was despatched overland in the winter to Montreal. The courier returned to the settlement in the spring, travelling by canoes from Lachine up the Ottawa river and along the Mattawin to lake Nipissing, thence down the French river to Georgian Bay. Crossing the bay and lakes Huron and Superior, the travellers entered the Kaministiquia at fort William, and passing by alternate water stretches and portages into the Winnipeg river, they made their way by canoe to lake Winnipeg, and landed at the outlet of the Red River, eighteen miles north of fort Garry. This journey occupied about six weeks.

The extent of the isolation of the settlement during the early period is thus vividly described:—[\[315\]](#)

"Thus matters went on during the first forty years of our existence as a settlement. We were kept in blissful ignorance of all that transpired abroad until about eight months after actual occurrence. Our easy-going and self-satisfied gentry received their yearly fyles of newspapers about a twelvemonth after the date of the last publication, and read them with avidity, patiently wading through the whole in a manner which did no violence to chronology. Wars were undertaken and completed—protocolling was at an end and peace signed, long before we could hear that a musket had been shouldered or a cannon fired."

The Hudson's Bay packets were placed at the service of the settlers, but not quite without reserve. The company, which employed the packets primarily for the conduct of their business, did not intend that they should be used against their interests. They had a monopoly of the fur-trade, which they proposed to hold, as far as possible, intact. There were a number of traders in the settlement, who bought on their own account, and made use of such means of transport as they were able to discover, to get their furs out of the country.

To prevent the operations of these interlopers, the company had recourse to a measure which was vastly unpopular in the settlement. The governor of Assiniboia, in a proclamation, dated December 20, 1844, directed that all letters intended to be despatched by the winter express, must be left at his office on or before the 1st of January. Every letter must bear the writer's name, and if the writer was not one of those who had lodged a declaration against trafficking in furs, he was obliged to deposit the letter open, to be closed at the governor's office. [\[316\]](#) This obnoxious order remained in force until 1848.

This arbitrary measure on the part of the company excited intense feelings among the settlers, and disposed them to hail with satisfaction the approach of the lines of the American postal service towards the company's southern borders. In 1853, when the American government established a post office at fort Ripley, a number of the settlers in the Red River settlement formed a post office at fort Garry, and opened a monthly communication with the

post office in Minnesota.^[317] At the same time a post office was also opened in the settlement of St. Andrews, fourteen miles further down the Red River. In 1857, the United States postal service was extended to the company's border, at Pembina, and the infant system in the settlement was connected with this office.

The relation of dependence, which the Red River settlement was beginning to assume towards the United States, attracted attention in Canada, and fears were expressed as to the political future of the great hinterland. In 1857, the Toronto board of trade addressed a memorial to the government,^[318] pointing out the situation in the north-west, and urged the expediency of establishing a post route and telegraph line between Canada and British Columbia, over Canadian and Hudson's Bay territory.

The government acted upon the suggestion without loss of time. A mail service was opened in the summer of 1858 to the Red River settlement.^[319] Mails were carried twice a month between Collingwood and fort William by steamer, and from the latter point to the Red River by canoe. When winter closed the water routes, a monthly packet by dog-sleigh carried the mails, the carrier travelling along the north shore of lakes Huron and Superior.

But this effort to establish a direct connection between Canada and the north-west was not a success. The difficulties of travel placed this route at a hopeless disadvantage with that through the United States, which gave the people of the settlement a direct communication with but seventy miles of transportation on their part. The service was abandoned after two years, and shortly afterwards the improvements in the service of Pembina in the United States system, enabled the settlers on the Red River to exchange mails with the outer world twice each week.

But the failure of this scheme was merely the prelude to the greater scheme, advocated by the Toronto board of trade. The Canadian government opened a correspondence with the Hudson's Bay Company on the questions of a post road and telegraph across the Continent.^[320] On its part, the government was prepared to adopt any measure which would facilitate travel over the stretch which lay between the settled parts of Canada and the Hudson's Bay territory. Appropriations were made for roads through to Red

River, and it was hoped that free grants of land would induce people to settle along the route.

The discovery of gold on the Saskatchewan, with the anticipated influx of gold-seekers from the United States made the question one of great urgency. The only access to the territories was through the state of Minnesota, and it was feared that the settlement at Red River would inevitably imbibe principles inimical to the British interests. Unless Canada could offer a passage into the territories, equal in accommodation to that afforded by the United States, the territories would in no long time be occupied by foreigners, British rule would virtually have passed away, and the key to the trade to British Columbia and ultimately to China surrendered to rivals.

Dallas, the resident governor of the Hudson's Bay Company, looked at the question from the standpoint of the company's interests. He pointed out that the establishment of a line of communication across the territories of the company would be seriously prejudicial to those interests. The Red River and Saskatchewan valleys, though not in themselves fur-bearing districts, were the sources from which the main supply of winter food were procured for the northern posts, from the produce of the buffalo hunts.

A chain of settlements through these valleys would not only deprive the company of these vital resources, but would indirectly, in other ways, so interfere with their northern trade as to render it no longer worth prosecuting on an extended scale. It would necessarily be diverted into various channels, possibly to the public benefit, but the company could no longer exist on its present footing.

The Canadian government was far from satisfied with this answer. As they saw it, the question resolved itself into simply this: Should these magnificent territories continue to be merely the source of supply for a few hundreds of the employees of a fur-trading company, or be the means of affording new and boundless contributions to civilization and commerce? Should they remain closed to the enterprise and industry of millions, in order that a few might monopolize all their treasures and keep them for all time to come, as the habitation of wild beasts and the trappers engaged in their pursuit?

The postmaster general in making his report to the council estimated that the cost of a road and water connections with Red River would cost £80,000, and from that settlement to the passes of the Rocky Mountains, £100,000, and recommended that the Canadian parliament should appropriate \$50,000 a year for a number of years for this project.

The Red River settlement approached the Canadian government on the subject, undertaking to build a road to the head of the Lake of the Woods, if the Canadian or British government would construct a practical passage from lake Superior to meet this road. The British government, to whom a copy of this memorial was sent by Sandford Fleming, replied that plans were almost matured for establishing a postal and telegraphic communication with British Columbia, and it was expected that with the aid of the two colonies, the scheme would be entered upon at no distant date.

An obstacle to the settlement of the plans lay in the indeterminate nature of the claims of the Hudson's Bay Company to the territory over which the means of communication should pass, and the Canadian government declined to participate in the project while these claims remained unsettled. They opened correspondence with the British government with the view to determine the questions in dispute, maintaining at the same time the right of Canada to take over all that portion of central British America which was in the possession of the French at the period of the session in 1763.^[321] The question of postal communication was as a consequence postponed to the larger question of Canada's acquiring these territories, and this was not settled until 1870.

In 1865, the Hudson's Bay Company sent Dr. John Rae, the Arctic explorer, to ascertain the practicability of establishing communication by telegraph across the continent. His report was favourable, and the company went so far into the scheme as to send a quantity of telegraph wire into the territory. But as their continued ownership and monopoly of the territory became increasingly uncertain, the company suspended operations, and these were not resumed.

In April 1862 the governor and council of Assiniboia by an ordinance established a postal system in the settlement. James Ross was appointed postmaster in the middle section of the settlement, with a salary of £10 per

annum; and Thomas Sinclair, postmaster of the lower section, with a salary of £6 per annum. A mail was to be carried between the settlement and Pembina at the public expense, in connection with the United States mail to Pembina. The postal charges between the settlement and Pembina were fixed at a penny per half ounce for letters, twopence for each magazine or review, and one-halfpenny for each newspaper. For books, the charges were fivepence for half a pound or under, one shilling for one and a half pounds, and twopence for each additional half pound. [\[322\]](#)

This embryo system was in operation when Sir Adams Archibald arrived in the new province as lieutenant governor. He lost no time in putting the system on as efficient a footing as the circumstances permitted, and in incorporating it into the postal system of the dominion.

The postmaster general arranged with the post office department of the United States for the transmission across its territory by way of Chicago and St. Paul, of mails between Windsor, Ontario and Winnipeg. The postal rates in force in the dominion were applied to the new province; and in November the post offices were provided with Canadian postage stamps, to replace those of the United States, which had been used until that time.

The means of transportation through the United States was gradually improved, and advantage was taken of these ameliorations to improve the communication of Manitoba. In 1879 the completion of the railway between the Pembina and Winnipeg left little to be desired in the facilities enjoyed by the province for the exchange of correspondence. But it was still dependent on the good will of the United States for these facilities. It was not until 1884 that the completion of the Canadian Pacific railway between Winnipeg and eastern Canada provided a connection across Canadian territory.

The need for a regular postal service in British Columbia did not arise until 1858, the year in which the gold discoveries in the mainland brought large numbers of miners to seek their fortunes in that country. The colony of Vancouver Island had been in the process of settlement by the Hudson's Bay

Company since 1849, but the success of the company had been but moderate. The whole population in 1856—scarcely equal to that of a small town—was gathered together in Victoria and its environs, and their requirements as regards correspondence were limited to a communication with Great Britain.

The home government gave early attention to the question of providing these means. On August 3, 1858, the day after the act providing for the government of the new colony had been adopted, the colonial secretary wrote to the treasury, pointing out that the establishment of the new colony, and the large influx of immigrants thereto, made it desirable that some safe and regular communication should be formed between the colony and the kingdom, and asking that the lords commissioners should consider the possibility of such a suggestion. [\[323\]](#)

The treasury consulted the admiralty and the post office. Neither department could suggest a scheme which would not involve an outlay much beyond the ideas of the treasury as to the importance of the objects to be attained. The post office proposed sending mails to Colon, at the entrance to the Panama railway by the steamers of the Royal Mail Packet Company, thence to Panama by railway. The voyage occupied from sixteen to twenty days and the passage across the isthmus about five hours.

The conveyance from Panama to Victoria offered greater difficulties. The connection between British mail steamers arriving at Colon and the United States steamers running from Panama to San Francisco, was so faulty, that the mails would have to lie at Panama as long as two weeks before they were taken forward. The passage to San Francisco occupied two weeks, and from this point to Victoria from four to five days. The delay at the isthmus was usually avoided by taking the steamer from England to New York, from whence a line of steamers ran to Colon in close connection with the Pacific steamers from Panama. By the latter route the journey from London to Victoria was made in about forty-five days.

But the important consideration with the treasury was the very considerable cost. The preference of the government was for an all-British conveyance. This could be arranged by having a steamer, subsidized by the government, take the mails from the Cunard vessels at either Halifax or New York, and

carry them to Colon, and by providing other vessels under its control to make the conveyance from Panama to Victoria. The enormous cost of these services precluded the adoption of this scheme, until the colony had grown to an extent that it could bear, at least, part of the cost. It was estimated that the steamer on the Atlantic coast would call for an outlay of £25,000 a year, while the Pacific line would cost not less than £100,000 a year.

A solution of the difficulty was found through the good offices of the United States government. There was a service carried on twice a week between St. Louis, Missouri and San Francisco. The route was 2,765 miles in length, and it was covered by four-horse coaches with great regularity in twenty-two days.

This service, the United States government placed at the disposal of the British post office for the exchange of its correspondence with its distant colony. The mails on their arrival at San Francisco were delivered to the British consul, who arranged for their transmission to their destination.

At the best, the isolation of the new settlement was extreme. There had been a newspaper in Victoria since June 1858. It was published weekly, and for two weeks out of three, its columns were confined to purely local news. The third issue presented the appearance of a modern newspaper. The steamer "Eliza Anderson" had arrived from Olympia, bringing with it the despatches from San Francisco, containing news from all parts of the world.

How belated the news was may be gathered from a glance over one of the issues. The issue of March 9 contained news from San Francisco, not later than February 8, and from St. Louis, the latest date was February 5. As St. Louis was within the eastern telegraph system, the papers from the city contained despatches from all parts of the United States and Canada. It was observed that among the items of news was the arrival of the steamer "Bohemia" at New York, with the Liverpool newspapers of January 18. So that under ordinary circumstances, news from England was fifty days old before it reached the public in Victoria.

The construction of a telegraph line to the Pacific in the autumn of 1861, and the extension of the lines of the California State Telegraphic Company to Portland, Oregon, in 1864, did much to relieve the situation, so far as

concerned news important enough to be sent by telegraph to the newspapers in San Francisco.

But the ordinary news from Canada did not reach Victoria by telegraph, and the length of the delay in the transmission of news from Canada by letter may be seen from the fact that the *British Colonist* of November 11, 1864, contained a newsletter from Canada, dated September 30—six weeks earlier. Governor Kennedy in his annual report to the colonial secretary on the state of the colony in 1864 observed that "expensive and defective postal and other communications are the great bar to progress, and reflect but little credit on the two great nations—England and America. A *Times* newspaper costs fourpence postage, and that for a book is entirely prohibitory."

Arrangements of a simple character were made for the conveyance of letters into the sections occupied by the miners. In November 1858, governor Douglas reported that the men at the mines—nearly all of whom were on the course of the Fraser river—numbered 10,500. He also stated that he had arranged a postal system on a small scale, which provided for the wants of the country, at an expenditure which was fully covered by the receipts.

The earliest letter delivery in this region was carried on by the express companies, whose operations were extended from California to British Columbia, with the migration of the miners to the newly-discovered gold districts. This mode of delivery is described by a British naval officer, who spent four years in the country, as one of the safest imaginable. He states that "so great is his faith in them that he would trust anything in even that most insecure country (California) in an envelope bearing the stamp of the Wells Fargo and Company's express."^[324]

In May 1858 the colonial administration arranged with the private expresses for conveyance of letters anywhere within the colonies of British Columbia and Vancouver Island on condition of the prepayment of five cents per letter, as colonial postage.^[325]

This rudimentary arrangement was replaced in 1864 by a regular departmental postal service with headquarters at New Westminster.^[326] The charges on letters and newspapers sent by post were fixed as follows: for

every letter to and from British Columbia and Vancouver Island, delivered at Victoria or New Westminster, threepence per half ounce; on every newspaper posted under the same circumstances, one penny; on every letter from a post office at any one place in the colony to a post office at any other place in the colony, sixpence per half ounce; for a newspaper posted for delivery under the same circumstances, sixpence; on letters from any other place than Vancouver Island, threepence in addition to the foreign postage.

The year following the union of the two governments of British Columbia and Vancouver Island, an ordinance was passed by the government, dated April 2, 1867, in which a new set of rates were established. On a letter passing between any two post offices in Vancouver Island or between any of these offices and New Westminster or any port in the colony, the rate was five cents; between Vancouver Island or New Westminster on the one side and Clinton or Savona's Ferry, the rate was twelve and a half cents; where letters pass beyond those distances the charge was twenty-five cents.

For letters exchanged between any two post offices above Yale, Hope or Douglas, the rate was twelve and a half cents. In each case the unit of weight was an ounce. The charge on newspapers passing between any two post offices in the colony was two cents each. At this period there were eighteen post offices on the mainland and eight on the island.

The situation of the post office in British Columbia stood thus when the colony became one of the provinces of the dominion. By the act of confederation the postal service was incorporated into the Federal system which was administered by the post office department at Ottawa. The rates of postage in British Columbia were made uniform with the charges in the other provinces, viz., three cents per half ounce for letters, and one cent for newspapers.

Communication between British Columbia and Canada east of the Rocky Mountains was far from satisfactory. Until the completion of the Canadian Pacific railway in 1885, the eastern provinces had to depend entirely upon the United States postal system for the means of communication with British Columbia. At the time of the entrance of the province into the confederation, the opportunities for an exchange of correspondence were limited to twice a week.

The mails were conveyed from San Francisco by railway and stage to Olympia, between which point and Victoria, semi-weekly trips were made by steamer. There was also a service twice a month, between Victoria and San Francisco. The maintenance of these connections between San Francisco and Vancouver Island was stipulated for among the conditions of union of British Columbia with the dominion of Canada.

Within the province, the mails were carried by the steamer "Sir James Douglas" along the east coast of Vancouver Island and Comox. The mainland was supplied with mails by a steamer which ran twice a week between Vancouver and New Westminster. In the interior of the province, the mails were carried by steamer up the Fraser river to Yale, thence northward to Barkerville. The distance between New Westminster and Barkerville was 486 miles. The service from Yale to Barkerville was by means of stages, drawn by four or six horses. This service was carried on weekly during summer, and fortnightly during the winter. Striking off westward from this route at Quesnelle, there was another to Omenica, 350 miles, over which the mails were carried monthly.^[327]

In bringing the narrative to a point where the several provincial systems were incorporated into one system controlled by the post office department at Ottawa, I have completed the task I undertook. It remains only to note in a summary manner the progress that was made by the post office from Confederation to the Great War.



**ROBERT MILLAR COULTER M.D.,
C.M.G.**

(Deputy Postmaster General since 1897)

On the formation of the present department, there were 3477 post offices in the system. In 1914 this number had been increased to 13,811. The expansion of the lines of the service in the four older provinces, though considerable, is not comparable with that in the provinces comprehended in the territories west of the Great Lakes. In Nova Scotia, New Brunswick, and the better settled parts of Quebec and Ontario, the characteristic of the increase is the greater frequency of travel on already established roads, and,

particularly, the acceleration of correspondence by the introduction of railways into the parts of the provinces.

In 1867 there were but 2278 miles of railway in Canada. In the forty-seven years which followed this mileage was augmented to 30,795.

The narrow line of settlement in Ontario from the Quebec boundary to Toronto had expanded to a breadth, covering the extent of country from lake Ontario to the watershed, dividing the waters flowing south from those running into Hudson's Bay.

But the great expansion has taken place in the provinces on the plains between the Great Lakes and the Rocky Mountains—in the New Canada beyond the Great Lakes. On entering Confederation, the postal arrangements in this vast territory comprised but six post offices, with a system of mail service of no more than 145 miles. Since 1867 a system has been created in these western provinces containing in 1914 over 42,000 miles, of which 16,500 miles are of railroad. The number of post offices in this year was 3402.

The expansion in British Columbia if not equal in magnitude to that in the prairie and grain-growing provinces, keeps full pace with the requirements of that province. There were thirty post offices in the province in 1871 when the colony entered Confederation. These had increased to 799 in 1914. The system in the earlier period comprised 3412 miles. This had increased to over 12,000 miles in 1914; of these 3200 were by railroad, and 5000 by steam or sailing vessel.

The outstanding feature of the interchange of correspondence between the several provinces at the time they entered Confederation is the dependence on the postal service of the United States for the means by which it was carried on. As between the old province of Canada and the Maritime provinces, there was indeed a mail service by coach between Truro, sixty miles west of Halifax, and Riviere du Loup, 120 miles east of Quebec. But, apart from the fact that the trips were made no more frequently than three times a week, the utter inadequacy of such a mode of conveyance over a route 485 miles in length was obvious to those who could use the railways of the United States for the same purpose.

The provinces had been united politically for nine years before the completion of the inter-colonial railway provided the means of direct communication between them. Until 1876 the usual course for the mails between the Maritime provinces and the old province of Canada was by railway from St. John, New Brunswick to Bangor, Maine, thence to Portland, where connection was made with the Grand Trunk system.

As the western provinces came into the Confederation they exhibited in an even more marked degree the dependence on the good will of the United States for communication with the older provinces. The construction of the Canadian Pacific railway westward around the head of lake Superior and the continuance of its course across the plains of the north-west territories, and over the Rocky Mountains to the Pacific Ocean, gradually relaxed that dependence.

But Manitoba had been a province of the dominion for fourteen years before the first train ran over an all-Canadian route between that province and Ontario, and it was two years later before British Columbia was linked up with its sister provinces by this means.

During these periods the mails for Manitoba were despatched from Windsor by way of Chicago, St. Paul's and Pembina, Dakota: those for British Columbia, by way of San Francisco. Fortunately, the geographical position of Canada with reference to the western and north-western states, enabled the post office of this country to reciprocate, more or less adequately, the services rendered in the maintenance of communication between the several provinces.

Concurrently with the expansion of the postal system has gone a steady reduction in the postal rates. The charge of five cents per half ounce on letters was lowered to three cents per half ounce in the first session of parliament after Confederation. The effect of the reduction on the volume of correspondence exchanged was manifested in the fact that, although the reduction was the very considerable one of forty per cent., the revenue in 1871 was greater by \$55,000 than the amount collected three years before.

The rate of three cents per half ounce, which was fixed in 1868, remained unchanged for twenty-one years, when the unit of weight was changed from half an ounce to one ounce, the rate becoming in 1889 three cents per

ounce. The final reduction in the rate was made on January 1, 1899, two cents being substituted for three cents as the rate of postage for an ounce letter.

In 1878 Canada became a member of the Universal Postal Union, an organization whose purpose it was to make in effect a single postal territory of the whole world. The obstacles to the interchange of correspondence between the various countries owing to differences in charges and regulations, had long been felt as a serious impediment to the cultivation of social and commercial relations which there was a general desire to foster, and some tentative efforts had been made, notably by the United States, to ameliorate the conditions governing international correspondence by the establishment of uniform regulations for this class of correspondence.

Twenty-two states, comprising the leading countries in Europe, the United States, and Egypt sent delegates to a conference that assembled at Berne in 1874, and the result of their deliberations was a convention which established a code of regulations and fixed uniform postage rates respecting correspondence passing anywhere within the union.

The benefits conferred by the union on those, who, for any reason, had to carry on correspondence with foreign countries were inestimable. Some illustrations drawn from the case of Canada will be enlightening. In 1873 letters sent to India were subject to two different rates, according to the route by which they were directed. If sent by Canadian steamers to Great Britain, and thence on to their destination, the charge was twenty-two cents; if sent by the United States, the charge was thirteen cents. To Chili, Peru, and Ecuador, there were two routes and two rates; by way of England, the charge was forty cents, by way of the United States, twenty-five cents.

The extreme instance of variation in the charges according to the route chosen was in the case of letters from the United States to Australia. There were six different routes, and the postal guide set out the different charges: five cents, thirty-three cents, forty-five cents, fifty-five cents, sixty cents, and one dollar, according to the route by which the letters were sent.

Difficulties of an accounting nature arising from different standards of weights hampered the operations of the officials in preparing the mails. Thus a letter from Great Britain to Germany, passing through France was

taxed at a certain rate per half ounce in England, another rate per ten grams in France, and, finally, a third rate per loth^[328] in Germany.

Many of these trammels to correspondence were removed by special conventions before the Postal Union came into being. But how many remained may be judged from the fact that the Canadian postal guide, issued shortly before Canada was admitted to the Postal Union, contained a list of rates to 127 different countries, which must be consulted by correspondents and postal officials before the charge on a letter going abroad could be ascertained.

The immediate effect of coming into the union was the removal of these extensive and complicated lists from the postal guide, and their replacement by a single sentence, in which the charge on letters for all the countries in the union was stated to be five cents per half ounce. The Postal Union did not at that time comprehend all countries, though it did all the most important, but since then adhesions have been made from year to year until to-day there is scarcely a country to which letters are written, which does not come within its scope.

In 1898, at Canada's instance, a closer union was formed for penny postage within the British Empire. It went into effect on Christmas day of that year. It did not include all parts of the Empire at the time it was formed, Australia being deterred from associating itself with the scheme, by financial considerations.

A few years ago Australia found itself able to adjust the difficulties with which it was confronted when the union was formed, and the imperial penny postage scheme is operative in all parts of the Empire.

In 1903 the postmaster general of Canada opened negotiations with the administrations of the various parts of the Empire for a reduction of the postal rates on newspapers. His proposition was to allow newspapers to circulate throughout the Empire at the same rates as were charged for their transmission within the countries from which they were sent. The proposition encountered much opposition at the outset, but it made gradual progress, and to-day a newspaper may be sent from Canada to Great Britain and several other portions of the Empire at the same rate as would carry it from one place to another in Canada.

The auxiliary postal services—the money order and the savings bank—have expanded in their operations enormously between the period of Confederation and the present time. In 1868 there were 515 money order offices in the provinces comprising the dominion, and the amount of the orders issued by them was \$3,342,574. The corresponding figures for 1914 were 4274 offices, which issued orders to the amount of \$118,731,966.

The post office savings bank was not in operation prior to Confederation. It was established in April 1868, and at the end of the first year 213 post offices were charged with the duty of receiving and paying out savings deposits. The deposits at the end of the first year amounted to \$861,655. In 1914 there were 1250 post offices doing savings bank business, and the deposits amounted to \$11,346,457, and the balance standing at the credit of depositors was \$41,591,286.

The financial operations of the Canadian post office have undergone a great expansion. The revenues which at the end of the first year of Confederation were \$1,024,711, have, in spite of the steady reduction in the charges, been multiplied sixteen-fold within the forty-eight years since that period. In 1914 the amount collected for its services reached \$16,865,451.

It is interesting, as illustrating the much greater use made of the post office by the public in Canada, to note that while the revenue has increased sixteen times, the population has not much more than doubled within the same period. In 1868, when the population of the four original provinces was given as 3,879,885, the amount paid to the post office was \$1,024,711; in 1914, when the population was 8,075,000 the revenue was \$16,865,451. Thus, notwithstanding the fact that for every letter posted during the first year of Confederation five cents was exacted by the post office, while in 1914 two cents only was demanded, the average expenditure for each member of the population was in 1868, rather less than twenty-seven cents, while in 1914 it was a small fraction over two dollars.

The Canadian post office has been on a sound footing as a business institution for a number of years past. This fact is more notable than would perhaps appear. The postal system of this country embraces a territory more extended than that served by any other system on earth, except the United

States and Russia; and the population to utilize its services, and thereby furnish its revenues, is very much less than that of either of these countries.

Circumstances, incident to the expansion of settlement or the providing of new facilities, are constantly arising, which compel the department to embark on expenditures from which adequate returns can be expected only in the distant future.

As instances, when Manitoba and the north-west territories were added to the dominion, one of the early measures of the department was to establish a line of mail route from Winnipeg to Edmonton, at a cost of \$10,000, while the receipts from the whole north-west territories was considerably less than \$100. The completion of the Canadian Pacific railway to Vancouver in 1885 involved the department in outlays, which exceeded the revenues by over \$200,000 a year.

Nor has it been only by the weight of unavoidable expenditure that the department has been impeded in its efforts to make ends meet. The policy of the government has also operated to deprive it of what in all other countries is regarded as a source of legitimate revenue.

Newspapers have always been circulated through Canada by the post office on terms most advantageous to the public. In 1875 publishers were permitted to send their papers to subscribers at the rate of one cent per pound. Even this small charge was removed in 1882, and for the following seventeen years newspapers addressed to subscribers were exempt from all charges.

In 1899 a small charge was imposed, which, after some variations, was fixed at a quarter cent per pound. As the cost to the post office of handling and transmitting newspapers is estimated as from four cents to six cents per pound, it is clear that the loss to the department on this head reaches a large amount each year. In spite of these facts, however, the revenues of the department have steadily increased, and since 1903, when they first surpassed the outlay, they have maintained an ascendancy which it is improbable will be overcome.

FOOTNOTES:

[313] *Sess. Papers*, Canada, 1871, No. 20.

[314] Hargrave's *Red River*, p. 155.

[315] *The Nor'-Wester*, January 28, 1860.

[316] Minutes of evidence taken before the select committee on the Hudson's Bay Company, Ques. 4772 (*House of Commons Papers*, 1857).

[317] Hargrave's *Red River*, p. 100.

[318] *Journals, Leg. Assy.*, Canada, 1857, p. 207.

[319] Report of P.M.G. of Canada, 1859.

[320] *Sess. Papers*, Canada, 1863, Nos. 29 and 31.

[321] *Sess. Papers*, Canada, 1864, No. 62.

[322] *Ibid.*, 1871, No. 20, p. 132.

[323] *House of Commons (British) Papers*, 1859.

[324] Mayne's *Four Years in British Columbia and Vancouver Island* (1862), p. 71.

[325] Begg's *History of British Columbia*, p. 311.

[326] Postal act of British Columbia, May 4, 1864.

[327] Report of the P.M.G. of Canada, 1872.

[328] Varying from 225 to 270 grains troy.

CHAPTER XX

The post office in Newfoundland.

The position of Newfoundland, as regards postal requirements, was very similar to that of the other colonies situated on the Atlantic seaboard. The social and commercial relations of the island were almost exclusively with the mother country, and the trade was from an early period very considerable. A number of vessels sailed each year from the ports of Great Britain to those of the colony, which provided the means for the interchange of correspondence.

On this side but one thing was needed—a fixed place in St. Johns at which letters for despatch by outgoing vessels could be deposited, and at which captains on their arrival could deliver the letters with which they had been entrusted in Great Britain.

The first post office was established in 1806 by Sir Erasmus Gower, who appointed Simon Solomon postmaster. The governor communicated with the secretary of the general post office, who though not prepared to include Newfoundland in the British postal system, promised to forward all letters addressed to the island, by the first outgoing vessels. Three years later, the number of merchants settled at Brigus, Harbour Grace and Carbonear on Conception Bay made necessary an arrangement, by which the letters reaching St. John for any of those places were forwarded to their destination by any vessels which might be going thither.

The charge on letters passing through the London post office to Newfoundland was one shilling and threepence, if conveyed to Halifax by packet, and eightpence, if sent by private vessel, to which sums was added the postage from the place in Great Britain at which the letter was deposited, to London. There can be little doubt that but a small proportion of the correspondence passing between Newfoundland and Great Britain was exchanged by these expensive means. Advantage would be taken of the

departure of any vessel, to place the letters in charge of the captain, who would collect the sum of a penny or twopence for each letter from the person to whom he delivered them at the port of arrival.

The course of post within the island was also very expensive. The owners of sailing vessels running between St. John's and ports on Conception Bay collected a shilling for each single letter they delivered.

Governor Cochrane, in 1826, appealed to the postmaster general in London to establish a regular post office in St. John's, in order that his despatches from the colonial office might reach him with security. Failing that, he asked that the despatches might be sent, to a company in London, which was in constant communication with Newfoundland.

The chamber of commerce of St. John's, in 1836, presented a memorial to the colonial office, asking that the sailing packets running between Falmouth and Halifax might call at St. John's on their voyages. But the governor, in forwarding the memorial, deprecated the application, on account of the fogs and gales which prevail on those coasts, and the ignorance of the sailing masters regarding the localities. The admiralty refused to entertain the application.

With the establishment in 1840 of the Cunard steamship line to run between Halifax and Liverpool, and the inauguration of the scheme to make the Nova Scotia port the distributing centre for the mails for all parts of North America, provision was made for a sailing vessel of not less than 120 tons to leave Halifax for St. John's in connection with the steamer arriving at Halifax, and the post office at St. John's was incorporated into the imperial system. The postmaster, Simon Solomon, who had died in December 1839, was succeeded by his son, William Lemon Solomon, and the latter was placed on the pay-roll of the general post office with a salary of £100 per annum.

Governor Prescott gave his attention to the inland post office and endeavoured to have established a regular colonial system, but the assembly to which he directed his recommendation did not act upon it. The governor had, however, managed to secure to the postmaster some regular compensation for his services in attending to the exchanges on the island.

There was at this period a communication every second day with the ports of Brigus, Harbour Grace and Carbonear, by a sailing vessel, which carried passengers and letters. The postmaster received a payment of sixpence each upon all letters, and twopence on all newspapers received from other places, and twopence each upon letters despatched from his office. This brought him an income of between £30 and £40 a year.

The establishment of the post office and its peremptory intervention in the exchange of communications between the merchants of St. John's and their correspondents abroad was a novelty, which was not wholly welcomed in that city. Although the post office had been at their service for thirty-five years, it was without official authority to claim exclusive right to the transmission of correspondence. The merchants could use it or not as suited their convenience.

There were few communities that could dispense with the benefits of a post office more easily than St. John's. The merchants all did business on Water Street, and their warehouses looked out on the harbour; consequently the arrival or departure of a vessel was known to every person interested, and letters could be placed in the hands of an outgoing captain or received from one who had just arrived, with the least possible inconvenience. They could be delivered up to the last moment before the vessel left the harbour, and received as soon as it had been made fast at the docks.

The necessary formalities of a post office proved inexpressibly irksome to the merchants of St. John's, and Solomon was made to feel the irritations of their impatience. He seems to have been one of those officials who make much of the functions of their offices. He delighted in the parti-coloured pencils, which his regulations prescribed. He was indignant with the merchants, who could not be made to understand why he used a red pencil to indicate that a letter had been prepaid, and a blue one to show the receiving postmaster in England that the postage had not been paid. All the trappings dear to the accountant's soul, were to them merely hindrances to the prompt posting and receiving of their letters.

Then there were difficulties of another sort. One of the merchants was notified that there was a packet in the post office for him, on which postage to the amount of five shillings and threepence was due. He, at first, refused

to accept the packet, declaring that it could only contain newspapers, but, yielding to curiosity, he took it, and finding his surmise to be correct, endeavoured to return the packet to the postmaster, declining to pay the postage. The postmaster reported the case to England for instructions. He was told that the acceptance of the parcel carried with it the necessity on the part of the merchant of paying the postage, but whether the postmaster succeeded in bringing the recalcitrant merchant to a sense of his obligation is not recorded.

The postal situation in Newfoundland remained unchanged until 1848, when Elgin, the governor general, of the British North American provinces announced to the government of the island, that the British government had decided to grant autonomy to the several administrations in the colony, and called a conference in Montreal to settle the questions arising from this concession.

Newfoundland was not represented at the conference, but the decisions adopted and the course taken by the other colonies stimulated the Newfoundland government to establish a postal system within the island. On April 26, 1850, a committee of the assembly was appointed to inquire into the subject. That the question had been fully discussed before this action was taken by the assembly is evident from the fact that three days later the report of the committee was presented to the house.

The interval between the time of its appointment and the date on which it made its report precluded the committee from making anything like exhaustive inquiries. They were satisfied, however, from the information they had obtained as to the volume of correspondence passing to and from the ports of Conception Bay, that a scheme would be practicable for establishing a system, which should carry postal facilities to the principal settlements as far north as Twillingate and as far as Gaultois on the south-west coast. They were encouraged to make the proposition by the rapid progress made by the post office at St. John's during the eight years of its operation. The revenue of this office had increased from £595 in 1841 to £1545 in 1849.

The committee proposed as an interim measure that the stipendiary magistrates in the ports at which post offices should be established, might

be called upon to act as postmasters in those places. The foundation of the service to the north would be a conveyance by messenger from St. John's to Portugal Cove. From this point, a sailing vessel would carry the mails to Brigus, Harbour Grace and Carbonear; from Carbonear, a messenger would cross the peninsula to Heart's Content on Trinity Bay; a sailing vessel would serve Trinity and Catalina on the other side of the bay, and from the latter point a messenger would continue the transmission to Bonavista. From Bonavista, the mails would be carried to the outermost points of the system, Greenspond, King's Cove, Cat Harbour, Fogo and Twillingate, by vessel and messenger. It was estimated that the several services within this part of the system would cost £575 a year.

To the south, there would be couriers down the coast to Trepassey, serving Ferryland on the way; and to Placentia, by way of Salmonier and St. Mary's; thence on to Gaultois with stopping places at Burin and Garnish. The southern route should be covered for £325 a year. These routes would displace services by vessel to Placentia, Bonavista and Fogo, as well as couriers to Ferryland and St. Mary's, which with expenses for the incidentals were a charge of £520 upon the colony. It was expected that the improved services proposed would provide travelling accommodation for the judges, school inspectors and other officials, and by the savings thus effected, the increased outlay for the postal system would be largely made up.

In the following year (1851) an act was passed by the legislature providing £1000 for the establishment and maintenance of the inland post office proposed by the committee. The appointment of all postmasters was vested in the governor, and the management of the system was to be placed in the hands of the postmaster of St. John's. His salary was to be £75 a year (doubtless in addition to the £100 sterling, which he held under his imperial appointment), the postmasters of Harbour Grace and Carbonear were to receive, each, £15 a year, and the other postmasters £10.

The postage on letters passing anywhere within the island was fixed at threepence per half ounce; and on books, twopence where the weight did not exceed six ounces, and threepence on greater weights up to sixteen ounces. The scheme outlined came into operation on October 15, 1851.

The first report of the postmaster general was a serious disappointment. The total receipts for the year amounted to no more than £52 2s. 11*d.*, and this amount was received entirely from St. John's and the three offices on Conception Bay. Letters, on which postage somewhat under £6 was due, were sent to other offices, but not one penny was collected upon them. The committee of the assembly which examined the accounts inclined to the opinion that the postal system might, for the time, be restricted to the offices on Conception Bay.

Solomon was rather alarmed by these expressions of the committee, and in his next report he dealt, in some fulness, with the peculiar difficulties that attended the establishment of a postal system in the colony. No very great regularity, he declared, could be anticipated while the couriers were retarded by the marshy and swampy nature of the roads on the most important lines. Under the most favourable circumstances, their journeys were made over mere tracks or footpaths, while the less frequented routes lay through wilds where neither roads nor paths had been formed and where unbridged rivers and streams had to be crossed, the couriers being often obliged to wade to a considerable depth, exposed to strong, rapid currents.

The postmaster general acknowledged that it was on his advocacy of the system that Delaney, the chairman of the committee, introduced the subject into the assembly. He was under no illusions as to the rapid growth of the revenue; his object was to secure to the inhabitants, who were excluded for the greater part of every year from the advantage of communication with the capital, a ready means of maintaining intercourse with the centre of the social and commercial life of the island. He was encouraged by the increasing revenue to believe that his efforts were being crowned with success.

The step the committee feared might be forced upon them was not taken. On the contrary, the postal system was extended liberally in every direction in which it seemed to be required, in adherence to the principle which guided the postmaster general in advocating the inland service.

In 1858, the colony, having decided on the desirability of direct communication with the mother country, sent to England two delegates—Little, the attorney general and Lawrence O'Brien—to confer with the

government and leading shipowners on the subject of a steam service from a British port to St. John's. When the delegates made their first report, they had not succeeded in their objects, but they were encouraged by the recognition accorded to the scheme by the British government and by the promise of a subsidy of £3000 a year to any satisfactory service the government of Newfoundland might arrange for.

It was not long before plans were submitted for their consideration. In the same year, the North Atlantic Royal Mail Steam Navigation Company laid before Little a proposition for a regular service between Liverpool, St. John's and a port in the United States. The company were prepared to undertake a contract for trips of a frequency of not less than one every four weeks, with additional trips during April, July and August, for £10,000 a year. A contract was made on this basis, the understanding being that the British government would contribute £3000 of this amount. But the British government, being satisfied from earlier experiences with the personnel of this company that they could not be depended upon to fulfil their arrangement, declined to sanction the contract, and the arrangement fell through.

In intimating to the Newfoundland government their refusal to endorse the contract, the British government expressed their willingness to assist in procuring a competent contractor; and in October of the same year, an agreement was made with the Atlantic Royal Mail Steam Navigation Company, known more generally as the Lever or Galway Company, for a service of virtually the same frequency as that provided for in the earlier contract, between Galway, St. John's and a United States port. The rate of compensation was to be £13,000 a year, of which the British government was to contribute £4500 a year.

Though for political reasons, this company enjoyed an unusual degree of favour on the part of the British government, it failed entirely to satisfy the conditions of the contract, and after a short period of futile effort, it ceased altogether. It was not until 1872 that an arrangement with the Allan line provided the first direct communication with Great Britain.

In 1860, on the death of Solomon, John Delaney, who had made the postal service his special care while a member of the assembly, was appointed

postmaster general. His first measure was to provide for St. John's what he described as a penny delivery service. After consultation with the chief post office inspector in Canada, he submitted his scheme to the legislature. He proposed to divide the city into two sections, to each of which he proposed to appoint a letter carrier to deliver the letters from door to door, not gratuitously as at present, but for a compensation of a penny for each letter delivered. The plan was put into operation on September 1, 1863, but it had little success at the time.

Steps were also taken in 1863 to improve the accommodation to the outports by substituting a steam vessel for the sailing boats, by which the exchange of mails was effected. In November 1860, a contract was made with Aaron DeGraw, of New York, for a service north and south from St. John's. The steamer "Victoria" was to run twice in each month to Twillingate on the north, and to La Poile on the south-west coast, calling at all the post offices *en route*. The consideration was £3750 a year.

The contract provided for the service for five years. But a few months after it went into operation, the contractor represented that he was unable to continue, unless the terms were modified. He asked that the trips on the northern section might be reduced from fortnightly to monthly during the winter, and that he might omit certain of the ports of call; or, if the legislature were unwilling to lower their requirements, that he might have his compensation increased by £1500 a year.

The application of DeGraw was not entertained by the legislature, and the contractor dropped his service shortly after. Recourse was had to the sailing vessels until 1863, when a more satisfactory arrangement was concluded with Robert Grieve on June 2, 1863. The contract stipulated for fortnightly trips in each direction, and the compensation was fixed at £4500. The "Ariel" was the steamer employed by Grieve for the service.

The coastal service, thus satisfactorily established from St. John's down the east and along the south coasts as far as La Poile, was extended to Port aux Basques on the south-west corner of the island by a sailing vessel. This completed the postal communications on the southern shore of the island.

The west coast was still to be comprised in the system. In 1873, arrangements of an experimental nature were made to send mails from Port

aux Basques (or Channel as the post office was called) to St. George's Bay, Bay of Islands and Bonne Bay on this coast. A courier service was also set in operation to provide communications to those settlements during the winter, but many difficulties were encountered owing to the inacquaintance with the country on the part of the couriers, who had to pass on their way between Channel and these bays.

The arrangement thus experimentally entered upon continued until 1881, when the sailing craft, which carried the mails to Bonne Bay was withdrawn, and the steamer "Curlew," by which Channel post office received its mails from St. John's, extended its trips up the north-west coast as far as Bonne Bay.

The conveyance of the mails up this coast was carried on to the top of the island in the following year. Two trips were made by couriers from Bonne Bay to Flower Cove at the gulf entrance to the straits of Belle Isle. From Flower Cove, the journey of the courier ran along the shore of the straits to Pistolet Bay at the northernmost point of the island, and thence on the Griquet which looked from the north of the island on the Atlantic, and down the Atlantic coast to St. Anthony.

Another courier set out from Flower Cove and travelling due east across the island carried the mail to Conche, which served the settlements on Hare Bay. At the same time that the process of encirclement was proceeding from the western side, the settlements of Western Cove, Mings and Coachman's Cove on White Bay, the northernmost of the series of great bays by which the Atlantic coast is indented, were having the benefits of communication extended to them from Bett's Cove, in Notre Dame Bay.

The benefits of these trips were so greatly appreciated by the fishermen in the northern parts of the island that the department arranged for regular fortnightly services during the winter from Bonne Bay along the west coast to the top of the island, and thence down the east coast as far as Canada Bay. On the other side the steamers which carried the mails northward from St. John's to the settlements on Notre Dame Bay, also conveyed bags for the settled districts in White Bay. These were sent forward monthly from Bett's Cove. Thus was completed the system of coastal service by which every

part of the island was brought into communication with the capital of the colony.

On the larger and more thickly settled bays, it was obviously impossible for the steamers which sailed from St. John's to stop at any but the more populous villages, and within each of these bays smaller craft plied to the less important settlements. In 1881, there were eight such sailing vessels in the service of the post office: one each in Bonavista and Trinity Bays, three in Placentia Bay, two in Fortune Bay, and one which effected the exchange of mails at Harbour Breton. In Conception Bay, where there were two towns and several villages a steamer was employed.

But though the settlements in Newfoundland were at this period practically all on the coasts, and depended mainly on seacraft for the means of communication, the conveyance of mails to the northern settlements was in the winter one of great danger and difficulty.

As early as 1863, it was determined to make the experiment of serving these settlements by couriers who should travel over an overland route. In February of that year, Smith McKay undertook the delivery by land, so far as that was possible, to Greenspond, on the stretch of coast between Bonavista and Notre Dame Bay, and to Fogo and Twillingate, islands in Notre Dame Bay. The success attending this trip induced the postmaster general to make a contract for three trips each winter.

The government also planned the construction of a road, which would make communication easier between the northern outports and St. John's. The work was entered upon with vigour, the reports of progress making an interesting feature of the annual papers of the legislature. In 1868, a serviceable road was constructed to Gander Bay, an inlet of Notre Dame Bay, whence the mails were conveyed to the important villages of Twillingate and Fogo by sailing vessel.

In 1870 the road was complete. It was estimated to be 210 miles in length. There were six relay stations on the route, and ten men employed in the conveyance. The course pursued by the courier took him from Harbour Grace, his starting point, down the shore of Conception Bay; thence along the isthmus separating Trinity from Placentia Bay, serving the settlements on each side of the isthmus. From the top of the isthmus, the road

maintained a northerly direction, running generally parallel with the Atlantic coast, as far as Greenspond, from which point it turned westward across the country to Gander Bay.

The postal accommodation on the peninsula of Avalon was greatly augmented by the completion of the railway between St. John's and Harbour Grace in 1884. On January 1, 1885, all the principal offices at the bottom of Conception Bay were supplied with mails daily, and Heart's Content and other offices on Trinity Bay had their mails three times a week. The extension of the branch to Placentia in October 1888 gave that village the benefit of an expeditious service three times a week.

The northern settlements were given the benefit of the more speedy service afforded by the railway. The winter arrangements were expedited and extended. In 1870, when this service was put on a settled footing, ten couriers were employed. In 1890, their number was increased to fifty-four. The mails for the northern districts were despatched from St. John's by railway to Broad Cove station, where they were taken over by the couriers. Their greater number enabled the couriers, not only to shorten their relays, but to establish a trunk line to the settlements of Hall's Bay and Little Bay on Notre Dame Bay, with branch lines running to the more important settlements to the east and west. The overlapping of the western and northern courier systems at White Bay gave the dwellers in those remote regions the opportunity of replying to their letters without loss of time.

Communication was established with the settlers on the Labrador coast in 1875. Previous to that time, mails were sent as the opportunity was afforded by sailing vessels visiting that coast. In that year, a regular fortnightly service was put in operation, the steamer by which the mails were carried connecting with the steamer on the northern route.

The "Ariel," which was first employed on this route having been lost in September of the same year, its place was taken by the "Walrus," whose work gave much satisfaction to the department. In 1881, an arrangement was made by which the steamer running on the northern route from St. John's extended its trip to Battle Harbour, where it was met by the Labrador vessel, which served all the settlements as far north as Nain.

A money order system was an early adjunct to the primary functions of the post office. In 1862 the postmaster general of Prince Edward Island proposed an exchange with Newfoundland, on the basis of the arrangement between that colony and Canada. The postmaster general, Delaney, was eager to accept the proposition, but there were delays, and it was not until 1864 that an exchange was adopted. This exchange was not with Prince Edward Island, however, but with Great Britain.

At the beginning of 1865 exchanges were established with Canada, Nova Scotia and Prince Edward Island, and in 1867 with New Brunswick. In 1866 a domestic exchange was set on foot, the system embracing the twelve leading post offices besides St. John's.

Delaney endeavoured to come to an arrangement of the same character with the United States, but the department at Washington was unable to adopt the proposition at the time, and it was only in 1876 that arrangements were completed for an exchange through the intermediation of the Canadian service.

The comparative lack of banking facilities in the island gave the money order system an unusual utility. At the end of 1865, the amount of the money orders exchanged was \$13,112. In the first ten years the business expended to \$58,712; in twenty years, its volume had increased thirteen-fold, being \$174,740.

Though a steam vessel could make the voyage from the shores of Cape Breton to the south-west coast of Newfoundland in a few hours, the course of communication between the island and Canada and the United States was lamentably infrequent. As late as 1895, mails were exchanged with these countries no more frequently than once a week.

The completion, however, of the railway across the island in the autumn of 1896, changed the aspect of affairs. Trains travelled from St. John's to Port aux Basques, three times a week, touching in their course the bottoms of the great bays, which mark the coast lines on either side of the island. On each of the bays, steamers plied in close connection with the trains, thus giving all the settlements of the island the maximum of benefit to be obtained from a single line of railway. A steamer ran from the western end of the line at Port aux Basques to North Sydney in Cape Breton, and by a night's voyage,

Newfoundland was brought into connection with the system of communications on the continent of North America.

The exchange of mails between Canada and Newfoundland remained at a frequency of three times a week until 1914 when it was increased to a daily service each way; and the inland service has been so improved that there is no district in the island, however remote, has not at least a weekly communication with the capital, while nearly all the towns and villages of any importance exchange mails with St. John's every day.

In the sphere of telegraphy the progress has not been less marked. Unlike Canada and the United States, but as in the mother country and most other countries, the telegraphs are under the control of the government, and administered by the postmaster general. Until 1901, this was not the case. By a concession granted by the legislature in 1854, the Anglo-American Telegraph Company obtained the exclusive privilege of communicating abroad by telegraphy, and of erecting and operating lines within the colony.

The system established under this privilege was naturally confined to the more populous districts, and indeed, it covered little beyond the peninsula of Avalon. The outlying parts of the island, embracing all the settlements on bays north of Trinity, and west of Placentia Bays were, in general, without the means of communicating with the capital by telegraph.

The company turned a deaf ear to all appeals which did not promise an augmentation of their profits. They had no objection to the government running lines to the remoter regions, as such messages as would be sent to St. John's from those parts must pass over the company's lines when they came within the system marked out by the company for themselves in virtue of their monopoly. The government would, in that case, bear the loss entailed by the maintenance of these lines, and the company would absorb the additional revenue arising from the transmission of these extra-territorial messages over their lines.

With the development of the fishing, mining and lumbering industries in all parts of the island, the extension of the means of telegraphic communication beyond the peninsula of Avalon became a necessity, and the government had no option but to provide these means, wherever the importance of the districts seemed to demand it.

Thus there grew up two systems, an inner and an outer one, the latter depending on the former for the means of access to the capital of the island. All messages to and from the outer system were subject to a double charge, for transmission over both systems. While messages circulating within the peninsula of Avalon had the advantage of the moderate charge of twenty-five cents for ten words, messages from outside the peninsula were subject to double that rate.

The government were helpless in the matter. They endeavoured vainly to come to terms with the company by which they might erect a line of their own from St. John's to Whitbourne, a village about sixty miles from St. John's, at which the lines of the outer system connected with those belonging to the company. The company, however, stood firmly on the letter of the bond, and it was not until the approach of the time when the monopoly, which was for a period of fifty years, would expire, that they became at all unbending.

An event of far-reaching importance took place in November 1901 in the arrival of Marconi to experiment as to the possibility of opening communication across the Atlantic by his wireless system of telegraphy. Early in December, he caught at his station on Signal Hill near St. John's some signals sent out from the Lizards in Cornwall, thereby establishing a new agency for conducting communication between Europe and America. When he had assured himself of the success of his experiments, he set about obtaining a site for a permanent station on Cape Spear. But no sooner had the Anglo-American company become aware of his intentions than they notified him that his proposed measures would be an infringement of their monopoly.

Thus blocked, Marconi resolved to return to England, but an opportune invitation from the Canadian government led him to turn his attention to the advantages that might be obtained on the eastern coast of Cape Breton. He was not long in selecting a site at Table Head, near Glace Bay, where he erected a station, and has demonstrated the feasibility of wireless communication across the Atlantic for commercial purposes.

INDEX

Allan, William, postmaster of York, recommended to be deputy postmaster general of Upper Canada, [104](#)

Amherstburg, post office opened at, [101](#)

"Anglo-Saxon" steamship of Allan line wrecked, [312](#)

Annapolis, post office opened in, [178](#)

Antigonishe, distributing office for all settlements to eastward, [180](#)

Antill, (John), postmaster of New York, [69](#)

Augusta, post office opened at, [89](#)

Bache, Richard, appointed secretary of the revolutionary post office, [64](#)

Baie Verte, post office opened at, [182](#)

Barbadoes, postal arrangements for, [4](#)

Barons, Benjamin, deputy postmaster general for southern division, [35](#), [note 2](#)

Belleville, post office opened at, under name of Bay of Quinte, [117](#)

Bermuda, Canadian mails from Great Britain, sent to, [124](#)

Berthier, post office opened at, [79](#)

"Bohemian" steamship of Allan line wrecked, [313](#)

Boston, post office opened in, [2](#);
communication with New York, [6](#);
postage between Philadelphia and, [10](#);
postage from Virginia, [10](#);
Cunard steamers land Canadian mails at, [225](#)

Brantford, post office opened at, [117](#)

"Britannia," Cunard steamer, makes first trip to Halifax, [219](#)

British Columbia, beginnings of postal service to, [322](#);
inland service, [324](#), [326](#);
rates of postage, [325](#);
incorporation into dominion postal service, [326](#);
completion of Canadian Pacific railway, [326](#);
expansion of service between Confederation and, 1914, [327](#)

British North America, royal commission recommends postal systems in, be put under one superior, [235](#)

Buchanan, James, British consul at New York, advocates communication between colonies and Great Britain by way of New York, [186](#)

Canada, Post Office in—

Pre-revolutionary Period.

Post office established by Franklin, [1](#);
connected by mail service with New York, [1](#);
arrangements under French régime, [39](#);
postage rates as fixed by act of 1765, [43](#)

Revolutionary Period.

Connection with New York discontinued, [65](#);
Americans make proposals for its continuance, [65](#);
service between Montreal and Quebec resumed after expulsion of Americans, [72](#);

Haldimand's objections to resumption of regular service, [72](#)

Post-revolutionary Period.

United States forbid Canadian couriers to carry mails over its territory, [80](#);

Canadian post office obliged to send mails for England by Halifax route, [81](#);

its disadvantages, [81](#);

sketch of postal system in 1827, [155](#);

financial statements to be submitted to legislatures, [206](#);

fixed salaries to be paid, with exclusion of all perquisites, [206](#);

difficulties in way of satisfactory arrangements for administration, [207](#);

first financial statement laid before legislature, [210](#);

legislature of Upper Canada demands surplus revenues, [211](#);

Lord Durham's recommendations regarding post office, [212](#);

defects of postal administration disclosed by royal commission, [234](#);

legislature concurs in resolutions of interprovincial postal conference, [271](#);

provincial governments assume control of post office, [273](#);

great expansion of, [275](#);

reduction in postage rates, [275](#);

revenue from 1851 to 1867, [275](#)

Post-Office of Dominion of Canada.

Number of post offices in 1867 and 1914, [327](#);

railway mail service expansion, [327](#);

reductions in postage, [328](#);

Canada becomes a member of the Universal Postal Union, [329](#);

imperial penny postage introduced, [330](#);

imperial scheme of newspaper postage proposed by postmaster

general of Canada, [330](#);

expansion of money order and savings bank system, [331](#)

"Canadian" (the first) steamship of Allan line wrecked in St. Lawrence, [308](#)

"Canadian" (the second) steamship of Allan line, wrecked, [311](#)

Cape Breton, establishment of postal service in, [183](#)

Cayley, William, inspector general of Canada, representative at postal conference in Montreal, [268](#)

Cedars, post office opened at, [89](#)

Chambly, arrangements for delivery of mails at, [79](#)

Charlestown, delays in postal service of, [35](#);
included in packet system, [35](#)

Charlottenburg, post office opened at, [89](#)

Chester, Pa., postal rate from Philadelphia to, [7](#)

"City of Manchester" steamship of Inman line lost off Nova Scotia coast, [309](#)

Colonial Postal Systems, in their relations to Great Britain, policy regarding extensions of service, [97](#), [100](#), [103](#);

remonstrance of Upper Canada against excessive and illegal postage, [133](#);

reply to these remonstrances, [134](#);

legality of control of colonial systems by Great Britain, [135](#), [136](#);

Great Britain refuses information as to revenues, [141](#);

considerable profit on colonial service, [142](#);

reception given to address from Upper Canada, [148](#);

attack on administration of Canadian post office, [160](#);

contentions against imperial absorption of surplus revenue from, sustained by law officers, [165](#);

acceptance of decision by postmaster general, [166](#);

course of procedure to establish proper relations, [169](#);

act of imperial parliament, 4, William IV. c. 7, [170](#);

draft act for adoption of legislatures, [170](#);

accountant appointed, [171](#);

how the British proposals were viewed in Maritime provinces, [188](#),

in Upper Canada, [193](#), [202](#),

in Lower Canada, [199](#);

Stayner on British proposals, [200](#);

Stayner's views accepted by legislative council of Lower Canada, [202](#);

British government willing to amend proposals, [203](#);
royal commission appointed to investigate conditions in colonial service, [233](#);
commission recommends that postal system in British North America be put under one resident deputy postmaster general, [235](#);
proposition of postmaster general to withdraw from control of, [263](#);
conditions of withdrawal, [266](#);
Lord Elgin instructed by colonial secretary on subject, [267](#);
his message to Canadian legislature, [267](#);
legislative committee in Nova Scotia consider the subject, [267](#);
conference of provincial representatives in Montreal, [268](#);
their report, as laid before governor general, [269](#);
British treasury approves generally conclusions of report, [270](#);
Nova Scotia legislature adopts terms of report in act, [270](#);
Canada and New Brunswick concur, [271](#);
act sanctioning arrangement passed by imperial parliament, [271](#);
Prince Edward Island enters arrangement, [272](#)

"Columbia" steamship of Cunard line lost off Nova Scotia coast, [309](#)

Committees of Correspondence take measures to establish colonial post office, [60](#)

Connecticut, terms of first post office bill in, [9](#)

Cornwall, post office opened at, [89](#)

Coteau du Lac, post office opened at, [89](#)

Crane, William, urges direct steamship service between Great Britain and Halifax, [217](#)

Crown Point, post office opened at, [65](#)

Cunard, Samuel, awarded contract for transatlantic steam service, [218](#)

Dashwood, secretary of colonial post office prisoner of war, [66](#);
liberated by exchange, [69](#);
appointed postmaster general of Jamaica, [79](#)

Delancy, Peter, deputy postmaster general for southern division, [35](#)
[note 2](#)

Delaware, Falls of, postal rate from Philadelphia to, [7](#)

Deputy postmaster general, relations to governor, [96](#);
limitations on his freedom of administration, [97](#);
agent for collection of United States postage, [126](#);
newspaper postage, perquisite of, [160](#);

nomination of postmasters withdrawn from, [239](#)

Detroit, postal communication opened with, [89](#)

Digby, post office opened in, [178](#)

Dongan, Thomas, governor of New York, endeavoured to establish postal service in colonies, [7](#)

Dorchester, New Brunswick, post office opened at, [182](#)

Durand, details of his journey between Quebec and Halifax with mails, [81](#)

Durham, Lord, recommendations respecting Canadian post office, [212](#)

Eastern Townships, mail communication opened between Three Rivers and, [117](#)

Elizabethtown, post office opened at, [89](#)

Fairbank, Richard, first postmaster in Boston, [2](#)

Falmouth, Maine, defiance of post office monopoly at, [50](#)

Finlay, Hugh, appointed postmaster of Quebec, [42](#);
interferes on behalf of *maîtres de poste*, [46](#);
appointed post-office surveyor, [46](#);
explores country between Quebec and New England, [47](#);
inspects postal service from Maine to Georgia, [50](#);
appointed joint deputy postmaster general of northern division of North America, [58](#);
reputed author of account of siege of Quebec, [69](#);
his activities outside post office, [74](#);
appointed superintendent of *maîtres de poste*, [76](#);
loses position of deputy postmaster general of northern division of North America, and becomes deputy postmaster general of Canada, [79](#);
report on route between Quebec and Halifax, [85](#);
appointed deputy postmaster general of British North America, [86](#);
removal from this position, [94](#);
death, [74](#)

Fort Edward, post office opened at, [65](#)

Fothergill, Charles, postmaster of Port Hope, [144](#);
attacks post office management, [144](#)

Foxcroft, John, joint deputy postmaster general, [2](#), [27](#);
prisoner of war, [66](#);
liberated by exchange, [69](#);
appointed British packet boat agent at New York, [79](#)

Franking Act, passed by legislature of Upper Canada, [209](#);
on Stayner's objections it was disallowed, [210](#)

Franklin, Benjamin, postmaster of Philadelphia, [1](#);
deputy postmaster general, [1](#), [2](#), [26](#);
established post office in Canada, [1](#);
increases postal facilities, [26](#);
nature of his influence in administration of post office, [27](#);
his views on post office revenues as taxes, [55](#);
his dismissal as joint deputy postmaster general, [58](#);
his continued good relations with officials of general post office, [59](#);
appointed postmaster general of revolutionary post office, [64](#);
his views on nature of postage quoted in support of imperial control,
[145](#)

Fredericton, post office opened in, [178](#)

Gagetown, post office opened at, [182](#)

Gaspé, slender postal accommodation in, [162](#)

Goddard, William, labours for establishment of revolutionary post office, [60](#);
his career, [60](#);
draws up scheme, [63](#);
unsuccessful candidate for postmaster generalship, [64](#);
appointed surveyor, [64](#)

Grand Trunk Railway, construction of, [278](#)

Great Western Railway, construction of, [278](#)

Grenville, post office opened at, [116](#)

Guelph, post office opened at, [153](#)

Halifax, post office established at, [33](#), [173](#);
postage rates to, by sea, in 1765, [44](#);
petition that Halifax be terminal port of transatlantic steamers, [217](#);
British government agrees, [218](#);
contract awarded to Samuel Cunard, [218](#);
scheme for concentrating all mails from Great Britain for North America at, [219](#);

its failure, [220](#);

Nova Scotia asks that the post office at, should be maintained by imperial post office, [245](#);

removal of post office to Dalhousie college building, [252](#)

Hamilton, post office opened at, [117](#)

Hamilton, Andrew, deputy of patentee for American post office, [9](#);

his plans for establishment of postal service, [9](#);

his death, [17](#)

Hamilton, John, succeeds his father, Andrew Hamilton, as deputy postmaster general, [17](#)

Hawkesbury, post office opened at, [116](#)

Hazen, R. L. of executive council of New Brunswick, representative at postal conference in Montreal, [268](#)

Head, Sir Francis Bond, orders dismissal of postmaster of Lloydtown, [213](#);

demands authority to dismiss postmasters whom he deemed guilty of disloyalty, [214](#);

orders removal of postmaster of Toronto, [214](#)

Heriot, George, succeeds Finlay as deputy postmaster general, [96](#);

personal characteristics, [96](#);

unsuccessful aspirant to seat in legislative council, and to superintendency of *maîtres de poste*, [97](#);

in disfavour with governor, [98](#);

altercation with Sir Gordon Drummond, [109](#);

retirement, [113](#)

Heyman, Peter, appointed postmaster of Virginia, [13](#)

Horton, post office opened in, [178](#)

Howard, James, dismissed from postmastership of Toronto, on charge of disloyalty, [214](#)

Howe, John, the elder, deputy postmaster general of Maritime provinces, [180](#);

his capable management, [180](#);

his retirement, [181](#)

Howe, John, the younger, succeeds his father, [181](#);

controlled majority of newspapers in Halifax, [187](#);

criticism of, [251](#);

his death, [251](#)

Howe, Joseph, urges direct steamship service between Great Britain and Halifax, [217](#)

Hudson's Bay Company, conveys the mails to and from Manitoba and North-West territories, [317](#);
limitations on correspondence, [318](#)

Hull, post office opened at, [116](#)

"Humboldt" steamship of the American line lost off Nova Scotia coast, [309](#)

Hume, Joseph, M.P., obtains information respecting Canadian postal service, [161](#)

"Hungarian" steamship of Allan line wrecked, [309](#)

Hunter, Peter, Lieutenant Governor, had road constructed from Bay of Quinte to York, [100](#);
endeavours to secure mail service to Upper Canada, [100](#)

Hunter, William, joint deputy postmaster general, [26](#)

Huntingdon, Herbert, confers with general post office respecting Nova Scotia post office, [191](#)

Illegal conveyance of letters in Canada, [150](#);
in Nova Scotia, [249](#);
in New Brunswick, [256](#)

"Indian" steamship of Allan line wrecked, [309](#)

Johnston, J. W., Solicitor General of Nova Scotia, representative at postal conference in Montreal, [268](#)

Kennebec route, Finlay explores, [47](#)

Kingston, Upper Canada, post office opened at, [89](#)

Kingston, New Brunswick, post office opened at, [182](#)

Knox, William, scheme of communications between England and North America, [87](#)

Labrador, mail service opened between Newfoundland and, [342](#)

Lachine, post office opened at, [89](#)

Lancaster, post office opened at, [89](#)

Lanoullier, Nicholas, obtained privilege to establish post office in Canada, [40](#);
his plans, [41](#);
failure, [41](#)

Lanoullier de Boisclair, his difficulties in maintaining roads, owing to popular indifference, [78](#);
his death, [78](#)

Letters, mode of calculating postage on, [20](#)

Lloydtown, postmaster of, dismissed for part in affairs of 1837, [213](#)

London, post office opened at, [117](#)

Lovelace, Francis, Governor of New York, arranged for postal service between New York and Boston, [6](#)

Lower Canada, condition of route between Montreal and Quebec, in 1783, [78](#);
mode of communication with Great Britain, [105](#);
frequency of service between Quebec and Montreal, [105](#), [109](#);
report of assembly on surplus postal revenues, 1827, [149](#);
Stayner declines to give information to committee of assembly, [161](#);
lack of postal accommodation in, [161](#), [196](#);
address of assembly to King respecting post office, [163](#);
report of legislative committee on postal affairs, 1836, [199](#);
Stayner admonished to cease sending surplus revenue to England, [199](#);
agitation caused in general post office over post office bill of Lower Canada, [205](#)

Macaulay, John, former postmaster of Kingston, chairman of committee of legislative council on postal affairs, [207](#)

Mackenzie, William Lyon, presented petition for investigation of post office, [143](#);
interviewed Colonial Secretary respecting postal affairs, [167](#);
his views on administration of post office, [167](#);
evidence of, before Lower Canada committee on newspaper postage, [196](#);
challenges action on underpayment, [197](#)

Maîtres de Poste, lack of regulations for, [45](#);
Finlay's interference on behalf of, [46](#);

unsuccessful efforts to assimilate their position to that of masters of post houses in England, [75](#);
indispensable for the carrying of mails, [75](#);
character of their service, [97](#);
amenities on post road, [99](#)

Manitoba, and North-West provinces, early postal arrangements in, [316-321](#);
proposition for direct overland service with Canada, [320](#);
Manitoba incorporated into Canadian postal system, [322](#);
United States postal service utilized for communication with other provinces, [322](#);
direct railway communication with Eastern Canada, [322](#);
expansion of service between Confederation and, 1914, [327](#)

Marconi, Guglielmo, proved success of transatlantic wireless system of telegraphy in Newfoundland, [345](#)

Maritime provinces, early means of communication between places in, [175](#);
with Great Britain, [176](#)

Maryland, postal rate from Philadelphia to, [7](#);
proceedings of legislature respecting establishment of post office, [12](#)

Massachusetts, terms of first post office act in, [9](#), [10](#);
postal rates to, [10](#);
post office act of, disallowed, [10](#);
rejects draft of new bill, [12](#)

Matthews, Captain John, chairman of post office committee of assembly of Upper Canada, [143](#)

Michillimackinac, postal communication opened with, [89](#)

Miramichi, arrangements for delivery of mails at, [181](#);
post office opened at, [182](#)

Money Order System, establishment of, in Canada, [276](#);
in Nova Scotia, [280](#);
in Newfoundland, [343](#);
expansion of operations between 1868 and 1914, [330](#)

Montreal, post office opened at, [1](#), [42](#);
description of route between New York and, [37](#);
post road between Quebec and, [38](#);
mail service opened between New York and, [42](#);
mail service opened between Quebec and, [43](#);
frequency of service between New York and Montreal at outbreak of

revolutionary war, [65](#);
embraced in revolutionary postal system, [66](#);
postmaster resents having soldiers billeted on him, [71](#);
governor orders his dismissal, [72](#);
Daniel Sutherland postmaster of, [114](#);
conditions in post office at, [128](#);
mean situation of post office, [194](#)

Montreal Gazette, proprietor of, begins attack on Stayner respecting newspaper postage, [159](#)

Neale, Thomas, given patent for American post office, [8](#);
assigns his patent, [17](#)

New Brunswick, postal system of, transferred to control of deputy postmaster general of Nova Scotia, [155](#);
establishment of inland service in, [178](#);
postal charges in, [178](#);
changes in routes as result of war of 1812, [179](#);
no additions to service until 1820, [181](#);
communication with Great Britain by way of United States, [185](#);
objections of Nova Scotia to arrangement, [186](#);
condition of, in 1841, [255](#);
report of legislature, [256](#);
erected into separate department, [257](#);
demands for reduced postage, [258](#);
legislature concurs in resolutions of interprovincial postal conference, [271](#);
provincial government assumes control of, [273](#);
expansion of postal service, [281](#);
rates of postage, [281](#);
revenue and expenditure, [282](#);
attitude of government towards deficits, [282](#)

New Castle, Pa., postal rate from Philadelphia to, [7](#)

New England, confederation of, postmaster appointed for, [7](#);
direct route from Quebec to, surveyed, [47](#);
Governor Wentworth of New Hampshire assists in establishment of another route to Canada, [49](#);
Governor Hutchinson of Massachusetts not encouraging as to route, [49](#)

Newfoundland, post office in, early mode of communication with England, [333](#);
postage rates to, [333](#);
connection with England by Cunard steamers at Halifax, [334](#);
inland postal system established, [336](#);
efforts to secure direct service to England, [338](#);

improvements and extensions of inland service, [339-342](#);
railway available between St. John's and Harbour Grace, [342](#);
communication with Labrador, [342](#);
money order system established, [343](#);
government telegraphs, [344](#)

New Hampshire, terms of first post office act in, [9](#), [11](#);
postage rates to, [10](#);
act allowed by privy council, [11](#)

New Haven, modes of evading post office monopoly at, [51](#)

New Johnston, post office opened at, [89](#)

Newspapers, transmission of, not provided for in imperial postal act, [61](#);
arrangements for distribution of, by post, [61](#);
defects in scheme, [62](#);
agitation for change in method of collecting postage, [158](#);
rates charged, [158](#);
postage is perquisite of deputy postmaster general, [160](#);
attack on this system, [160](#);
Stayner advises change of system, [165](#);
question of postage in Maritime provinces, [186](#);
W. L. Mackenzie's evidence on evasions, [196](#);
Stayner's defence of his practice in taking perquisites, [198](#);
abolition of postage, as perquisite, and establishment of fixed rate, [241](#);
postage after provinces take control of post office, [276](#);
imperial scheme of postage proposed, [330](#);
rates between 1875 and 1914, [332](#)

New York, city of, earliest postal arrangements for, [4](#);
communication with Boston, [6](#);
postage rates from Philadelphia, Boston and Virginia, [10](#);
headquarters of colonial postal system, [19](#), [60](#);
John Antill postmaster of, [69](#)

New York, colony of, terms of first post office act in, [9](#);
postage rates to, [10](#);
act allowed by privy council, [11](#)

Niagara, postal communication opened with, [89](#)

North American Colonies (now United States), extent of postal system, [1](#);
first post office, [2](#);
mode of communicating with England, [2](#), [5](#);
early attempts at postal service between, [6](#), [7](#);
patent for postal service granted to Thomas Neale, [8](#);

line of posts established in 1693, [15](#);
revenue of postal system, 1693-1697, [15](#);
proposed arrangement for exchange of mails with England, [15](#);
effect of imperial act of 1711 on status of colonial post office, [18](#);
deficient revenues from postal system, [25](#);
evasion of postmaster general's monopoly, [25](#), [50](#);
increase in facilities under Franklin, [26](#), [29](#);
prosperous condition of postal system, [26](#);
sailing packets established between England and, [29](#), [34](#);
arrangements for service to southern colonies, [35](#);
establishment of southern division of the postal system, [35](#);
summary of packet service in 1764, [36](#);
summary of whole postal system, [44](#);
surplus revenue in 1764, [44](#);
unpopularity of the post office, [45](#);
inspection report of system from Maine to Georgia, [50](#);
New York, administrative centre, [60](#);
proposition to suppress colonial post office, [64](#);
post office ceases its function, [65](#);
Foxcroft and Dashwood, prisoners of war, [66](#)

"North Briton" steamship of Allan line wrecked, [311](#)

Northern Railway, construction of, [278](#)

"Norwegian" steamship of Allan line wrecked, [312](#)

Nova Scotia, establishment of inland postal service, [178](#);
postal charges in, [178](#);
changes in route as result of war of 1812, [179](#);
difficulties of deputy postmaster general in complying with
demands for increased service, [179](#);
his success, [179](#);
state of postal service in 1817, [180](#);
legislature assisted in maintaining mail service, [180](#), [244](#);
legislature determines to take control of postal service, [190](#);
bill to that end disallowed, [190](#);
satisfactory arrangement arrived at, [191](#);
mail service between Pictou and Halifax improved at greatly
augmented cost, [223](#);
friction with Canada over maintenance of this service, [223](#);
defects in postal service disclosed by royal commission, [234](#);
characteristics of post office as compared with the Canadian post
office, [243](#);
demand of legislature that Halifax should be maintained by imperial
post office, [245](#);
deficit in revenue of, [246](#);
investigated by British post office official, [248](#);
findings of investigation, [248](#);
salary of deputy postmaster general, [250](#);

interference of local government with, [250](#);
Arthur Woodgate succeeds Howe as deputy postmaster general on death of latter, [252](#);
agitation for reduced postage, [252](#);
legislative committee discuss question of provincial control, [267](#);
legislature adopts conclusions of interprovincial conference, [270](#);
provincial government assumes control of, [273](#);
expansion of service, [280](#);
mode of communication with Canada, [280](#);
postage rates, [280](#);
registration, and money order system introduced, [280](#);
revenue and expenditure, [281](#);
railway mail service in, at Confederation, [281](#)

O'Callaghan, Dr. E. B., chairman of legislative committee on postal affairs, [198](#)

Ormonde, Marquess of, makes proposals for ocean steamship service, [127](#)

Osnabruck, post office opened at, [89](#)

Ottawa, first known as Richmond landing, [115](#)

Ottawa River, steamer on river between Long Sault and Hull, [116](#)

Pennsylvania, beginnings of postal service in, [7](#);
terms of first post office act in, [9](#);
postage rates to, [10](#);
act allowed by privy council, [11](#)

Pensacola, included in packet system, [35](#)

Perth, opening of post office at, [114](#)

Philadelphia, postal arrangements between, and outlying places, [7](#);
postage rates from Boston, New York and Virginia, [10](#)

Postage Rates, in former colonies (now United States), [7](#), [8](#), [10](#), [13](#), [16](#), [20](#), [22](#);
mode of calculating postal charges, [20](#), [178](#);
in Canada under act of 1765, [43](#), [133](#);
under revolutionary postal system, [66](#);
general practice to collect on delivery, [71](#), [238](#);
mode of collection between Canada and United States, [91](#), [125](#);
Governor Simcoe's view as to disposal of surplus postage, [93](#);
between Canada and Great Britain, under post office regulations, and by private ship, [122](#), [123](#);

postage rates in New Brunswick, [178](#);
great reduction in rate between Canada and Great Britain, [227-229](#);
royal commission report on inland rates, [236](#);
weight system introduced, [240](#);
agitation for reduction, [242](#), [252](#), [258](#);
recommendations of Nova Scotia legislature, [268](#);
recommendations of interprovincial conference, [270](#);
reductions in Canada, [275](#),
 in Nova Scotia, [280](#),
 in New Brunswick, [281](#);
rates in British Columbia, [325](#);
imperial penny postage, [330](#);
imperial newspaper rates, [330](#);
inland rates two cents per ounce, [331](#);
between St. John's, Newfoundland, and England, [333](#);
inland postage in Newfoundland, [334](#);
rates under colonial postal system, [337](#)

Postage Stamps, introduced in Canada, [275](#)

Postal Revenues, from 1693 to 1697, [15](#);
surplus in 1764, [44](#);
surplus from Canada in 1822, [142](#);
average surplus from Canada for seven years ending 1825, [148](#);
average surplus from Canada for 1825 and 1826, [161](#);
imperial act of 1834 to transfer revenues to provinces, [170](#);
reception of act in Maritime provinces, [188](#),
 in Upper Canada, [193](#);
surplus for period ending 1834, [199](#);
governor general declines to stop remitting to England, [205](#);
legislature of Upper Canada petitions for surplus, [211](#);
surplus from Canada, [242](#);
expansion of revenue, 1868-1914, [331](#)

Postmasters, exempt from billeting, [71](#);
postmaster at Montreal represented that he had been excepted from regulation, [71](#);
nomination of, removed from deputy postmaster general to governor general, [239](#);
Stayner's fruitless objections thereto, [240](#)

Post Office Commission, personnel, and duties, [233](#);
report of, [234](#)

Post Office Convention, between Canada and United States, [90](#);
between Great Britain and United States, [283](#)

Post Office Surveyorship, established, [47](#);
Finlay appointed to, [47](#);
two appointed, [171](#)

Post Road, between Montreal and Quebec, account of, [38](#);
constructed by Lanoullier de Boisclair, [41](#)

Post Roads, arrangements with *maîtres de poste* for conveyance of
post office couriers, [43](#)

Prince Edward Island, early arrangements for postal service, [185](#);
condition of postal service, 1827-1841, [260](#);
post office managed by provincial government, [261](#);
legislature concurs in resolutions of interprovincial postal
conference, [272](#)

Quebec and Halifax mail service, details of route, [76](#);
trip by Durand in 1784, [81](#);
measures to open communication by land, [83](#);
improving New Brunswick section of route, [84](#);
proposition to follow Bay of Chaleurs route, [107](#);
conditions of service in 1840, [220](#)

Quebec, post office opened at, [1](#);
post road between Montreal and, [38](#);
mail service opened between Montreal and, [43](#);
route from, to New England surveyed, [47](#);
account of earlier explorations of this route, [47](#);
expense of journey met by subscription in Quebec, [48](#);
post office building in, destroyed by fire, [239](#)

Railways, beginnings and development in Canada, [277](#);
economy of time effected by use of, [278](#);
postal cars employed on, [278](#);
augmentation of expenses through using, [279](#);
rates of payment for mail service on, fixed by royal commission,
[279](#);
railways in Nova Scotia at Confederation, [281](#);
uninterrupted line between Atlantic seaboard and Chicago and New
Orleans, [302](#)

Randolph, Edward, postmaster of confederation of New England, [8](#)

Rebellion of 1837, effects of, on post office, [213](#)

Registration, introduced in Canada, [277](#)

Revolutionary Post Office, suggested, [60](#);
scheme for, [63](#);
Franklin made postmaster general, Bache, secretary, and Goddard,
surveyor, [64](#);

extended to Montreal, [66](#);
postage rates to Canada, [66](#);
arrangements for mail service, [66](#)

Revolutionary War, mails taken possession of, by Commanders-in-Chief, who direct their distribution, [69](#)

Richelieu River, efforts to obtain mail service to settlements on, [79](#)

Richibucto, post office opened at, [182](#)

Richmond, Upper Canada, post office opened at, [115](#)

Roads, between Montreal and Quebec, [38](#), [41](#);
between Bay of Quinte and York, [100](#);
between York and Kingston, and York and Ancaster, [103](#) (see Quebec and Halifax).

Robbery of mail, between Montreal and Toronto, [171](#);
curious disclosure by robber, [171](#);
by sympathizers with disaffected, [215](#)

Robinson, John Beverly, defends imperial control of Canadian postal service, [144](#), [147](#)

Rolph, Dr. John, correspondence with deputy postmaster general about opening post office at Delaware, [133](#);
advocates provincial control of postal system, [145](#)

Roupell, George, deputy postmaster general for southern division, [35](#), [note 2](#)

St. Andrews, Lower Canada, post office opened at, [116](#)

St. Augustine, Fort, included in packet system, [35](#)

St. Eustache, post office opened at, [116](#)

St. John, N.B., post office opened in, [178](#)

St. John's, Newfoundland, post office opened at, [333](#);
embraced in imperial system, [334](#);
objections of merchants to regular post office, [335](#);
revenue from 1841 to 1849, [336](#)

St. John's, Quebec, arrangements for delivery of mails to, [79](#)

St. Stephen, post office opened at, [182](#)

St. Thomas, Upper Canada, post office opened at, [117](#)

Sault Ste Marie, post office opened at, [264](#)

Savings Bank, post office, opening of, and expansion of operations, [331](#)

Sherbrooke, post office opened at, [118](#)

Sorel, arrangements for delivery of mails at, [79](#)

Stanstead, post office opened at, [117](#)

Stayner, Thomas Allen, succeeds Sutherland as deputy postmaster general, [153](#);

gains confidence of superiors and a freer hand in administration, [154](#);

declines to give information to committee of Lower Canada assembly, [161](#);

sustained by governor general and postmaster general in his refusal to give information, [162](#);

convinced that arrangement by which newspaper postage became his perquisite should cease, [165](#);

compelled to disclose information regarding post office, [194](#);

disregards admonition of Lower Canada legislative committee to cease sending surplus revenue to England, [199](#);

his income from newspapers and other sources, [200](#);

powers curtailed by governor general, [230](#);

his character [230](#);

nomination of postmasters withdrawn from him, [239](#);

perquisites abolished, and fixed salary substituted, [241](#);

relinquishes control of post office in Canada, [273](#);

his administration characterized, [273](#)

Steamboats, illegal conveyance of letters by, [150](#);

no action taken upon, [152](#)

Sussexvale, post office opened at, [182](#)

Sutherland, Daniel, succeeds Heriot as deputy postmaster general, [114](#);

retires, [130](#), [153](#)

Sydney, Cape Breton, post office in, [184](#)

Telegraphs in Newfoundland, sketch of system, [344](#)

Three Rivers, post office opened at, [1](#), [42](#)

Toronto, postmaster of, dismissed by Bond Head for lack of loyalty,

[214](#) (see York).

Transatlantic Mail Service—

Old Colonial Period.

Earliest arrangements for exchange of correspondence with England, [2](#);

regular packet service established, [29](#), [34](#);

service between England and West Indies, [30](#);

re-arrangement, [35](#);

summary of system in 1764, [36](#)

Revolutionary Period.

Packets withdrawn from regular routes, [67](#);

attacked by privateers, [67](#);

"Lord Hyde" attacked, [67](#);

"Sandwich," [68](#);

"Harriott," [68](#);

"Swallow" captured, [72](#);

"Weymouth" captured, [72](#);

"Le Despencer" captured, [73](#);

"Duke of York" captured, [73](#);

"Harriott" and "Eagle" captured, [73](#);

number of packets captured or damaged, [73](#)

Post-revolutionary Period.

Packet service resumed between England and New York, [80](#);

merchants in Canada demand re-opening of service to England by way of New York, [80](#);

established between England and Halifax, [85](#), [86](#), [173](#);

winter arrangements for British mails to Halifax, [87](#);

elaborate scheme proposed by William Knox for communications between England and North America, [87](#);

conditions of service between 1806 and 1819, [118](#);

proposition of Marquess of Ormonde for ocean steam service, [127](#);

communication between colonies and Great Britain almost entirely through United States, [156](#);

comments of W. L. Mackenzie upon, [168](#)

Steamship Service.

Steamers "Great Western" and "Sirius" carry mails from British ports to New York, [216](#);

petition that Halifax be terminal port for steamers, in North America, [217](#);

British government agrees, and contract is awarded to Samuel Cunard, [218](#);

comprehensive scheme for concentrating all mails from Great Britain for North America at Halifax, [219](#);

its failure, [220](#);

advantages of Boston as terminal port for Canadian mails, [224](#);

Boston substituted for Halifax, [225](#);

arrangements with United States post office for transit across its territory, [225](#);

Cunard steamers make New York principal port of call, [284](#)
Canadian Ocean Mail Service.
Canada invited to join imperial scheme for colonial service, [284](#);
objections of Canada, [285](#);
beginnings of, [286](#);
contract made with Hugh Allan, [286](#);
comparison in speed of Canadian, Cunard and Collins lines, [287](#);
unfriendly attitude of British government towards Canadian line, [287](#);
views of Canadian government on this attitude, [289](#);
negotiations for employment of Canadian steamers for conveyance of British and United States mails, [290](#);
favourable treatment accorded to Cunard line, [292](#);
report of select committee of house of commons, on steamship service, [293](#);
partiality to Galway line at expense of Canadian and Inman lines, [295](#);
condemnation of government of Great Britain by select committee of house of commons, [297](#);
disingenuous conduct of British government towards postmaster general of Canada, [297](#);
weekly service of steamers between Quebec and Liverpool, [302](#);
postmaster general of Canada negotiates with governments of Great Britain and France for use of improved facilities, [302](#);
and with governments of France, Belgium and Prussia, [304](#);
difficulties owing to hostility of general post office, [304](#);
great proportion of mails between Canada and Great Britain carried by Canadian line, [307](#);
series of disasters to steamships of Canadian line, [308-313](#);
parliamentary investigation, [310](#);
new contract with Allans, [314](#)

United States Post Office, postal convention with, [90](#);
goodwill of, towards communication between Canada and Great Britain, [120](#);
cordial relations with, [283](#);
convention of 1848 with, [283](#);
its services utilized for conveyance of mails to Maritime provinces, [280](#),
to Manitoba, [322](#),
to British Columbia, [323](#);
dependence on, for interprovincial correspondence, [327](#)

Universal Postal Union, Canada becomes member of, [329](#);
beneficent results of, [329](#)

Upper Canada, opening of post offices in, [89](#);
Simcoe's plan for separate post office department in, [92](#);
regular mail service established in, [99](#);

arrangement between Amherstburg and Niagara, [101](#);
increased service to, [102](#), [104](#);
deputy postmaster general recommended for, [104](#);
difficulties of correspondence in, [105](#);
postal conditions in, in 1824, [132](#);
legislature begins agitation for improvements, [133](#);
exorbitant charges on letters circulating in, [133](#), [134](#);
protest of legislature, [134](#);
raises question of legality of imperial control of Canadian postal system, [135](#);
report of assembly on subject, [136](#);
report of committee of assembly in 1825, [143](#);
recommendation that postal system should be controlled by province, [144](#);
lieutenant governor opposes pretensions of legislature, [145](#);
report of assembly in 1829, [156](#);
proposition for high administrative officer in, [156](#), [157](#);
continues agitation against postal administration, [163](#);
legislature rejects imperial act respecting disposition of surplus revenues, [193](#);
lack of postal facilities in, [195](#);
legislative assembly of, draw up scheme for provincial post office, [203](#);
report of legislative council on post office, [207](#);
address to King on post office, [208](#);
legislature passes franking act, [209](#);
legislature demands surplus revenue, [211](#);
time occupied in conveying British mails to, by Halifax and by New York, [221](#)

Victoria, British Columbia, extreme isolation of, [323](#)

Viger, Denis Benjamin, interviewed Colonial Secretary respecting postal affairs, [167](#)

Virginia, proposition to establish post office in, [4](#);
rates of postage to Philadelphia, New York, and Boston, [10](#);
proceedings of legislature respecting establishment of post office, [12](#);
early arrangements, [13](#);
efforts to attach to colonial system, [22](#);
frustration of scheme to impose act of 1710 in, [23](#);
included in colonial system, [24](#)

Way Offices, a peculiarity of Maritime provinces, [248](#);
explained, [249](#)

West Indies, packet boats established between Great Britain and, [31](#);

large postal revenues of, [31](#);
packet service restored, [34](#)

Windsor, Nova Scotia, post office opened in, [178](#)

Wolfville, post office opened under name of Horton, [178](#)

Woodgate, Arthur, succeeds Howe as deputy postmaster general of Nova Scotia, [252](#)

York, first post office at, [94](#)

York, Duke of, claim of, on American postal revenues, [7](#)

Young, William, confers with general post office respecting Nova Scotia post office, [191](#)

Transcriber's Notes:

Footnotes have been renumbered and moved from the middle of the text to the end of the chapters in which they appear.

Obvious punctuation errors have been repaired.

The corrections made are indicated by dotted lines under the corrections. Scroll the mouse over the word and the original text will appear. Other than that, printer's inconsistencies in spelling, hyphenation, and ligature usage have been retained.

*** END OF THE PROJECT GUTENBERG EBOOK THE HISTORY OF
THE POST OFFICE IN BRITISH NORTH AMERICA ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.